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BELLE PLAINE USD #357

BOARD POLICY MANUAL

MARCH 2025



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KASB POLICY SERVICE DISCLAIMER

KASB has attempted to provide recommended policies and recommended policy updates which reflect the current legislative charges and intent, court decisions and agency rules and regulations recognizing general operations procedures of schools in Kansas and the nation.

The recommended policies and recommended policy updates have been reviewed by KASB attorneys to ensure compliance with federal and state laws and regulations.

Use of KASB recommended policies does not guarantee the district will not be involved in legal proceedings and challenges to decisions made by the district based on these policies.

KASB assumes no financial or legal liability or responsibility for district losses incurred by the district resulting from litigation filed against the district as a result of the use of the KASB Policy Service recommendations. All recommended policies should be reviewed, discussed, and changed to meet the unique and individual needs of the district and approved by the board.

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The following policies of Unified School District (USD) 357 are the result of a combined effort of the staff at the Kansas Association of School Boards, the Board of Education and district staff.

KASB has written the policy model and integrated the appropriate policies and procedures being used. Upon the completion of the first and second draft, KASB staff consulted with the board and selected district staff members to arrive at the final draft. This final draft was then adopted by the board.

Understanding the Policy System

Policies: principles adopted by the school board to chart a course of action. They tell WHAT is wanted and may also include WHY and HOW MUCH. They should be broad enough to provide the administration with flexibility and guidance in handling the day-to-day issues which arise. They also should be narrow enough to give the administration clear guidance.

This philosophy was incorporated into the thinking that produced the model and guided the board and the district's staff in developing the final, adopted policies.

A binder contains these thirteen sections of policies. These sections are:

A -- SCHOOL DISTRICT ORGANIZATION

B -- SCHOOL BOARD OPERATIONS

C - - GENERAL SCHOOL ADMINISTRATION

D -- FISCAL MANAGEMENT

E -- BUSINESS MANAGEMENT

F - - FACILITY EXPANSION PROGRAM

G -- PERSONNEL (Licensed and Non-Licensed)

H -- NEGOTIATIONS

I -- INSTRUCTIONAL PROGRAM

J -- STUDENTS

K -- GENERAL PUBLIC RELATIONS

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L -- INTERORGANIZATIONAL RELATIONS

M -- RELATIONS WITH OTHER EDUCATION AGENCIES

The policy system's ultimate success depends on using these policies daily to guide the board, administrators and other staff as a management tool to facilitate school board operations and actions.

The Index

The index is designed to help the user find the subject described in the appropriate policy.

When Using This Manual

Proper use of this manual includes, looking up the subject matter in the index and proceeding to the policy section first. Second, check the table of contents which is found in the front of each policy section. Determine if the desired subject is cross-referenced to any other policy. Proceed to the alpha code in the appropriate section and read the policy. Once this is done, cross-references should also be read.

State Law and Negotiated Contracts

Policies do not contain any statutory language or citations, unless necessary or negotiated contract language. They exist in separate documents which should be consulted as needed. If there is doubt about the subject being considered, guidance should be sought from the superintendent or another administrative staff member.

Definitions

1. When the masculine pronoun is used throughout these policies, it is intended to refer to both feminine and masculine antecedents.

2. Wherever the word "superintendent" or "principal" occurs, the words "or designated representative" are assumed to be included.

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Table of Contents

Section A – School District Organization

District Authority **A**

Home Rule

District Goals and Objectives **ABE**

School District Grade Levels **AC**

District Attendance Areas **AD**

School Census **ADA**

School Year **AE**

Virtual Schools

School Calendar **AEA**

School Year and Learning Opportunities **AEB**

Prolonged or Shortened School Year

Additional Learning Opportunities for Students

School Day **AF**

Closing School Buildings **AG**

Building Closure Process

State Board Administrative Review

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A District Authority **A**

The governance of the district shall be vested in the board.

Home Rule

The board shall have authority to conduct district business without specific statutory delegation. The board may transact all school district business and adopt policies the board deems appropriate to perform its constitutional duty to maintain, develop and operate local public schools.

Adopted: 09/09/2013

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ABE **District Goals and Objectives** (See BK) **ABE**

The board shall annually establish and review long-range goals and objectives to guide district operations. All district personnel shall direct their efforts toward achieving district goals and objectives. The superintendent shall give the board periodic reports on progress made towards achieving district goals.

The board shall participate in long-range planning through an annual meeting with the superintendent and designated staff to review progress on the implementation of board priorities, initiatives, and long-range plans. The board also shall consider and act upon objectives and major activities proposed by the superintendent to achieve district goals.

The superintendent shall develop necessary procedures to implement this policy.

Adopted: 09/09/2013

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AC **School District Grade Levels** **AC**

The district will be organized on a PreK-12 plan.

Adopted: 09/09/2013

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AD **District Attendance Areas (See AG)** **AD**

The board shall review school attendance areas as needed and make changes as warranted.

The superintendent shall, annually, or as needed, prepare a written report for the board concerning changes recommended for school attendance areas for the next school year and the reasons for the recommendations. The board shall consider the recommendations following receipt of the report. The recommended changes shall be made available to district patrons. The board may schedule a public hearing to seek input on the proposed changes.

Adopted: 09/09/2013

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ADA **School Census** **ADA**

The board may direct the superintendent to conduct a census of the following:

- The number of potential students living in the district under the age of 5 years;
- The number of potential students residing in the district between the ages of 5 and 21;

The census shall also obtain information related to the planning of transportation services and other information the superintendent considers necessary, such as, but not limited to, birthdates of potential students in those categories.

Adopted: 02/11/2019

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AE **School Year** **AE**

The board shall provide a school year consisting of not less than:

(1) The minimum number of statutorily required school days for students K-12, consisting of not less than 2 1/2 hours for kindergarten students and 6 hours for students in grades 1-12; or

(2) The minimum number of statutorily required school hours for students in grades K-12.

Virtual Schools

If the board sponsors a virtual school, it shall comply with all current regulations of the Kansas State Department of Education, the school district and applicable state laws.

Adopted: 09/09/2013

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AEA **School Calendar** (See IKD) **AEA**

The board shall establish a calendar for each school year. On or before April 15 of each year, the superintendent shall present a recommended school calendar for the next school year. District customs, community interest, legal holidays, staff recommendations and other relevant matters shall be considered. A copy of the current calendar shall be on file in the clerk's office.

Adopted: 09/09/2013

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AEB School Year and Learning Opportunities AEB

(See AE, JBD, JBE, JCDA, and JDD)

Prolonged or Shortened School Year

The board may prolong or shorten the regular academic year. The superintendent shall be responsible for preparing a plan and presenting it to the board, as necessary. The board may prolong or shorten the regularly scheduled academic year because of the following types of circumstances which are stated by way of illustration and not by way of limitation: adverse weather conditions, building maintenance problems, personnel problems, public health reasons, or budgetary problems.

Should the school year be shortened by board action, the board must take steps to ensure the school term provided includes at least the minimum number of days or hours required by Kansas law.

Additional Learning Opportunities for Students

The board may require additional learning opportunities for students not meeting minimum academic or behavioral standards as defined by the board or as outlined in board policy and/or handbook language. Students may be assigned to additional academic sessions taking place:

- before- or after-school;
- on Saturday; and/or
- during the summer.

Truancy laws, suspension and expulsion policies and law, and all appropriate portions of the student behavior code shall apply during additional academic sessions.

Adopted: 10/10/2016

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AF **School Day** **AF**

Except as otherwise provided in the negotiated agreement for staff members covered thereby, the board shall establish the time of beginning and ending the school day and other time schedules.

Adopted: 08/13/2018

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Upon request of the board, the superintendent shall present to the board plans for efficient use of all school attendance centers.

Building Closure Process

The board, by adoption of a resolution, may close any school building at any time it determines the closure would improve the school system of the district. The board may close more than one school building in one resolution. Such a resolution shall require a majority vote of the members of the board and shall require no other approval.

Prior to adopting a resolution closing any school building, the board shall call and hold a hearing on the proposal. The notice of such hearing shall include the reasons for the proposed closing, the name of any affected school building, and the name of any school building to which the involved students shall be reassigned. Such notice also shall include the time, date, and place of the public hearing to be held on the proposal. Such notice shall be published at least once each week for two consecutive weeks in a newspaper of general circulation in the school district. The last publication shall be at least 10 but not more than 20 days prior to the date of the public hearing.

At any such hearing, the board shall hear testimony as to the advisability of the proposed closing, and a representative of the board shall present the board's proposal for such closing. Following the public hearing, or any continuation of such hearing, and after considering all of the testimony and evidence presented or submitted at the public hearing, the board shall determine whether the school building should be closed to improve the school system of the unified school district.

State Board Administrative Review

If a valid request is made not later than 45 days after the adoption of a resolution to close a school building or buildings, the state board of education shall conduct an administrative review of the resolution. In reconsidering such a resolution, the board of education shall hold a public hearing as provided in current law and may approve, modify and approve, or rescind such resolution upon the conclusion of such hearing.

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No resolution adopted in regard to a school closing shall be effective until, at a minimum, the 45-day time period has elapsed with a request for administrative review.

Adopted: 10/09/2023

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Table of Contents

Section B – School Board Operations

Goals and Objectives **BA**

New Member Orientation **BBBB**

Reimbursement for Expenses **BBBF**

Board Committees **BBC**

Advisory Committees

Attorney **BBE**

Special Meetings **BCAC**

Public Hearings **BCAE**

Agenda **BCBD**

Rules of Order **BCBF**

Voting Method **BCBG**

Minutes **BCBH**

Public Participation at Board Meetings **BCBI**

Open Forum

Patron-Requested Agenda Items

Handling Complaints

News Coverage **BCBJ**

Cameras/Recording Devices

Executive Session **BCBK**

Sample Motion

NO BINDING ACTION SHALL BE TAKEN DURING CLOSED OR EXECUTIVE SESSIONS

Developing, Adopting, Amending, and Repealing Board Policy **BDA**

Drafting Policy

Attorney Involvement

Policy Dissemination

Historical Policy Files

Public Input on Policy

Action Allowed When No Policy Exists

School Board Records **BE**

Memberships **BG**

Board Self-Evaluation **BK**

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BA **Goals and Objectives** **BA**

Insert current board goals here if desired. Update annually or as necessary.

Adopted: 09/09/2013

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BBBB **<u>New Member Orientation</u> (See BCBK)** **BBBB**

The superintendent, and/or the board president shall conduct an orientation program to acquaint new board members with board policy, district operations, and procedures. The orientation shall also describe the duties and responsibilities of board members, the superintendent and the clerk. Newly elected and newly appointed board members shall be encouraged to attend workshops for new board members.

Prior to the time they officially take office, newly elected board members shall be invited to attend all board meetings, except when the board is in executive session. They shall receive copies of all agendas, reports and other communications received by current board members except information or material of a confidential nature.

Adopted: 09/09/2013

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BBBF **Reimbursement for Expenses** (See GAN) **BBBF**

No board member shall be reimbursed for expenses incurred for any travel unless the travel has been approved by the board. Board members who provide their own transportation shall be reimbursed for each mile actually traveled in attending board meetings and in the performance of district business. Any payments to board members must be in the form of a reimbursement for amounts previously paid by the board member, and receipts shall be provided by the board member in accordance with the provisions of GAN.

Adopted: 09/09/2013

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BBC **Board Committees** (See CF) **BBC**

The board shall operate at all times as a committee of the whole.

There shall be no standing or temporary board committees except as provided for in this policy. Board members may serve on committees which advise the board.

Sub-committees of the board may be assigned on a temporary basis and shall consist of no more than three board members. Board subcommittees are subject to the open meetings law.

Advisory Committees

After considering administrative recommendations, the board may establish advisory committees. The type and function of each advisory committee shall be dictated by district needs. After considering recommendations of the superintendent and other members of the administrative staff, the board shall appoint all members of board advisory committees.

No financial assistance shall be furnished any committee without prior board approval. The superintendent shall monitor each committee's progress and relay information to the board. As requested, each committee shall report in writing to the superintendent and/or the board.

The board may dissolve any advisory committee at any time. No committee shall exist longer than one year unless reappointed by board action.

Adopted: 09/09/2013

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BBE **Attorney** **BBE**

The board shall appoint an attorney to handle legal matters.

Adopted: 09/12/2022

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BCAC Special Meetings **BCAC**

Special meetings may be called at any time by the president of the board or by joint action of any three board members. Written notice, stating the time and place of any special meeting and the purpose for which the meeting has been called shall, unless waived, be given to each board member at least two calendar days in advance of the special meeting. No business other than that stated in the notice may be transacted at the special meeting.

Adopted: 02/11/2019

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BCAE **Public Hearings** (See BCBI and KN) **BCAE**

The board may hold public hearings on matters which the board deems appropriate.

Public hearings will be held at a convenient time and a suitable place.

The board president or vice-president shall preside at public hearings and shall request every participant to state name, residence and purpose for speaking. After a hearing is called to order the board may delegate another individual to run the actual hearing.

Adopted: 09/09/2013

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BCBD Agenda **BCBD**

The board shall adopt an agenda at the beginning of each meeting. The superintendent shall distribute background material concerning agenda items to all board members prior to each meeting, which then shall be referred to as the annotated agenda.

The board agenda shall be compiled by the superintendent in cooperation with the board president. Other board members may request items to be placed on the agenda. The agenda may include a period of time when the public may speak to the board.

The annotated agenda shall be sent to all board members at least two calendar days prior to any regular board meeting.

The agenda format may include:

- monthly reports to the board;
- a consent agenda containing routine business and information items;
- financial reports including monthly listing of bills ready for payment;
- important correspondence;
- bids, specifications;
- attendance center reports; and
- requests for hearings and other such information

Other items and reports may be added to the agenda.

Adopted: 09/09/2013

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BCBF Rules of Order (See BCBH) **BCBF**

The board shall be governed by laws and rules adopted by the board. Robert's Rules of Order shall not be adopted by the board.

The president (or vice president in the absence of the president) shall preside at all meetings. The president shall present each agenda item for discussion or designate the superintendent or other staff member to present the agenda item. If both president and vice president are absent, the members present shall elect a president *pro tempore* who shall serve only for that meeting or for that part of the meeting in which the president and vice president are absent.

Any board member who wishes to make a motion, second a motion, or discuss pending business shall first secure recognition of the board president.

All formal board actions shall be taken by ordinary motions unless a formal resolution is required by law.

It shall not be necessary for a motion to be before the board to discuss an agenda item which has been presented by the board president for consideration. In the ordinary course of events, the board shall discuss all matters other than routine procedural questions prior to the making of a motion so reaching of consensus may be facilitated.

The following motions shall be in order:

- To recess;
- To take action;
- To amend a motion to take action, but the amending motion shall be disposed of before any other motion to amend the main motion shall be in order;

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- To defer action, either finally or to a specific time, date, and place;
- To go into executive session; and
- To adjourn, either finally or to a specific time, date, and place.

The president may call a meeting to order or, without objection from a majority of the board, call for a break or adjourn the meeting without a motion.

Adopted: 09/09/2013

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BCBG **Voting Method** **BCBG**

The board shall take action by way of motions. No motion may be acted upon until it has been seconded by a board member. The vote on all motions shall be by "yes" and "no" and will be taken by a show of hands or other public voting method. Following each vote, the president shall announce the motion carried or failed by a vote of ___ affirmative votes to ___ negative votes. The minutes shall indicate whether a motion passed or failed. Each board member shall have the privilege of explaining any vote.

Any abstaining vote shall be counted as a "no" vote. (See KSA 72-1138)

Any member may declare a conflict of interest in a particular issue and shall leave the meeting room until discussion and voting on the matter is concluded. The minutes shall note that a particular member has declared a conflict of interest and left. The minutes shall also record the time the member left the meeting and when the member returned to the board meeting.

Adopted: 08/13/2018

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BCBH **Minutes** (See BCBF) **BCBH**

Accurate minutes of each board meeting shall be taken and transcribed. The clerk shall be responsible for taking and transcribing minutes of each board meeting. The board shall designate an acting clerk if the clerk is absent. Neither the superintendent nor a board member may serve as acting clerk. Unofficial minutes shall be sent to the board after each meeting. The board shall review minutes of each meeting as soon as practicable, shall make any corrections or changes required to make the minutes accurately reflect board actions taken, and then approve the minutes as presented or changed.

The minutes shall clearly reflect all motions voted on by the board, including board actions taken on motions which did not pass. The minutes will not contain a summary of each statement, either written or oral, made by a board member, a guest or a member of the staff unless the board chooses to have written remarks made part of the minutes. If a request is made, the board may direct the clerk to attach a copy of the written remarks to the original minutes.

Adopted: 09/09/2013

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BCBI **Public Participation at Board Meetings** (See BCAE and KN) **BCBI**

Open Forum

The president or presiding officer may ask patrons attending if they would like to speak during the open forum. Rules for the public forum will be available from the clerk prior to the board meeting and at the meeting itself. The board president may impose a limit on the time a visitor may address the board. The board president may ask groups with the same interest to appoint a spokesperson to deliver the group's message. Except to ask clarifying questions, board members shall not interact with speakers at the open forum.

Patron-Requested Agenda Items

Any patron may request addition of a specific agenda item and shall notify the superintendent {seven} days prior to the meeting and state the reason(s) for the request. The superintendent shall determine whether the request can be solved by staff without the patron's appearance before the board. If not, the superintendent shall consult with the board president, and the patron's request may be placed on the next regular board meeting agenda.

Handling Complaints

The superintendent may refer complaints to the board only if a satisfactory adjustment cannot be made by a principal, the superintendent, or other appropriate staff members.

Adopted: 09/09/2013

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BCBJ **News Coverage** **BCBJ**

The board may provide accommodations for members of the news media present at board meetings. The superintendent may provide copies of the board agenda to news media prior to each board meeting upon request or as required by law. At an appropriate time, the board or superintendent may explain board action.

Cameras/Recording Devices

Use of cameras, photographic lights, and recording devices at any board meeting shall be allowed subject to reasonable rules, which are designed to ensure orderly conduct. All recording devices, including microphones, shall be kept in an area designated for the media. Use of recording devices shall not interfere with or disrupt the meeting. No cameras or recording devices shall be allowed at executive sessions of the board.

Adopted: 09/09/2013

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BCBK **Executive Session** **BCBK**
(See BBBB, BE, CN, CNA, ECA, IDAE, II, JDD and JRB)

The board shall conduct executive sessions only as provided by the Kansas Open Meetings Act ("KOMA").

Any motion to recess for a closed or executive session shall include:

1. A statement describing the subjects to be discussed during the closed or executive meeting;
2. the justification for closing the meeting; and
3. the time and place at which the open meeting shall resume.

A subject of executive session is the matter or issue presented for discussion, and the motion must include a brief description of the subject(s) to be discussed in the executive session while still protecting privacy interests.

Acceptable justifications for recessing into executive session include the following:

- The non-elected personnel exception under KOMA;
- The exception for matters which would be deemed privileged in the attorney-client relationship under KOMA;
- The exception for employer-employee negotiations under KOMA;
- The exception for data relating to financial affairs or trade secrets of corporations, partnerships, trusts, and individual proprietorships under KOMA;
- The exception relating to actions adversely or favorably affecting a student, under KOMA;
- The exception for preliminary discussion relating to the acquisition of real property under KOMA;
- The exception under KOMA for school security matters to ensure the security of the school, its buildings, and/or its systems is not jeopardized.

Discussion during the closed or executive session shall be limited to those subjects stated in the motion. No binding action shall be taken during the closed or executive session. The complete motion to recess into closed or executive session shall be recorded in the minutes of the meeting and maintained as a part of the permanent records of the board.

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If necessary, the closed or executive session may be extended with approval of another motion made after the board returns to open session.

Adopted: 09/09/2024

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BCBK - EXECUTIVE SESSION

Sample Motions for Executive Session

A motion looks like the following. "I move we go into executive session to [fill in subject(s)] pursuant to [fill in justification], and the open meeting will resume in the board room at [fill in time]." If the board wishes to invite additional individuals, such as the superintendent, into executive session, they should also mention them in the motion.

SUBJECTS TO BE DISCUSSED (Provide a brief description of what subject will be discussed while still protecting important privacy interest)	**JUSTIFICATION**
Example: discuss an individual employee's performance	non-elected personnel exception under KOMA
Example 1: discuss confidential student information **Example 2:** hold a student discipline appeal hearing	the exception relating to actions adversely or favorably affecting a student under KOMA
Example: discuss coding mechanisms PowerSchool uses to secure student data with PowerSchool representatives	the exception for data relating to financial affairs or trade secrets of corporations, partnerships, trusts, and individual proprietorships under KOMA
Example: discuss potential litigation with our legal counsel	the exception for matters which would be deemed privileged in the attorney-client relationship under KOMA
Example: discuss the latest proposal for increasing the base pay rate from the teachers	the exception for employer-employee negotiations under KOMA
Example: discuss potential properties for a new middle school site	the exception for preliminary discussion of the acquisition of real property under KOMA
Example 1: discuss the high school crisis plan **Example 2:** discuss the exact placement of security cameras and alarms throughout the buildings	the exception under KOMA for school security matters to ensure the security of the school, its buildings and/or its systems is not jeopardized

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BDA **Developing, Adopting, Amending, and Repealing Board Policy** (See CM, GAA and JA)**BDA**

The board shall adopt all policies, regulations, and handbooks, all of which are deemed to be board policy. Board policies, regulations, and handbooks may be amended or repealed at any board meeting by a majority vote of the board.

Drafting Policy

The superintendent shall recommend policy changes. The superintendent may involve appropriate staff members, patrons, community members, or students when revising or drafting new policy.

Attorney Involvement

Board policies or recommended changes thereto may be submitted to legal counsel to determine their legality before they are submitted to the board.

Policy Dissemination

Changes in board policy shall be disseminated as appropriate. The superintendent shall ensure appropriate dissemination of current policy and removal of obsolete policies from the board's policy system. At least one current policy manual shall be accessible in the central business office. Current board-approved policies may be posted on the district website, or other website designated by the board. Board members, district staff, patrons and others will be encouraged to use the web site to access current board policy.

Historical Policy Files

The clerk shall keep a historical set of board policies which will reflect all revisions or other actions pertaining to every policy.

Public Input on Policy

Individuals or groups may submit proposed changes in board policy.

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Action Allowed When No Policy Exists

In an emergency, when action must be taken but present policy does not dictate appropriate action, the superintendent shall have authority to act. Any decision shall be subject to board review at the next meeting. The superintendent may recommend any necessary changes.

Adopted: 02/10/2025

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The clerk shall keep an historical set of board policies which will reflect all revisions, amendments or other actions pertaining to every policy.

Public Input on Policy

Individuals or groups may submit proposed changes in board policy.

Adopted: 09/09/2013

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BE **School Board Records** **BE**

(See BCBK, CN, CNA, ECA, II, and KBA)
The board shall keep records necessary to document board actions.

Adopted: 09/09/2013

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The board may maintain membership in the Kansas Association of School Boards and, if a member of KASB, may join and participate in the activities of the National School Boards Association.

Adopted: 09/12/2022

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BK **Board Self-Evaluation** (See ABE) **BK**

The board shall conduct an annual self-evaluation. Each board member shall use a self-evaluation instrument to appraise individual performance or the performance of the board as a whole. Results of these evaluations shall be discussed at least annually, and revised standards and priorities shall be developed to guide the board's development in the coming year.

The board considers the following conditions crucial to self-evaluation:

1. Board members should be involved in developing the standards and process to be used.

The standards may include, but not be limited to:

- educational leadership;
- policy development;
- board member development and performance;
- relationships with the superintendent and other staff members;
- communications with the public;
- fiscal management;
- board meeting organization and committee performance;
- relations with cooperating agencies and other governmental organizations.

2. Evaluation shall be at a scheduled time and place with at least 6 board members present.
3. The evaluation shall be a composite of the individual board members' opinion.
4. The evaluation shall discuss strengths as well as areas needing improvement.

The evaluation results shall be discussed in detail, and the board shall formulate a series of objectives for the coming year. These objectives shall be stated in the form of behavioral change or productivity gains.

Adopted: 09/09/2013

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Table of Contents

Section C – General School Administration

Goals and Objectives of School Administration **CA**

Administrator Ethics **CB**

The administrator:

Organizational Chart **CC**

Superintendent of Schools **CE**

Superintendent Qualifications **CEA**

Superintendent's Duties **CEB**

Superintendent Recruitment **CEC**

Compensation and Benefits **CEE**

Expense Reimbursement and Credit Cards **CEF**

Superintendent's Professional Development Opportunities **CEG**

Evaluating the Superintendent **CEI**

Nonrenewing or Terminating the Superintendent's Contract **CEJ**

Resignation **CEK**

Board-Superintendent Relations **CF**

Administrative Personnel **CG**

Compensation Guides and Contracts

Qualifications and Duties

Recruitment

Assignment

Orientation

Supervision

Evaluation of Administrative Personnel

Administrative Intern Program

Travel Expense and Reimbursement

Suspension **CGK**

Use of Consultants **CJ**

Professional Development Opportunities **CK**

Administrative Teams **CL**

Method of Appointment

Organization

Resources

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Financial

Policy Implementation **CM**

Public Records **CN**

Types of Records

Central Office Records

Building Records

Public Access

Copies of Records

Disposition

Preservation of Documents Pending Legal Action **CNA**

Maintaining Documents

Reports **CO**

Types of Reports

Annual

Budget Reports

Disseminating Reports

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CA Goals and Objectives of School Administration CA

The goal of school administration is to create an environment in which all students can demonstrate continuous academic improvement. The superintendent must possess leadership qualities which motivate all staff members to improve the educational program and to attain the board's goals and objectives. The superintendent, with the board's direction, shall endeavor to mobilize and coordinate available resources to develop an educational program designed to maintain continuous academic improvement and full state accreditation in all schools.

Adopted: 09/09/2013

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CB Administrator Ethics CB

An administrator's professional behavior must conform to an ethical code. The administrator acknowledges schools belong to the public and they must provide educational opportunities to all. An administrator's actions will be viewed and appraised by the community, professional associates, and students. Therefore, the administrator subscribes to the following standards:

The administrator:

- Makes the well-being of students the basis for decision making and action;
- Fulfills professional responsibilities with honesty and integrity;
- Supports the principle of due process as required by law;
- Obeys local, state and national laws;
- Implements all board policies, rules and regulations;
- Pursues appropriate measures to correct those laws, policies and regulations that are not consistent with sound educational goals;
- Avoids using an administrative position for personal gain;
- Accepts academic degrees or professional certificates only from duly accredited institutions;
- Seeks to improve the profession through research and continuing professional development; and
- Honors employment contracts until fulfillment or release.

Adopted: 09/09/2013

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CC Organizational Chart CC

The board may approve an organizational chart for the school district and update it as needed. The organizational chart may be available on the school's website or upon request from the board clerk.

Adopted: 02/10/2025

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The superintendent is the school system's administrative leader and shall have, under the board's direction, general supervision of all the schools. The superintendent is accountable to the board and is responsible for managing the schools in compliance with board policies

The superintendent may delegate powers and duties to other school personnel. Delegating power or duties, however, shall not relieve the superintendent of responsibility for any action taken.

Adopted: 09/09/2013

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CEA **Superintendent Qualifications** **CEA**

The superintendent shall possess, or be eligible for, a Kansas district leadership license.

Adopted: 03/09/2015

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CEB **Superintendent's Duties** **CEB**

The superintendent shall be responsible to:

- serve as the district's chief administrator;
- carry out all board policies and rules;
- oversee safe and orderly schools;
- ensure student achievement for all student groups;
- build positive school/community relations;
- lead the board in developing constructive board/superintendent relations;
- oversee effective and efficient staff performance;
- practice responsible fiscal, facility and resource management; and
- model positive professional attributes.

Adopted: 09/09/2013

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CEC **Superintendent Recruitment** **CEC**

The superintendent search presents the board with an opportunity to recruit individuals who will implement the board's goals. The board shall establish an orderly procedure for employing a superintendent that conforms to generally accepted ethical and legal standards and minimizes misunderstanding in the community. The process should allow the board ample opportunity to evaluate the qualification of a candidate whose professional training and experience meet district needs. The board may solicit applications from qualified staff members and may list the vacancy with placement offices.

The board may select a professional search service who shall screen all applications and recommend finalists to the board for interviews. The board shall interview selected candidates. Board members may visit each finalist's district.

Adopted: 09/12/2022

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The board shall annually determine the superintendent's compensation and benefits. Compensation shall be based on recent performance and the superintendent's ability to carry out board policy.

Adopted: 09/09/2013

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CEF **Expense Reimbursement and Credit Cards** (See CG, GAN and KB) **CEF**

The superintendent's use of a district motor vehicle and a district credit card shall be confined to necessary school business. The board shall annually prescribe limits and restrictions on the use of credit cards and shall monitor monthly receipts and reimbursement expenses.

All rewards points or cash back payments earned using district credit cards are district property and shall be either applied to future district credit card purchases or remitted to the district treasurer for accounting and deposit.

Expenses for district travel in personal vehicles or extended travel incurred in the performance of official duties shall be reimbursed in accordance with the provisions of GAN.

Adopted: 10/12/2015

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CEG **Superintendent's Professional Development Opportunities** **CEG**

The superintendent shall keep updated on new educational practices and shall attend educational conferences and other learning opportunities as approved or required by the board.

Adopted: 09/09/2013

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CEI **Evaluating the Superintendent** (See CGI and GAK) **CEI**

The board shall adopt an evaluation system that provides a basis for formal evaluation of the superintendent's performance. The system shall include the evaluation form used and the process necessary to complete the form.

The board shall evaluate the superintendent using the evaluation form in accordance with current legal requirements for the first four years of employment and annually for the term of the superintendent's employment.

The superintendent's evaluation shall be confidential and be made available only to the board, the superintendent and others as provided by law.

The evaluation instrument shall be on file at the district office with the clerk. Any revisions in the evaluation system shall include input from the superintendent.

Adopted: 09/09/2013

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CEJ **Nonrenewing or Terminating the Superintendent's Contract** **CEJ**

The board may nonrenew or terminate the superintendent's contract.

Adopted: 09/09/2013

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CEK **Resignation** **CEK**

The superintendent may submit a resignation to the board president at a regular or special meeting. The board shall consider the resignation in light of the district's needs.

Adopted: 09/09/2013

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CF **Board-Superintendent Relations** (See BBC) **CF**

The board delegates to the superintendent all administrative duties. The board reserves the ultimate decision in all matters concerning personnel, policy or expenditures of funds; and it will normally proceed in those areas only after receiving the superintendent's recommendations.

Adopted: 08/10/2020

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CG **Administrative Personnel** (See CEF, GAN and KB) **CG**

The board shall employ administrative personnel as needed.

Compensation Guides and Contracts

Administrative personnel shall be compensated for their services with a contracted salary determined by the board. Administrative contracts shall be reviewed annually. The board shall determine the terms and length of each contract. The board's attorney may develop and review administrator contracts. (See KB)

Qualifications and Duties

The superintendent shall develop appropriate job descriptions for each administrative position. When adopted by the board, job descriptions shall be filed in the central office and may be published in the appropriate handbook. Within the limits of policy and terms of the job description, the superintendent's administrative subordinates have full authority to administer district programs.

Recruitment

The board delegates to the superintendent the authority to identify and recommend the appointment of individuals to fill vacant administrative positions. The superintendent shall screen all applicants and may use other staff members to assist. The superintendent shall make recommendations to the board. The district may pay preapproved expenses incurred by candidates interviewed for an administrative position.

Assignment

The board shall solicit the superintendent's recommendations in appointment, assignment, transfer, demotion, termination or non-renewal of any administrative personnel.

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Orientation

The superintendent shall conduct an appropriate administrative orientation program.

Supervision

The superintendent shall be responsible for supervising all administrative personnel.

Evaluation of Administrative Personnel

Administrative personnel shall be evaluated in writing by the superintendent or designee in accordance with legal requirements for the first four years of employment and at least annually thereafter. Administrative personnel files and evaluations shall be available only to the board, the appropriate administrator, the superintendent, and others authorized by law.

Administrative Intern Program

The board may establish, by contract with an approved administrator training institution, an administrative intern program.

Travel Expense and Reimbursement

Travel expenses for administrative staff shall be provided in accordance with CEF and GAN.

Adopted: 02/10/2025

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CGK Suspension CGK

The superintendent shall have the authority to suspend district administrators with pay pending further board action.

The superintendent may suspend administrators with pay for any reason, including, but not limited to, one or more of the following: alleged violation of or failure to implement board policy, rule, or regulation; refusal or failure to follow a reasonable directive of the administrator's supervisor, the superintendent, or the board; the filing of a complaint against the administrator with any civil or criminal authority; the alleged commission of an offense involving moral turpitude; or other good cause.

If a suspension without pay is imposed on an administrator, the administrator is entitled to pay until the administrator has been advised of the basis for suspension and has been given an opportunity to respond.

Adopted 08/12/2019

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CJ Use of Consultants (See CL, DJFA, and ID) **CJ**

The superintendent may contract with professional consultants in accordance with Policy DJFA. The superintendent shall report any use of consultants to the board and provide updates as requested.

Adopted: 09/09/2024

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CK **Professional Development Opportunities** **CK**

The board encourages, and may require, administrators to attend activities which will directly benefit the schools. The district may pay expenses to attend meetings approved by the superintendent.

Adopted: 09/09/2013

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CL **Administrative Teams (See CJ, DJFA, and ID)** **CL**

The board advocates the team concept of school administration.

Method of Appointment

The superintendent shall select the members of each administrative team.

Organization

The superintendent shall determine the organization of each administrative team.

Resources

Within the parameters established by board policies CJ and DJFA, the team may use outside consultants and district resources.

Financial

The superintendent may recommend an administrative team budget to the board.

Adopted: 09/09/2024

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CM Policy Implementation (See BDA, CGK, GAA, and JA) CM

Administrative employees who fail to implement board policies may, by board action, be suspended without pay, demoted, placed on probation, nonrenewed or terminated.

Adopted: 09/12/2022

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CN Public Records **CN**

(See BE, CNA, ECA, HAI IDAE, II, JGGA, and JR et seq.)

The board designates the superintendent as its Freedom of Information Officer. The Freedom of Information Officer shall have the authority to establish and maintain a system of records in accordance with the Kansas Open Records Act and other applicable laws. The board further assigns the clerk to handle requests for records and to serve as the custodian of the records. The custodian shall prominently display and distribute or otherwise make available to the public a brochure concerning record access in the form prescribed by the local Freedom of Information Officer.

Types of Records

A public record means any recorded information, regardless of form or characteristics which is made, maintained or kept by or is in the possession of the district, including those exhibited at public board meetings.

Central Office Records

Records maintained by the superintendent shall include, but not be limited to, the following: financial, personnel, and property (both real and personal) owned by the district.

Building Records

Records maintained by the building principals shall include, but may not be limited to, the following: activity funds, student records, and personnel records. (See JR et seq.)

Public Access

All records, except those subject to exception by the Kansas Open Records Act, shall be open to inspection by the general public during regular office hours

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of any school or the district office. The superintendent will establish procedures for making records available on normal business days when district offices are closed. The district may charge and require advance payment of a fee for providing access to or furnishing copies of public records.

Requests for access to open records shall be made in writing to an official custodian of district records. The official custodian shall examine each request to determine whether the record requested is an open record or is subject to an exception of the Kansas Open Records Act that would allow the record to remain closed. The custodian may also refuse to provide access to a public record or to permit inspection if a request places an unreasonable burden in producing public records or if the custodian has reason to believe that repeated requests are intended to disrupt other essential functions of the district. The custodian shall either grant or deny each request.

If the custodian does not grant the request, the person requesting the record shall receive a written explanation of the reason for the denial within three days of the request, if an explanation is requested. If the requester disagrees with the explanation, the freedom of information officer shall settle the dispute.

Each request for access to a public record shall be acted upon as soon as possible, but not later than the end of the third business day following the date that the request is received. If the request is not acted on immediately, the custodian shall inform the requester, within the three-day window, when and where the open record will be made available. Each custodian shall file all requests and their dispositions in the appropriate office and make reports as requested by the superintendent or the board.

Copies of Records

Copies of open records shall be available upon written request, unless otherwise specified in Kansas or federal law. Requestors may only make abstracts or obtain copies of public records to which they have access under the Kansas Open Records Act. The district shall not be required to provide copies of radio or recording tapes or discs, video tapes, films, pictures, slides, graphics, illustrations or similar

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audio or visual items or devices, unless such items or devices were shown or played during open session of a district board meeting. Similarly, the district shall not be required to provide such items or devices which are copyrighted by a person other than the board. Furthermore, nothing in the Kansas Open Records Act requires the district to electronically make copies available by allowing a requestor to obtain copies by inserting, connecting or otherwise attaching an electronic device provided by the requestor to the computer or other electronic device of the district. Advance payment of the expense of providing access to or furnishing copies of open records shall be borne by the requestor. Under no circumstances shall the documents be allowed out of their usual building location without approval of the official custodian.

The board may prescribe reasonable fees for providing access to or furnishing copies of public records, subject to the following:

- In the case of fees for copies of records, the fees shall not exceed the actual cost of furnishing copies, including the cost of staff time required to make the information available and printing fees of 10 cents per black and white page or 25 cents per color page as applicable.
- In the case of fees for providing access to records, maintained on computer facilities, the fees shall include only the cost of any computer services, including staff time required

Disposition

All district office records shall be kept for at least the minimum length of time required by law.

The clerk is designated as the official custodian of all board and district office records maintained by the district. The Clerk is designated as official custodian of all district office records maintained by the district. Each building principal is designated as official custodian of all records maintained at the building level. In addition to those records required by law, the clerk shall be responsible for preparing and keeping other records necessary for the district's efficient operation.

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District employees shall follow the guidelines found in the student records policies. (See IDEA and JR through JRD)

Adopted: 08/12/2019

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CNA Preservation of Documents Pending Legal Action CNA
(See BCBK, BE, CN, ECA, IDAE, II, JGGA, JR et seq. and KBA)

Maintaining Documents

After the district receives knowledge of legal action against the district or its employees, all documents or electronic information pertaining to the subject of the action must be maintained in any form and may not be destroyed as long as the legal action is pending.

Adopted: 02//10/2025

***** For detailed information, see Federal Rules of Civil Procedure. 34 Production of Documents, Electronically Stored Information, and Tangible Things, or Entering onto Land, for Inspection and Other Purposes.

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CO Reports **CO**

The board may require reports from the superintendent or other staff members. The board delegates to the superintendent authority to request reports from any staff member.

Types of Reports

Annual

The superintendent shall submit to the board an annual report summarizing the district's operations for the preceding school year. The report shall include the accreditation status of each district school building.

Budget Reports

The superintendent shall present a monthly budget report to the board.
The budget report shall be included in the board's agenda and shall include each account, the original appropriation, the amount expended to date, the amount encumbered to date, and the remaining balance in each account.

Disseminating Reports

The board, upon request, may receive copies of reports submitted to the superintendent if there is no potential violation of any staff or students' privacy rights.

Adopted: 09/09/2013

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Table of Contents

Section D – Fiscal Management

Goals and Objectives **DA**

Budget Planning **DB**

Needs Assessment

Annual Operating Budget **DC**

Priorities

Deadlines and Schedules

Encumbrances

Recommendations

Preliminary Adoption Procedures

Hearings and Reviews

Budget Transparency

Management of District Assets/Accounts

Fraud Prevention and Investigation **DE**

Reporting Fraud

Whistleblowers

Grants and other Outside Financial Resources **DFAA**

Standard of Conduct for Federally Funded Contracts **DFAB**

Federal Fiscal Compliance **DFAC**

Time and Effort Reporting by Employees

Recordkeeping

Subrecipient Monitoring

Compliance Violations

Investment of Funds **DFE**

Posting Securities

Fees, Payments and Rentals **DFG**

Fundraising Activities **DFH**

Gifts and Bequests **DFK**

Equipment and Supplies Sales **DFM**

Bonded Employees **DH**

Inventories **DIC**

Petty Cash Accounts **DJB**

Purchasing **DJE**

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Purchasing Authority

Quality Control **DJEB**

Standardization

Quantity Purchasing

Bids and Quotations Requirements **DJED**

Bid Specifications

Procedure

Responsible Bidder

Withdrawal of Bids

Rejection of Bids

Multi-State Purchasing Pools

Local Purchasing **DJEE**

Requisitions **DJEF**

Purchase Orders and Contracts **DJEG**

Payment Procedures **DJEJ**

Purchasing Authority **DJFA**

Administrative Leeway **DJFAB**

Student Activity Fund Management **DK**

Activity Fund Management

Activity Fund Deposits

Inactive Activity Funds

Collection Procedures **DP**

Unpaid Fees and Negative Account Balances

Insufficient Funds Checks

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DA Goals and Objectives **DA**

The board shall adhere to strict fiscal accounting procedures as outlined in board policies and rules. The board shall make an effort to secure goods and services from responsible merchants and vendors at a price and quality that will enable the staff to fulfill the district's educational goals.

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A planned, systematically prepared budget is essential in the management of the district. The board delegates to the superintendent the authority to develop a budget for the board's consideration.

In planning the budget, sufficient moneys shall be allocated in a manner reasonably calculated such that all students may achieve the capacities set forth in K.S.A. 72-3218(c).

Needs Assessment

Each year, the board shall conduct an assessment of the educational needs of each attendance center in the district. Such assessment shall be published on the school district's website. Information obtained from the needs assessment shall be used by the board when approving the budget of the school district to ensure improvement in student academic performance.

The board shall annually review state assessment results and, as part of such review, shall document the following:

- The barriers that must be overcome to have all students achieve proficiency above level 2 for grade level academic expectations on such assessments;
- Any budget actions, including, but not limited to, recommendations on the reallocation of resources that should be taken to address and remove such barriers; and
- The amount of time the board estimates it will take for all students to achieve above level 2 for grade level academic expectations on the state assessments if such budget actions are implemented.

The board shall also prepare a summary of the budget. The budget, the summary of the proposed budget, the needs assessment, and the state assessment documentation shall be on file at the administrative offices of the

school district and available on the school district's website. Notice of the hearing on the budget

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shall include a statement that the budget(s), the summary of the proposed budget, the needs assessment, and the state assessment documentation is on file at the administrative offices of the district and available on the school district's website.

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The district budget shall be prepared by the superintendent in cooperation with selected district employees and shall reflect the district's educational goals, including improvement in student academic performance as described in board policy DB and state law.

The superintendent shall follow the adopted budget.

The district shall fund the operating budget according to approved fiscal and budgetary procedures required by the State of Kansas.

Budget Forms

Budget forms used shall be those prepared and recommended by the Kansas State Department of Education. Budget summary documents shall be prepared on forms provided by the Kansas State Department of Education.

Priorities

The board will establish priorities for the district on a short-term, intermediate and long-range basis, taking into consideration the requirements for budgeting.

Deadlines and Schedules

Deadlines and time schedules shall be established by the board, unless otherwise provided by state law.

Encumbrances

An encumbrance shall be made when a purchase is made or when an approved purchase order is processed. All encumbrances shall be charged to a specific fund. All necessary encumbrances shall be made by the superintendent.

Recommendations

Recommendations of the superintendent and professional staff concerning the district's budget allocations will be presented to the board prior to submission of the tentative draft budget.

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Preliminary Adoption Procedures

The superintendent will be responsible for developing the budget cover letter. It is recommended that the letter include a restatement of the goals and objectives of the district and a list of budget priorities. An explanation of line-item expenditures will be included in the letter. Fund expenditures and line categories will also be explained in terms of how the budget meets the goals and objectives of the district and enhances completion of priority programs. A preliminary draft of the district's budget will be submitted by the superintendent within a timeframe that allows the district to comply with all statutory deadlines.

Hearings and Reviews

The board shall conduct budget hearings according to state law. The minutes of the meeting at which the board approves its annual budget shall state a needs assessment was provided to the board in accordance with board policy DB and state law, the board evaluated such assessment, and the manner in which the board used such assessment in the approval of the district's budget.

District budgets, the summary of the proposed budget, the needs assessment, and the assessment documentation described in board policy DB shall be on file at the administrative offices of the district and available on the district's website.

Budget Transparency

The district shall comply with the requirements of the Kansas Uniform Financial Accounting and Reporting Act and rules and regulations promulgated by the Kansas State Board of Education thereunder in maintaining, reporting, publishing on the district's website, and making available to the public specified budgetary records, forms, and information.

Management of District Assets/Accounts

The superintendent shall establish and maintain accurate, financial management systems to meet

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the district's fiscal obligations, produce useful information for financial reports, and safeguard district resources. The superintendent shall ensure the district's accounting system provides ongoing internal controls. The superintendent shall review the accounting system with the board.

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DE Fraud Prevention and Investigation (See DFAC and KN) DE

All employees, board members, consultants, vendors, contractors, and other parties maintaining a business relationship with the district shall act with due diligence in duties involving the district's fiscal resources. The superintendent shall develop internal controls that aid in the prevention and detection of fraud, financial impropriety, or irregularity.

Reporting Fraud

An employee who suspects fraud, impropriety, or irregularity shall promptly report those suspicions to the immediate supervisor and/or the superintendent. If the superintendent is the subject of the complaint, reports shall be made to the board president or the board's legal counsel. The superintendent shall generally have primary responsibility for any investigations, in coordination with legal counsel and other internal or external departments and agencies as appropriate. If the superintendent is the subject of the report of fraud, impropriety, or irregularity, the board shall retain control over the investigation or may designate its legal counsel or another investigator to act on behalf of the board in investigating the matter and reporting any findings back to the board in accordance with policy KN.

Whistleblowers

The district encourages complaints, reports, or inquiries about illegal practices or violations of district policies, including illegal or improper conduct by the district, its leadership, or by others on its behalf. Reports may include, but not be limited to, financial improprieties, accounting, or audit matters, ethical violations, or other similar illegal or improper practices or policies. The district prohibits retaliation by or on behalf of the district against staff members who make good faith complaints, reports, or inquiries under this policy or for participation in a review or investigation under this policy. This protection extends to those whose allegations are made in good faith but prove to be mistaken. The district reserves the right to discipline persons who make bad faith, knowingly false, or vexatious complaints, reports, or inquiries or who otherwise abuse this policy.

Complaints, reports, or inquiries may be made under this policy on a confidential or anonymous basis. They should describe in detail the specific facts demonstrating the basis for the complaints, reports,

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or inquiries. They should be directed to the superintendent unless otherwise provided above. If the superintendent is implicated in the complaint, report, or inquiry, it should be directed to the board or its legal counsel. The district will conduct a prompt review or investigation in accordance with policy KN. The district may be unable to fully evaluate a vague or general complaint, report, or inquiry that is made anonymously.

An employee who reports evidence of gross misconduct relating to federal grant or contract shall have the protections afforded in policy DFAC.

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DFAA Grants and other Outside Financial Resources **DFAA**

The board encourages the superintendent to secure federal, state and private grants, or other alternative funding sources for use in curriculum development, staff development, instructional or activity programs and other areas as directed by the board.

The board shall approve or deny all grants.

Adopted: 09/09/2013

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DFAB Standard of Conduct for Federally Funded Contracts DFAB

The following standard of conduct shall be followed by board members, district employees, officers, and their agents in an effort to eliminate conflicts of interest and to govern actions while engaged in the selection, award, and administration of contracts on behalf of the district.

No board member, employee, officer, or agent may participate in the selection, award, or administration of a contract supported by Federal funds if he or she has a real or apparent conflict of interest concerning the contract.

For the purposes of this policy, a conflict of interest would include any instance when a board member, employee, officer, or agent; any member of his or her immediate family; his or her partner; or an organization which employs or is about to employ any of the parties indicated herein has a financial or other interest in or receives or would receive a tangible personal benefit from a firm considered for a contract.

Unless otherwise provided herein, no board member, employee, officer, or agent of the district may solicit or accept gratuities, favors, or anything of monetary value from vendors, contractors, or parties to subcontracts. Therefore, these individuals would be prohibited from accepting offers for free entertainment, which would otherwise cost the individual, lodging, transportation, gifts, or meals. However, accepting meals offered by a sponsor and consumed by such individual at school, a school-sponsored activity, or a related event and/or accepting free product samples having a retail value no greater than $100.00 will not be a violation of this policy or standard of conduct.

Employees, officers, and agents of the district found to be in violation of this policy and standard of conduct shall be subject to disciplinary action, up to and including suspension or termination for employees and denial of access to district property and activities and/or the severing of the officer or agency relationship with the district, as appropriate.

Adopted: 09/12/2022

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DFAC **Federal Fiscal Compliance** (See CN, DE, DFAA, and DFAB) **DFAC**

The board shall ensure federal funds received by the district are administered in accordance with federal requirements, including but not limited to the federal Uniform Grant Guidance. This policy outlines the district's responsibilities when federal funding is considered. The board designates the superintendent or designee as the federal programs coordinator and district contact for all federal programs and funding.

The superintendent or designee shall establish, document and maintain a sound fiscal management system to include internal controls and federal grant management standards covering the receipt of both direct and state-administered federal grants and to track costs and expenditures of funds associated with grant awards. The superintendent or desgnee, to assist in the proper administration of federal funds and implementation of this policy, may recommend additional procedures and regulations be adopted to supplement this policy.

The district's fiscal management system shall be designed with strong internal controls, including reasonable cybersecurity and other measures to safeguard information consistent with applicable law, a high level of transparency and accountability, and documented procedures to ensure that all fiscal management system requirements are met. Fiscal management standards and procedures shall assure that the following responsibilities are fulfilled:

- Identification – The district must identify all federal awards received and expended and the federal programs under which they were received.
- Financial Reporting – Accurate, current, and complete disclosure of the financial results of each federal award or program must be made in accordance with the financial reporting requirements of the Education Department General Administrative Regulations (EDGAR).
- Accounting Records expenditure of funds provided for federally-assisted activities.

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- Internal Controls – Effective control and accountability must be maintained for all federal funds, real and personal property purchased therewith, and other assets acquired with federal funding. The district must safeguard all assets and ensure it is used solely for authorized purposes.
- Budget Control – Actual expenditures or outlays must be compared with budgeted amounts for each federal award. Procedures shall be developed to establish determination for allowability of costs for federal funds.
- Cash Management – The district shall maintain written procedures to implement the cash management requirements found in EDGAR.
- Allowability of Costs – The district shall maintain written procedures for determining allowability of all costs charged to each federal award is accurately determined and documented.

Time and Effort Reporting by Employees

All district employees paid with federal funds shall document the time they expend in work performed in support of each federal program, in accordance with law. Time and effort reporting requirements do not apply to contracted individuals.

Recordkeeping

The district shall develop and maintain a records management plan and related board policy, administrative regulations, and/or procedures for the retention, retrieval, and disposition of print and electronic records, including emails.

The district shall ensure the proper maintenance of federal fiscal records documenting:

- Amount of federal funds,
- How funds are used,

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- Total cost of each project,
- Share of total cost of each project provided from other sources,
- Other records to facilitate an effective audit,
- Other records to show compliance with federal program requirements, and
- Significant project experiences and results.

All records must be retrievable and available for programmatic or financial audit.

The district shall provide the federal awarding agency, Inspectors General, the Comptroller General of the United States, and the pass-through entity, or any of their authorized representatives, the right of access to any documents, papers, or other district records which are pertinent to the federal award. The district shall also permit timely and reasonable access to the district's personnel for interview and discussion related to such documents.

Records shall be retained for a minimum of three (3) years from the date on which the final Financial Status Report is submitted, or as otherwise specified in federal law or in the requirements of the federal award, unless a written extension is provided by the awarding agency, cognizant agency for audit, oversight agency for audit, or cognizant agency for indirect costs. If any litigation, claim or audit is started before the expiration of the standard record retention period, the records shall be retained until all litigation, claims or audits have been resolved and final action has been taken.

The district shall ensure that all personally identifiable data protected by statute or regulation is handled in accordance with the requirements of applicable law, regulations, board policy, administrative regulations, and procedures.

Subrecipient Monitoring

If the district awards subgrants, the district shall establish procedures to:

- Assess the risk of noncompliance.
-

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- Monitor grant subrecipients to ensure compliance with federal, state, and local laws and board policy, regulations, and procedures.
- Ensure the district's records are adjusted to cure recordkeeping issues discovered through the subrecipient's audits, on-site reviews, or other monitoring.

Mandatory Disclosures

Employees and contractors must promptly disclose whenever, in connection with the federal award (including any activities or subawards thereunder), it has credible evidence of the commission of a violation of federal criminal law involving fraud, conflict of interest, bribery, or gratuity violations found in Title 18 of the United States Code or a violation of the civil False Claims Act (31 U.S.C. 3729-3733). The disclosure must be made in writing to the federal agency, the agency's Office of the Inspector General, and passthrough entity, if applicable. Recipients and subrecipients are also required to report matters related to recipient integrity and performance in accordance with the law.

Employees and contractors involved in federally funded programs and subrecipients shall be made aware that failure to comply with federal law, regulations, or terms and conditions of a federal award may result in the federal awarding agency or pass-through entity imposing additional conditions or terminating the award in whole or in part.

Whistleblower Protections

An employee shall not be discharged, demoted, or otherwise discriminated against as a reprisal for reporting or disclosing information that the employee reasonably believes is evidence of gross mismanagement of a federal contract or grant, a gross waste of federal funds, an abuse of authority relating to a federal contract or grant, a substantial and specific danger to public health or safety, or a violation of law, rule, or regulation to a federal contract (including the competition for or negotiation of a contract) or person or body described in paragraph (a)(2) of 41 U.S.C. 4712.

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The superintendent or designee shall inform their employees in writing of employee whistleblower rights and protections under the law.

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DFAC ALLOWABILITY OF COSTS – FEDERAL PROGRAMS

Allowability of Costs – Federal Programs

Expenditures of federal funds must be aligned with approved budgeted items. Any changes or variations from the state-approved budget and grant application need prior approval from the state.

Delegation of Responsibility

When determining how the school district will spend its grant funds, the superintendent will review the proposed cost to determine whether it is an allowable use of federal grant funds *before* obligating and spending those funds on the proposed good or service.

Allowability Determinations

All costs supported by federal education funds must meet the standards outlined in EDGAR, 2 CFR Part 3474 and 2 CFR Part 200, Subpart E, which are listed below. The superintendent must consider these factors when making an allowability determination. A section entitled, *Helpful Questions for Determining Whether Costs are Allowable,* is located at the end of this document.

Part 200 sets forth general cost guidelines that must be considered, as well as rules for specific types of items, both of which must be considered when determining whether a cost is an allowable expenditure of federal funds. The expenditure must also be allowable under the applicable program statute (e.g., Title I of the Elementary and Secondary Education Act (ESEA), or the Carl D. Perkins Career and Technical Education Act (Perkins)), along with accompanying program regulations, nonregulatory guidance, and grant award notifications.

Restrictions in state and local rules or policy also must be considered. For example, travel and other job-related expenses incurred by employees are not allowable unless they also are in compliance with board policy GAN, administrative regulations, and related procedures.

Whichever allowability requirements are stricter will govern whether a cost is allowable.

General allowability determination factors include the following:

1. **Be Necessary and Reasonable for the performance of the federal award.** A cost is reasonable if it does not exceed an amount that a prudent person would under the circumstances prevailing when the decision to incur the cost. For example, **reasonable** means that sound business practices were followed, and purchases were comparable to market prices.

   When determining reasonableness of a cost, consideration must be given to:

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DFAC ALLOWABILITY OF COSTS – FEDERAL PROGRAMS

- Whether the cost is generally recognized as ordinary and necessary for the operation of the district or the proper and efficient performance of the federal award.

- The restraints or requirements imposed by such factors as: sound business practices; arm's-length bargaining; federal, state and other laws and regulations; and terms and conditions of the federal award.

- Market prices for comparable costs for the geographic area.

- Whether the individual incurring the cost acted with prudence in the circumstances considering their responsibility to the district, its employees, its students, the public at large, and the federal government.

- Whether the cost represents a deviation from the district-established policies and procedures for incurring costs. (2 CFR Sec. 200.404)

Whether a cost is **necessary** will be determined based on the needs of the program. Specifically, the expenditure must be necessary to achieve an important program objective. A key aspect in determining whether a cost is necessary is whether the district can demonstrate that the cost addresses an existing need, and can prove it. For example, the school entity may deem a language skills software program necessary for a limited English proficiency program.

When determining whether a cost is necessary, consideration may be given to:

- Whether the cost is needed for the proper and efficient performance of the federal award program.

- Whether the cost is identified in the approved budget or application.

- Whether there is an educational benefit associated with the cost.

- Whether the cost aligns with identified needs based on results and findings from a needs assessment.

- Whether the cost addresses program goals and objectives and is based on program data.

2. **Allocable to the federal award.** A cost is allocable to the federal award if the cost is assignable to the federal award or other cost objective. This means that the federal grant program derived a benefit in proportion to the funds charged to the program. (2 CFR Sec. 200.405)

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For example, if fifty percent (50%) of a teacher's salary is paid with grant funds, then that teacher must spend at least fifty percent (50%) of his/her time on the grant program.

3. **Consistent with policies and procedures that apply uniformly to both federally-financed and other activities of the school entity.**

4. **Conform to any limitations or exclusions set forth as cost principles in Part 200 or in the terms and conditions of the federal award.**

5. **Consistent treatment.** A cost must not be assigned to a federal award as a direct cost if any other cost incurred for the same purpose in like circumstances has been allocated to the federal award as an indirect cost.

6. **Adequately documented.** All expenditures must be properly documented. (§200.300 through 200.3009

7. **Be determined in accordance with generally accepted accounting principles (GAAP), unless provided otherwise in Part 200.**

8. **Not be included as a cost or used to meet cost-sharing requirements of federally-financed programs in either the current or prior period.** Some federal program statutes require the nonfederal entity to contribute a certain amount of nonfederal resources to be eligible for the federal program.

9. **Be the net of all applicable credits.** The term "applicable credits" refers to transactions that offset or reduce direct or indirect costs allocable to the federal award. Typical examples of such transactions are: purchase discounts, rebates or allowances, recoveries or indemnities on losses, and adjustments of overpayments or erroneous charges. To the extent that such credits accruing to or received by the direct relate to allowable costs, they must be credited to the federal award, either as a cost reduction or a cash refund, as appropriate. (2 CFR Sec. 200.406)

Selected Items of Cost

Subpart E of Part 200 sets forth principles to be applied in establishing the allowability of fifty-five (55) specific cost items (commonly referred to as Selected Items of Cost), at 2 CFR Sec. 200.420-200.475. These specific cost items are listed in the chart below along with the citation to the section of Subpart E addressing the allowability of that item. These principles are in addition to the other general allowability standards, and apply whether or not a particular item of cost is properly treated as direct cost or indirect (F&A) cost. Meeting the specific criteria for a listed item does not by itself mean the cost is allowable, as it may be unallowable under other standards or for other reasons, such as restrictions contained in the terms and conditions of a particular grant or restrictions established by the state or in Board policy. If an item is unallowable for any of these reasons, federal funds cannot be used to purchase it.

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DFAC ALLOWABILITY OF COSTS – FEDERAL PROGRAMS

School district employees responsible for spending federal grant funds and for determining allowability must be familiar with and refer to the Part 200 selected items of cost section. These rules must be followed when charging these specific expenditures to a federal grant. When applicable, employees must check costs against the selected items of cost requirements to ensure the cost is allowable and also check state, district, and program-specific rules.

The selected item of cost addressed in Part 200 includes the following (in alphabetical order):

Item of Cost	**Citation of Allowability Rule**
Advertising and public relations costs	2 CFR § 200.421
Advisory councils	2 CFR § 200.422
Alcoholic beverages	2 CFR § 200.423
Alumni/ae activities	2 CFR § 200.424
Audit services	2 CFR § 200.425
Bad debts	2 CFR § 200.426
Bonding costs	2 CFR § 200.427
Collection of improper payments	2 CFR § 200.428
Commencement and convocation costs	2 CFR § 200.429
Compensation – personal services	2 CFR § 200.430
Compensation – fringe benefits	2 CFR § 200.431
Conferences	2 CFR § 200.432
Contingency provisions	2 CFR § 200.433
Contributions and donations	2 CFR § 200.434
Defense and prosecution of criminal and civil proceedings, claims, appeals and patent infringements	2 CFR § 200.435
Depreciation	2 CFR § 200.436

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Employee health and welfare costs	2 CFR § 200.437
Entertainment and prizes	2 CFR § 200.438
Equipment and other capital expenditures	2 CFR § 200.439
Exchange rates	2 CFR § 200.440
Fines, penalties, damages and other settlements	2 CFR § 200.441
Fund raising and investment management costs	2 CFR § 200.442
Gains and losses on disposition of depreciable assets	2 CFR § 200.443
General costs of government	2 CFR § 200.444
Goods and services for personal use	2 CFR § 200.445
Idle facilities and idle capacity	2 CFR § 200.446
Insurance and indemnification	2 CFR § 200.447
Intellectual property	2 CFR § 200.448
Interest	2 CFR § 200.449
Lobbying	2 CFR § 200.450
Losses on other awards or contracts	2 CFR § 200.451
Maintenance and repair costs	2 CFR § 200.452
Materials and supplies costs, including costs of computing devices	2 CFR § 200.453
Memberships, subscriptions, and professional activity costs	2 CFR § 200.454
Organization costs	2 CFR § 200.455
Participant support costs	2 CFR § 200.456
Plant and security costs	2 CFR § 200.457

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Pre-award costs	2 CFR § 200.458
Professional services costs	2 CFR § 200.459
Proposal costs	2 CFR § 200.460
Publication and printing costs	2 CFR § 200.461
Rearrangement and reconversion costs	2 CFR § 200.462
Recruiting costs	2 CFR § 200.463
Relocation costs of employees	2 CFR § 200.464
Rental costs of real property and equipment	2 CFR § 200.465
Scholarships,student aid costs and tuition remission	2 CFR § 200.466
Selling and marketing costs	2 CFR § 200.467
Specialized service facilities	2 CFR § 200.468
Student activity costs	2 CFR § 200.469
Taxes (including Value Added Tax)	2 CFR § 200.470
Telecommunication and video surveillance costs	2 CFR § 200.471
Termination costs	2 CFR § 200.471
Training and education costs	2 CFR § 200.472
Transportation costs	2 CFR § 200.473
Travel costs	2 CFR § 200.474
Trustees	2 CFR § 200.475

Helpful Questions for Determining Whether Costs are Allowable -

In addition to applying the cost principles and standards described above, district staff involved in expending federal funds should ask the following questions when assessing the allowability of a particular cost:

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DFAC ALLOWABILITY OF COSTS – FEDERAL PROGRAMS

1. Is the proposed cost allowable under the relevant program?

2. Is the proposed cost consistent with an approved program plan and budget?

3. Is the proposed cost consistent with program specific fiscal rules? For example, the school entity may be required to use federal funds only to supplement the amount of funds available from nonfederal (and possibly other federal) sources, or only as a match for funds from nonfederal sources.

4. Is the proposed cost consistent with EDGAR?

5. Is the proposed cost consistent with specific conditions imposed on the grant (if applicable)?

6. Is the proposed cost consistent with the underlying needs of the program? For example, program funds must benefit the appropriate population of students for which they are allocated. This means that, for instance, funds allocated under Title III of the Elementary and Secondary Education Act (ESEA) governing language instruction programs for Limited English Proficient (LEP) students must only be spent on LEP students and cannot be used to benefit non-LEP students.

7. Will the cost be targeted at addressing specific areas of weakness that are the focus of the program, as indicated by available data?

Any questions related to specific costs should be forwarded to the superintendent who shall consult with the board's legal counsel for clarification as appropriate.

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DFAC CASH MANAGEMENT – FEDERAL PROGRAMS

Cash Management – Federal Programs

Generally, the school district receives payment of federal funds from the Kansas State Department of Education (KSDE) on a reimbursement basis. In some circumstances, the district may receive an advance of federal grant funds. This procedure addresses responsibilities of the district and district staff under those alternative payment methods. In either case, the district shall maintain accounting methods and internal controls and procedures that assure those responsibilities are met when dealing with federal funding.

Payment Methods

Reimbursements -

The school district will initially charge federal grant expenditures to nonfederal funds.

The superintendent will request reimbursement for actual expenditures incurred under the federal grants monthly.

Such requests shall be submitted with appropriate documentation and signed by the requestor.

Requests for reimbursements will be approved by the superintendent.

Reimbursement will be submitted on the appropriate form to the KSDE portal. All reimbursements are based on actual disbursements, not on obligations. KSDE will process reimbursement requests within the timeframes required for disbursement.

Consistent with state and federal requirements, the school district will maintain source documentation supporting the federal expenditures (invoices, time sheets, payroll stubs, etc.) and will make such documentation available for KSDE to review upon request.

Reimbursements of actual expenditures do not involve interest calculations.

Advances -

When the district receives advance payments of federal grant funds, it must minimize the time elapsing between the transfer of funds to the district and the expenditure of those funds on allowable costs of the applicable federal program. (2 CFR Sec. 200.305(b)) The district shall attempt to expend all advances of federal funds within seventy-two (72) hours of receipt.

When applicable, the district shall use existing resources available within a program before requesting additional advances. If available, the recipient or subrecipient must disburse funds

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available from program income (including repayments to a revolving fund), rebates, refunds, contract settlements, audit recoveries, and interest earned on federal funds before requesting additional cash payments. (2 CFR Sec. 305(b)(5))

Advance payments of Federal funds must be deposited and maintained in insured accounts whenever possible.

The recipients or subrecipient must maintain advance payments of Federal funds in interest-bearing accounts unless one of the following applies:

(i) The recipient or subrecipient receives less than $250,000 in Federal funding per year;

(ii) The best available interest-bearing account would not reasonably be expected to earn interest in excess of $500 per year on Federal cash balances;

(iii) The depository would require an average or minimum balance so high that it would not be feasible with the expected Federal and non-Federal cash resources;

(iv) A foreign government or banking system prohibits or precludes interest-bearing accounts; or

(v) An interest-bearing account is not readily accessible (for example, due to public or political unrest in a foreign country).

The school district is permitted to retain for administrative expenses up to $500 per year of interest earned on federal funds. Regardless of the federal awarding agency, interest earnings exceeding $500 per year shall be remitted annually to the Department of Health and Human Services Payment Management System (PMS) through either the Automated Clearing House (ACH) network or a Fedwire Funds Service payment. (2 CFR Sec. 200.305(b)(12))

Pursuant to federal guidelines, interest earnings shall be calculated from the date that the federal funds are drawn down from the G5/G6 system until the date on which those funds are disbursed by the district.

Consistent with state guidelines, interest accruing on total federal grant cash balances shall be calculated on cash balances per grant and applying the actual or average interest rate earned.

Remittance of interest shall be the responsibility of the superintendent.

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DFAC GRANT SUBRECIPIENT MONITORING PROCEDURES-FEDERAL PROGRAMS

In the event the district disperses federal funds received through a federal award to other entities and assigns responsibilities to the outside entity to conduct a portion of the work, the district shall be responsible for determining, on a case-by-case basis, whether the agreement with such entity place the outside entity in the role of a subrecipient receiving a subaward of federal funding, or the role of a contractor.

If the district grants subawards of federal funding to other entities as subrecipients, the district shall be responsible for:

1. Evaluating the entity for risk of noncompliance to determine appropriate monitoring practices.

2. Monitoring the subrecipient entity's implementation to ensure compliance with federal, state, and local laws, conditions of the federal funding award, and board policy and procedures.

3. Notifying the subrecipient entity of identified deficiencies found during the monitoring process and ensuring that identified deficiencies are corrected.

4. Documenting and retaining records on subrecipient identification, notification, evaluation, monitoring, and corrective actions taken.

Definitions

For purposes of policies and procedures related to federal programs, the following definitions shall apply:

Contract – a legal instrument by which a non-federal entity conducts procurement transactions under a federal award. The term as used here does not include a legal instrument, even if the entity considers it a contract, when the substance of the transaction meets the definition of a federal program award or subaward. (2 CFR 200.1)

Contractor – an entity that receives a contract by which a non-federal entity purchases property or services needed to carry out the project or program under a federal award. (2 CFR 200.1)

Pass-through entity – a recipient or subrecipient that provides a subaward to a subrecipient, including lower tier subrecipients to carry out part of a federal program. The pass-through entity under this part plows through the subaward agreement between the pass-through entity and subrecipient. (2 CFR 200.1)

Subaward – an award provided by a pass-through entity to a subrecipient for the subrecipient to contribute to the goals and objectives of the project by carrying out part of a federal award

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received by the pass-through entity. It does not include payments to a contractor beneficiary participant. A subaward may be provided through any form of legal agreement consistent with criteria in with §200.331, including an agreement the pass-through entity considers a contract. (2 CFR 200.1)

Subrecipient – an entity that receives a subaward from a pass-through entity to carry out part of a federal program. The term subrecipient does not include a beneficiary. A subrecipient may also be a recipient of other federal awards directly from a federal agency. (2 CFR 200.1)

Subrecipient Versus Contractor

The district must determine, on a case-by-case basis, whether an entity receiving funds from the district as part of a federal funding program serves in a role of subrecipient or contractor. (2 CFR 200.331)

The superintendent shall be responsible for analyzing the criteria listed in the chart below. The superintendent may consult with the board's legal counsel or other qualified counsel in making such determination.

Subrecipient	Contractor
Creates a Federal assistance relationship	Purpose is to obtain goods and services for the recipient or subrecipient's uses and creates a procurement relationship
Determines who is eligible to receive what Federal assistance	Provides the goods and services within normal business operations
Has its performance measured in relation to whether the objectives of a Federal program were met	Provides similar goods or services to many different purchasers
Has responsibility for programmatic decision making	Normally operates in a competitive environment
Is responsible for adherence to applicable Federal program requirements specified in the Federal award; and	Provides goods or services that are ancillary to the implementation of a Federal program; and
Implements a program for a public purpose specified in authorizing statute, as opposed to providing goods or services for the benefit of the pass-through entity (PTE)	Is not subject to compliance requirements of a Federal program as a result of the agreement. However, similar requirements may apply for other reasons

The district shall notify subrecipients that they have been identified as a subrecipient and that the funding qualifies as a subaward. The district shall provide the subrecipient with the following information as specified at 2 CFR Sec. 200.332 regarding the federal funding award, and any subsequent changes.

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DFAC GRANT SUBRECIPIENT MONITORING PROCEDURES-FEDERAL PROGRAMS

Required information includes:

1. Federal award identification:

   (i) Subrecipient's name (must match the name associated with its unique entity identifier);

   (ii) Subrecipient's unique entity identifier;

   (iii) Federal Award Identification Number (FAIN);

   (iv) Federal Award Date

   (v) Subaward Period of Performance Start and End Date;

   (vi) Subaward Budget Period State and End Date;

   (vii) Amount of Federal Funds Obligated in the subaward;

   (viii) Total Amount of Federal Funds Obligated to the subrecipient by the pass-through entity including the current obligation;

   (ix) Total Amount of the Federal Award committed to the subrecipient by the pass-through entity;

   (x) Federal award project description, as required by the Federal Funding Accountability and Transparency Act (FFATA);

   (xi) Name of the federal agency, pass-through entity, and contact information for awarding official of the pass-through entity;

   (xii) Assistance Listings title and number; the pass-through entity must identify the dollar amount made available under each Federal award and the Assistance Listings Number at the time of disbursement.

   (xiii) Identification of whether the award is for Research and Development; and

   (xiv) Indirect cost rate for the federal award (including if the de minimis rate is charged per use in accordance with §200.414.

2. All requirements of the subaward, including requirements imposed by federal statutes, regulations and the terms and conditions of the federal award;

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3. Any additional requirements that the pass-through entity imposes on the subrecipient for the pass-through entity to meet its responsibilities under the federal award. This includes information and certification (see §200.415) required for submitting financial and performance reports;

4. Indirect cost rate:
   i. An approved indirect cost rate negotiated between the subrecipient and the federal government. If no such rate exists, a pass-through entity must determine the appropriate rate in collaboration with the subrecipient. The indirect cost rate may be either;

      (A) An indirect cost rate negotiated between the pass-through entity and the subrecipient. These rates may be based on a prior negotiated rate between a different pass-through entity and the subrecipient, in which case the pass-through entity is not required to collect information justifying the rate but may elect to do so; or
      (B) The de minimis indirect cost rate,

   ii. The pass-through entity must not require the use of the de minimis indirect cost rate if the subrecipient has an approved indirect cost rate negotiated with the Federal Government. Subrecipient may elect to use the cost allocation method to account for indirect costs in accordance with§200.405(d).

5. A requirement that the subrecipient permit the pass-through entity and auditors to have access to the subrecipient's records and financial statements as necessary for pass-through entity to meet the requirements of this part; and

6. Appropriate terms and conditions concerning the closeout of the subaward.

Evaluation of Risk

The district shall evaluate each subrecipient's fraud risk and risk of noncompliance with subaward to determine appropriate subrecipient monitoring practices. (2 CFR 200.332(c))

The Superintendent or designee shall be responsible for evaluating risk based on the following factors:

1. The subrecipient's prior experience with the same or similar subawards;

2. The results of previous audits, including whether or not the subrecipient receives a single audit and the extent to which the same or similar subawards have been audited as a major program;

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3. Whether the subrecipient has new personnel, or new or substantially changed systems and processes;

4. The extent and results of any federal award agency's monitoring of the subrecipient.

The superintendent or designee shall request adequate documentation from the subrecipient to conduct the evaluation of risk; such documentation may include, but may not be limited to *{**X** } audit reports { **X** } financial reports { **X** } policies and procedures { **X** } detailed descriptions or users' guides of current systems and processes.*

The district shall evaluate subrecipients for risk of noncompliance as specified in the legal agreement or contract.

Based on the results of the risk evaluation, the district may consider imposing specific conditions on implementation of the subaward, in accordance with applicable law and regulations. (2 CFR 200.208, 200.332)

Monitoring

The district shall monitor the implementation and activities of each subrecipient as necessary to ensure that the subrecipient complies with law, regulations and the terms and conditions of the subaward. The pass-through entity is responsible for monitoring the overall performance of a subrecipient to ensure that the goals and objectives of the award are achieved.

As part of the monitoring process, the district shall complete the following steps: (2 CFR 200.331)

1. Review financial and performance reports.

2. Ensure that the subrecipient takes corrective action on all significant developments that negatively affect the subaward. Significant developments include Single audit Findings related to the subaward, other audit findings, site visits, and written notifications from a subrecipient of adverse conditions which will impact their ability to meet the milestones or the objectives of a subaward. When significant developments negatively impact the subaward, a subrecipient must provide the pass-through entity with information on their plan for corrective action and any assistance needed to resolve the situation.

3. Issue a management decision for audit findings pertaining to the subaward provided to the subrecipient, in accordance with applicable law and regulations. (2 CFR 200.521)
4. Resolve audit findings specifically related to the subaward. However, the pass-through entity is not responsible for resolving cross-cutting audit findings that apply to the subaward and other Federal awards or subawards. If a subrecipient has a current Single Audit report and has not been excluded from receiving Federal funding (meaning, has not been debarred or suspended), the pass-through entity may rely on the subrecipient's cognizant agency for audit or oversight agency for audit to perform audit follow-up and make management decisions related to cross-cutting audit findings in accordance with

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section §200.513(a)(4)(viii). Such reliance does not eliminate the responsibility of the pass-through entity to issue subawards that conform to agency and award-specific requirements, to manage risk through ongoing subaward monitoring, and to monitor the status of the findings that are specifically related to the subaward.

Monitoring Tools –

The Superintendent designee shall be responsible for monitoring of subrecipients. The following monitoring tools may be useful for the pass-through entity to ensure proper accountability and compliance with program requirements and achievement of performance goals:

1. Providing subrecipients with training and technical assistance on program-related matters;

2. Performing site visits to review the subrecipient's program operations; and

3. Arranging for agreed-upon procedures and engagements as described in §200.425.

The district shall verify that subrecipients are audited as required by applicable law and regulations.

Follow-Up Actions –

The Superintendent or designee shall provide subrecipients with written documentation detailing their monitoring results and listing any identified deficiencies. The district shall consider whether the results of monitoring indicate the need to revise existing district policy and procedures. (2 CFR 200.332)

The district shall require subrecipients to take immediate action on issues involving ineligible or illegal use of federal funding, and notify the district of corrective action taken.

The district shall require subrecipients to develop a corrective action plan to address other identified deficiencies or noncompliance issues; such plan shall be submitted to the district as specified in the agreed-upon procedures, and the district shall evaluate and monitor the activities taken by the subrecipient under the corrective action plan. The district may provide technical assistance and/or training to subrecipients in complying with corrective action requirements.

The Superintendent or designee shall maintain all documentation on monitoring of subrecipients and corrective action taken during the monitoring process.

The district shall report issues of noncompliance to the appropriate federal agency where required by law, regulations, or requirements of the federal funding program.

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DFAC GRANT SUBRECIPIENT MONITORING PROCEDURES – FEDERAL PROGRAMS

Remedies for Noncompliance –

When monitoring activities identify issues of noncompliance that are not addressed through corrective action, the district may take the following actions: (2 CFR 200.332, 200.339)

1. Impose specific conditions on the subrecipient, in accordance with applicable law and regulations. (2 CFR 200.208)

2. Temporarily withhold payments, until the recipient or subrecipient takes corrective action.

3. Disallow costs for all or part of the activity associated with the noncompliance of recipient or subrecipient.

4. Suspend or terminate the federal award in part or in its entirety.

5. Recommend that the federal agency initiate suspension or debarment proceedings.

6. Withhold further awards or agreements for the project or program.

7. Pursue other legal remedies legally available.

Record Retention

The Superintendent shall ensure that all documentation regarding subrecipient identification, notification, evaluation, monitoring activities, and corrective action is maintained in accordance with board policy and regulations.

Records shall be retained in accordance with applicable law, regulations, specific requirements of the federal program, and the district's policies and regulations. (2 CFR 200.334-200.338)

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DFAC PROCUREMENT – FEDERAL PROGRAMS

This document is intended to integrate standard district purchasing procedures with additional requirements applicable to procurements that are subject to the federal Uniform Grant Guidance regulations concerning the use of federal funds and/or U.S. Department of Agriculture (USDA) regulations governing school food service programs. The district maintains the following purchasing procedures, in accordance with federal and state laws, regulations, and board policy to aid in making purchases with federal funds. (2 CFR 200.318-200.327; 7 CFR 210.16, 210.19, 210.21, 215.14a, 220.16; K.S.A. 72-1151; board policies DFAB, DFAC, DJE, DJEB, DJED, DJEE, DJEF, DJEG, DJEJ, DJFA, and DJFAB)

2021 Procurement Thresholds (reviewed 2024)		
Kansas Bid Threshold	$20,000	For construction, reconstruction or remodeling or for the purchase of materials, goods or wares
Federal Micro-Purchase Threshold	$10,000	Adjusted periodically and published in Federal Register (48 CFR Subpart 2.1)
Federal Simplified Acquisition Threshold	$250,000	Adjusted periodically and published in Federal Register (48 CFR Subpart 2.1)

*Please review this Procurement attachment annually and update amounts accordingly

Responsibility for Purchasing

The board has outlined standard district purchasing responsibility, methods of purchasing, price quotations and bid, requirements in the following board policies and their accompanying administrative regulations and/or procedures:

DFAB: Standard of Conduct for Federally Funded Contracts
DFAC: Federal Fiscal Compliance
DJE: Purchasing
DJEB: Quality Control
DJED: Bids and Quotations Requirements
DJEE: Local Purchasing
DJEF: Requisitions
DJEG: Purchase Orders and Contracts
DJEJ: Payment Procedures
DJFA: Purchasing Authority
DJFAB: Administrative Leeway

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DFAC PROCUREMENT – FEDERAL PROGRAMS

Purchase Methods

When a request for expenses for construction, reconstruction, or remodeling or for the purchase of materials, goods, or wares has been submitted and approved as outlined below, the procurement method to be used will be determined based on the type of purchase and the total cost of the purchase as further outlined below. This procedure outlines how the cost thresholds for determining when the quote or formal bidding procedures that are required by state law as reflected in Policy DJED must be modified when making purchases for federally funded purposes to which the Uniform Grant Guidance or USDA regulations apply to comply with both state and federal requirements. At each point where requirements for food service-related procurement under USDA regulations differ, a note will refer to the Food Service Program Notes at the end of this procedure. Final determination of which purchasing procedures are to be applied is delegated to the Superintendent under the authority of the Board.

Standard Procurement Documents and Purchase Request Process

The district shall use purchase orders for purchase requests in accordance with the applicable purchase method.

The district shall use paper purchasing records, which are pre-numbered and are accessible to designated purchasing staff in the district office.

Purchase requests by an employee must be submitted to the building administrator or immediate supervisor. Purchase of all budgeted items or items approved by an administrator or supervisor must be initiated by use of a purchase order or requisition submitted to the purchasing agent. Purchase orders and requisitions shall contain information including, but not necessarily limited to:

1. Description of the services to be performed or goods to be purchased;

2. Location of where services will be performed or goods will be delivered;

3. Appropriate dates of service or delivery;

Documentation on purchase orders and requisitions shall be maintained in accordance with the district's Public Records policy (CN) and Federal Fiscal Compliance policy (DFAC).

Contracts shall be reviewed by the Superintendent prior to submission to the board for approval.

Contracts to which the Uniform Grant Guidance apply shall contain the clauses specified in Appendix II to 2 CFR Part 200 (Contract Provisions for Non-Federal Entity Contracts Under Federal Awards), when applicable.

[See Food Service Program Notes below for specific clauses required by USDA regulations to be included in cost reimbursable procurement contracts.]

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DFAC PROCUREMENT – FEDERAL PROGRAMS

Micro-Purchases Not Requiring Quotes or Bidding

For purposes of this procedure**, micro-purchase** means an individual procurement transaction for supplies or services, the aggregate amount of which does not exceed a base amount of $10,000. The micro-purchase dollar threshold is adjusted periodically by the federal government, and the threshold most recently established and published in the Federal Register shall apply if other than $10,000. (48 CFR Subpart 2.1)

Note: The micro-purchase threshold for federal purposes is lower than the bid threshold amount outlined in K.S.A. 72-1151, which allows purchases for nonfederal purposes to be made without using formal competitive bidding.

The micro-purchase method is used to expedite the completion of its lowest dollar small purchase transactions and minimize the associated administrative burden and cost. Procurement by micro-purchase is the acquisition of supplies or services, the aggregate dollar amount of which does not exceed the micro-purchase threshold.

To the extent practicable, the district distributes micro-purchases equitably among qualified suppliers when the same or materially interchangeable products are identified and such suppliers offer effectively equivalent rates, prices, and other terms. The Superintendent will be responsible to determine the equitable distribution of micro-purchases.

Micro-purchases may be awarded without soliciting competitive quotations if the district considers the price to be reasonable. The district will maintain evidence of this reasonableness in the records of all micro-purchases. **Reasonable** means that sound business practices were followed, and the purchase is comparable to market prices for the geographic area. Such determinations of reasonableness may include comparison of the price to previous purchases of the same item or comparison of the price of items similar to the item being purchased.

Even if the cost of a purchase qualifies it as a micro-purchase, bidding or small purchase procedures may be used optionally when those procedures may result in cost savings.

Simplified Acquisition Procedures

For purposes of this procedure, **simplified acquisition procedures** are those relatively simple and informal procurement methods for securing materials, goods, or wares or for completing construction, reconstruction, or remodeling that cost more than the amount qualifying as a micro-purchase and do not cost $20,000 or more, or in the case of services other than construction, reconstruction or remodeling, where the total cost does not exceed the $250,000 federal Simplified Acquisition Threshold at which formal competitive bidding or competitive proposals are required. Small purchase procedures cannot be used for construction, reconstruction or remodeling costing $20,000 or more or for the purchase of materials, goods or wares costing $20,000 or more because the board policy and Kansas law requires formal competitive bidding at that level of cost.

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DFAC PROCUREMENT – FEDERAL PROGRAMS

The base amount at which bidding is required under state law for construction, reconstruction or remodeling or for the purchase of materials, goods or wares is $20,000. (K.S.A. 72-1151)

The federal Simplified Acquisition Threshold at which competitive bidding or competitive proposals are required is adjusted periodically by the federal government, and the threshold most recently established and published in the Federal Register shall apply if other than $250,000. (48 CFR Subpart 2.101)

Because state law does not require **competitive** bidding for the purchase of services other than for construction, reconstruction or remodeling with a cost in excess of $20.000, simplified acquisition procedures, including a request for proposal (RFP) procedure, may be used for procurement of such other services except when the estimated total cost will be at or over the federal threshold at which formal competitive bidding or competitive proposals are required ($250,000).

[See Food Service Program Notes below for exemption from bidding for purchases of perishable food items costing less than $250,000.]

Formal Competitive Bidding

Publicly Solicited Sealed Competitive Bids:

For construction, reconstruction, or remodeling or for the purchase of materials, goods or wares, sealed competitive bids are publicly solicited and awarded to the lowest responsible bidder as provided in Policy DJED when the total cost is estimated to be $20,000 or more.

Note: The amount at which formal competitive bidding or competitive proposals are required by federal regulations is much higher than the base amount at which the policy and state law requires competitive bidding. Therefore, the lower base amount specified by state law will be used for purchases of equipment or supplies, or for obtaining services for construction, reconstruction or remodeling costing $20,000 or more.

State law does not require bidding for the purchase of services other than for construction, reconstruction or remodeling regardless of total cost. For procurement of such other services for federally funded purposes to which the Uniform Grant Guidance applies, formal competitive bidding or competitive proposals will be used when the estimated total cost will be at or over the federal threshold of $250,000.

The federal Simplified Acquisition Threshold at which competitive bidding or competitive proposals are required is adjusted periodically by the federal government, and the threshold most recently established and published in the Federal Register shall apply if other than $250,000. (48 CFR Subpart 2.1)

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DFAC PROCUREMENT – FEDERAL PROGRAMS

For procurement of services costing at or over the $250,000 federal threshold other than for construction, reconstruction or remodeling, the use of competitive sealed bidding is considered feasible and appropriate when:

1. A complete, adequate, and realistic specification or purchase description is available;

2. Two (2) or more responsible biddershave been identified as willing and able to compete effectively for the business; and

3. The procurement lends itself to a firm fixed-price contract, and the selection of the successful bidder can be made principally based on price.

If seal bids are used, the following requirements apply:

(A) Bids must be solicited from an adequate number of qualified sources, providing them with sufficient response time prior to the date set for opening the bids. Unless specified by the federal agency, the district may exercise judgment in determining what number is adequate. For local governments the invitation for birds must be publicly advertised.
(B) The invitation for bids must define the items or services with specific information, including any required specifications, for the bidder to properly respond.
(C) All bids will be opened at the time and place prescribed in the invitation for bids. For local governments, the bids must be opened publicly.
(D) A firm-fixed-price contract is awarded in writing to the lowest responsive bidder when specified in the invitation for bids, factors such as discounts, transportation cost, and life-cycle costs must be considered in determining which bid is the lowest. Payment discounts must only be used to determine the low bid when the district determines they are a valid factor based on prior experience.

[See Food Service Program Notes below for reference to state requirements regarding contracts with food service management companies and contractors of pre-plated meals.]

<u>Competitive Proposals</u>

State law does not require public school entities to solicit competitive bids for services other than for construction, reconstruction or remodeling, for which competitive bidding is required if the cost will be a base amount of $20,000 or more.

Federal regulations allow the use of competitive proposals as an alternative to formal competitive bidding when conditions are not appropriate for the use of sealed bids.

In the case of services other than for construction, reconstruction or remodeling costing less than that threshold, the district may use simplified acquisition procedures or micro-purchase procedures as applicable based on total cost. A request for proposal (RFP) process can also meet

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or exceed the simplified acquisition competition requirements under state law and Policy DJED for the acquisition of services other than for construction, reconstruction or remodeling, and can be used if the total cost will be less than $250,000.

When permitted, the technique of competitive proposals is normally conducted with more than one (1) source submitting an offer, and either a fixed price or cost-reimbursement type contract is awarded. Competitors' qualifications are evaluated, and the most qualified competitor is selected, subject to negotiation of fair and reasonable compensation. The district shall comply with other applicable state and federal law and regulations, board policy and administrative regulations or procedures regarding purchasing; the district may consult with the school solicitor or other qualified counsel in determining the required process for purchasing through competitive proposals when necessary.

DFAC PROCUREMENT – FEDERAL PROGRAMS

If this method is used, the following requirements apply:

1. Requests for proposals require public notice, and all evaluation factors and their relative importance. To the maximum extent practicable, any proposals submitted in response to the [public notice must be considered.

2. Proposals must be solicited from an adequate number of qualified sources.

3. There must be a written method for conducting technical evaluations of the proposals received and for selecting recipients.

4. Contracts must be awarded to the responsible offeror whose proposal is most advantageous to the program, with price and other factors.

5. Competitive proposal procedures for qualifications-based procurement for architectural/engineering (A/E) professional services whereby offeror's qualifications are evaluated and the most qualified offeror is selected, subject to negotiation of fair and reasonable compensation. The method where price is not used as a selection factor can only be used to procure an A/E professional services and cannot be used to purchase other services through A/E firms.

Competitive proposals shall be evaluated by the Superintendent based on factors including but not limited to:

1. Cost.

   ☐ Experience of contractor.

   ☐ Availability.

   ☐ Personnel qualifications.

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- ☐ Financial stability.
- ☐ Minority business, women's business enterprise, or labor surplus area firm status.
- ☐ Project management expertise.
- ☐ Understanding of district needs.

Evaluations shall be completed in a timely manner, documented and shall be reviewed by the Board.

DFAC PROCUREMENT – FEDERAL PROGRAMS

Contract/Price Analysis

The district performs a cost or price analysis for every procurement transaction in excess of $250,000, including contract modifications. (2 CFR Sec. 200.324(a)).

A **cost analysis** generally means evaluating the separate cost elements that make up the total price, while a **price analysis** means evaluating the total price, without looking at the individual cost elements.

The method and degree of analysis conducted depend on the facts surrounding the particular procurement transaction. However, the Superintendent must make an independent estimate prior to receiving bids or proposals. (2 CFR Sec. 200.324(a)). As part of the analysis, the superintendent will enact established business practices which may include evaluation of similar prior procurements and a review process.

Noncompetitive Proposals (Sole Sourcing)

Procurement by noncompetitive proposals means procurement through solicitation of a proposal from only one (1) source and may be used only when one or more of the following circumstances apply:

1. The aggregate amount of the procurement transaction does not exceed the micro-purchases threshold as defined in 48 CFR 2.101.

2. The item is available only from a single source.

3. The public exigency or emergency for the requirement will not permit a delay resulting from competitive solicitation. An **emergency** exists whenever the time required for the board to act in accordance with regular procedures would endanger life or property or threaten continuance of existing school classes.

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4. The federal awarding agency or pass-through entity expressly authorizes noncompetitive proposals in response to a written request from the district.

5. After solicitation of several sources, the district determines the competition is inadequate.

In addition to standard procurement policy and procedures, the district will document the grounds for using the noncompetitive method in lieu of an otherwise required competitive method of procurement, which may include written confirmation from the contractor as the sole source of the item. Documentation must be submitted to and maintained by the district office.

All noncompetitive proposals will ultimately be approved by the board. The district may utilize legal advice regarding noncompetitive proposals.

Profit must be negotiated separately for noncompetitive proposals, and a cost or price analysis will also be performed for noncompetitive proposals when the price exceeds $250,000.

Purchase Cards

The district approves the use of purchase cards for permissible purchases by designated employees to improve the efficiency of purchasing activities, reduce processing expenses, improve controls for small-dollar purchases, and streamline contractor payment.

Purchase cards may be used for purchases under federal programs.

Full and Open Competition

All procurement transactions must be conducted in a manner providing full and open competition consistent with 2 CFR Sec. 200.320. In order to ensure objective contractor performance and eliminate unfair competitive advantage, contractors that develop or draft specifications, requirements, statements of work, or invitations for bids must be excluded from competing on those procurements. Examples of situations that may restrict competition include but are not limited to:

1. Placing unreasonable requirements on firms for them to qualify to do business.

2. Requiring unnecessary experience and excessive bonding.

3. Noncompetitive pricing practices between firms or between affiliated companies.

4. Noncompetitive contracts to consultants that are on retainer contracts.

5. Organizational conflicts of interest.

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6. Specifying only a "brand name" product instead of allowing "an equal" product to be offered and describing the performance or other relevant requirements of the procurement.

7. Any arbitrary action in the procurement process.

Minority Businesses, Women's Business Enterprises, Labor Surplus Area Firms

The district should ensure that small businesses, minority businesses, women's business enterprises, veteran-owned businesses, and labor surplus area firms are considered when possible. Such consideration means: (2 CFR Sec. 200.321)

1. Placing these business types solicitation lists.

2. Assuring these business types are solicited whenever they are potential sources.

3. Dividing procurement transactions into separate procurements to permit maximum participation by these business types.

4. Establishing delivery schedules that encourage participation by these business types.

5. Utilizing organizations such as the Small Business Administration and the Minority Business Development Agency of the Department of Commerce.

6. Requiring a contractor under federal award to apply these considerations to subcontracts.

Prequalified Lists

The district must ensure that all prequalified lists of persons, firms, or products used in procurement transactions are current and include enough qualified sources to ensure maximum open competition. When establishing or amending pre-qualified lists, the district must consider objective factors that evaluate price and cost to maximize competition. The district must not preclude potential bidders from qualifying during the solicitation period.

[See Food Service Program Notes below for reference to state requirements regarding contracts with food service management companies and contractors of pre-plated meals.]

Solicitation Language

The district must ensure that all solicitations incorporate a clear and accurate description of the technical requirements for the property, equipment or service to be procured. The description may include a statement of the qualitative nature of the property, equipment or service to be procured. When necessary, the description must provide minimum essential characteristics and standards to which the property, equipment or service must conform. Detailed product specifications should be avoided if possible.

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DFAC PROCUREMENT – FEDERAL PROGRAMS

When it is impractical or uneconomical to clearly and accurately describe the technical requirements, a "brand name or equivalent" description of features may be used to provide procurement requirements. The specific features of the named brand must be clearly stated; and identify any additional requirements which the offerors must fulfill and all other factors that will be used in evaluating bids or proposals.

Avoiding Acquisition of Unnecessary or Duplicative Items

The district must avoid the acquisition of unnecessary or duplicative items. Additionally, consideration must be given to consolidating or breaking out procurements to obtain a more economical purchase; and, where appropriate, an analysis should be made between leasing and purchasing property or equipment to determine the most economical approach.

These considerations are given as part of the process to determine the allowability of each purchase made with federal funds. Such considerations are accessible in the procedure to Policy DFAC: Allowability of Costs – Federal Programs.

Use of Intergovernmental Agreements and Cooperative Purchasing

To foster greater economy and efficiency, the district enters into state and local intergovernmental agreements where appropriate for cooperative purchasing or use of common or shared goods and services, as permitted by the Intergovernmental Cooperation Act**.**

When procuring supplies or services for federally funded purposes to which the Uniform Grant Guidance applies, the district shall verify that the organization conducting the procurement pursuant to such agreements complies with the applicable procurement methods, requirements, and standards of the Uniform Grant Guidance as outlined in this procedure.

Use of Federal Excess and Surplus Property

The district encourages use of federal excess and surplus propertyinstead of purchasing new equipment and property when it is feasible and reduces project costs.

Debarment and Suspension

The district awards contracts only to responsible contractors possessing the ability to perform successfully under the terms and conditions of a proposed procurement. Consideration will be given to such matters as contractor integrity, compliance with public policy, record of past performance, and financial and technical resources.

[See Food Service Program Notes below for reference to state requirements regarding contracts with food service management companies and contractors of pre-plated meals.]

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DFAC PROCUREMENT – FEDERAL PROGRAMS

The district may not subcontract with or award subgrants to any person or company who is debarred or suspended. For all contracts over $25,000 the district verifies that the contractor with whom the district intends to do business is not excluded or disqualified. (2 CFR 200.214, Appendix II, and 2 CFR Part 180).

All successful contractors must provide written certification that they have not been suspended or debarred from federal projects. The Business Manager will be responsible for verification. Such verification may include accessing the online federal System for Award Management (SAM) to determine whether any relevant party is subject to any suspension or debarment restrictions.

Maintenance of Procurement Records

The district must maintain records sufficient to detail the history of each procurement transaction. These records must include rationale for the procurement, method, selection of contract type, contractor selection or rejection, the basis for the contract price (including a cost or price analysis), and verification that the contractor is not suspended or debarred.

Maintenance of records of procurement will be governed by board Policies CN and DFAC.

Time and Materials Contracts

The district may use a time and materials type contract only: (1) after a determination that no other contract is suitable; and (2) if the contract includes a ceiling price that the contractor exceeds at its own risk. **Time and materials type contract** means a contract whose cost to the district is the sum of: the actual costs of materials, and direct labor hours charged at fixed hourly rates that reflect wages, general and administrative expenses, and profit.

Since this formula generates an open-ended contract price, a time-and-materials contract provides no positive profit incentive to the contractor for cost control or labor efficiency. Therefore, each contract must set a ceiling price that the contractor exceeds at its own risk. Further, the district must assert a high degree of oversight to obtain reasonable assurance that the contractor is using efficient methods and effective cost controls.

Settlements of Issues Arising Out of Procurements

The district is responsible for the settlement of all contractual and administrative issues arising out of procurements. These issues include, but are not limited to, source evaluation, protests, disputes, and claims. These standards do not relieve the district of any contractual responsibilities under its contracts. The district must report violations of law to the local, state, or federal authority having proper jurisdiction.

Protest Procedures to Resolve Dispute

The district maintains protest procedures to handle and resolve disputes relating to procurements and, in all instances, discloses information regarding the protest to the awarding agency. Protest

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procedures will be acted on in accordance with current state law and regulations, board policy and administrative regulations and procedures, and the advice of the board's legal counsel.

Food Service Program Notes:

Exemption from Bidding for Perishable Food Items -

Kansas law exempts purchases of food and foodstuffs necessary for the implementation or operation of any child nutrition program from bidding requirements. Bidding for such items is required only if the cost would be at or over the federal threshold at which formal competitive bidding is required ($250,000). Small purchase procedures may be used for purchases below $250,000, or micro-purchase procedures for purchases below $10,000. Use of bidding should be considered as an option if it is feasible and likely to result in cost savings.

Buy American -

The district shall purchase, to the maximum extent practicable, domestic commodities or products for food service purposes. The term **domestic commodity or product** means: (7 CFR Sec. 210.21, 220.16)

1. An agricultural commodity that is produced in the United States; and

2. A food product that is processed in the United States substantially using agricultural commodities that are produced in the United States.

Mandatory Contract Clauses -

The following provisions shall be included in all cost reimbursable contracts for food services purchases, including contracts with cost reimbursable provisions, and in solicitation documents prepared to obtain offers for such contracts: (7 CFR Sec. 210.21, 215.14a, 220.16)

1. Allowable costs will be paid from the nonprofit school food service account to the contractor net of all discounts, rebates and other applicable credits accruing to or received by the contractor or any assignee under the contract, to the extent those credits are allocable to the allowable portion of the costs billed to the school food authority;

2. (a) The contractor must separately identify for each cost submitted for payment to the school food authority the amount of that cost that is allowable (can be paid from the nonprofit school food service account) and the amount that is unallowable (cannot be paid from the nonprofit school food service account); or
   (b) The contractor must exclude all unallowable costs from its billing documents and certify that only allowable costs are submitted for payment and records have been established that maintain the visibility of unallowable costs, including directly associated costs in a manner suitable for contract cost determination and verification;

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3. The contractor's determination of its allowable costs must be made in compliance with the applicable departmental and program regulations and Office of Management and Budget cost circulars;

4. The contractor must identify the amount of each discount, rebate and other applicable credit on bills and invoices presented to the school food authority for payment and individually identify the amount as a discount, rebate, or in the case of other applicable credits, the nature of the credit. If approved by the state agency, the school food authority may permit the contractor to report this information on a less frequent basis than monthly, but no less frequently than annually;

5. The contractor must identify the method by which it will report discounts, rebates and other applicable credits allocable to the contract that are not reported prior to conclusion of the contract; and

6. The contractor must maintain documentation of costs and discounts, rebates and other applicable credits, and must furnish such documentation upon request to the school food authority, the state agency, or the department.

Contracts with Food Service Management Companies -

Procedures for selecting and contracting with a food service management company (FSMC) shall comply with guidance provided by the Kansas State Department of Education, Division of Child Nutrition and Wellness, including standard forms, procedures and timelines for solicitation, selection and approval of proposals and contracts. (7 CFR Sec. 210.16, 210.19, 210.21, 215.14a, 220.16)

Pre-Plated Meals -

Procedures for selecting and contracting with contractors of pre-plated meals shall comply with guidance provided by the Kansas State Department of Education, Division of Child Nutrition and Wellness, including standard forms, procedures and timelines for solicitation, selection and approval of proposals and contracts. (7 CFR Sec. 210.16, 210.19, 210.21, 220.16)

Adopted: 02/10/2025

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DFAC TYPE OF COSTS, OBLIGATIONS AND PROPERTY MANAGEMENT – FEDERAL PROGRAMS

The district establishes and maintains board policies, administrative regulations, and administrative procedures on administration of federal funds in federal programs as required by the Uniform Grant Guidance and other federal, state, and local laws, regulations, and requirements. The district's fiscal management system includes internal controls and grant management standards in the following areas when federal funds are involved.

Direct and Indirect Costs

Direct costs – costs that can be identified specifically with a particular final cost objective, such as a federal award, or other internally or externally funded activity, or that can be directly assigned to such activities relatively easily with a high degree of accuracy.

Indirect costs – costs incurred for a common or joint purpose benefiting more than one (1) cost objective, and not readily assignable to the cost objectives specifically benefited, without effort disproportionate to the results achieved.

Costs incurred for the same purpose in like circumstances must be treated consistently as either direct or indirect costs. (2 CFR Sec. 200.405, 200.413)

The association of costs with a federal award determines whether costs are direct or indirect.

Direct and indirect costs shall be determined in accordance with law, regulations, the terms and conditions of the federal award, and the district's negotiated indirect cost rate.

The district shall develop an indirect cost rate proposal and cost allocation plan in accordance with law, regulations, and the terms and conditions of the federal award.

Timely Obligation of Funds

Financial Obligations – orders placed for property and services, contracts, and subawards made and similar transactions during a given period that require payment by the district during the same or a future period.

The following table illustrates when funds must be obligated under federal regulations:

Obligation is for:	**Obligation is made:**
Acquisition of property	On the date on which the district makes a binding written commitment to acquire the property
Personal services by a district employee	When the services are performed

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Personal services by a contractor who is not a district employee	On the date on which the district makes a binding written commitment to obtain the services
Public utility services	When the district receives the services
Travel	When the travel occurs
Rental of property	When the district uses the property
A pre-agreement cost that was properly approved by the Secretary under the cost principles in 2 CFR Part 200, Subpart E - Cost Principles	On the first day of the project period

34 CFR §75.707; 34 CFR §76.707

All obligations must occur between the beginning and ending dates of the federal award project, which is known as the period of performance. The period of performance is dictated by law and regulations and will be indicated in the federal award. Specific requirements for carryover funds may be specified in the federal award and must be adhered to by the district. (2 CFR Sec. 200.77, 200.309)

The district will handle obligations and carry over of state-administered and direct grants in accordance with state and federal law and regulations and the terms and conditions of the federal award. Carryover will be calculated and documented by the Superintendent.

The district may initiate an extension of the period of performance under a direct grant in accordance with law, regulations, and the terms and conditions of the federal award when written notice is provided to the federal awarding agency at least ten (10) calendar days prior to the conclusion of the period of performance. (2 CFR Sec. 200.308(g)(2))

The Superintendent will decide when an extension of the period of performance is necessary and will recommend that the board approve this process.

The Superintendent will develop the required written notice that includes the supporting justification and revised period of performance; the notice will be issued no later than ten (10) calendar days prior to the end of the currently documented period of performance in the federal award.

The district must seek approval from the federal awarding agency for an extension of the period of performance when the extension is not contrary to federal law or regulations, and the following conditions apply:

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1. The terms and conditions of the federal award prohibit the extension;

2. The extension requires additional federal funds; or

3. The extension involves any change in the approved scope of the project. (2 CFR Sec. §200.308)

The Superintendent will determine when an extension must be requested for approval by the federal awarding agency, draft the written request and notify the Board of the requested extension.

Management of Property Acquired with Federal Funds

Contract and Purchasing Administration -

The district maintains internal controls, administrative regulations, and procedures to ensure that contractors deliver goods and services in accordance with the terms, conditions, and specifications of the designated contract, purchase order, or requisition.

Property Classifications -

Property shall be classified as **real or personal property** as defined and specified in accordance with law and regulations.

Inventory Control/Management -

All personal property, other than intangible property, which is purchased with federal funds, regardless of cost, will be inventoried as a safeguard.

Inventory will be received by the department or program requesting the item; designated staff will inspect the property, compare it to the applicable purchase order or requisition, and ensure it is appropriately logged and tagged in the district's property management system.

Items acquired will be physically labeled by source of funding and acquisition date.

Inventory records of equipment and computing devices must be current and available for review and audit, and include the following information:

1. Description of the property..

2. Manufacturer's serial number or another identification number.

3. Identification of funding source including FAIN, and the title holder.

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4. Acquisition date and the property cost.

5. Source of items, such as company name.

6. Percentage of the federal agency contribution toward the original purchase.

7. Present location, use, condition of the property, and date information was reported.

8. Pertinent information on the ultimate transfer, replacement or disposition of the item and sale price of the property.

The recipient and subrecipient are responsible for maintaining and updating property records where there is a change in the status of property.

Physical Inventory -

Physical inventory of property will be completed by designated district staff in accordance with applicable federal law and regulation and board policy DIC.

The physical inventory of items will be conducted annually, and the results will be reconciled with the inventory records and reported to the federal awarding agency.

Maintenance -

The district establishes regular maintenance procedures to ensure that property is maintained in propert working condition in accordance with law, regulation, and board policy.

Safeguards -

The district ensures that safeguards are in place for preventing loss, damage, or theft. The district will follow the requirements:

1. Any loss, damage or theft will be reported to the Superintendent, investigated and fully documented, and may be reported to local law enforcement and shall notify the federal agency or pass-through entity of any loss, damage, or theft of equipment that will have an impact on the program.

2. If stolen items are not recovered, the district will submit copies of the investigative report and insurance claim to the federal awarding agency.

3. The district may be responsible for replacing or repairing lost, damaged, destroyed, or stolen items.

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4. Replaced equipment is property of the originally funded program and should be inventoried accordingly.

5. District property may only be loaned in accordance with board policy KGA and administrative regulations and procedures.

Disposition of Property Acquired with Federal Funds –

When the district determines that real property, including land, land improvements, structures, and accessories thereto, acquired under a federal award is no longer needed for the originally authorized purpose, the district must obtain disposition instructions from the federal awarding agency or pass-through entity administering the program, in accordance with applicable law and regulations. (2 CFR Sec. 200.313)

When the district determines that equipment or supplies acquired under a federal award are no longer needed for the original project, program or for other activities currently or previously supported by a federal agency, the Superintendent *will* contact the federal awarding agency or pass-through entity administering the program to obtain disposition instructions, based on the fair market value of the equipment or supplies.

Generally, items with a fair market value of $5,000 or less that are no longer effective may be retained, sold, purged, or transferred to the district. For items with a fair market value greater than $5,000, the federal awarding agency is entitled to the federal share of the current market value or sales proceeds.

If the district will be replacing the equipment or supplies, the district may use the existing equipment or supplies as a trade-in or sell the property and use the proceeds to offset the cost of the replacement property.

The Superintendent will be responsible for contacting the federal awarding agency and determining the process for disposition of equipment or supplies.

The district may use the following methods in disposing of unnecessary equipment or supplies acquired with federal funds:

{**X**} Public auction and/or online sale – generally conducted by a licensed auctioneer.

{**X**} Salvage – scrap sold to local dealers.

{**X**} Negotiated sale – normally used when disposing of items of substantial value.

{**X**} Sealed bid – normally used for items of substantial value or unique qualities.

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DFAC TYPE OF COSTS, OBLIGATIONS AND PROPERTY MANAGEMENT – FEDERAL PROGRAMS

{**X**} Pre-priced sale – large quantities of obsolete or surplus equipment or supplies may be sold by this method.

{**X**} Donation to charitable organizations, for equipment or supplies with little to no value.

{**X**} Disposition to trash for equipment or supplies with no value.

The Superintendent will be responsible for maintaining records of obsolete and surplus property disposed of, and will report to the federal agency when required.

Adopted 02/10/2025

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DFE **Investment of Funds** **DFE**

The investment of school district monies shall be the responsibility of the superintendent, business manager and/or the district treasurer.

Any monies not immediately required for the purposes for which the monies were collected or received, may be invested as provided by current statute.

Posting Securities

All investments of district monies shall be secured to 100% of the amount of district monies by F.D.I.C. coverage, a pledge of direct federal obligations or direct guaranteed federal agency deposits in accordance with requirements of state law. Exceptions to the required posting of securities shall be only as provided by law and with approval of the board.

All offerings of monies for investment shall state the amount to be invested and the maturity date of each investment.

All banks and savings and loan associations (hereafter "financial institution(s)") with main or branch offices located within the district and the county or adjoining counties in which part of the district is located shall be given an opportunity to respond to requests for proposals on monies offered for investment. All responses shall be directed to the superintendent and shall be specified on the basis of simple interest.

Distribution of monies for investment shall be as follows:

The treasurer or other person designated by the board shall inform each eligible financial institution of the total amount of money to be invested on a specified date and the maturity date of the investment. Each financial institution responding shall submit a single proposal of the rate of interest it would pay on all or part of the funds to be invested.

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Monies shall be invested with the financial institution offering the highest interest rate in such amounts as the financial institution will accept, and any remaining amounts shall be invested with the financial institution(s) offering the next highest interest rates in such amounts as it will accept until all funds offered for investment are invested. No financial institution shall be eligible to receive any funds in the same offering at a rate lower than its proposal rate.

No proposal less than the most recently determined investment rate as defined in K.S.A. 12-1675a shall be accepted. No funds will be invested for maturities of more than two years.

Any monies not otherwise invested in eligible financial institutions located in the district due to their inability, for whatever reason, to accept the funds, shall be invested in secured deposits in financial institutions which have offices located in counties in which a part of the school district is located.

Any monies not invested in financial institutions in the district or located in counties in which a part of the school district is located may be invested as authorized by Kansas law.

Monies available for reinvestment as a result of maturities may be reinvested with the financial institution holding such monies provided the financial institution agrees to pay the same or higher rate as that offered by the highest proposal at the time the requests for proposals were accepted.

In the event of identical high proposals, the allocation of monies to be invested between the financial institutions offering the high proposals shall be at the discretion of the superintendent.

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The treasurer shall record the following information: the date of each request for proposal; the name of each financial institution notified; the name of the officer notified; the proposal; the amount of monies the financial institution is willing to accept at the rate proposed.

To be eligible to receive invested funds or deposits from the district, any otherwise eligible financial institution shall have on file in the office of the district treasurer a letter requesting its inclusion in any request for proposal and providing proper assurance of compliance with requirements of applicable laws and board policy relating to maintenance of proper security and assurance of its membership in good standing consistent with current federal regulations. The superintendent shall report monthly to the board on the district's investments.

Adopted: 08/10/2020

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DFG **Fees, Payments and Rentals (See KG)** **DFG**

Proceeds from fees for building or equipment use or rental will be credited to the general fund.

Adopted: 09/09/2013

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Fundraising Activities **DFH**

Fundraising activities at school, on school property, or at school-sponsored events are prohibited except as provided in this policy.

Promotion of commercial or private financial interests either through direct sales or through promotion of competitive goods or services by students and employees is not fundraising and is prohibited at school, on school property, or at school-sponsored events.

Faculty and student participation in fundraising shall be strictly voluntary. At no time shall participation in fundraising impact a student's grade or membership, participation time or standing on a team, club, or group. Door-to-door sales are strongly discouraged. Faculty and sponsors shall not require or promote door-to-door sales.

The district will manage, restrict, or decline funds, gifts, or fundraising activities to assure that fundraising and expenditures comply with applicable district, state, and federal law and guidelines, including, but not limited to, Title IX and Kansas State High School Activities Association (KSHSAA) rules and regulations.

Fundraising activities must be pre-approved by the superintendent or designee, and adhere to the following guidelines:

- Fundraising activities shall not interfere with instructional time, infringe upon or detract from the classroom activities, or the educational process as determined by the superintendent or designee.
- Online fundraising, utilizing websites such as DonorsChoose or GoFundMe, must comply with this policy, district rules and regulations concerning fundraising, and the rules governing the fundraising site.
- Approval of fundraising requests shall depend on factors including, but not limited to:

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- Compatibility with the district's educational program, mission, vision, core values, and beliefs;
- Compatibility with any terms, conditions, and requirements of grants or other specific funding sources;
- Compatibility with existing district technology;
- Congruence with the district and school goals that positively impact student performance;
- The district's instructional priorities;
- The manner in which donations are collected and distributed;
- Equity in funding; and
- Other factors deemed relevant or appropriate by the district.

- If approved, the requester shall be responsible for preparing all materials and information related to the fundraising campaign and keeping district administration apprised of the campaign's status. The requestor is responsible for compliance with all state and federal laws, the rules governing the fundraising site, and other relevant district policies and procedures, as well as the following:

- Fundraising proceeds shall not be deposited into a staff member's personal bank account or peer to peer payment network.

- Money raised or items secured by a fundraising campaign by a person or entity acting on behalf of the school or the district will be the property of the district.

- All items and money generated on behalf of the district are subject to the same controls and regulations as other district property and shall be deposited or inventoried accordingly. No money raised or items purchased shall be distributed to individual employees without the express written consent of the superintendent.

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- Pictures of students in conjunction with fundraising activities shall not occur unless parents of students have consented in writing to the use of the picture for this specific purpose.

- Fundraising activities must comply with all board policies, including, but not limited to, policies governing the privacy rights of students.

Nothing in this policy is intended to prohibit an employee from using online fundraising campaigns for personal items or reasons. In such cases, the employees shall not be acting on behalf of the district or school, identify themselves as employees of the district, or suggest the fundraising campaign is for the benefit of students, classrooms or schools of the school district.

For purposes of this section, "acting on behalf of the district or the school" means an employee holding oneself out as an employee of the district and/or seeks donations for the benefit of the district, a particular school, classroom, or student.

Adopted: 02/10/2025

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Gifts and Bequests

Income derived from gifts and bequests will be credited, if possible, as specified by the board.

Adopted: 09/09/2013

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DFM Equipment and Supplies Sales (See KK) **DFM**

Excess or unusable district-owned equipment and supplies will be disposed of at the discretion of the board.

Adopted: 09/09/2013

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DH Bonded Employees **DH**

The board shall purchase a blanket fidelity bond for school employees. The amount of the bond shall be determined by the board.

A position bond in the amount of $25,000 {recommended $100,000 per incident} is required for the treasurer. A position bond may be purchased by the board for district employees as follows:

- Superintendent
- Clerk
- Building principals
- Building secretary(s)
- Other employees as the board may direct.

Adopted: 09/09/2013

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An accounting will be made annually for all district-owned personal property.

An inventory record system shall be developed by the superintendent. All inventory records shall be annually updated showing deletions and additions, the estimated value, original cost (where available), date of purchase, serial numbers (where available) and location and condition of each piece of district-owned personal property.

Each building principal shall take an annual inventory of district-owned personal property under the direction of the superintendent. Inventory forms shall be developed by the superintendent. One copy of each inventory taken in an attendance center shall be filed in that building, and one copy shall be filed in the central office with the clerk.

Adopted: 08/13/2018

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DJB **Petty Cash Accounts** **DJB**

The board may establish petty cash accounts by resolution. All petty cash funds will be audited annually at the same time as the general fund budget. The board shall also receive monthly reports of the expenditures from and reimbursements to each petty cash account.

Adopted: 08/13/2018

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DJE **Purchasing** **DJE**

The purchasing, receiving, storing and distribution of supplies, equipment and services for use in the district shall be managed efficiently and economically. School employees are not allowed to purchase personal items from vendors using district accounts.

Purchasing Authority

The board shall appoint a purchasing agent for the district.

Adopted: 02/14/2022

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The board reserves the right to establish the specifications for and quality of goods or services purchased by the district.

Specifications

It is the responsibility of the originator of a purchase request to see that all specifications requested are complete.

Standardization

Whenever possible, standard lists of supplies and equipment shall be developed in all budget areas.

Quantity Purchasing

Quantity purchasing is encouraged.

Adopted: 08/13/2018

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All purchases requiring competitive bids shall be made in accordance with current statutes.

The purchasing agent shall develop and maintain lists of potential suppliers. Bid lists shall be used to notify potential bidders.

Any supplier may be included in the list upon request. All bid lists shall be reviewed annually by the purchasing agent.

A copy of this policy shall be given to all bidders upon request.

All bids and supporting documentation shall be retained in the district office with the clerk for a period of three years after bids have been opened.

Bid Specifications

All bid specifications shall be written by the district's purchasing agent and shall include required characteristics and quality standards. Specifications shall include, when necessary: required performance, surety, bid and statutory bond information; compliance with preferential bid law; financial statements; the board's right to reject any or all bids; compliance with all federal, state and local laws, ordinances and regulations; the date, time and place for the opening of bids; and other items as the board directs.

The board shall avoid negotiation of bid specifications after bids have been accepted and shall correct specifications if they are inadequately written and request new bids. If an error is discovered in the bid specifications all bids shall be returned unopened and the project shall be rebid using corrected and/or amended specifications.

Procedure

All bids must be submitted to the clerk in sealed envelopes with the name of the bidder and the date of the bid opening plainly marked in the lower left-hand corner of the envelope. All bids shall be opened publicly on the stated date and time. All bidders and other interested persons may be present when the bids are opened.

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Bids may be opened by the purchasing agent or other person designated by the board and such opening shall be witnessed by one other district employee. The bids shall then be arranged in order from low to high before they are presented to the board for action.

Responsible Bidder

All bids shall be awarded to the lowest responsible bidder. The board remains the sole judge of whether a bidder is responsible. Criteria that may be used to judge whether the bidder is "responsible," by way of illustration and not limitation, are: financial standing, reputation, experience, prior working relationship with the district, resources, facilities, judgment and efficiency.

The board may investigate whether the bidder is responsible by using information at hand to form an intelligent judgment, such as, but not necessarily limited to, the district's architect, previous clients of the bidder, their own investigation, or an outside investigation agency.

Withdrawal of Bids

Any bid may be withdrawn and/or corrected prior to the scheduled time for opening of bids and no later than two days after the bids have been opened if a non-judgmental error has been made.

Any bid received after the publicized date and time shall not be considered by the board.

Rejection of Bids

The board reserves the right to reject any and all bids and to ask for new bids. This reservation shall be specified in the publication or notification of bid letting.

The board reserves the right to waive any informalities in, or reject any parts of a bid.

Multi-State Purchasing Pools

The board may participate in multi-state purchasing pools.

Adopted: 08/13/2018

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The purchasing agent shall make purchases from local vendors when the price, availability of the product and service are competitive with outside vendors for purchases not subject to the bidding law. The board shall not grant preferential bid percentages to local contractors or businesses except as provided by statute.

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DJEF **Requisitions** **DJEF**

The purchasing agent shall develop a requisition form to be used by staff members requesting that certain goods be purchased for the district.

All requisitions shall be submitted to the purchasing agent by the designated deadline. After a purchase order has been issued, the number of the purchase order shall be recorded on the requisition, and the number of the requisition shall be recorded on the purchase order. After processing, the original copy of the requisition shall be filed in the office of the purchasing agent in numerical sequence.

The school or district entity shall not be used to order or purchase supplies, goods, or wares for the personal use of employees. Use of the "school entity" in this manner would include, but may not be limited to, the use of the school or district's name, letterhead, purchase order, fund, credit card and/or check. use or purchase by employees.

Adopted: 08/13/2018

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DJEG Purchase Orders and Contracts (See DJEJ and DJFAB) **DJEG**

The purchasing agent shall develop an order form compatible with the requisition form to be used in purchasing goods, and shall be authorized to sign all purchase orders.

Each purchase order shall include a specification of the item which adequately describes the characteristics and the quality standards; a quoted, firm, net, delivered price, whenever possible, and prices shown both per unit and as extended; clear delivery instructions which include time and place; a signature of the purchasing agent and budget account code number; and the appropriate address and telephone number.

All purchase orders shall be numbered in sequence; sufficient copies will be made to meet distribution requirements.

A verbal order, subject to subsequent confirmation by a written purchase order, may be issued only in cases where a bona fide emergency exists. Whenever possible, a purchase order number should be given to the supplier. A confirming requisition/purchase order shall be issued immediately thereafter and clearly marked as such.

Adopted: 09/09/2013

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DJEJ **Payment Procedures** (See DJEG and DJFAB) **DJEJ**

The superintendent shall recommend payment to vendors and suppliers for goods and services upon satisfactory receipt of all goods or completion of all services and for which there is a district purchase order number issued as provided for in board policy. (See DJEG)

The board shall consider payment of bills recommended for payment at regular board meetings except as provided for in policy. (See DJFAB)

The board may designate one or more employees to pay bills in advance of any board meeting in order to avoid a penalty for late payment or to take advantage of any early payment discount.

Adopted: 09/09/2013

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DJFA **Purchasing Authority** **DJFA**

The superintendent is authorized to execute contracts on behalf of the district for the purchase of goods and services if the amount is less than $20,000. The board shall receive reports on any contracts.

Adopted: 09/09/2013

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DJFAB Administrative Leeway **DJFAB**
(See DJEG and DJEJ)

In an emergency, the superintendent shall have the authority to make expenditures necessary to prevent additional damage to district property, to keep the schools open or to reopen schools. Emergency purchases shall be ratified by the board at the next regular or special board meeting.

Adopted: 09/12/2022

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DK Student Activity Fund Management (See JGHB, JH and JL) DK

Any activity which involves the expenditure of activity funds shall be subject to prior approval of the principal.

Activity Fund Management

The building principals shall maintain an accurate record of all student activity funds in the respective attendance centers. No funds shall be expended from these accounts except in support of the student activity program. No activity account shall have a negative balance.

The board shall receive a monthly report on all activity accounts.

All student activity funds will be audited annually at the same time as the general fund budget.

All payments from student activity funds shall be made from purchase orders signed by the employee responsible for the fund.

Receipts shall be kept for all revenue deposited into the activity fund of each attendance center. All payments from the activity fund shall be by checks provided for that purpose.

Activity Fund Deposits

Activity funds from gate receipts or other sources may be deposited directly into a bank account maintained for this purpose.

Inactive Activity Funds (See JH)

The board will assume control of all inactive activity funds and disburse those funds to other activity accounts or expend the funds as directed by the board.

Each student activity fund shall have an employee in charge of the fund. The employee shall be responsible for making a monthly report to the superintendent and the board.

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The monthly student activity report shall show opening and closing balances of each fund. The report shall also show the total amount of deposits and an itemized list of expenditures.

Adopted: 09/09/2013

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DP Collection Procedures (See EE and JS) **DP**

Unpaid Fees and Negative Account Balances

Unpaid or overdue accounts disrupt accounting practices within the district. All persons who owe overdue fees or have negative account balances with the district shall be notified of the delinquency up to three times in not less than ten day increments by the superintendent or superintendent's designee via letter sent by U.S. First Class Mail providing that the individual owes the district fees or that a specified account has insufficient funds or a negative balance and the reason for the fees or account withdrawals.

If, within ten days after the second notice was mailed, the debt is not paid in full or arrangements have not been made with the superintendent or superintendent's designee to pay it, a third and final notice shall be sent to the debtor by mail. Postage and stationary costs may be added to the original bill.

If full payment is not received by the clerk within ten days after mailing of the final notice, authorization for the enforcement of collection may be obtained through the local small claims court in compliance with Kansas statutes, the superintendent or superintendent's designee may turn the matter over to legal counsel to commence debt collection proceedings on behalf of the district, or the matter may be handled through the Kansas Setoff Program.

Adopted: 08/13/2018

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Table of Contents

Section E – Business Management

Goals and Objectives **EA**

Buildings and Grounds Management **EB**

Insurance Program **EBA**

Liability Other Than for Vehicles

Safety **EBB**

Safety Rules

Safety Unit

Warning System

Safety Inspections

Heating and Lighting

Hazardous Waste Inspection and Disposal **EBBA**

Inspection

Disposal

Rules

Evacuations and Emergencies **EBBD**

School-Closing Announcements

Bomb Threats

Planning for Emergencies

Emergency Drills **EBBE**

Crisis Planning **EBBF**

Cardiac Emergency Response Planning **EBBG**

Security and Safety **EBC**

Reporting Crimes at School to Law Enforcement

Reportable events would include:

Reporting Certain Students to Administrators and Staff

Reportable events include:

Annual Reports

Staff Immunity

Vandalism **EBCA**

Vandalism Protection

Restitution for Damages

Return of School Property

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Offering a Reward

Cleaning and Maintenance Programs **EBE**

Sanitation

Long-Range Maintenance Program **EBI**

Records **EBJ**

Equipment and Supplies Management **EC**

Receiving

HIPAA Policy **ECA**

Staff Training Required

Compliance Required

Printing and Duplicating Services **ECH**

Student Transportation Management **ED**

School Buses and Vehicles **EDAA**

Liability

Safety

Speed Limits

Safety Inspection

Scheduling and Routing

Records

Licensing of Drivers

Housing of School Vehicles

Transportation to Summer Athletic Events

Special Use of School Buses **EDDA**

Food Services Management **EE**

Sanitation Inspections

Records

Meal Prices

Free and Reduced-Price Meals

Unpaid Meal Charges

Availability of Meals on Remote Learning Days Due to Severe Weather

Data Management **EF**

Data Dissemination

To Education Agencies

Energy Conservation **EG**

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EA Goals and Objectives EA

The district's business affairs shall be managed in the most economical and efficient manner possible.

The superintendent has authority to manage the district's business affairs.

Adopted: 09/09/2013

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All district buildings and property shall be maintained and inspected on a regular basis.

The superintendent shall develop a comprehensive program which will ensure proper maintenance of all district-owned property.

Adopted: 09/09/2013

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EBA **Insurance Program** **EBA**

All district-owned property, real and personal, will be insured to cover losses from natural causes, fire, vandalism and other casualties. Insurance shall also cover theft of district monies.

Liability Other Than for Vehicles

To the extent permitted by law, the board may insure all employees against legal action arising out of the performance of any authorized duties. The board may also purchase insurance covering loss resulting from student participation in a work-based learning program authorized by the district. The board may authorize the district to join a group-funded pool to provide insurance coverage for the district.

The district may designate one or more insurance agents of record. The superintendent may work with the insurance agent of record or group-funded pool to develop adequate insurance programs and/or proposals covering the district's employees and property.

Adopted: 09/12/2022

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EBB **Safety** (See JBH**)** **EBB**

The district shall make reasonable efforts to provide a safe environment for students and employees.

Safety Rules

The superintendent and staff shall develop necessary rules and regulations for student safety in school and at school activities.

Safety Unit

Teachers who instruct in hazardous curriculum areas will teach a unit each year or semester dedicated to safety rules inherent in the particular subject matter.

Appropriate safety signs, slogans or other safety items shall be posted on or in the near vicinity of potentially dangerous devices or machinery.

No student will be permitted to participate in the class until satisfactory knowledge of the safety rules are demonstrated to the teacher. Teachers will conduct periodic reviews of safety rules during the school year.

Warning System

The board will seek to cooperate with local government officials, emergency preparedness authorities and other related state agencies to maintain adequate disaster warning systems.

Safety Inspections

The superintendent, building principals and maintenance personnel will regularly inspect each attendance center, playground and playground equipment, boilers, bleachers and other appropriate areas to see that they are adequately maintained. Written records of these inspections shall be maintained.

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If repairs are necessary, the individual conducting the investigation shall immediately inform the building principal, superintendent or immediate supervisor in writing. Necessary steps either to repair or to remove the defect will be taken as soon as possible. Defects requiring expenditure of money in excess of $200 will be reported to the board. Any defects not immediately removed, repaired or otherwise eliminated shall be blocked off with fences or other restraining devices.

Heating and Lighting

All furnaces, boilers and lighting fixtures will be inspected annually to ensure safety for students, district employees and patrons. These devices shall meet minimum state and federal standards.

The use of space heaters in district buildings is strongly discouraged. Space heaters must be UL listed and approved; plugged directly into the wall outlet and not used with an extension cord; and have a 3-foot clearance from any combustible items that may catch fire. Combustible items include, but are not limited to, paper products, clothing, and blankets. Staff members may not bring their own space heater.

Adopted: 10/13/14

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EBBA Hazardous Waste Inspection and Disposal **EBBA**

Inspection

Regular inspection of district facilities for hazardous waste shall be conducted by the Maintenance Director. Written records of these inspections shall be maintained.

Disposal

When hazardous waste material is produced in a class, or otherwise located in the district, its disposal shall be in accordance with state and federal rules and regulations, or current law.

Rules

The superintendent shall develop written rules and procedures for notifying district administrators that hazardous waste has been discovered and/or produced and rules for reporting the proper disposal of waste. These rules and regulations shall be distributed to all staff members in classified and certified handbooks.

Adopted: 03/09/2015

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EBBD Evacuations and Emergencies (See EBBF and JBH) EBBD

If an emergency interferes with the normal conduct of school affairs, students may be dismissed from school only by the superintendent or superintendent's designee. designated representative. A plan for emergency dismissal of students during the school day shall be developed by the superintendent and approved by the board. A copy shall be filed with the clerk and procedures for dismissal shall be given to parents and students at the beginning of each school year.

In an emergency when the safety of students and/or staff is better served by remaining at school, students will not be released, nor will school be dismissed early.

During an emergency period when there is insufficient warning time, the district will keep all students under school jurisdiction and supervision. The staff shall remain on duty to supervise students during this time.

School-Closing Announcements

When the superintendent believes the safety of students is threatened by severe weather, health or safety concerns, or other circumstances, parents and students shall be notified of school closings or cancellations by announcements made over radio/TV station(s), or other parent notification system.

Bomb Threats

If there is a bomb threat or similar emergency, the principal shall see that students are escorted to a safe place. The principal shall notify law enforcement agencies of the threat and request a thorough inspection of the buildings and grounds. Other contingencies as noted in the crisis plan shall be followed. If it is determined that no danger exists to the students' safety and if there is time remaining in the school day, school shall be resumed.

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Planning for Emergencies

Each building principal shall develop appropriate emergency procedures which shall be included in the district's crisis plans. As appropriate, portions of the crisis plan developed shall be held in strict confidence by staff members having direct responsibility for implementing the plan.

Adopted: 03/18/2024

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EBBE Emergency Drills **EBBE**

Building principals shall be responsible for scheduling and conducting emergency and safety drills as required by law and for ensuring students are instructed in the procedures to follow during the drills and in an actual emergency.

Each building principal shall develop a written plan for specific emergency drills required by law. The plan shall include specific arrangements for the evacuation of mobility impaired and other individuals who may need assistance from staff members to safely exit the building. Although plans for evacuation are essential, the state fire marshal may grant exemptions to the number or manner of drills required by law with regard to students receiving special education or related services, upon request.

Each principal shall conduct briefings with the staff concerning the emergency plan.

Each teacher shall explain relevant portions of the plan to students under their jurisdiction prior to a date established by the principal. Within one week there-after, the building principal shall conduct a surprise drill. Other drills shall be held at times determined by the building principal. However, at least one of the three tornado drills required by law shall be held prior to the tornado season beginning each April.

Each emergency and safety drill plan shall be reviewed by the superintendent and filed with the clerk.

The four fire drills and three crisis drills required by law may be scheduled at any time during the school year. However, the two tornado drills required shall be conducted in September and March. All these drills must be conducted by each school during school hours and cannot be made part of regular dismissal at the close of the school day.

Each emergency and safety drill plan shall be reviewed by the superintendent and filed with the clerk

Adopted: 08/12/2019

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EBBF Crisis Planning (See EBBD) EBBF

The superintendent, in cooperation with each building principal and counselor, shall develop a plan to deal with crises in an attendance center. Each plan shall be approved by the board before it is implemented.

A copy of the plan shall be on file in each building and with the clerk.

Building principals shall train staff to implement the building plan. As necessary, students and parents will be informed about details of the plan.

Crisis plans shall be subject to regular review by the administration. If a plan is implemented, the board shall receive a report on how well the plan worked. If necessary, the report shall include recommended changes.

Adopted: 09/09/2013

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Cardiac Emergency Response Planning **EBBG**

(See EBBF)

The superintendent, in cooperation with each building principal and school nurse, shall develop a comprehensive cardiac emergency response plan, including policies and procedures for cardiac emergency responses for each attendance center operated by the district. The plan shall be approved by the board before it is implemented.

The cardiac emergency response plan shall include, but is not limited to, the following:

- Establishing a cardiac emergency response team;
- identifying and implementing the placement of automated external defibrillators;
- identifying roles and responsibilities of school district personnel, local law enforcement agencies, and local emergency medical services in implementing the cardiac emergency response plan;
- establishing procedures for responding to such emergencies, including the roles and responsibilities of school district personnel when responding to incidents involving an individual experiencing a suspected sudden cardiac arrest while attending school, at the site of any school-sponsored athletic practice or competition, or other school-sponsored activities located in this state, whether such site is located on the grounds of the school district or at another location;
- conducting routine maintenance of automated external defibrillators, including appropriate placement in accordance with the statewide standards;
- designating school district personnel for training in the use of automated external defibrillators and cardiopulmonary resuscitation during a cardiac emergency;
- rehearsing cardiac emergency response plans, by simulation, by all athletic directors, coaches, assistant coaches, athletic trainers, school nurses, and any other school district personnel designated either prior to the beginning of each athletic season or prior to the beginning of each school year;
- establishing communication systems with local emergency medical services operating within the school district; and
- developing a cardiac emergency action plan for school sponsored events held at a location that is not on school district property.

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Cardiac Emergency Response Planning **EBBG-2**

Procedures designed for responding to cardiac emergencies shall include, but may not be limited to, the following focus areas:

- Responding to individuals experiencing a suspected sudden cardiac arrest;
- summoning emergency medical services;
- assisting emergency medical service providers; and
- documenting actions taken during such incidents.

A copy of the plan shall be on file in each building and with the clerk.

Building principals shall train staff to implement the building plan. As necessary, students and parents will be informed about the details of the plan.

The cardiac emergency response plan shall be subject to regular review by the administration. Once the plan is implemented, the board shall receive a report on the effectiveness of the plan, and if necessary, any recommended changes.

The board shall annually review the cardiac emergency response plan. A copy of the plan shall be submitted to the secretary of health and environment. An amended copy of the plan shall be submitted upon changes to the plan made by the board.

Adopted: 09/09/2024

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EBC **Security and Safety** **EBC**

(See JCAC, JCDBB, JDD, JDDB, JDDC, JGGA, and KGD)

Security devices may be installed at district attendance centers. Other measures may be taken to prevent intrusions or disturbances from occurring in school buildings or trespassing on school grounds. The district will cooperate with law enforcement in security matters and shall, as required by law and by this policy, report felonies and misdemeanors committed at school, on school property or at school-sponsored activities.

Reporting Crimes at School to Law Enforcement

Unless reporting would violate the terms of any memorandum of understanding between the district and local law enforcement, any district employee who knows or has reason to believe any of the following has occurred at school; on school property; or at a school-sponsored activity, program, or event shall immediately report this information to local law enforcement:

Reportable events would include:

- any act which constitutes the commission of a felony or a misdemeanor; or
- any act which involves the possession, use, or disposal of explosives, firearms, or other weapons as defined in current law.

It is recommended the building administrator also be notified.

Reporting Certain Students to Administrators and Staff

Administrative, professional or paraprofessional employees of a school who have information that any of the following has occurred shall report the information and the identity of the student responsible to the superintendent.

Adopted: 10/10/2016

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Reportable events include:

- A student being expelled for conduct which endangers the safety of others;
- A student being expelled for commission of felony type offenses;
- A student being expelled for possession of a weapon;
- A student being adjudged to be a juvenile offender for an offense, which, if committed by an adult, would constitute a felony, except a felony theft offense involving no direct threat to human life;
- A student being tried and convicted as an adult for any felony, except theft involving no direct threat to human life.

The superintendent shall investigate the matter and, if it is confirmed, the superintendent shall provide appropriate information and the identity of the student responsible to all employees who are involved in or likely to be directly involved in teaching or providing related services to the student.

Annual Reports

The principal of each building shall prepare all reports required by law and present them to the board and the state board of education annually. Reports shall not include any personally identifiable information about students. These reports and this policy may be made available upon request to parents, patrons, students, employees, and others.

Staff Immunity

No board of education, board member, superintendent of schools, or school employee shall be liable for damages in a civil action resulting from a person's good faith acts or omission in complying with the requirements or provisions of the Kansas school safety and security act.

Adopted: 10/10/2016

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Report to Local Law Enforcement

USD 357

Pursuant to K.S.A. 72-6143, the administrator or other school employee whose signature appears below is reporting the following crimes.

{Briefly describe each incident and the person/s involved in felonies, misdemeanors and weapons}

Date	School/Location	Student/s or Person/s Involved	Brief Description
1.			
2.			
3.			
4.			
5.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed:_____
Administrator or other school employee.

cc: Superintendent of Schools, USD 357 Student/s file

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EBC Safety and Security

Report to Staff Member USD 357

Pursuant to K.S.A. 72-6143, administrative, professional or paraprofessional employees of a school who have information that a pupil has engaged in the following shall report the information and the identity of the student to the superintendent. The superintendent shall investigate the matter and if it is determined the student has been involved in the following, the superintendent shall provide information, and the identity of the pupil to all employees who are involved, or likely to be directly involved, in teaching or providing related services to pupil:

1. Any student who has been expelled for conduct which endangers the safety of others;
2. Any student who has been expelled for commission of felony type offenses;
3. Any student who has been expelled for possession of a weapon;
4. Any student who has been adjudged to be a juvenile offender and whose offense, if committed by an adult, would constitute a felony, except a felony theft offense involving no direct threat to human life;
5. Any student who has been tried and convicted as an adult of any felony, except theft involving no direct threat to human life.

You are notified that_____, within the past 365 days, has been expelled, adjudged or convicted for an activity listed above**.**

School District staff are required by both Federal Law and K.S.A. 72-6311 to protect the right of privacy of any student under the age of 18 and the student's family regarding personally identifiable records, files, data and information directly related to the student and his/her family. I acknowledge this responsibility and agree that I will disclose the above information only to other USD357 employees and officials. Violation of these privacy rights could include sanctions up to and including termination.

Signed:_____
School employee who receives the report

Signed:_____
Administrator or school employee making report

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EBCA Vandalism EBCA

Vandalism Protection

All school personnel shall report any vandalism to their immediate supervisor. School personnel are expected to lock or otherwise secure any files, records, safes or similar compartments at the close of each school day.

In the event of vandalism, the board may offer a reward according to law.

Restitution for Damages

The board shall seek restitution according to law for loss and damage sustained by the district.

The principal shall notify the superintendent of any loss of, or damage to, district property. The superintendent shall investigate the incident. The cost involved in repairing the damage and/or replacing equipment will be determined after consultation with appropriate personnel.

When a juvenile is involved, the superintendent shall contact the parents and explain their legal responsibility. The parents shall be notified in writing of the dollar amount of loss or damage. Routine procedures will be followed for any necessary follow-up to secure restitution from the responsible party.

Restitution payments shall be made by juveniles or their parents to the business office, and accounts shall be kept. Persons of legal age shall be held responsible for their own payments. If necessary, provisions may be made for installment payments.

Accounts not paid in full within the specified time may be processed for legal action.

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Return of School Property

School property must be returned by students. If a student does not return district property, the superintendent may take action allowed by law.

Offering a Reward

The board may offer a reward for information leading to the discovery, arrest and conviction of persons committing acts of vandalism. The offer will conform to state law and the policy adopted by the board.

When the board decides to offer a reward, the notice to be published by the superintendent shall conform to the following:

> The board of education, as authorized by K.S.A. 12-1672a, hereby offers an up to $500.00 reward to any person who first provides information leading to the discovery, arrest and conviction of the person or persons responsible for acts of vandalism on property, real or personal, owned by the school district or rightfully located on school district premises by its employees or students.
>
> Persons having any knowledge are urged to contact the Superintendent of schools at P.O. Box 760, Belle Plaine, KS 67013, telephone 620-488-2288. The board reserves the right to determine the deserving recipients of the reward in the event of corroborating and supplementary information.

Adopted: 09/09/2013

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EBE Cleaning and Maintenance Programs EBE

The superintendent shall develop building and grounds cleaning and maintenance programs for board approval. After approval the plans shall be shared with the appropriate administrators and classified staff.

Sanitation

The superintendent shall develop cleaning schedules to see that all attendance centers and grounds are free from litter and refuse.

Cleaning, sanitation and routine maintenance plans shall be developed by the superintendent and may be published in the appropriate handbook(s) or job descriptions and/or employment contracts after board approval.

Adopted: 09/09/2013

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EBI **Long-Range Maintenance Program** **EBI**

The superintendent shall develop annually priority lists outlining long-range maintenance of school property, buildings and grounds.

The superintendent shall present a report to the board annually concerning the district's maintenance priorities. A cost analysis report shall be attached to the report.

Adopted: 09/09/2013

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All records pertaining to district-wide maintenance costs shall be filed in the central office. When practical, a cost analysis of existing and proposed maintenance programs shall be developed by the superintendent.

Adopted: 09/09/2013

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EC Equipment and Supplies Management EC

The superintendent shall keep up-to-date inventory records on all equipment and supplies.

Receiving

All packing lists will be checked against all invoices for accuracy by the superintendent or person responsible for receiving supplies.

A quantity control system is needed in order to prevent shortages or mismanagement of district-owned equipment or supplies. The system shall be kept up-to-date and be accurate enough to provide information for budget preparation each year.

Upon verification by the purchasing agent that receivables are in order, the merchandise shall be sent to the appropriate location as soon as possible. Each building principal shall be responsible for the allocation or storage of all supplies and equipment. If the items cannot be delivered to the proper destination, they will be stored in an appropriate storage area.

Back orders shall be filed with the invoice and attached to the purchase order. Periodic checks shall be made to determine whether back orders have been filled and delivered.

Adopted: 09/09/2013

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ECA HIPAA Policy **ECA**

(See BCBK, BE, CN, CNA, IDEA and JR et seq.)

The district shall comply with all applicable Health Insurance Portability and Accountability Act (HIPAA) provisions ensuring the confidentiality of protected health information.

Staff Training Required

The district shall provide appropriate and timely professional development activities regarding HIPAA requirements.

Compliance Required

All staff shall abide by HIPAA requirements and maintain the confidentiality of protected health information. The district shall provide notice to staff and students as required by law.

Adopted: 09/09/2013

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ECH Printing and Duplicating Services (See IIBG and KBA) ECH

The copyright laws of the United States make it illegal for anyone to duplicate copyrighted materials without permission. Severe penalties are provided for unauthorized copying of all materials covered by the act unless the copying falls within the bounds of the "fair use" doctrine.

Any duplication of copyrighted materials by district employees must be done with permission of the copyright holder or within the bounds of "fair use."

The legal or insurance protection of the district shall not be extended to school employees who violate any provisions of the copyright laws.

Adopted: 09/09/2013

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ED **<u>Student Transportation Management</u> (See EDDA and JGG)** **ED**

The district will provide transportation to students as required by law. Student transportation can be provided through any of the methods outlined by law.

Adopted: 09/12/2022

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EDAA **School Buses and Vehicles** **EDAA**
(See ED, JBCA, and JGG)

Use of buses and other school vehicles by the district shall conform to current law. School buses and other school vehicles will not be loaned, leased, or subcontracted to any person, groups of persons, or organizations except as allowed by law, subject to board approval.

Liability

All school vehicles will be adequately insured.

Safety

For the purposes of this policy, "school transportation provider" is defined to include school bus drivers, school passenger vehicle drivers, and other school employees who may transport students.

Every school transportation provider shall have a valid driver's license. Such drivers shall have full authority and responsibility for the passengers riding in school vehicles.

Students or other persons riding in school buses or school vehicles who violate district policy or bus and/or school vehicle rules will be reported to the proper administrator. Violations of these policies and/or rules may result in disciplinary action by school officials or reports to law enforcement as appropriate.

Speed Limits

The board may set speed limits for district vehicles, which may be lower than state-allowed maximum speed limits.

Safety Inspection

The superintendent or superintendent's designee shall be responsible for bus and other transportation inspections.

EDAA **School Vehicles** **EDAA-2**

Defects found in school vehicles shall be repaired as soon as possible. The director of transportation shall be responsible for keeping school vehicles in good operating condition.

Scheduling and Routing

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Scheduling and routing shall be the responsibility of the superintendent or the superintendent's designee.

Bus and transportation schedules and routing maps will be updated annually prior to the start of school.

Records

Every school transportation provider will keep accurate records pertaining to each assigned vehicle. The types of records shall be developed by the superintendent or the superintendent's designee.

Any record developed by the administration for the purpose of monitoring vehicle use will include, but may not be limited to, the following information: miles driven each trip, gas and oil usage, purpose of the trip, destination, time of departure, and time of return. Such records will be signed by each driver at the conclusion of each trip and submitted to the person responsible for collection of these records. An annual summary report will be used in the compilation of the district's budget. A copy of the annual report may be given to the board on or before the regular board meeting in June or upon request.

Licensing of Drivers

It shall be the responsibility of all school transportation providers to provide proof of a valid driver's license appropriate for the vehicle(s) to be driven

for the district to the superintendent or the superintendent's designee at the beginning of each school year. If a school transportation provider's license

is suspended or revoked at any time, the suspension or revocation shall be reported to the superintendent, and the employee shall immediately cease driving a school vehicle and transporting students.

School transportation providers shall be provided access to this policy annually.

Housing of School Vehicles

All school vehicles shall be housed in areas designated by the superintendent. Buses may be housed in the district's central storage area or assigned to a designated driver who may then house the bus as directed.

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If district vehicles or vans are assigned to designated employees, the employee shall be responsible for the proper care, maintenance, and housing of the vehicle at a district-owned site, while on school business, or at the employee's residence.

Transportation to Summer Athletic Events

The board authorizes the superintendent to approve the use of school buses or other school vehicles in transporting district students to summer athletic activities such as, but not limited to, camps, 7-on-7, and summer league games.

Any staff requests for such use shall be submitted to the superintendent or the superintendent's designee at the time the event registration is submitted for approval and shall include information concerning the time, date, and duration of trip; the purpose of the transportation; the projected number of students

requiring transportation for such event; the type of bus(es) or vehicle(s) requested; which district staff member(s) will be accompanying the student(s) on such trips; and whether or not additional school transportation providers would be required to provide such transport.

The superintendent may grant or deny such requests after taking into consideration the following factors:

- the expense of providing requested transport;
- the availability of funds for such purpose;
- the availability of adequate school staff to chaperone and/or provide transportation;
- the availability of and/or the coverage of liability insurance for this purpose;
- priority of assignment and availability of necessary vehicles;
- Title IX and other fairness considerations in granting use or repeated use to a particular group of student participants; and

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- other good cause as determined by the superintendent or superintendents' designee.

Approved: 09/12/2022

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A supervisor may be hired by the board to oversee the district's food service program.

Sanitation Inspections

The building principal shall inspect each lunchroom to ensure that proper sanitation procedures are being followed.

Records

The supervisor shall be responsible for keeping food service records required by state and federal laws and regulations.

The supervisor shall be under the direct supervision of the superintendent and shall have control over all aspects of the district's food service programs subject to board policy, rules and state and federal regulations.

Meal Prices

Meal prices shall be determined by the board.

Free or Reduced-Price Meals

Parents or guardians of students attending schools participating in federal school meal programs must be informed of the availability of reimbursable school meals and provided with information about eligibility and the process for applying for free or reduced-price meals on or before the start of school each year. Access to this policy will be provided to parents or guardians when they receive information regarding eligibility and applying for free or reduced price meals.

Unpaid Meal Charges

The district’s meal charging requirements are as follows.

A charge account for students paying full or reduced price for meals may be established with the district. Students may charge no more than $10.00 in the elementary grades; $10.00 in the middle or junior high grades, and $10.00 in the high school grades for the purchase of meals to this account. Charging of ala carte or extra items will not be permitted.

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Any student or adult failing to keep a charge account solvent as required by this policy shall not be allowed to charge further meals until the negative account balance has been paid in full. However, such students will be allowed to purchase a meal if the student pays for the meal when it is received. Students who have charged the maximum allowance to this account and cannot pay out of pocket for a meal will be provided an alternate meal consisting of a peanut butter or deli meat sandwich, fruit, vegetable, and milk. Care will be taken by staff members requesting and distributing any alternate meals per this policy to do so discreetly, while protecting the privacy of the students and the student's parent or guardian regarding negative account balances. When providing an alternate meal, district staff will provide reasonable accommodations to students with disabilities or with special dietary needs.

At least one verbal and one written warning shall be provided to a student and the student's parent or guardian prior to denying meals for exceeding the district's charge limit. Access to this policy will be provided to the students' parent or guardian with the written warning. If payment of the negative balance is not received within 5 working days of the maximum charge limit being attained, the debt will be turned over to the superintendent or superintendent's designee for collection in accordance with board policy DP. If the debt is not paid within 10 days of mailing the final notice of the negative account balance under policy DP, it shall be considered bad debt for the purposes of federal law concerning unpaid meal charges.

Payments for school meals may be made at the school or district office or online at www.usd357.org. Students, parents, and guardians of students are encouraged to prepay meal costs.

The district will provide a copy of this unpaid meal charges policy to all households at or before the start of school each year and to families and students that transfer into the district at the time of transfer. The terms of this policy will also be communicated to all district staff responsible for enforcing any aspect of the policy, a copy of the policy will be posted in district meal service facilities, and the

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policy will be made available on the district's website and social media accounts. Records of how and when it is communicated to households and staff will be retained.

Adopted: 09/09/2024

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EF Data Management **EF**

Data Dissemination

Data collected by the district may be disseminated with board approval in accordance with current law.

To Education Agencies

Data collected in the district may be provided to authorized state or federal government education agencies upon proper request, subject to the approval of the board or provisions of law.

Adopted: 09/09/2013

EG Energy Conservation Policy

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USD 357 is committed to reducing energy and water use in practical ways that do not adversely affect daily activities or make buildings uncomfortable. The purpose of this policy is to establish realistic standards and guidelines for reducing our consumption of energy and water. With everyone's participation in our energy conservation program we expect to achieve the following outcomes:

1. An overall reduction in our utility bills
2. A demonstration of being good financial stewards
3. Maintained indoor comfort
4. A reduction in our contribution to greenhouse gas emissions

While each individual effort to save energy may seem trivial, when we collectively follow the guidelines below, we can make a major change for the better.

Attire

Dress appropriately for the weather. Try to dress in layers and keep a sweater or similar item on-hand if you tend to get cold.

Lighting

1. Lights should only be turned on in areas where work is being performed, and lights should be turned off when leaving a space for more than 15 minutes. All lights should be turned off at the end of the day.
2. All outside lights should be turned off during daylight hours.
3. Lighting required for safety purposes should be left on.
4. Burned out lamps should only be replaced with new lamps of equal or better efficiency.
5. Floor lamps, desk lamps and task lighting should use fluorescent or LED lamps.
6. Interior decorative lighting should be kept to a minimum.

Computers and Office Equipment

1. Computers should be set to enter "sleep" mode after 15 minutes of inactivity. Computers should be turned off or be set to "hibernate" at the end of the day.
2. Computer monitors should be turned off at the end of each day. Screen savers do not save energy.
3. Office equipment (e.g., printers, fax machines, copiers, projectors, etc.) should not be turned on in the morning until needed, and should be turned off at the end of the day. Power saving or sleep options should be enabled on all devices.

Heating

1. Room temperatures shall be maintained at no higher than 70°F.
2. Where feasible, temperature controls will allow room temperatures to drop to 60°F during unoccupied hours.

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3. Where feasible, temperature controls will be programmed/set to start equipment at the optimal time to warm buildings to the appropriate temperature each morning, and allow equipment to turn off at the optimal time so that building temperatures are maintained until the end of the day.

Cooling

1. Room temperatures shall be maintained at no lower than 74°F.
2. Where feasible, temperature controls will allow room temperatures to rise to 80°F during unoccupied hours.
3. Where feasible, temperature controls will be programmed/set to start equipment at the optimal time to cool buildings to the appropriate temperature each morning, and allow equipment to turn off at the optimal time so that building temperatures are maintained until the end of the day.
4. Refrain from turning lights on unless definitely needed. Remember, lights not only consume electricity, but also give off heat which, in turn, places an additional load on the air conditioning equipment and thereby increases the use of electricity necessary to cool the room.

Windows, Doors and Ventilation

1. All exterior windows and doors will be closed in conditioned spaces.
2. Where possible, exhaust fans in restrooms will be turned off at end of each day.

Water

1. Water should never be left running.
2. Showers should not be longer than 10 minutes.
3. Any leaks, drips or plumbing fixtures that are running when they shouldn't be need to be reported immediately for maintenance.
4. Irrigation should be used minimally as needed and closely monitored.

Miscellaneous Plug Loads (radios, space heaters, and other electronic devices)

1. Use of space heaters is strongly discouraged. Please contact the Maintenance Director if you feel it is necessary to have a space heater in your area so that all possible options can be explored. Refer to Board Policy EBB for specific guidelines.
2. Radios and other personal electronic devices should be turned off, and preferably unplugged, when not in use. Phone and electronics chargers should be unplugged when not in use.

Purchasing

1. New products and equipment should be ENERGY STAR qualified if possible.
2. Recyclable and reusable products are preferred when available and economically feasible.

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Adopted: 10/13/14

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Table of Contents

Section F – Facility Expansion Program

Goals and Objectives **FA**

Building Committees **FB**

Memorials, Funerals, and Naming of District Facilities **FC**

Memorials

Funerals and Memorial Services in District Facilities

Naming of Facilities

Capital Outlay Long Range Planning **FD**

Long Range Needs Determination **FDB**

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FA **Goals and Objectives** **FA**

Facility planning programs shall provide for new developments in instruction, population shifts, and changes in the condition of existing facilities.

Adopted: 09/09/2013

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FB **Building Committees** **FB**

Building committees may be appointed by the board to assess general or specific facility needs and to advise the board.

Adopted: 09/09/2013

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FC Memorials and Naming of District Facilities FC

Requests to use district buildings and/or facilities for displaying permanent memorials, or honoring a person with its name shall be considered in accordance with the following provisions.

Memorials

As places designed primarily to support learning, school sites should not serve as the main venue for permanent memorials for students or staff. Permanent memorials for deceased students or staff shall be limited in form to perpetual awards or scholarships for district students.

Any permanent memorials in existence before the adoption of this policy can only be removed by board action.

Funerals

Use of school facilities for funerals or memorial services is not allowed.

Naming of Facilities

The board will not consider requests from school and community groups to name an athletic or other school activity facility, building, or a portion thereof.

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Adopted: 10/10/2016

FD Capital Outlay Long Range Planning FD

The board directs the administration to develop long-range plans and reliable methods to project capital outlay needs. The long-range planning process may include recommendations from patrons,

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consultants, architects, the board attorney, the district staff and representatives from local, state and federal governmental agencies.

The superintendent shall report recommendations concerning the district's capital outlay needs to the board on or before the regular board meeting each May.

Adopted: 09/09/2013

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FDB **Long Range Needs Determination** **FDB**

The board and administration may periodically conduct district-wide assessments to evaluate facility use, to project future building needs, or to recommend that facilities be closed. A task force may be appointed to assist with the study.

Adopted: 09/09/2013

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Table of Contents

Section G Personnel (Licensed and Non-Licensed)

Personnel Policy Organization **GA**

Goals and Objectives **GAA**

Equal Employment Opportunity and Nondiscrimination **GAAA**

Complaints of Discrimination **GAAB**

Sexual Harassment **GAAC**

Response to Harassment Complaints

Definitions

Supportive Measures

The Formal Complaint

Formal Complaint Notice Requirements

Formal Complaint Investigation Procedures

Formal Complaint Investigation Report

Decision-Maker's Determination

Appeals

Informal Resolution Process

Racial and Disability Harassment: Employees **GAACA**

Child Abuse **GAAD**

DCF or Law Enforcement Access to Students on School Premises

Cooperation Between School and Agencies

Reporting Procedure

Mobile Crisis Helpline

Annual Training

Bullying by Staff **GAAE**

Emergency Safety Interventions **GAAF**

Definitions

Prohibited Types of Restraint

Use of Emergency Safety Interventions

ESI Restrictions

Use of Seclusion

Training

Notification and Documentation

Law Enforcement, School Resource, and Campus Security Officers

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Documentation of ESI Incidents

Reporting Data

Parent Right to Meeting on ESI Use

Local Dispute Resolution Process

Positions **GACA**

Job Descriptions **GACB**

Recruitment and Hiring **GACC**

Recruitment

Hiring

Hiring sequence

Nepotism **GACCA**

Supervision Limitations

Employment Eligibility Verification (Form I-9) **GACD**

Assignment and Transfer **GACE**

Employee Development Opportunities **GAD**

Complaints **GAE**

Staff-Student Relations **GAF**

Conflict of Interest **GAG**

Participation in Community Activities **GAH**

Political Activities **GAHB**

Holding Public Office

Political Activity in the Schools

Solicitations **GAI**

Gifts **GAJ**

Gifts to Staff Members

Personnel Records **GAK**

Requests for References

Immunity Provided

Prohibition on Aiding and Abetting Sexual Abuse

Salary Deductions (FLSA) **GAL**

Personal Appearance **GAM**

Travel Expenses **GAN**

Expense Reimbursement and Credit Cards **GANA**

Maintaining Proper Control **GAO**

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Drug-Free Workplace **GAOA**

Drug-Free Schools **GAOB**

Employee Conduct

Tobacco-Free School Grounds for Staff **GAOC**

Drug and Alcohol Testing **GAOD**

Workers Compensation **GAOE**

Testing

Choice of Physician

Salary Deductions **GAOF**

Communicable Diseases **GAR**

Additional Certifications of Health

Bloodborne Pathogen Exposure Control Plan **GARA**

Family and Medical Leave **GARI**

Pregnant and Parent Employees **GARIA**

Military Leave **GARID**

Staff Use of Communication Devices **GAT**

Definitions

General Use

Use in Vehicles

Use of District-Provided Communication Devices

Personal Use of District-Provided Communication Devices

Staff Bring Your Own Device Policy

Supervision **GBH**

Evaluation **GBI**

Availability of Evaluation Documents

Evaluation Criteria

Suspension **GBK**

Nonrenewal and Termination **GBN**

Resignation **GBO**

Exit Interviews

Reduction of Teaching Staff **GBQA**

Work Schedule **GBR**

Work Schedules

Attendance Required

Professional Development **GBRC**

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Staff Meetings **GBRD**

Additional Duty **GBRE**
Student and Parent Conferences **GBRF**
Non-School Employment **GBRG**
Consulting **GBRGA**
Tutoring for Pay **GBRGB**
Leaves and Absences **GBRH**
Disability Leave **GBRIBA**
Substitute Teaching **GBRJ**
Ethics **GBU**
Compensation and Work Assignments **GCA**
Work Assignments
Attendance Required
Classification of Employees
Overtime
Compensation for Out-of-Town/Overnight Trips
Classified Employee Evaluation **GCI**
Evaluation of Coaches and Sponsors **GCIA**
Suspension **GCK**
Non-School Employment **GCRF**
Leaves **GCRG**
Paid Leave
Unpaid Leave
Jury Leave
Vacations **GCRH**
Paid Holidays **GCRI**

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GA Personnel Policy Organization GA

These policies are arranged in the following manner:

- GA policies apply to all employees.
- GB policies apply to teachers and other licensed staff covered by the negotiated agreement.
- GC policies apply to classified/non-licensed staff.

Adopted: 09/09/2013

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GAA Goals and Objectives (See BDA, CM, and JA) **GAA**

The goal of the personnel policies set forth in this policy section is to create the best possible educational climate for the students of the school district. To this end, these personnel policies are designed to prevent misunderstanding by the district's personnel of their duties, responsibilities, and privileges

. All employees shall follow all applicable board policies, rules, regulations, and supervisory directives.

All personnel handbooks shall be approved by the board and adopted, by reference, as a part of these policies and rules.

Adopted: 09/12/2022

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GAAA Equal Employment Opportunity and Nondiscrimination GAAA

The board shall hire all employees on the basis of ability and the district's needs.

The district is an equal opportunity employer and shall not discriminate in its employment practices and policies with respect to hiring, compensation, terms, conditions, or privileges of employment because of an individual's race, color, national origin, religion, sex, age, disability or genetic information. Discrimination on any of these characteristics will not be tolerated. The district will make reasonable accommodations to applicants and employees who need them for medical or religious reasons, as required by law.

Inquiries regarding compliance may be directed to the Superintendent, PO Box 760, Belle Plaine, KS 67013, 620-488-2288 or the district compliance coordinator or to:

Equal Employment Opportunity Commission
Gateway Tower II
400 State Ave., Suite 905
Kansas City, KS 66101
(913) 551-5655
kansascityintake@eeoc.gov

or

Kansas Human Rights Commission
900 SW Jackson, Suite 568-S
Topeka, KS 66612-1258
(785) 296-3206
khrc@ks.gov

or

Unites State Department of Education
Office for Civil Rights
One Petticoat Lane
1010 Walnut Street, Suite 320
Kansas City, MO 64106
(816) 268-0550
OCR.KansasCity@ed.gov

Adopted: 08/12/2019

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GAAB **Complaints of Discrimination** **GAAB**

(See GAAC, GAACA, JDDC, JGEC, JGECA, KN and KNA)

The district is committed to maintaining a working and learning environment free from discrimination, insult, intimidation and harassment due to race, color, national origin, religion, sex, age, genetic information, or disability.

Discrimination against any individual on the basis of race, color, national origin, sex, disability, age, genetic information, or religion in the admission to, access to, treatment, or employment in the district's programs and activities is prohibited. The USD #357 Superintendent, 719 N Main Street, Belle Plaine, KS 67013, 620-488-2288, has been designated to coordinate compliance and nondiscrimination requirements contained in Title VI and Title VII of the Civil Rights Act of 1964 (with the exception of discrimination on the basis of sex), Section 504 of the Rehabilitation Act of 1973, and the Americans with Disabilities Act of 1990, the Age Discrimination Act of 1975, the Personal Responsibility Work Opportunity Reconciliation Act of 1996, and the Food Stamp Act of 1977, as amended.

Complaints regarding alleged discrimination on the basis of sex, as prohibited by Title IX of the Education Amendments of 1972 and other federal and state laws regulating such discrimination and discriminatory harassment, shall be handled in accordance with the procedures outlined in board policies GAAC and JGEC and shall be directed to the Title IX Coordinator at: High School Principal, 901 N Main Street, Belle Plaine, KS 67013, 620-488-2421. More information may be obtained on discrimination on the basis of sex by contacting the Title IX Coordinator.

Complaints alleging discrimination in child nutrition programs offered by the district shall be handled in accordance with the procedures outlined in
board policy KNA, and more information may be obtained on procedures for filing such a complaint by contacting the district compliance coordinator.

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Unless otherwise provided in board policy, general complaints, those not alleging acts of discrimination, will be resolved using the district's general complaint procedures in policy KN.

Any employee who engages in discriminatory, harassing or retaliatory conduct shall be subject to disciplinary action, up to and including termination.

Except as otherwise provided in this policy and board policies GAAC, JGEC, and KNA, any incident of discrimination in any form shall promptly be reported to an employee's immediate supervisor, the building principal or the district compliance coordinator. Complaints alleging discriminatory and/or harassing conduct on the part of the superintendent shall be addressed to the board of education.

Except as otherwise provided in board policy regarding complaints of discrimination on the basis of sex or regarding child nutrition programs, complaints about discrimination, including complaints of harassment, will be resolved through the following complaint procedures:

Informal Procedures

The building principal shall attempt to resolve complaints of discrimination or harassment in an informal manner at the building level. Any school employee who receives a complaint of such discrimination or harassment from a student, another employee, or any other individual shall inform the individual of the employee's obligation to report the complaint and any proposed resolution of the complaint to the building principal. The building principal shall discuss the complaint with the individual to determine if it can be resolved. If the matter is resolved to the satisfaction of the individual, the building principal shall document the nature of the complaint and the proposed resolution of the complaint and forward this record to the district compliance coordinator. Within 20 days after the complaint is resolved in the manner, the principal shall contact the complainant to determine if the resolution of the matter remains acceptable.

If the matter is not resolved to the satisfaction of the individual in the meeting with the principal, or if the individual does not believe the resolution remains acceptable, the individual may initiate a formal complaint.

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Formal Complaint Procedures

- A formal complaint shall be filed in writing and contain the name and address of the person filing the complaint. The complaint shall briefly describe the alleged violation. If an individual does not wish to file a written complaint, and the matter has not been adequately resolved through the informal procedures described herein, the building principal may initiate the complaint. Forms for filing written complaints are available in each school building office and the central office.
- A complaint should be filed as soon as possible after the conduct occurs but not later than 180 days after the complainant becomes aware of the alleged violation, unless the conduct forming the basis for the complaint is ongoing.
- If appropriate, an investigation shall follow the filing of the complaint. If the complaint is against the superintendent, the board may appoint an investigating officer. In other instances, the investigation shall be conducted by the building principal, the compliance coordinator, or another individual appointed by the board or the superintendent. The investigation shall be informal but thorough. The complainant and the respondent will be afforded an opportunity to submit written or oral evidence relevant to the complaint and to provide names of potential witnesses who may have useful information.

- A written determination of the complaint's validity and a description of the resolution shall be issued by the investigator, and a copy shall be forwarded to the complainant and the respondent within 30 days after the filing of the complaint. If the investigator anticipates a determination will not be issued within 30 days after filing of the complaint. If the investigator anticipates
  - A determination will not be issued within 30 days after the filing of the complaint, the investigator shall provide written notification to the parties including an anticipated deadline for completion. In no event shall the issuance of the written determination be delayed longer than 10 days from the conclusion of the investigation.
    - If the investigation results in a recommendation that a student be suspended or expelled, procedures outlined in board policy and state law governing student suspension and expulsion will be followed.
    - If the investigation results in a recommendation that an employee be suspended without pay or terminated, procedures outlined in board policy, the negotiated agreement (as applicable), and state law will be followed.
  - Records relating to complaints filed and their resolution shall be forwarded to and maintained in a confidential manner by the district compliance coordinator.

Formal Complaint Appeal

- The complainant or respondent may appeal the determination of the complaint.
- Appeals shall be heard by the district compliance coordinator, a hearing officer appointed by the board or the superintendent, or by the board itself.
- The request to appeal the resolution shall be made within 20 days after the date of the written determination of the complaint at the lower level.
- The appeal officer shall review the evidence gathered by the investigator at the lower level and the investigator's report and shall afford the complainant and the respondent an opportunity to submit further evidence, orally or in writing, within 210 days after the appeal is filed.

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- The appeal officer will issue a written determination of the complaint's validity on appeal and a description of its resolution within 30 days after the appeal is filed.

If it is determined at any level that discrimination or harassment has occurred, the district will take prompt, remedial action to prevent its recurrence. The district prohibits retaliation or discrimination against any person for opposing discrimination, including harassment; for participating in the complaint process; or making a complaint, testifying, assisting, or participating in any investigation, proceeding, or hearing.

Use of this complaint procedure is not a prerequisite to the pursuit of any other remedies including the right to file a complaint with the Office for Civil Rights of the U.S. Department of Education, the Equal Employment Opportunity Commission, or the Kansas Human Rights Commission.

Adopted: 01/09/2023

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GAAC **Sexual Harassment** (See GAAD, GA, GARIA, JDDC, JGEC and KN) **GAAC**

The board of education is committed to providing a positive and productive working and learning environment, free from discrimination on the basis of sex, including sexual harassment. The district does not discriminate on the basis of sex in admissions, employment, or the educational programs or activities it operates and is prohibited by Title IX from engaging in such discrimination. Discrimination on the basis of sex, including sexual harassment, will not be tolerated in the school district. Discrimination on the basis of sex of employees or students of the district in any district education program or activity is strictly prohibited.

Sexual harassment is unlawful discrimination on the basis of sex under Title IX of the Education Amendements of 1972, Title VII of the Civil Rights Act of 1964, and the Kansas Acts Against Discrimination. All forms of sexual harassment are prohibited at school, on school property, and ata ll school-sponsored activities, programs or events withing the United States.

It shall be a vio9lation for any employee to discourage a student or another employee from filing a complaint, or to to fail to investigate or refer for investigation, any complaint lodged under the provisions of this policy. Violation of this policy by any employee shall result in disciplinary action, up to and including termination.

Sexuak harassment shall include conduct on the basis of sex involving one or more of the following:

(1) A district employee conditioning the provision of an aid, benefit, or service of the district on an individual's participation in unwelcome sexual conduct;

(2) unwelcomed conduct determined by a reasonable person to be severe, pervasive, and objectively offensive that it effectively denies a person equal access to the district's educational program or activity; or

(3) or sexual assault dating vio9lence, domestic violence, or stalking.

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Sexual harassment may result from verbal or physical conduct or written or graphic material. Sexual harassment may include, but is not limited to: verbal harassment or abuse of a sexual nature; pressure for sexual activity; repeated remarks to a person, with sexual or demeaning implication; unwelcome touching; or suggesting or demanding sexual involvement accompanied by implied or explicit threats concerning an employee's job status.

The district encourages all victims of sexual harassment and persons with knowledge of such harassment to report the harassment immediately. Complaints of sexual harassment will be promptly investigated and resolved. Any person may make a verbal or written report of sex discrimination by any means and at any time.

The High School Principal, 901 N Main Street, Belle Plaine, KS 67013, 620-488-2421 has been designated to coordinate compliance with nondiscrimination requirements in Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1967, and the Kansas Act Against Discrimination. Information concerning the provisions of the Acts, and the rights provided thereunder, are available from the Title IX Coordinator. Inquiries about the application of Title IX to the district may be referred to the Title IX Coordinator; to the Assistant Secretary for Civil Rights at the U.S. Department of Education, Office of Civil Rights, 400 Maryland Avenue, SW, Washington D.C. 20202-1100, (800)421-3481, or at OCR@ed.gov; or both.

Response to Harassment Complaints

The district takes all reports of sexual harassment seriously and will respond meaningfully to every report of discrimination based on sex, including sexual harassment, of which the district has actual knowledge. Employees who believe they have been subjected to sexual harassment should discuss the problem with their immediate supervisor. If an employee's immediate supervisor is the alleged harasser,

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the employee should discuss the problem with the building administrator or the Title IX Coordinator. All employees receiving reports of alleged sexual harassment shall notify the Title IX Coordinator.

Definitions

The following definitions apply to the district in responding to complaints of sexual discrimination including sexual harassment as defined by Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1964, and the Kansas Act Against Discrimination.

The "complainant" means an individual who is alleged to be a victim of conduct that could constitute sexual harassment.

"Dating violence" means violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the victim where the existence of such a relationship shall be determined based on a consideration of the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved

The "decision-maker" reviews all the evidence and prepares an impartial written responsibility determination as to whether the alleged conduct occurred and provides an opportunity for the parties and their representatives to prepare written questions to be answered by the other party. The decision-maker shall not be the Title IX Coordinator or investigator.

"Domestic violence" includes crimes of violence committed by a person who is a current or former spouse, partner, person with whom the victim shares a child, or who is or has cohabited with the victim as a spouse or partner, by a person similarly situated to a spouse of the victim under Kansas or applicable federal law, or by any other person against an adult or youth victim having protection from such person's acts by Kansas or applicable federal law.

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A "formal complaint" means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment against a respondent and requesting that the district investigate the allegation of sexual harassment.

The "investigator" is the person who carries out the investigation after the formal complaint is filed and conducts interviews of the witnesses, collects and documents evidence, and drafts an investigative report.

A "respondent" is an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

"Sexual assault" means an offense classified as a forcible or nonforcible sex offense under the uniform crime reporting system of the Federal Bureau of Investigation.

"Stalking" means engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for his or her safety or the safety of others or to suffer substantial emotional distress.

The "Title IX Coordinator" is the individual designated at the district level who has responsibility to coordinate compliance with Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1964, and the Kansas Act Against Discrimination. The Title IX Coordinator's responsibilities include, but are not limited to: developing materials and ensuring professional development occurs for staff involved in Title IX compliance, creating systems to centralize records, gathering relevant data, contacting the complainant (and/or parents or guardians, if applicable) once the district has actual knowledge of alleged sexual harassment, coordinating the implementation of supportive measures, signing a formal complaint to initiate a grievance process, and ensuring any remedies are implemented.

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The Title IX Coordinator, any investigator, decision-maker, or any person who facilitates an informal resolution process shall not have a conflict of interest or bias for or against the complainant or respondent. These individuals shall
receive training on the definition of sexual harassment; the scope of the education
program and activities; how to conduct an investigation, including appeals and informal resolution processes; and how to serve impartially, including avoiding prejudgment of the facts, conflicts of interest, and bias. Decision-makers shall receive training on issues of relevance of questions and evidence, including when questions and evidence about the complainant's sexual predisposition or prior sexual behavior is not relevant. Investigators shall receive training on issues of relevance of questions and evidence in order for them to create investigative reports that fairly summarize relevant evidence.

Any employee who witnesses an act of sexual harassment or receives a complaint of harassment from another employee or a student shall report the complaint to their immediate supervisor, building administrator, or Title IX Coordinator. Employees who fail to report complaints or incidents of sexual harassment to appropriate district officials may face disciplinary action. District officials who fail to investigate and take appropriate corrective action in response to complaints of sexual harassment may also face disciplinary action.

Complaints received will be investigated to determine whether, under the totality of the circumstances, the alleged behavior constitutes sexual harassment under the definition outlined above. Unacceptable conduct may or may not constitute sexual harassment, depending on the nature of the conduct and its severity, pervasiveness, and persistence. Behaviors which are unacceptable but do not constitute harassment may also result in employee discipline.

If discrimination or harassment has occurred, the district will take prompt, remedial action to stop it and prevent its recurrence.

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The Title IX Coordinator shall promptly respond in a meaningful way to any reports of sexual discrimination including sexual harassment of which the district has actual knowledge as follows:

- Contact the complainant within 10 business days and discuss the availability of supportive measures, with or without the filing of a formal complaint, and consider the complainant's wishes as to supportive measures; and
- Inform the complainant of the right to a formal complaint investigation consistent with Title IX and the informal resolution process.

Supportive Measures

The district will treat the complainant and respondent equitably by offering supportive measures. These non-disciplinary and non-punitive measures will be offered as appropriate, as reasonably available, and without cost to the complainant or the respondent. Supportive measures are designed to restore or preserve equal access to the education program or activity without unreasonably burdening the other party. "Supportive Measures" shall include, but not be limited to, measures designed to protect the safety of all parties, to protect the district's educational environment, or to deter sexual harassment. These measures may include counseling, extensions of deadlines or course-related adjustments, modifications of work or class schedules, escort services, mutual restrictions on contact between the parties, changes in work locations, leaves of absence, increased security and monitoring, and other similar measures. The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures.

The Formal Complaint

No investigation of alleged sexual harassment may occur until after a formal complaint has been filed.

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A formal complaint is a document filed by the complainant or signed by the Title IX Coordinator alleging sexual harassment and requesting an investigation. The procedures for filing a formal complaint are as follows:

- At the time of filing a formal complaint, a complainant must be participating in or attempting to participate in the education program or activity of the district concerning which the formal complaint is filed.

A formal complaint should be filed in writing and contain the name and address of the person filing the complaint. The complaint should briefly describe the alleged violation. Filing of the complaint with the Title IX Coordinator may be done in person, by mail, or by email. If an individual does not wish to file a written complaint, and the matter has not been adequately resolved, the Title IX Coordinator may initiate the complaint. Forms for filing written complaints are available in each school building office and the central office.

- A complaint should be filed as soon as possible after the conduct occurs, but not later than 180 calendar days after the complainant becomes aware of the alleged violation, unless the conduct forming the basis for the complaint is ongoing.
- An investigation shall follow the filing of the complaint. If the complaint is against the superintendent, the board shall appoint an investigating officer. In other instances, the investigation shall be conducted by a qualified individual designated by the Title IX Coordinator or another individual appointed by the board. The investigation shall be thorough. All interested persons, including the complainant and the respondent, will be afforded an opportunity to submit written or oral evidence relevant to the complaint.

Formal Complaint Notice Requirements

Upon filing of a formal complaint, the district shall provide written notice to the known parties including:

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- Notice of the allegations of sexual harassment including sufficient details to prepare a response before any initial interview including:
  - the identities of the parties involved, if known;
  - the conduct allegedly constituting sexual harassment; and
  - the date and location of the alleged incident, if known.
- The district's investigation procedures, including any informal resolution process;
- A statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility will be made by the decision-maker at the conclusion of the investigation;
- Notice to the parties they may have an advisor of their choice and may inspect and review any evidence; and
- Notice to the parties of any provision in the district's code of conduct or policy that prohibits knowingly making false statements or knowingly submitting false information.

If, in the course of an investigation, the investigator decides to investigate allegations about the complainant or respondent that are not included in the notice initially provided, notice of the additional allegations shall be provided to known parties.

Formal Complaint Investigation Procedures

To ensure a complete and thorough investigation and to protect the parties, the investigator shall:

- Ensure that the preponderance of the evidence burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility rests on the district and not the parties;
- Provide an equal opportunity for the parties to present witnesses and evidence;
- Not restrict either party's ability to discuss the allegations under investigation or to gathe

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- and present relevant evidence;
- Allow the parties to be accompanied with an advisor of the party's choice;
  - Provide written notice of the date, time, location, participants, and purpose of any interview, meeting, or hearing at which a party is expected to participate;
- Provide the parties equal access to review all the evidence collected which is directly related to the allegations raised in a formal complaint, including the investigative report, and the opportunity to respond to that evidence before a determination is made;
- Be impartial and objectively evaluate all relevant evidence without relying on sex stereotypes;
- Not have conflicts of interest or bias for or against complainants or respondent;
- Not make credibility determinations based on the individual's status as complainant, respondent, or witness.

Formal Complaint Investigation Report

The investigator shall prepare an investigative report that fairly summarizes relevant evidence and share the report with the parties and their advisors for review and response.

Before completing the investigative report, the investigator must send each party and their advisors the investigative report for review and allow the parties 10 days to submit a written response for the investigator's consideration.

Decision-Maker's Determination

Upon receiving the investigator's report, the decision-maker must make a determination regarding responsibility and afford each party the opportunity to submit written, relevant questions that the parties want asked of any party or witness, provide each party with the answers, and allow for additional, limited follow-up questions.

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The decision-maker must issue a written determination regarding responsibility based on a preponderance of the evidence. The decision-makers' written determination shall:

- Identify the allegations potentially constituting sexual harassment;
- Describe the procedural steps taken, including any notifications to the parties, site visits, methods used to gather evidence, and interviews;
- Include the findings of fact supporting the determination;
- Address any district policies and/or conduct rules which apply to the facts;
- A statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility; and
- The procedures and permissible bases for the complainant and/or respondent to appeal the determination.

The written determination may, but is not required to, recommend disciplinary sanctions and any remedies designed to preserve access to the educational program or activity that may be provided by the district to the complainant.

A copy of the written determination shall be provided to both parties simultaneously.

The range of disciplinary sanctions and remedies may include, but may not be limited to, supportive measures, short term suspension, long term suspension, expulsion for students, and/or termination for employees.

Complainants and respondents shall be treated equitably by providing remedies to a complainant where a determination of responsibility for sexual harassment has been made. The Title IX Coordinator is responsible for the effective implementation of any remedies. If the investigation results in a recommendation that a student be suspended or expelled, procedures outlined in board policy and state law governing student suspension and expulsion will be followed.

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If the investigation results in a recommendation that an employee be suspended with or without pay or terminated, procedures outlined in board policy, the negotiated agreement (as applicable), and/or state law will be followed.

Records relating to complaints filed and their resolution shall be maintained by the Title IX Coordinator for seven years.

The decision becomes final on the date the parties receive the results of an appeal, if any appeal is filed, or on the date the opportunity for an appeal expires.

Appeals

The complainant or respondent may appeal the decision-maker's determination regarding responsibility or a dismissal of a formal complaint, on the following base:

- Procedural irregularity that affected the outcomes;
- New evidence that was not reasonably available at the time that could affect the outcome; and/or
- The Title IX Coordinator, investigator, or decision-maker had a conflict of interest or bias against either party that affected the outcome.

The request to appeal shall be made in writing to the Title IX Coordinator within 10 days after the date of the written determination. Appeals shall be a review of the record by an attorney, an independent hearing officer appointed by the board, or the board. The appeal decision-maker may not be the Title IX Coordinator, the Investigator, or the decision-maker from the original determination.

The appeal decision-maker will issue a written decision within 30 days after the appeal is filed. The appeal decision-maker will describe the result of the appeal and the rationale for the result.

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The appeal decision-maker shall:

- Review the evidence gathered by the investigator, the investigator's report, and the original decision-maker's determination;
- Notify both parties in writing of the filing of an appeal and give them an opportunity to submit further evidence in writing;
- Not have a conflict of interest or bias for or against complainant or respondent and receive the required training;
- Issue a written decision and the rationale for the decision within 30 days after the appeal is filed;
- Describe the result of the appeal and the rationale for the result in the decision; and
- Provide the written decision simultaneously to both parties and to the Title IX Coordinator.

Informal Resolution Process

At any time during the formal complaint process and prior to reaching a determination regarding responsibility, the district may facilitate an informal resolution process, such as mediation, that does not involve a full investigation and determination of responsibility.

The informal resolution process may be facilitated by a trained educational professional, consultant, or other individual selected by the Title IX Coordinator under the following conditions:

- The parties are provided a written notice disclosing the allegations, the requirements of the informal resolution process, information on when it may preclude the parties from resuming a formal complaint arising from the same allegations;
- At any time prior to agreeing to a resolution, any party has the right to withdraw from the informal resolution process and resume the investigation of the formal complaint and be
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- informed of any consequences resulting from participating in the informal resolution process;
- The parties voluntarily and in writing consent to the informal resolution process; and
- The informal resolution process cannot be used to resolve allegations that an employee sexually harassed a student.

If the matter is resolved to the satisfaction of the parties, the facilitator shall document the nature of the complaint and the proposed resolution, have both
parties sign the documentation and receive a copy, and forward it to the Title IX Coordinator. Within 20 days after the complaint is resolved in this manner, the Title IX Coordinator shall contact the complainant to determine if the resolution of the matter remains acceptable. If the matter is not resolved, or if the individual does not believe the resolution remains acceptable within 20 days after the informal resolution document is executed, the individual or the Title IX Coordinator may proceed with the formal complaint process.

If discrimination or harassment has occurred, the district will take prompt, remedial action to prevent its recurrence. The district prohibits retaliation or discrimination against any person for opposing discrimination, including harassment; for participating in the complaint process; or making a complaint, testifying, assisting, or participating in any investigation, proceeding, or appeal.

Use of this complaint procedure is not a prerequisite to the pursuit of any other remedies including the right to file a complaint with the Office for Civil Rights of the U.S. Department of Education, the Equal Employment Opportunity Commission, or the Kansas Human Rights Commission.

Initiation of a complaint of sexual harassment in good faith will not adversely affect the job security or status of an employee, nor will it affect his or her compensation. Any act of retaliation or discrimination against any person who has filed a complaint or testified, assisted, or participated in any

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Initiation of a complaint of sexual harassment in good faith will not adversely affect the job security or status of an employee, nor will it affect his or her compensation. Any act of retaliation or discrimination against any person who has filed a complaint or testified, assisted, or participated in any investigation, proceeding, or hearing involving sex discrimination including sexual harassment is prohibited. Any person who retaliates is subject to immediate disciplinary action, up to and including termination of employment.

To the extent possible while still following the above procedures, confidentiality will be maintained throughout the investigation and resolution of a complaint. The desire for confidentiality must be balanced with the district's obligation to conduct a thorough investigation, to provide supportive measures to both parties, to take appropriate corrective action, and to provide due process to the complainant and the respondent. False or malicious complaints of sexual harassment may result in corrective or disciplinary action against the complainant.

A summary of this policy and the complaint procedures including how to report or file a formal complaint of sex discrimination or sexual harassment shall be posted in each district facility, shall be published in employee handbooks, and on the district's website as directed by the Title IX Coordinator. Notification of the policy may include posting information notices, publishing in local newspapers, publishing in newspapers and magazines operated by the school, or distributing memoranda or other written communications to students and employees. In addition, the district is required to include a statement of nondiscriminatory policy in any bulletins, announcements, publications, catalogs, application forms, or other recruitment materials that are made available to participants, students, applicants, or employees.

Approved: 08/10/2020

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(See GAF, JGECA and KN)

The board of education is committed to providing a positive and productive working and learning environment, free from discrimination, including harassment, on the basis of race, color, national origin, or disability. Racial and disability harassment will not be tolerated in the school district. Racial or disability harassment of employees or students of the district in any district education program or activity is strictly prohibited.

Racial harassment is unlawful discrimination on the basis of race, color or national origin under Titles VI and VII of the Civil Rights Act of 1964, and the Kansas Acts Against Discrimination. Disability harassment is unlawful discrimination on the basis of disability under Section 504 of the Rehabilitation Act of 1973 and the Americans with Disabilities Act. All forms of racial and disability harassment are prohibited at school, on school property, and at all school-sponsored activities, programs or events.

It shall be a violation for any employee to discourage a student or another employee from filing a complaint, or to fail to investigate or refer for investigation, any complaint lodged under the provisions of this policy.

Violations of this policy by any employee shall result in disciplinary action, up to and including termination.

Harassment prohibited by this policy includes racially or disability-motivated conduct which:

- Affords an employee different treatment, solely on the basis of race, color, national origin, or disability, in a manner which interferes with or limits the ability of the employee to participate in or benefit from the services, activities or programs of the school;

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- Is sufficiently severe, pervasive or persistent so as to have the purpose or effect of creating a hostile working environment;
- Is sufficiently severe, pervasive or persistent so as to have the purpose or effect of interfering with an individual's work performance or employment opportunities.

Racial or disability harassment may result from verbal or physical conduct or written or graphic material.

The district encourages all victims of racial or disability harassment and persons with knowledge of such harassment to report the harassment immediately. Complaints of racial or disability harassment will be promptly investigated and resolved.

Employees who believe they have been subjected to racial or disability harassment should discuss the problem with their immediate supervisor. If an employee's immediate supervisor is the alleged harasser, the employee should discuss the problem with the building principal or the district compliance coordinator. Employees who do not believe the matter is appropriately resolved through this meeting may file a formal complaint under the district's discrimination complaint procedure in policy KN.

Complaints received will be investigated to determine whether, under the totality of the circumstances, the alleged behavior constitutes racial or disability harassment under the definition outlined above. Unacceptable conduct may or may not constitute racial or disability harassment, depending on the nature of the conduct and its severity, pervasiveness and persistence.

Behaviors which are unacceptable but do not constitute harassment may also result in employee discipline.

If discrimination or harassment has occurred, the district will take prompt, remedial action to prevent its reoccurrence.

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Any employee who witnesses an act of racial or disability harassment or receives a complaint of harassment from another employee or a student shall report the complaint to the building principal. Employees who fail to report complaints or incidents of racial or disability harassment to appropriate school officials may face disciplinary action. School administrators who fail to investigate and take appropriate corrective action in response to complaints of racial or disability harassment may also face disciplinary action, up to and including termination.

Initiation of a complaint of racial or disability harassment in good faith will not adversely affect the job security or status of an employee, nor will it affect his or her compensation. Any act of retaliation or discrimination against any person who has filed a complaint or testified, assisted, or participated in any investigation, proceeding, or hearing involving a racial or disability harassment complaint is prohibited. Any person who retaliates is subject to immediate disciplinary action, up to and including termination from employment.

To the extent possible, confidentiality will be maintained throughout the investigation of a complaint. The desire for confidentiality must be balanced with the district's obligation to conduct a thorough investigation, to take appropriate corrective action or to provide due process to the accused.

False or malicious complaints of racial or disability harassment may result in corrective or disciplinary action against the complainant.

A summary of this policy shall be posted in each district facility and shall be published in employee handbooks and on the district's website as directed by the district compliance coordinator. Notification of the policy shall be included in the school newsletter or published in the local newspaper annually.

Adopted: 08/09/2021

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Any district employee who has reason to know or suspect a child has been injured as a result of physical, mental or emotional abuse or neglect or sexual abuse, shall promptly report the matter to the local Kansas Department for Children and Families (DCF) office or to the local law enforcement agency if the DCF office is not open**.** Employees may file a report of suspected abuse anonymously to either DCF by phoning 1-800-922-5330 or to local law enforcement officials. The Code for Care of Children also provides civil immunity from prosecution if the report is made in good faith.

The employee making the report will not contact the child's family or any other persons to determine the cause of the suspected abuse or neglect.

DCF or Law Enforcement Access to Students on School Premises

The building principal shall allow a student to be interviewed by DCF or law enforcement representatives on school premises to investigate suspected child abuse and shall act as appropriate to facilitate the agency's access to the child and to protect the student's interests during the process. State law grants the investigating agency the authority to determine whether a school employee may be present while the interview is being conducted, taking into account the child's best interests. If asked to sit in on the interview by the agency representative conducting it, the building principal or designee thereof shall oblige such request in order to provide comfort to the child throughout the process and to facilitate the investigation.

Cooperation Between School and Agencies

Principals shall work with DCF and law enforcement agencies to develop a plan of cooperation for investigating reports of suspected child abuse

or neglect. To the extent that safety is not compromised, law enforcement officers investigating complaints of suspected child abuse or neglect on school property shall not be in uniform.

Reporting Procedure

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The employee shall promptly report to the local DCF office or law enforcement if DCF is closed. It is recommended the building administrator also be notified after the report is made.

If the building principal has been notified, the principal shall immediately notify the superintendent that the initial report to DCF has been made. If appropriate, the principal may confer with the school's social worker, guidance counselor or psychologist. At no time shall the principal or any other staff member prevent or interfere with the making of a suspected child abuse report.

If available, the following information shall be given by the person making the initial report: name, address, and age of the student; name and address of the parents or guardians; nature and extent of injuries or description of neglect or abuse; and any other information that might help establish the cause of the child's condition.

Any personal interview or physical inspection of the child by any school employee shall be conducted in an appropriate manner with an adult witness present.

State law provides that anyone making a report in good faith and without malice shall be immune from any civil liability that might otherwise be incurred or imposed.

Mobile Crisis Helpline

Crisis support for Kansas families and children to resolve an emotional, psychiatric, or behavioral health crisis is available through the Department of Children and Families Mobile Crisis Helpline, 1-833-441-2240, including:

- Problem solving to resolve behavioral health crisis;
- Referral to community resources or recommendation to engage in stabilization services;
- In-person support via mobile crisis response; and
- Contacting mobile crisis response unit to assist in emergency situations.

Services are available to all Kansans 20 years or younger including anyone in foster care or formerly in foster care.

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Annual Training

Annual training for all school employees on child abuse and neglect reporting requirements shall be provided, and documentation of the training shall be maintained.

Adopted: 02/14/2022

KASB Recommendation – 2/98; 4/07; 06/07; 11/10; 8/12; 10/12; 11/12; 06/20

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GAAE **Bullying by Staff** (See EBC, GAAB, JDD, JDDC, and KGC) **GAAE**

The board of education prohibits bullying in any form by any student, staff member, or parent towards a student or a staff member on or while using school property, in a school vehicle or at a school-sponsored activity or event. For the purposes of this policy, the term "bullying" shall have the meaning ascribed to it in Kansas law.

The administration shall propose, and the board shall review and approve a plan to address bullying as prohibited herein. The plan shall include provisions for the training and education of staff members.

Staff members who bully others in violation of this policy may be subject to disciplinary action, up to and including suspension and/or termination. If appropriate, staff members who violate the bullying prohibition shall be reported to local law enforcement.

Adopted: 04/28/2016

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GAAE **Bullying by Adults**

Report to Local Law Enforcement

USD 357

Pursuant to Kansas law, the administrator or other school employee whose signature appears below is reporting the following crimes:

Briefly describe each incident and the person/s involved in a misdemeanor or felony behavior at school, on school property, or at a school activity.

Date	School/Location	Person/s Involved	Brief Description of bullying incident/s.
1.			
2.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed_____
Administrator or other school employee

c/o Superintendent, USD 357; c/employee's file

Adopted: 08/13/2018

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The board of education is committed to limiting the use of Emergency Safety Interventions ("ESI"), such as seclusion and restraint, with all students. Seclusion and restraint shall be used only when a student's conduct necessitates the use of an emergency safety intervention as defined below. The board of education encourages all employees to utilize other behavioral management tools, including prevention techniques, de-escalation techniques, and positive behavioral intervention strategies.

This policy shall be made available on the district website with links to the policy available on any individual school pages. In addition, this policy shall be included in at least one of the following: each school's code of conduct, school safety plan, or student handbook. Notice of the online availability of this policy shall be provided to parents during enrollment each year.

Definitions

"Area of purposeful isolation" means any separate space, regardless of any other use of that space, other than an open hallway or similarly open environment.

"Campus Police Officer" means a school security officer designated by the board of education of any school district pursuant to K.S.A. 72-6146, and amendments thereto.

"Chemical Restraint" means the use of medication to control a student's violent physical behavior or restrict a student's freedom of movement. "Emergency Safety Intervention" is the use of seclusion or physical restraint, but does not include physical escort or the use of time-out.

"Incident" means each occurrence of the use of an emergency safety intervention.

"Law Enforcement Officer" and "Police Officer" mean a full-time or part-time salaried officer or employee of the state, a county, or a city, whose duties include the prevention or detection of crime and the enforcement of

Criminal or traffic law of this state or any Kansas municipality. This term includes a campus police officer.

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"Legitimate law enforcement purpose" means a goal within the lawful authority of an officer that is to be achieved through methods or conduct condoned by the officer's appointing authority.

"Mechanical Restraint" means any device or object used to limit a student's movement.

"Parent" means: a natural parent; (2) an adoptive parent; (3) a person acting as a parent as defined in K.S.A. 72-3122(d)(b), and amendments thereto; (4) a legal guardian; (5) an education advocate for a student with an exceptionality; (6) a foster parent, unless the student is a child with an exceptionality; or (7) a student who has reached the age of majority or is an emancipated minor.

"Physical Escort" means the temporary touching or holding the hand, wrist, arm, shoulder, or back of a student who is acting out for the purpose of inducing the student to walk to a safe location.

"Physical Restraint" means bodily force used to substantially limit a student's movement, except that consensual, solicited, or unintentional contract and contact to provide comfort, assistance, or instruction shall not be deemed to be physical restraint.

"Purposefully isolate" when used regarding a student, means that school personnel are not meaningfully engaging with the student to provide instruction and any one of the following occurs:

1. Removal of the student from the learning environment by school personnel;
2. Separation of the student from all or most peers and adults in the learning environment by school personnel; or
3. Placement of the student within an area of purposeful isolation by school personnel.

"School Resource Officer" means a law enforcement officer or police officer employed by a local law enforcement agency who is assigned to a district through an agreement between the local law enforcement agency and the district.

"School Security Officer" means a person who is employed by a board of education of any school district for the purpose of aiding and supplementing

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state and local law enforcement agencies in which the school district is located, but is not a law enforcement officer or police officer.

"Seclusion" means placement of a student for any reason other than for in-school suspension, detention, or any other appropriate disciplinary measure in a location where both of the following conditions are met:

1. School personnel purposefully isolate the student; and
2. The student is prevented from leaving, or has reason to believe that the student will be prevented from leaving the area of purposeful isolation. "Time-out" means a behavioral intervention in which a student is temporarily removed from a learning activity without being secluded.

Prohibited Types of Restraint

All staff members are prohibited from engaging in the following actions with all students:

- Using face-down (prone) physical restraint;
- Using face-up (supine) physical restraint;
- Using physical restraint that obstructs the student's airway;
- Using physical restraint that impacts a student's primary mode of communication;
- Using chemical restraint, except as prescribed treatment for a student's medical or psychiatric condition by a person appropriately licensed to issue such treatments; and
- Use of mechanical restraint, ***except***:
    - Protective or stabilizing devices required by law or used in accordance with an order from a person appropriately licensed to issue the order for the device:
    - Any device used by a certified law enforcement officer to carry out law enforcement duties; or
    - Seatbelts and other safety equipment when used to secure students during transportation.

Use of Emergency Safety Interventions

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ESI shall be used only when a student presents a reasonable and immediate danger of physical harm to such student or others with the present ability to affect physical harm. Less restrictive alternatives to ESI, such as positive behavior interventions support, shall be deemed inappropriate or

ineffective under the circumstances by the school employee witnessing the student's behavior prior to the use of any ESI. The use of ESI shall cease as soon as the immediate danger of physical harm ceases to exist. Violent action that is destructive of property may necessitate the use of an ESI. Use of an ESI for purposes of discipline, punishment or for the convenience of a school employee shall not meet the standard of immediate danger of physical harm.

ESI Restrictions

A student shall not be subjected to ESI if the student is known to have a medical condition that could put the student in mental or physical danger as a result of ESI. The existence of such medical condition shall be indicated in a written statement from the student's licensed health care provider, a copy of which has been provided to the school and placed in the student's file.

Such written statement shall include an explanation of the student's diagnosis, a list of any reasons why ESI would put the student in mental or physical danger, and any suggested alternatives to ESI. In spite of the provisions of this subsection, a student may be subjected to ESI, if not subjecting the student to ESI would result in significant physical harm to the student or others.

Use of Seclusion

When a student is placed in seclusion, a school employee shall see and hear the student at all times. The presence of another person in the area of purposeful isolation or observing the student from outside the area of purposeful isolation shall not create an exemption from otherwise reporting the incident as seclusion. When a student is placed in or otherwise directed to an area of

purposeful isolation, the shall have reason to believe that the student is prevented from leaving.

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If the area of purposeful isolation is equipped with a locking door designed to prevent a student from leaving the area of purposeful isolation, the door shall be designed to ensure that the lock automatically disengages when the school employee viewing the student walks away from the area of purposeful isolation, or in case of emergency, such as fire or severe weather.

An area of purposeful isolation shall be a safe place with proportional and similar characteristics as those of rooms where students frequent. Such area shall be free of any condition that could be a danger to the student, be well-ventilated, and sufficiently lighted.

Training

All staff members shall be trained regarding the use of positive behavioral intervention strategies, de-escalation techniques, and prevention techniques. Such training shall be consistent with nationally recognized training programs on ESI. The intensity of the training provided will depend upon the employee's position. Administrators, licensed staff members, and other staff deemed most likely to need to restrain a student will be provided more intense training than staff who do not work directly with students in the classroom. District and building administration shall make the determination of the intensity of training required by each position.

Each school building shall maintain written or electronic documentation regarding the training that was provided and a list of participants, which shall be made available for inspection by the state board of education upon request.

Notification and Documentation

The principal or designee shall notify the parent the same day as an incident. The same-day notification requirement of this subsection shall be deemed satisfied if the school attempts at least two methods of contacting the parent. A parent may designate a preferred method of contact to receive the same-day notification. Also, a parent may agree, in writing, to receive only one same-day notification from the school for multiple incidents occurring on the same day.

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Documentation of the ESI used shall be completed and provided to the student's parents no later than the school day following the day of the incident. Such written documentation shall include:

- The events leading up to the incident;
- student behaviors that necessitated the ESI;
- steps taken to transition the student back into the educational setting;
- the date and time the incident occurred, the type of ESI used, the duration of the ESI, and the school personnel who used or supervised the ESI;
- space or an additional form for parents to provide feedback or comments to the school regarding the incident;
- a statement that invites and strongly encourages parents to schedule a meeting to discuss the incident and how to prevent future incidents; and
- e-mail and phone information for the parent to contact the school to schedule the ESI meeting. Schools may group incidents together when documenting the items in subparagraphs (A), (B) and (C) if the triggering issue necessitating the ESIs is the same.

The parent shall be provided the following information after the first and each subsequent incident during each school year:

- A copy of this policy which indicates when ESI can be used;
- a flyer on the parent's rights;
- information on the parent's right to file a complaint through the local dispute resolution process (which is set forth in this policy) and the complaint process of the state board of education; and
- information that will assist the parent in navigating the complaint process, including contact information for Families Together and the Disability Rights Center of Kansas.

Upon the first occurrence of an incident of ESI, the foregoing information shall be provided in printed form or, upon the parent's written request, by e-mail, upon the occurrence of a second or

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subsequent incident, the parent shall be provided with a full and direct website address containing such information.

Law Enforcement, School Resource, and Campus Security Officers

Campus police officers and school resource officers shall be exempt from the requirement of this policy when engaged in an activity that has a legitimate law enforcement purpose. School security officers shall not be exempt from the requirements of this policy.

If a school is aware that a law enforcement officer or school resource officer has used seclusion, physical restraint, or mechanical restraint on a student, the school shall notify the parent the same day using the parent's

preferred method of contact. A school shall not be required to provide written documentation to a parent, as set forth above, regarding law enforcement use of an emergency safety intervention, or report to the state department of education any law enforcement
use of an emergency safety intervention. For purposes of this subsection,
mechanical restraint includes, but is not limited to, the use of handcuffs.

Documentation of ESI Incidents

Except as specified above with regard to law enforcement or school resource officer use of emergency safety interventions, each building shall maintain documentation any time ESI is used with a student. The documentation shall include all of the following:

- Date and time of the ESI,
- Type of ESI,
- Length of time the ESI was used,
- School personnel who participated in or supervised the ESI,
- Whether the student had an individualized education program at the time of the incident,
- Whether the student had a Section 504 plan at the time of the incident,

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and

- Whether the student had a behavior intervention plan at the time of the incident.

All such documentation shall be provided to the building principal, who shall be responsible for providing copies of such documentation to the

superintendent or the superintendent's designee on at least a biannual basis. At least once per school year, each building principal or designee shall review the documentation of ESI incidents with appropriate staff members to consider the appropriateness of the use of ESI in those instances.

Reporting Data

District administration shall report ESI data to the state department of education as required.

Parent Right to Meeting on ESI Use

After each incident, a parent may request a meeting with the school to discuss and debrief the incident. A parent may request such meeting verbally, in writing, or by electronic means. A school shall hold a meeting requested under this subsection within 10 school days of the parent's request. The focus of any such meeting shall be to discuss proactive ways to prevent the need for emergency safety interventions and to reduce incidents in the future.

For a student with an IEP or a Section 504 plan such student's IEP team or Section 504 plan team shall discuss the incident and consider the need to conduct a functional behavioral assessment, develop a behavior intervention plan, or amend the behavior intervention plan if already in existence.

For a student with a Section 504 plan, such student's Section 504 plan team shall discuss and consider the need for a special education evaluation. For students who have an individualized education program and are placed in a private school by a parent, a meeting called under this subsection

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shall include the parent and the private school, who shall consider whether the parent should request an individualized education program team meeting. If the parent requests an

individualized education program team meeting, the private school shall help facilitate such meeting.

For a student without an IEP or Section 504 plan the school staff and the parent shall discuss the incident and consider the appropriateness of a referral for a special education evaluation, the need for a functional behavioral assessment, or the need for a behavior intervention plan. Any such meeting shall include the student's parent, a school administrator for the school the student attends, one of the students' teachers, a school employee involved in the incident, and any other school employees designated by the school administrator as appropriate for such meeting.

The student who is the subject of such meetings shall be invited to attend the meeting at the discretion of the parent. The time for calling such a meeting may be extended beyond the 10-day limit if the parent of the student is unable to attend within that time period. Nothing in this section shall be construed to prohibit the development and implementation of a functional behavior assessment or a behavior intervention plan for any student if such student would benefit from such measures.

Local Dispute Resolution Process

If a parent believes that an emergency safety intervention has been used on the parent's child in violation of state law or board policy, the parent may file a complaint as specified below. The board of education encourages parents to attempt to resolve issues relating to the use of ESI informally with

the building principal and/or the superintendent before filing a formal complaint with the board. Once an informal complaint is received, the administrator

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handling such complaint shall investigate such matter, as deemed appropriate by the administrator. In the event that the complaint is resolved informally, the administrator must provide a written report of the informal resolution to the superintendent and the parents and retain a copy of the report at the school. The superintendent will share the informal resolution with the board of education and provide a copy to the state department of education. If the issues are not resolved informally with the building principal and/or the superintendent, the parents may submit a formal written complaint to the board of education by providing a copy of the complaint to the clerk of the board and the superintendent within thirty (30) days after the parent is informed of the incident.

Upon receipt of a formal written complaint, the board president shall assign an investigator to review the complaint and report findings to the board as a whole. Such investigator may be a board member, a school administrator selected by the board, or a board attorney. Such investigator shall be informed of the obligation to maintain confidentiality of student records and shall report the findings of fact and recommended corrective action, if any, to the board in executive session.

Any such investigation must be completed within thirty (30) days of receipt of the formal written complaint by the board clerk and superintendent. On or before the 30th day after receipt of the written complaint, the board shall adopt written findings of fact and, if necessary, appropriate corrective action. A copy of the written findings of fact and any corrective action adopted by the board shall only be provided to the parents, the school, and the state department of education and shall be mailed to the parents and the state department within 30 days of the board's receipt of the formal complaint.

If desired, a parent may file a complaint under the state board of education administrative review process within thirty (30) days from the date a final decision is issued pursuant to the local dispute resolution process.

Adopted: 10/09/2023

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GACA **Positions (See CD and GACB)** **GACA**

New employment positions shall be authorized by the board. The superintendent shall prepare for board approval a comprehensive list of all new positions, together with their qualifications, duties and responsibilities, for board consideration.

Adopted: 02/11/2019

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GACB Job Descriptions (See CD and GACA) GACB

The superintendent shall develop a job description for each category of employee. After board approval of any new district job descriptions, they will be deemed in effect, shall be filed with the clerk and may be published in handbooks.

Adopted: 08/12/2019

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GACC Recruitment and Hiring GACC

Recruitment

The board delegates recruiting authority to the superintendent. In carrying out this responsibility, the superintendent may involve administrators and other employees.

Hiring

The board shall approve the hiring of all employees. No staff member's employment is official until the contract or other document is signed by the candidate and approved by the board.

Hiring sequence

- Conditional offer of employment is extended to the candidate in writing subject to revocation or, if provisional employment has already begun, termination of employment based upon unsatisfactory results of any reference and/or background checks performed.
- Written acceptance by the candidate is received;
- Contract or other appropriate document sent to the candidate and candidate's acceptance signified by a signed document returned to the superintendent; and
- Approval of the contract or other documents by the board.

Adopted: 08/12/2019

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GACCA Nepotism GACCA

The superintendent shall make reasonable efforts to determine whether a candidate for employment is related to or residing with a board member or an administrator of the district. If a candidate is related to or residing with a board member or administrator, the superintendent will make this fact known to the board.

Except in an emergency or in the case the individual is deemed to be the most qualified candidate for the position by the board, the board will not employ anyone who is the father, mother, brother, sister, spouse, son, daughter, step-son, step-daughter, son-in-law, or daughter-in-law of any board member or who resides in the household of any board member.

This provision shall not apply to any person who has been regularly employed by the board prior to the adoption of this policy or to any person who has been regularly employed by the board prior to the election or appointment of a new board member to whom the person is related.

Supervision Limitations

No employee shall directly supervise or be responsible for any portion of the evaluation of his or her father, mother, brother, sister, spouse, son, daughter, stepson, stepdaughter, son-in-law, or daughter-in-law or an individual residing with the employee.

Adopted: 08/12/2019

GACD Employment Eligibility Verification (Form I-9) (See GAK) GACD

All district employees, at the time of employment, shall provide verification of identity and employment status to the superintendent.

The superintendent shall maintain a file on all of the district's employees hired after November 6, 1986, proving that each employee has verified their identity, employment status, U.S. citizenship, or legal alien status.

For additional information see:

http://www.uscis.gov/files/nativedocuments/m-274.pdf

Adopted: 09/09/2013

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The board reserves the right to assign, reassign or transfer all employees unless otherwise provided in the negotiated agreement.

The board may delegate its authority to assign, reassign, or transfer any or all employees to the superintendent.

Adopted: 08/12/2019

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GAD **Employee Development Opportunities** **GAD**

Except as may be specified in the negotiated agreement concerning staff members covered thereby, all plans for self-improvement involving expenditure of district funds, or which require time away from the employee's assigned responsibilities shall be approved in advance by the board.

Adopted: 08/13/2018

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GAE **Complaints** **GAE**

Any employee may file a complaint with their supervisor concerning a school rule, regulation, policy or decision that affects the employee. The complaint shall be in writing, filed as soon as possible after the conduct occurs but not later than ten (10) days following the conduct, and shall specify the basis of the complaint. The supervisor shall meet with the employee and provide a written response within ten (10) days. If the employee disagrees with the decision, the employee may appeal to the superintendent. The superintendent's decision shall be final. Employees covered by the negotiated agreement shall follow procedures outlined in that document.

Adopted: 02/10/2025

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GAF Staff-Student Relations GAF

(See GAAC, GAACA JGEC, JGECA and KN)

Staff members shall maintain professional relationships with students which are conducive to an effective educational environment. Staff members shall not have any interaction of a romantic and/or sexual nature with any student at any time regardless of the student's age or consent.

Adopted: 08/09/2021

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GAG Conflict of Interest **GAG**

District employees are prohibited from engaging in any activity which may conflict with or detract from the effective performance of their duties. No employee will attempt, during the school day or on school property, to sell or endeavor to influence any student or school employee to buy any product, article, instrument, service, or other items which may directly or indirectly benefit the school employee. No school employee will enter into a contract for remuneration with the district other than a contract for employment unless the contract is awarded on the basis of competitive bidding.

Adopted: 08/12/2019

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GAH Participation in Community Activities **GAH**

Prior permission must be obtained from the superintendent for participation in any non-school community activity which takes place during duty hours.

Adopted: 09/09/2013

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GAHB **Political Activities** **GAHB**

Holding Public Office

Staff members elected or appointed to a public office which restricts the employee's ability to complete contractual obligations may be required to take unpaid leave for a period of time determined by the board or may be terminated.

Staff members holding a public office, which in the judgment of the board is less than full-time, shall request unpaid leave from the superintendent at least one week in advance.

An employee who must be absent from school to carry out the duties of a public office must take a leave of absence without pay for the duration of the public office.

Political Activity in the Schools

Staff members shall not use school time, school property, or school equipment for the purpose of furthering the interests of any political party, the campaign of any political candidate, or the advocacy of any political issue.

For the purposes of this policy, "advocacy of any political issue" shall not be deemed to include providing information on educational matters to elected officials.

Adopted: 08/12/2019

GAI **Solicitations (See KDC)** **GAI**

All solicitations of and by staff members during duty hours are prohibited without prior approval of the appropriate supervisor.

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Adopted: 09/09/2013

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GAJ **Gifts (See JL and KH)** **GAJ**

The giving of gifts between students and staff members is discouraged. Unless approved by the principal, staff members shall not give gifts to any student or class of students.

Gifts to Staff Members

Staff members are prohibited from receiving gifts from vendors, salesmen or other such representatives. Premiums resulting from sales projects sponsored by the school shall become the property of the school.

Adopted: 09/09/2013

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GAK Personnel Records (See CEI, CGI, GACD, GBI, and GCI) GAK

Personnel files required by the district shall be confidential and in the custody of the records custodian and/or the superintendent. Employees have the right to inspect their files upon proper notice under the supervision of an appropriate supervisor. All records and files maintained by the district should be screened periodically by the custodian of records.

All personnel files and evaluation documents, including those stored by electronic means, shall be adequately secured.

Requests for References

Unless otherwise provided by law, a request by a third party for release of any personnel record shall require the written consent of the employee, and shall be submitted to the records custodian who shall respond to the request as the law allows.

Upon receipt of a written request district officials may provide information regarding past and present employees to prospective employers in compliance with current law. Information that may be provided will include:

- employment date(s);
- job description and duties while in the district's employ;
- last salary or wage;
- wage history;
- whether the employee was voluntarily or involuntarily released from service and the reasons for the separation;
- written employee evaluations which were conducted prior to the employee's separation from the employer and to which an employee shall be given a copy upon request.

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Immunity Provided

Unless otherwise provided by law, an employer who responds in writing to a written request concerning a current or former employee from a prospective employer of that employee shall be absolutely immune from civil liability for disclosure of the information noted earlier in this policy to which an employee may have access.

Prohibition on Aiding and Abetting Sexual Abuse

Pursuant to the federal Every Student Succeeds Act, the board prohibits the board, individual board members, and any individual or entity who is a district employee, contractor, or agent from assisting a district employee, contractor, or agent in obtaining a new job if the board, individual, or entity knows, or has probable cause to believe, that such school employee, contractor, or agent engaged in sexual misconduct regarding a minor or student in violation of the law. For the purposes of this policy, it shall not be deemed assisting in obtaining a new job if the aforementioned individuals or entities participate in the routine transmission of administrative and personnel files in accordance with law and this policy.

Adopted: 03/13/2017

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GAL Salary Deductions (FLSA) (See GAOF) GAL

The district shall comply with the salary basis requirements of the Fair Labor Standards Act (FLSA). The board prohibits all managers from making any improper deductions from the salaries of exempt employees. Employees shall be made aware of this policy.

If an employee believes that an improper deduction has been made to his or her salary, the employee should immediately report this information to his or her direct supervisor, or to the board clerk.

Reports of improper deductions shall be promptly investigated. If it is determined that an improper deduction has occurred, the employee shall be promptly reimbursed for any improper deduction made.

Adopted: 09/09/2013

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GAM Personal Appearance **GAM**

Appropriate dress and personal appearance are essential for all district employees.

Adopted: 09/09/2013

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GAN Travel Expenses (See BBBF, CG, CEF, GBRC and GCA) GAN

The board shall provide reimbursement for expenses incurred in travel related to the duties of the district's employees when approved in advance by the superintendent. Mode of travel will be based on, but not limited to, the availability of transportation, distance and number of persons traveling together. A first-class air fare will be reimbursed only when coach space is not available.

Requests for reimbursement shall have the following attached: receipts for transportation, parking, hotels or motels, meals and other expenses for which receipts are ordinarily available. For the authorized use of a personal car, including approved travel between buildings, staff members shall be reimbursed at a mileage rate established by the board.

Adopted: 09/09/2013

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GAN TRAVEL REIMBURSEMENT – FEDERAL PROGRAMS

The board shall reimburse employees and school board for travel costs incurred in the course of performing services related to official business as a federal grant recipient. School board members must have prior written approval from the federal awarding agency or pass-through entity to get reimbursement for expenses specifically related to a federal award.

For purposes of this procedure, travel costs shall mean the expenses for transportation, lodging, subsistence, and related items incurred by employees and/or board members who are in travel status on official business as a federal grant recipient.

Board members and district employees shall comply with applicable board policies established for reimbursement of travel and other expenses.

The validity of payments for travel costs for all district employees shall be determined by the superintendent or designee.

Travel costs shall be reimbursed on a mileage basis for travel using an employee's or board member's personal vehicle and on an actual cost basis for meals, lodging and other allowable expenses, consistent with those normally allowed in like circumstances in the district's nonfederally funded activities, and in accordance with the district's travel expenses policy GAN.

Mileage reimbursements shall be at the rate approved by the board for other district travel reimbursements. Actual costs for meals, lodging, and other allowable expenses shall be reimbursed only to the extent they are reasonable and do not exceed the per diem limits established by the board

All travel costs must be presented with an itemized, verified statement prior to reimbursement.

In addition, if these costs are charged directly to the federal award, documentation must be maintained that justifies that:

Participation of the individual is necessary to the federal award, and

The costs are reasonable and consistent with the district's established policy.

Adopted: 06/26/2017

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GANA <u>Expense Reimbursement and Credit Cards</u> (See CEF and GAN) **GANA**

Non-administrative staff use of a district credit card, if authorized by the staff member's immediate supervisor, shall be confined to necessary school business and shall be subject to any guidelines for such use established by the board or district administration. Unless otherwise specified in guidelines established pursuant to this policy, staff members shall retain any receipt(s) for district credit card expenditure(s) and shall provide them to the staff member's immediate supervisor as soon as practicable following the expenditure.

The superintendent may designate administrative and other staff members to whom a district credit card will be issued. The board shall annually prescribe limits and restrictions on the use of district credit cards and shall monitor monthly receipts and reimbursement expenses. In no case will credit card expenditures in excess of $2,000 in one month be authorized for any non-administrative staff member without the prior approval of the superintendent.

All rewards points or cash back payments earned using district credit cards are district property and shall be either applied to future district credit card purchases or remitted to the district treasurer for accounting and deposit.Accountings of district credit card use shall be provided to the board for review on a monthly basis, and a record of district credit card usage shall be maintained. Expenses for district travel in personal vehicles or extended travel incurred in the performance of official duties shall be reimbursed in accordance with the provisions of GAN.

Adopted: 10/12/2015

GAO <u>Maintaining Proper Control</u> (See JGFB and GAAF) **GAO**

Each employee is responsible for maintaining proper control in the school. Unless otherwise specified in board policy, an employee may use reasonable force necessary to ward off an attack, to protect a student or another person, or to quell a disturbance which threatens physical injury to others.

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Adopted: 7/14/14

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Maintaining a drug free work place is important in establishing an appropriate learning environment for the students of the district. The unlawful manufacture, distribution, sale, dispensation, possession or use of a controlled substance is prohibited at school, on or in school district property; and at school sponsored activities, programs, and events. Possession and/or use of a controlled substance by an employee for the purposes of this policy shall only be permitted if such substance was obtained directly, or pursuant to a valid prescription or order issued thereto, from a person licensed by the state to dispense, prescribe, or administer controlled substances and any use is in the accordance with label directions.

As a condition of employment in the district, employees shall abide by the terms of this policy.

Employees shall not unlawfully manufacture, distribute, dispense, possess and/or use controlled substances in the workplace.

Any employee who is convicted under a criminal drug statute for a violation occurring at the workplace must notify the superintendent of the conviction within five days after the conviction. The superintendent shall then ensure that notice of such conviction is given to any granting agency within 10 days of receiving notice thereof.

Within 30 days after the notice of conviction is received, the school district will take appropriate action with the employee. Such action may include suspension, placement on probationary status, or other disciplinary action including termination. Alternatively, or in addition to any action short of termination, the employee may be required to participate satisfactorily in an approved drug abuse assistance or rehabilitation program as a condition of

continued employment. The employee shall bear the cost of participation in such program.

Each employee in the district shall be given a copy of this policy.

This policy is intended to implement the requirements of the federal regulations promulgated under the Drug Free Workplace Act of 1988. It is not intended to supplant or otherwise diminish disciplinary actions which may be taken under board policies or the negotiated agreement.

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Adopted: 10/09/2023

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The possession, use, sale, distribution or being under the influence of controlled substances and/or alcohol by school employees at school, on, in or while utilizing school property, or at school sponsored activities or events is prohibited.

Employee Conduct

As a condition of continued employment in the district, all employees shall abide by the terms of this policy. Employees shall not manufacture, distribute, dispense, possess, use and/or be under the influence of illicit drugs, controlled substances, and/or alcoholic beverages at school, on, in, or while utilizing school property, or at school sponsored activities or events.

Possession, use, and/or being under the influence of a controlled substance by an employee for the purposes of this policy shall only be permitted if such substance was:

1. Obtained directly from, or pursuant to a valid prescription. or order, issued to such employee from a person licensed by the state to dispense, prescribe, or administer controlled substances; and
2. Used, if at all, in accordance with label directions.

Compliance with the terms of this policy is mandatory. Employees who are found violating the terms of this policy will be reported to the appropriate law enforcement officers. Additionally, an employee who violates the terms of this policy may be subject to any or all of the following sanctions:

1. Short term suspension with pay;
2. Short term suspension without pay;
3. Long term suspension without pay;

4. Required participation in a drug and alcohol education, treatment, counseling, or rehabilitation program.
5. Termination or nonrenewal of employment relationship.

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Prior to applying sanctions under this policy, employees will be afforded any due process rights to which they are entitled under their contracts or the provisions of Kansas law. Nothing in this policy is intended to diminish the

right of the district to take any other disciplinary action. This policy is not intended to change any right, duty, or responsibilities in the current negotiated agreement.

If it is agreed that an employee shall enter into and complete a drug education or rehabilitation program, the cost of such program will be borne by the employee. A list of area drug and alcohol counseling and rehabilitation programs along with names and addresses of contact persons for the programs, is on file with the board clerk.

Employees are responsible for contacting the directors of the programs to determine the cost and length of the program, and for enrolling in the programs. If participation in such a program is required as a condition of continued employment, copies of any documentation related to enrollment in and attendance in such program shall be made available to the board and/or administration upon request.

A copy of this policy shall be provided to all employees.

Adopted: 07/14/14

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(See JCDAA and KMA)

The use, possession, or promotion of any tobacco product by staff members is prohibited at all times in any district facility; in school vehicles; at school-sponsored activities, programs, or events; and on school owned or operated property.

The following definitions apply to this policy:

"Tobacco product" means any product that is made from or derived from tobacco, or that contains nicotine, that is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved,

inhaled, or ingested by any other means, including, but not limited to, electronic nicotine delivery system (hereafter "ENDS"), cigarettes, cigars, pipe tobacco, chewing tobacco, snuff, or snus. Tobacco product also means any component or accessory used in the consumption of a tobacco product, such as filters, rolling papers, pipes, charging devices, cartridges, and any substance used in ENDS, whether or not they contain nicotine. This definition does not include FDA-approved nicotine replacement therapies including transdermal nicotine patches, nicotine gum, and nicotine lozenges prescribed to the employee by a medical practitioner or obtained over the counter and used in accordance with label requirements.

"Electronic nicotine delivery system" or "(ENDS)" means any device that delivers a vaporized solution (including nicotine, THC, or any other substance) by means of cartridges or other chemical delivery systems. Such definition shall include, but may not be limited to, any electronic cigarette, vape pen, hookah pen, cigar, cigarillo, pipe, or personal vaporizer. ENDS are not FDA-approved nicotine replacement therapy devices.

"Promotion" includes, but is not limited to, product advertising via branded gear, bags, clothing, any personal articles, signs, structures, vehicles, flyers, or any other materials.

Adopted: 08/10/2020

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GAOD Drug and Alcohol Testing GAOD

All district employees performing job functions which require the employee to maintain a commercial driver's license shall be tested for alcohol and drugs as required by current federal law. Board approved rules and regulations necessary to implement the testing program shall be on file with the clerk.

Each new employee who is required to undergo alcohol and drug testing shall be given a copy of the appropriate district regulations.

Each new employee shall be informed that compliance with the required elements of the testing program is a condition of employment as a driver in the district.

Adopted: 09/09/2013

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The district will participate in workers compensation as required by current statute. The combined workers' compensation benefits and salary received under allowed paid leave shall not exceed one full day's pay.

All employees of the district shall be covered by workers compensation. Workers compensation coverage is provided for all employees regardless of assignment, length of assignment, and/or hours worked per day. Benefits are for personal injury from accident or industrial diseases arising out of and in the course of employment in the district.

An injured employee must notify the designated employer's workers compensation coordinator or, if the coordinator is unavailable, his or her supervisor within 20 days of the injury or within 20 days of repetitive trauma in order to be eligible for benefits.

The workers compensation plan will provide coverage for medical expenses and wages to the extent required by statute to those employees who qualify; however, the amount of workers compensation benefits and paid leave benefits shall not exceed a regular daily rate of pay. An employee using paid leave in combination with workers compensation will be charged for one full or partial day of paid leave, as provided for in the applicable leave policy or the negotiated agreement, for each day of absence until the employee's paid leave is exhausted.

Any employee who is off work and receiving workers compensation benefits shall be required to provide the designated workers compensation coordinator with a written doctor's release before the employee is allowed to return to work. In addition, should the employee be released to return to work by a doctor and fail to do so, all benefits under paid leave shall terminate, and those

benefits under workers compensation shall be restricted as provided by current statute.

Whenever an employee is absent from work and is receiving workers compensation benefits due to a work-related injury or is receiving district paid disability insurance, the employee may use available

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paid leave to supplement the workers compensation or district paid disability insurance payments. Workers compensation benefits and FMLA benefits provided in a board approved plan shall run concurrently if both are applicable.

In no event shall the employee be entitled to a combination of workers compensation benefits, district paid disability insurance, and salary in excess of his/her full salary. Available paid leave may be used for this purpose until 1) available paid leave benefits are exhausted; 2) the employee returns to work; 3) the employee is released by the medical provider and a position is offered by the employer, but the employee declines to return to work; or 4) employment is terminated. Paid leave shall be calculated on a prorata amount equal to the percentage of salary paid by the district.

Testing

The board, through its designated workers compensation coordinator, may require employees who claim or are involved in an accident in the course of employment to submit to a post-injury chemical test. This includes instances where the district administration or workers compensation coordinator has actual knowledge of an accident whether the employee has or has not requested medical treatment. If an employee refuses to submit to an employer requested post-injury chemical test, the employee forfeits all related workers compensation benefits as provided in K.S.A. 44-501 (b)(1)(E). Chemical test collection, labeling, and performance shall meet the requirements found in K.S.A.44-501(b)(3).

Choice of Physician

The board shall have the right to choose a designated health care provider to provide medical assistance to any employee who suffers an injury
while performing their job. However, if the injured employee chooses to go to a medical provider other than the designated provider, the recovery for such expenses shall be limited to $500.00.

Adopted: 08/12/2019

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GAOF **Salary Deductions** (See GAL) **GAOF**

Salary deductions shall be made if permitted by board policy, the negotiated agreement, or as required or authorized by law. The district shall comply with the salary basis requirements of the Fair Labor Standards Act (FLSA.)

The superintendent shall develop forms to provide information needed to make approved salary deductions. All requests for salary deductions shall be submitted to the superintendent during enrollment periods established by the board.

Adopted: 09/09/2013

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Whenever an employee has been diagnosed by a physician as having a communicable disease as defined in current regulation, the employee shall report the diagnosis and nature of the disease to the superintendent or the superintendent's designee so that a proper reporting may be made to the county or joint board of health as required by current law.

An employee afflicted with a communicable disease dangerous to the public health shall be excluded from district owned or operated property for the duration of the contagiousness in order to give maximum health protection to other school employees and to students.

The employee shall be allowed to return to duty upon recovery from the illness, when the employee is no longer contagious as authorized by the employee's physician or local health officer, or after the expiration of any period of isolation or quarantine.

The board reserves the right to require a written statement from the employee's physician or local health officer indicating that the employee is free from all symptoms of the communicable disease.

If a school employee has been diagnosed as having a communicable disease and the superintendent has been notified by the employee, the superintendent or the superintendent's designee shall determine whether a release shall be obtained from the employee's physician or local health officer before the employee returns to duty.

Decisions regarding the type of employment setting for an employee with a communicable disease shall be made by the superintendent or the superintendent's designee based upon consideration of the physical condition of the employee and the following factors:

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- the nature of the risk;
- the duration of the risk;
- the severity of the risk; and
- the probability that the disease will be transmitted or cause harm to the employee or to others who will share the same setting.

No information regarding employees with communicable diseases shall be released by school personnel without the employee's consent except as allowed by state or federal law.

Additional Certifications of Health

If at any time the board has reason to believe that an employee is suffering from an illness detrimental to the health of pupils, the board reserves the right to require such employee to provide the board with a new certificate of health in order to protect the health, safety, and welfare of the school's students.

Adopted: 01/11/2021

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GARA Bloodborne Pathogen Exposure Control Plan GARA

The board shall adopt an exposure control plan. The plan shall be accessible to all employees and shall be reviewed and updated at least annually. All staff shall receive the training and equipment necessary to implement the plan.

Adopted: 03/09/2015

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GARI Family and Medical Leave **GARI**

Eligible district employees shall be provided family and medical leave as provided by a plan approved by the board. The plan for providing leave under this policy shall be filed with the clerk of the board and made available to all staff at the beginning of each school year.

Adopted: 09/09/2013

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GARI FAMILY AND MEDICAL LEAVE PLAN

Family and medical leave as required by federal law shall be granted for a period of up to 12 weeks during a 12-month period. For purposes of this policy, a 12-month period shall be defined as a fiscal year beginning on July 1 and ending the following June 30. Spouses who are eligible for FMLA leave and are both employed by the district may be limited to a combined total of 12 weeks of leave during any 12-month period if the leave is taken for the birth of the employee's son or daughter or to care for the child after birth, for placement of a son or daughter with the employee for adoption or foster care or to care for the child after placement, or to care for the employee's parent with a serious health condition.

Leave is available for the following:

(1) the birth of a son or daughter of the employee and to care for the newborn child;
(2) the placement of a son or daughter with the employee for adoption or foster care and to care for the newly placed child;
(3) to allow the employee to care for the employee's spouse, son, daughter, or parent with a serious health condition;
(4) a serious health condition of the employee that makes the employee unable to perform the functions of his or her job;
(5) any qualifying exigency arising out of the fact that the employee's spouse, son, daughter, or parent is a covered military member on active duty (or has been notified of an impending call or order to achieve active duty) in support of a contingency operation; and
(6) the need to care for a covered service member with a serious injury or illness if the employee is the spouse, son, daughter, parent, or next of kin of the service member. Eligible employees are, for reason (6) only, entitled to a combined total of 26 workweeks of leave during a 12-month period.

(Leave for reason 1 or 2 must be taken within 12 months of the date of birth or placement.)

This leave shall normally be unpaid leave. However, if the employee has any paid vacation, personal, or sick leave that is available for use because of the reason for the leave, the paid leave shall be used concurrently with the annual family and medical leave. The superintendent will notify the employee of the beginning date of family and medical leave and the amount of the employee's accrued paid leave designated as family and medical leave.

The employee is eligible for family and medical leave if he or she has been employed by the district for at least 12 months and has worked at least 1,250 hours during the 12-month period immediately preceding the commencement of the FMLA leave.

During the period of any unpaid family and medical leave, the board shall continue to pay the employer's share of the cost of group health benefits in

the same manner as paid immediately prior to the leave. Any employee portion of the cost shall be paid by the employee to the clerk of the board on the payroll date or other time as the employee and superintendent may agree prior to the commencement of the leave. The board may terminate group health coverage if the employee's portion of the payment is not received within 30 days of the due date, so long

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as written notice of the delinquency in payment and the notice of intent to terminate coverage are sent at least 15 days prior to the termination.

When leave is foreseeable, the employee shall give written notice 30 days in advance. If leave is not foreseeable, notice will be given as soon as is practicable.

Upon the employee providing notice of need for leave, the employer will notify the employee of the following within 5 business days, absent extenuating circumstances:

a. whether or not the employee is eligible for FMLA leave, and,
   the reasons that leave will or will not count as family and medical leave;
b. any requirements for medical certification;
c. employer requirement of substituting paid leave;
d. requirements for premium payments for health benefits and employee
   responsibility for repayment if employer pays employee share;
e. right to be restored to same or equivalent job; and any employer required
   fitness-for-duty certifications.

The superintendent may require an instructional employee to continue leave until the end of a semester if the leave begins more than five (5) weeks before the end of a semester, lasts more than three (3) weeks and the return would occur during the last three (3) weeks of the semester.

Leave for reason 1 or 2 must be taken within 12 months of the date of birth or placement of the child. Family leave for reasons 1 or 2 may not be used intermittently or on a part-time basis without the prior approval of the superintendent.

If the leave is for a reason other than the employee's serious health conditions or for a qualifying exigency as described in section (5) above, the superintendent may require an instructional employee to continue leave until the end of a semester, if:

1. the leave begins in the last five (5) weeks of a semester, will last more than two (2) weeks and the return to work would occur in the last two (2) weeks of a semester, or

2. the leave begins in the last three (3) weeks of a semester, and lasts more than five (5) days.

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Pregnant and Parent Employees **GARIA**

(See GAAA and GAAB)

The board prohibits discrimination in employment on the basis of pregnancy, childbirth, or related medical conditions. Pregnant and nursing employees will be provided accommodations as required by law.

Reasonable Accommodations for Pregnancy-Related Limitations

The Pregnant Workers Fairness Act requires employers to provide reasonable accommodations to qualified applicants and employees with known limitations related to pregnancy, childbirth, or related medical conditions. An accommodation is not reasonable if it would impose an undue hardship on the operation of the school system. No adverse action will be taken against an applicant or employee for requesting or using reasonable accommodation.

Break Time to Express Milk

Qualified employees will be provided reasonable break times to express breast milk each time the employee has need to express milk. The principal or the site supervisor will designate a place, other than a bathroom, the employee may use to express milk. Any designated place must be functional as a space for expressing milk, shielded from view, and free from intrusion from others.

Adopted: 03/18/2024

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GARID Uniformed Service Leave **GARID**

Employees are entitled to leave under the Uniformed Services Employment and Reemployment Rights Act of 1994. The Act applies to uniformed service that began on or after December 12, 1994, or uniformed service that began before December 12, 1994 if the employee was a reservist or National Guard member who provided notice to the employer before leaving work. The Act only applies to commissioned officer corps of the National Oceanic and Atmospheric Administration whose service began on or after December 23, 2020, or were actively engaged in service on December 23, 2020.

Reemployment rights extend to persons who have been absent from work because of "service in the uniformed services." Service in the uniformed services means the performance of a duty on a voluntary or involuntary basis in a uniformed service as outlined below.

TYPE OF UNIFORM SERVICE	TYPE OF DUTY
United States Army, Navy, Marine Corps, Air Force, Space Force, and Coast Guard	Active duty, active duty for training, initial active duty for training, inactive duty training, a period for which a person is absent from a position of employment for the purpose of an examination to determine the fitness of the person to perform any such duty
Reserves of the United States Army, Navy, Marine Corps, Air Force, Space Force, and Coast Guard	Active duty, active duty for training, initial active duty for training, inactive duty training, a period for which a person is absent from a position of employment for the purpose of an examination to determine the fitness of the person to perform any such duty, performing funeral honors duty
Army National Guard or Air National Guard	Active duty, active duty for training, initial active duty for training, inactive duty training, full-time National Guard duty, state active duty for a period of 14 days or more, state active duty in response to a national emergency or major disaster declared by the President, state active duty in response to a major disaster, absence from work for an examination to determine a person's fitness for any of the above types of duty, performing funeral honors duty

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Commissioned Corps of the Public Health Service	Active duty, active duty for training, initial active duty for training, inactive duty training, a period for which a person is absent from a position of employment for the purpose of an examination to determine the fitness of the person to perform any such duty
Commissioned Officer Corps of the National Oceanic and Atmospheric Administration	Active duty, active duty for training, initial active duty for training, inactive duty training, a period for which a person is absent from a position of employment for the purpose of an examination to determine the fitness of the person to perform any such duty
System Members of the National Urban Search and Rescue Response System	Participation of the System member in exercises, pre-incident staging, major disaster and emergency response activities, and training events sponsored or sanctioned by the Administrator
Intermittent Personnel Appointed to the Federal Emergency Management Agency	Service to the Federal Emergency Management Agency or to train for such service
Any Other Category of Persons Designated by the President in a Time of War or National Emergency	Active duty, active duty for training, initial active duty for training, inactive duty training, a period for which a person is absent from a position of employment for the purpose of an examination to determine the fitness of the person to perform any such duty

The employee may be absent for up to five (5) years for uniformed service and retain reemployment rights. There are, however, exceptions which can exceed the five (5) year limit. Reemployment protection does not depend on the timing, frequency, duration or nature of an individual's service. The law enhances protections for disabled veterans including a requirement to provide reasonable accommodations and up to two (2) years to return to work if convalescing from injuries received during service or training.

The returning employee is entitled to be reemployed in the job that they would have attained had they not been absent for uniformed service, with the same seniority, status and pay, as well as other rights and benefits determined by law. If necessary, the employer must provide training or retraining that

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enables the employee to refresh or upgrade their skills so they can qualify for reemployment. While the individual is performing uniformed service, he or she is deemed to be on a furlough or leave of absence and is entitled to the non-seniority rights accorded other individuals on non-USERRA leaves of absence. Individuals performing uniformed service of more than 30 days may elect to continue employer sponsored health care for up to 24 months at a cost of up to 102 percent of the full premium. For uniformed service of less than 31 days, health care coverage is provided as if the individual had never left. All pensions which are a reward for length of service are protected.

An individual must provide advance written or verbal notice to their employers for any uniformed service. Notice may be provided by the employee or by the branch of the uniformed service in which the individual will be serving.

Notice is not required if uniformed service necessity prevents the giving of notice; or, if the giving of notice is otherwise impossible or unreasonable.

Accrued vacation or annual leave may be used, but is not required, while performing uniformed service. The individual's timeframe for returning to work is based upon the time spent in uniformed service.

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TIME SPENT IN UNIFORMED SERVICE	RETURN TO WORK OR APPLICATION FOR REEMPLOYMENT
Less than 31 days:	Must return at the beginning of the next regularly scheduled work period on the first full day after release from service, taking into account safe travel home plus an eight (8) hour rest period.
More than 30 but less than 181 days:	Must submit an application for reemployment within 14 days of release from service.
More than 180 days:	Must submit an application for reemployment within 90 days of release from service.

The individual's separation from service must be under honorable conditions in order for the person to be entitled to reemployment rights. Documentation showing eligibility for reemployment can be required. The employer has the right to request that an individual who is absent for a period of service of 31 days or more provide documentation showing:

- The application for reemployment is timely;
- the five-year service limitation has not been exceeded; and
- separation from service was under honorable conditions.

If documentation is not readily available or does not exist, the individual must be reemployed. However, if after reemploying the individual, documentation becomes available that shows one or more reemployment

requirements were not met, the employer may terminate the individual, effective immediately. The termination does not operate retroactively.

Questions regarding UNIFORMED should be directed to Veterans' Employment and Training Service, U.S. Department of Labor.

Kansas law also requires reemployment if an individual is called to active duty by the state.

Adopted: 03/18/2024

GAT **<u>Staff Use of Communication Devices</u>** (See IIBG and IIBGC) **GAT**

The board encourages district employees to use technology, including communication devices, to improve efficiency and safety. The district expects all employees to use communication devices in a

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responsible manner that does not interfere with the employee's job duties. Employees who violate district policies and procedures governing the use of communication devices may be disciplined, up to and including termination, and may be prohibited from possessing or using communication devices while at work. Communication devices may not be used in any manner that would violate the district's policy on student-staff relations.

Definitions

"Communication device" is defined to include all portable devices that send or receive calls or text messages, allow the retrieval of email, or provide access to the Internet. Communication devices shall include, but may not be limited to cell phones, smart phones, iPads, and tablets.

"Use/Using" for the purposes of this policy mean answering or talking on the phone; sending or responding to a text, e-mail, or other communication; opening and viewing pictures or digital recordings; opening and listening to music or audio communications; accessing social media websites; playing games on such device; continuously checking a communication device; or any activity with a communication device that interferes with the employee's job duties or appropriate supervision of students.

General Use

The district prohibits employees from using any communication device that interrupts or disrupts the performance of duties by the employee or otherwise interferes with district operations, as determined by the employee's

supervisor. This prohibition applies regardless of whether the communication device used is owned by the employee or provided by the district. Employees are responsible for keeping communication devices secure and, if possible, password protected.

Supervision of students and the provision of academic instruction are priorities in the district, and employees who are responsible for supervising and/or providing academic instruction to students must concentrate on these tasks at all times. Employees shall not use communication devices when they

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are responsible for supervising students or when their doing so interrupts or interferes with classroom instruction unless any of the following conditions occurs:

- The device is being used to instruct the students being supervised at the time;
- The use is necessary to the performance of an employment-related duty;
- The employee has received specific and direct permission from a supervisor to do so; or
- There is an emergency.

Even when these conditions exist, the employee is responsible for obtaining assistance in adequately supervising students during the approved use so that students are supervised at all times.

Use in Vehicles

Regardless of other provisions of this policy, unless there is an emergency, employees shall not use communication devices when:

- Driving district-provided vehicles;

- Operating a vehicle in which a student is being transported when the transportation is provided as part of the employee's job; or
- Supervising students who are entering or exiting a vehicle, crossing thoroughfares, or are otherwise attempting to safely reach their destinations.

Even in emergency situations, employees should first take all possible safety precautions before using communication devices. Employees are subject to local, state, and federal laws governing use of cell phones while driving and will be solely responsible for all traffic violation liabilities resulting from their use of a phone while driving.

Use of District-Provided Communication Devices

The district may provide communication devices and service to some employees to assist them in carrying out their employment-related duties on and off district property. Use of a district-provided communication device is a privilege. The superintendent or designee has sole discretion as to which employees will be provided communication devices and may recall any previously issued communication

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device. Employees do not have any expectation of privacy in district-provided communication devices or any information stored on them, and such devices may be confiscated and searched at any time.

Employees are expected to exercise reasonable care to protect district-provided communication devices from damage or theft and must report any such incidents immediately. The district may require employees to reimburse the district for any damage or theft that was the result of the employee's

negligence. Users of district-provided communication devices must abide by any use limitations included in the district's service contract.

Personal Use of District-Provided Communication Devices

Personal use of district-provided communication devices is permissible as long as the use does not exceed the limits of the applicable plan. An employee whose use exceeds plan limitations will be required to reimburse the district for all expenses beyond those covered by the plan and may have privileges suspended or revoked unless the employee can show that all use was for employment-related duties and the device was not used for personal reasons. The amount of personal use of a communication device or service paid for under E-Rate can be no greater than the cost allocation submitted in the request for the E-Rate discount.

Staff Bring Your Own Device Policy

The security of personal computing devices is solely the responsibility of the staff member. Any loss resulting from damage or theft of personal communication devices in the school setting is not the responsibility of the district.

Adopted: 03/09/2015

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GBH Supervision **GBH**

The superintendent and other administrators designated by the superintendent have the right to supervise licensed staff. The responsibility for the immediate supervision of licensed staff rests with each building principal.

Adopted: 08/12/2019

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GBI **Evaluation (See GAK)** **GBI**

The board shall adopt an approved evaluation instrument. The instrument shall govern evaluation of teachers, shall be filed with the clerk and may be published in teacher handbooks.

Availability of Evaluation Documents

Completed evaluation documents shall be available to the employee, the superintendent, assistant superintendent, other administrators under whose supervision the teacher works, and others authorized by law.

Evaluation Criteria

Evaluation criteria shall be established by the board.

Adopted: 09/09/2013

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GBK Suspension **GBK**

The superintendent shall have the authority to suspend licensed employees with pay pending further board action.

The superintendent may suspend licensed employees with pay for any reason, including, but not limited to, one or more of the following: alleged violation of board policy, rule or regulation; refusal or failure to follow a reasonable directive of an administrator; the filing of a complaint against the employee with any civil or criminal authority; the alleged commission of an offense involving moral turpitude; or other good cause.

If a suspension without pay is imposed on an employee, the employee is entitled to pay until the employee has been advised of the basis for suspension and has been given an opportunity to respond.

Adopted: 09/09/2013

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GBN Nonrenewal and Termination **GBN**

Nonrenewal or termination shall be in accordance with Kansas law and the negotiated agreements, as applicable.

Adopted: 08/12/2019

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The board shall consider any certified employee's resignation which is submitted to the board in writing. The board may accept resignations from employees under contract when the resignation will be in the best interests of the district.

A certified employee who has signed a contract and accepted a teaching position in the district for the coming year or who has not resigned by the continuing contract notice deadline shall not be released from that contract to accept another position until a suitable replacement has been employed.

If teachers attempt to resign after the legal deadline for teachers to provide notice of their intent not to renew their contract with the board for the following year to prevent their contracts from continuing by process of law (Continuing Contract Date), the board may assess liquidated damages to the teacher as follows. Full payment for liquidated damages in accordance with the following scale may be required as a condition to acceptance of any teacher's late resignation.

Liquidated Damages are as Follows:

- If notice of intent of a teacher not to return is received after the Continuing Contract Date but on or before June 15, liquidated damages of $100.00 shall be due and owing to the Board.
- If notice of intent of a teacher not to return is received on or after June 16 but on or before July 15, liquidated damages of $200.00 shall be due and owing to the Board.
- If notice of intent of a teacher not to return is received on or after July 16 but on or before the first contract day of the fall semester, liquidated damages of $300.00 shall be due and owing to the Board.

Exit Interviews

Exit interviews may be conducted after an employee resigns.

Adopted: 08/13/2018

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Unless otherwise provided in the negotiated agreement, if the board decides that the size of the teaching staff must be reduced, the following guidelines shall be followed.

Insofar as possible reduction of staff shall be accomplished by attrition due to resignations and retirement. Following attrition, if additional reductions are required, the following steps will be utilized by the district's administrative staff to reduce the teaching staff:

- The number of teaching positions to be reduced shall be in accordance with the educational goals established by the board.
- The number of teachers needed to implement the district's educational program will then be determined by the administrative staff based on those educational goals in determining which teachers will be non-renewed due to reduction in force.
- The educational goals and needs of the district, individual certifications, qualifications, training, skills, evaluations, and interests.

If all of the teachers in the area identified for reduction have similar certifications, qualifications, training, skills, evaluations and interests, the teacher(s) who best meets the needs of the district, considering the factors outline above and any other relevant factors, will be retained.

Any certified employee who has not been reemployed as a result of reduction of the teaching staff shall be considered for reemployment if a vacancy exists for which the teacher would qualify. Certified employees who may be eligible for reemployment are required to notify the district of the current address, The superintendent will recommend to the board reinstatement of any teacher

he/she deems qualified and able to serve the best interests of the district. The board shall not be required to consider reinstatement of any teacher after a period of one year from the date of nonrenewal.

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Adopted: 10/09/2023

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GBR Work Schedule (See JGFB) **GBR**

Licensed personnel must be at their assigned area during each duty day. Any teacher who finds it necessary to leave while supervising students shall first secure approval from the principal. Building and playground assignments shall be made by the principal.

Work Schedules

The minimum length of the school day for licensed and professional staff shall be defined in the negotiated agreement. Work schedules for other employees shall be defined by the superintendent consistent with the Fair Labor Standards Act (FLSA) and the provisions of this policy.

Attendance Required

Regular attendance is required of all employees subject to leave provisions in district policy or the negotiated agreement, as appropriate. Excessive absences or tardiness, unauthorized leave or unexcused absences may result in disciplinary action including termination of employment.

Adopted: 09/09/2013

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GBRC Professional Development (See GAN and GBRH) **GBRC**

There shall be a program of professional development for employees, which meets minimum statutory and State Board of Education requirements. The program shall promote:

- continuous professional development;
- improving academic achievement for all students;
- diversification in academic foundations or subject knowledge; and
- improved job effectiveness and enhanced skills.

When appropriate, the superintendent shall consult with the staff about professional development activities.

All appropriate employees shall attend professional development sessions unless excused by the superintendent. Professional development programs may use all or a portion of the workday.

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Staff meetings for licensed personnel shall be called by the administration.

Adopted: 08/12/2019

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The board may establish other educational assignments that may extend beyond the school day or time class is in session. Compensation for such assignments, if any, will be as specified in the negotiated agreement.

Adopted: 10/10/2016

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GBRF **Student and Parent Conferences** **GBRF**

Teachers shall be available for student and/or parent conferences at mutually convenient times. The principal may schedule individual or building-wide parent-teacher conferences as necessary.

Adopted: 04/28/2016

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GBRG Non-School Employment **GBRG**

The board reserves the right of exclusive access to the professional services of licensed employees in accordance with the terms of the contract.

Licensed employees shall not engage in outside employment which interferes with their duties.

Adopted: 09/09/2013

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GBRGA Consulting **GBRGA**

Licensed employees may request to be excused from regular duty by the board to serve as paid or unpaid consultants to other districts, government agencies or private industry. If the employee takes paid leave to perform consulting services, any fee and/or honorarium paid to the employee shall be returned to the district.

Adopted: 09/09/2013

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GBRGB Tutoring for Pay **GBRGB**

Teachers shall not receive pay for tutoring or private instruction at school unless approved in advance by the administration. Also see the negotiated agreement.

Adopted: 09/09/2013

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GBRH Leaves and Absences (See GBRC) **GBRH**

Licensed employees will be provided with paid and unpaid leave in accordance with applicable laws and the negotiated agreement. The board reserves the right to grant additional leave.

Adopted: 08/12/2019

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The board may grant leave of absence for disability with or without pay.

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GBRJ Substitute Teaching **GBRJ**

Qualified substitute teachers shall be secured for the district.

The superintendent or the superintendent's designee may meet with potential substitutes before the start of each school year.

The principals shall compile a list of available substitute teachers, and each principal shall have a current list.

Principals (or other designated employees) shall be responsible for obtaining substitute teachers from the list and employing rhema as needed.

The board shall establish the rate of pay for substitute teachers.

Substitutes are encouraged to prepare, in advance, for the subjects in which they are most likely to substitute in case lesson plans are not available.

Adopted: 09/12/2022

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GBU Ethics (See IA and IKB) **GBU**

An educator in the performance of assigned duties shall:

- meet and continuously maintain applicable certification or licensure requirements as defined by state and/or federal law for position held:
- actively support and pursue the district's educational mission.
- recognize the basic dignity of all individuals;
- maintain professional integrity;
- avoid accepting anything of substantial value offered by another which is known to be or which may appear to influence judgment or the performance of duties;
- accurately represent professional qualifications; and
- be responsible to present any subject matter in a fair and accurate manner.

Adopted: 03/13/2017

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GCA Compensation and Work Assignments (See GAN) **GCA**

Classified employees shall be paid according to pay rates established by the board. Payment shall be made at the established pay date following the end of each pay period.

Work Assignments

Subject to board approval, the superintendent shall develop time schedules for all classified employees. Work assignments for classified employees shall be made by the superintendent.

Attendance Required

Regular attendance is required of all employees subject to leave provisions in district policy, employee handbooks or other documents approved by the board. Excessive absences or tardiness, unauthorized leave or unexcused absences may result in disciplinary action including termination of employment.

Workweek For the purposes of Fair Labor Standards Act (FLSA) compliance, the workweek will be 12:00 a.m. Sunday until 11:59 p.m. Saturday.

Classification of Employees

For purposes of compliance with the Fair Labor Standards Act (FLSA), the superintendent shall ensure that all job positions are classified as exempt or nonexempt and that employees are made aware of such classifications.

Overtime

No non-exempt employee shall work more than 40 hours per week without the prior written permission of the appropriate supervisor. Principals and supervisors shall monitor employees' work to ensure that the overtime provisions of this policy and the Fair Labor Standards Act are followed. All employees shall be compensated for overtime worked, at a rate of one and a half times their normal rate of pay for any hours worked over 40 in a workweek.

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Nonexempt employees whose workweek is less than 40 hours will be paid at the regular rate of pay for time worked up to 40 hours. Overtime pay will be provided only if an employee works more than 40 hours in a workweek.

Compensation for Out-of-Town/Overnight Trips

When classified personnel are required to be out of town on district business, they shall be compensated in the following manner:

Regular or overtime pay as appropriate for time away from Belle Plaine MINUS:

1. Eight hours for sleep when overnight;
2. Reasonable time for meals (normally one hour per meal); and
3. Time used exclusively for pleasure or personal business.

Adopted: 09/09/2013

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GCI Classified Employee Evaluation (See GAK) **GCI**

All classified employees shall be evaluated twice during their first year of employment and at least once a year during subsequent years. Evaluation documents will be on file with the clerk of the board.

Classified employees shall be evaluated by the supervisor to whom they are assigned. Classified employees shall be evaluated on their personal qualities, their commitment to duty and work skills related to their job description. A copy of the completed evaluation will be given to the employee after it is signed by the employee and the evaluator and will be placed in the employee's personnel file.

Adopted: 09/09/2013

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GCIA Evaluation of Coaches and Sponsors **GCIA**

All employees contracted to coach or sponsor an activity shall be evaluated annually. Evaluation documents will be on file with the clerk of the board.

Coaches and sponsors shall be evaluated by the supervisor to whom they are assigned. Evaluations shall be based on the employee's personal qualities, their commitment to duty, their work skills, and other appropriate issues related to the activity sponsor/coach job description. A copy of the completed evaluation shall be given to the employee after it is signed by the employee and the evaluator and will be placed in the employee's personnel file.

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GCK Suspension **GCK**

The superintendent shall have the authority to suspend classified employees with or without pay. If a suspension without pay is imposed on a classified employee, the employee is entitled to pay until the employee has been advised of the basis for suspension and has been given an opportunity to respond.

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GCRF Non-School Employment **GCRF**

Classified employees shall not be excused during their regularly scheduled duty day to perform outside employment unless, upon receipt of the employee's leave request, the supervisor determines:

- The requesting employee has adequate leave time available;
- The requesting employee's absence will not interfere with regular work operations; and
- The leave is approved prior to the requested leave being taken.

The supervisor may approve leave without pay for extraordinary circumstances.

Except as otherwise specified above, classified employees shall not engage in outside employment which interferes with their job duties or responsibilities.

Adopted: 01/09/2023

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Paid Leave

Full-time employees will be credited with leave in accordance with handbook language approved by the board.

Unpaid Leave

The board may grant a period of unpaid leave as determined by the board. The period of leave and reason for unpaid leave shall be determined by the board unless otherwise prescribed by law. The board shall not be required to pay any salary or benefits during periods of unpaid leave except as may be required by law.

Jury Leave

Any employee called to jury duty will be granted paid leave and such leave will not be deducted from the employee's credited paid leave.

Sick Leave Bank

All classified employees may use the sick leave bank if they meet the eligibility qualifications of the teachers' negotiated agreement for such sick bank.

Adopted: 9/12/2022

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GCRH Vacations **GCRH**

Full-time classified employees may be granted a paid vacation each year.

Adopted: 09/09/2013

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Paid holiday leave may be granted to classified employees.

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TABLE OF CONTENTS

H--NEGOTIATIONS

HAA	Legal Status
HAB	Goals and Objectives
HAC	Scope of Negotiations
HAE	Board Negotiating Representatives
HAF	Superintendent's Role
HAHBA	Use of School Facilities
HAHBB	Use of School Equipment
HAI	Negotiations Procedures (See CN)
	Distribution of Information
	Research Assistance
	Minutes and Records
	Reporting to Staff and Board
	Reporting to the Media and Public
HAJ	Preliminary Agreement Disposition
HAK	Ratification Procedures
HAL	Announcement of Agreement
HAN	Slowdowns

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The board shall negotiate with its professional employees as provided by law.

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Professional negotiations are for the purpose of determining the terms and conditions of employment as defined by law.

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HAC Scope of Negotiations **HAC**

Negotiations shall cover only topics that are mandatorily negotiable under current law. The board reserves the right to negotiate any topic the board deems in the best interest of the district.

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HAE Board Negotiating Representatives **HAE**

The board shall select as its representative(s) those person(s) the board feels will best represent the interests of the district.

Each year the board shall designate its representative(s) for the purpose of negotiating during the current school year. The superintendent and the board president shall make recommendations to the board regarding who shall be the chief negotiator for the board and other members of the negotiating team.

Adopted: 08/10/20

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HAF Superintendent's Role **HAF**

The superintendent shall not be the chief negotiator for the board. The superintendent shall only act in an advisory capacity.

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School facilities shall be made available for negotiating sessions without cost to the teachers' organization. If the representatives of the teachers wish to negotiate in facilities not furnished by the board, none of the costs of any other facilities shall be paid for by the board.

Adopted: 09/09/2013

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HAHBB Use of School Equipment **HAHBB**

The board may make school equipment available for negotiating sessions.

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The time, place, duration, notification, agenda and rules of order shall be as agreed by the board team and teachers' team.

Distribution of Information

Board distribution of information concerning negotiating sessions shall be discretionary with the board.

Research Assistance

Upon request, the board shall furnish to the association any information which is public record. Information not currently available in the form requested by the association, at the discretion of the board, may be supplied if the association reimburses the board for any additional expenses. (See CN)

Minutes and Records

One member of the board's team shall be designated to keep reasonably detailed minutes and records of all negotiating sessions. Following each session, a person shall transcribe the minutes and notes and distribute the minutes to the board.

Reporting to the Staff and Board

The board shall, through the superintendent, be fully advised as to the status of the negotiating sessions. The board shall be furnished copies of the minutes and records of each session. The board shall, through the superintendent, report to the staff information as the board deems advisable.

Reporting to the Media and Public

The board reserves the right to release to the media and public information regarding negotiations. Before any school board news release or

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statement on negotiations to the press and public is made, the release shall be prepared by the chief negotiator and the superintendent and approved by the president of the board. If the president of the board is unavailable, the vice-president of the board shall make the determination, and if he is also unavailable, the superintendent shall make the determination. No other person is authorized to release to the public or press, on behalf of the board, any information in regard to negotiations.

Adopted: 09/09/2013

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HAJ Preliminary Agreement Disposition **HAJ**

All tentative agreements shall be reported to the board.

Adopted: 09/09/2013

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HAK Ratification Procedures **HAK**

The board will not engage in piecemeal ratification of agreements. The board will not take action on the total "package of agreements" until after the teachers' association has acted upon the same package of agreements. If after the completion of impasse procedures, the board and teachers' association have not reached agreement, the board shall take action to conclude the matter as provided by law.

All tentative or preliminary agreements shall be placed in one package and presented to the board for its consideration.

Adopted: 09/09/2013

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HAL Announcement of Agreement **HAL**

The board may announce its ratification of the agreement.

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HAN Slowdowns **HAN**

The board opposes work slowdowns by its teachers.

If any district teachers engage in a practice commonly known as a "slowdown," the board shall immediately direct the superintendent and other administrators to investigate the situation and report back to the board instances in which a teacher is not performing in accordance with the terms of the contract. The board shall take whatever action may be deemed appropriate, including termination of the teacher.

Adopted: 09/09/2013

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Table of Contents

Section I – Instructional Program

Philosophy **IA**

School Site Councils **IB**

Educational Program **IC**

Curricular Offerings

Educational Goals and Objectives

Additional Educational Programs

Pilot Projects **ICA**

Pilot Project Evaluation

Student Surveys

Teaching Methods **ICAA**

Instructional Program **ID**

Modification

Personnel

Financial Resources

Evaluation

Special Programs **IDAA**

Partnerships/Work-Study Program

Support Programs **IDAB**

Drug Education

Student Mental Health

Dropout Prevention

At-Risk Students

Guidance

Homebound Instruction

Exceptional Programs **IDAC**

Special Education Services **IDACA**

Child Find, Identification, and Eligibility

Actions and Due Process for Students

Section 504 Accommodations for Students **IDACB**

Title I Programs **IDAD**

Annual Parent Meeting

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Student Privacy Policy **IDAE**

Student Data Restrictions

Student Data Security Breach

Biometric Data

Select Student Surveys

College Classes **IDCE**

Concurrent Enrollment

Athletics **IDFA**

Instructional Arrangements **IE**

Class Size

Scheduling for Instruction

Pre-enrollment

Charter Schools **IEB**

Textbooks, Instructional Materials and Media Centers **IF**

Selection Criteria: Textbooks and Instructional Materials

Selection Criteria: Media Center Materials

Collection Development

Challenges of Materials

Composition of Review Committee

Purview of Review Committee

Written Report

Board Review and Action

Removing Challenged Materials

Impact of Simultaneous Requests

Classroom Displays **IFA**

Outside Speakers **IFBH**

Community Resources **IFC**

Field Trips **IFCB**

USD Approved Field Trips

Non-Sanctioned Field Trips

Overnight Accommodations **IFCC**

Definitions

Notice to Parents

Grading System **IHA**

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Homework **IHB**

Make-Up Opportunities **IHEA**

Graduation Requirements **IHF**

Educational Testing Program **II**

Test Integrity

Reporting Test Results

Performance-Based Credits **IIA**

Graduation Credit Through Integrated Coursework

Credit Through Alternative Educational Opportunities

Eligibility Requirements for Sponsoring Entities

Requirements for the Provision of Alternative Educational Opportunities

Processing for Submitting a Proposal for an Additional Educational Opportunity

Crieteria for Evaluating Such Proposals

Determining the Course Credit that May Be Earned Through These Opportunities

State Reporting Requirements

Acceptable Use Guidelines **IIBF**

Purpose

Acceptable Use Guidelines

Prohibitions

Monitoring

Internet Safety

Penalties for Improper Use

Computer and Device Use **IIBG**

Use of District Computers and Devices/Privacy Rights

Copyright

Installation

Hardware

Audits

E-mail Privacy Rights

Ownership of Employee Computer and Device Materials

Lost, Stolen, or Damaged Computers and/or Equipment

Children's Internet Protection Act **IIBGA**

Online Learning Opportunities **IIBGB**

Application

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Guidelines

Other Regulations or Guidelines

Staff Online Activities **IIBGC**

Evaluation of Instructional Program **IJ**

Financial Literacy **IKA**

Controversial Issues **IKB**

Human Sexuality and AIDS Education **IKCA**

Opt-Out Procedure and Form

Opt-Out Form

Annual Request Required

Notice of Availability

Religion in Curricular or School Sponsored Activities **IKD**

Teaching About Religion

Religion in the Curriculum and School Activities

Religious Symbols in the Classroom

Religious Holidays

Graduation and Other Ceremonies

Religious Objections to Activities **IKDA**

Assemblies **IKE**

Lesson Plans **IKI**

Animals and Plants in the School **ING**

Service Animals in the Schools

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IA Philosophy (See GBU and IKB) **IA**

Unified School District 357 is committed to providing quality education to maintain a partnership with the greater community that will prepare each student to become a life-long learner and a contributing participant in a changing world community.

Both academic and non-academic programs comprise the educational program. The educational program shall be performance-oriented and research-based.

All students shall have an equal opportunity to pursue and acquire knowledge and to master the educational program's objectives.

Adopted: 09/09/2013

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IB School Site Councils (See KA) **IB**

A site council shall be established in each district building. Each council shall be responsible for providing advice and counsel for evaluating state, school district, and school site performance goals and objectives and in recommending methods that may be employed at the school site to meet these goals and objectives. Discussions may include allocations of the school budget and administrative and management functions.

The membership of each council shall include, at a minimum, the building principal, and representatives of: teachers and other school personnel, parents of pupils attending the school, the business community, and community leaders. The principal shall recommend site council members for board approval.

Each site council shall establish meeting schedules. Each council shall report to the board at least one time per year.

Adopted: 09/12/2022

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IC Educational Program (See ID, IDAA, IDAB, IDAC and IJ) IC

The academic program shall assist students to grow intellectually, to master the curriculum objectives, and to prepare for further education or training. The board shall consider the district's basic educational program each year. And, when approved, the program shall constitute the district's basic curriculum.

Curricular Offerings

An outline of each curricular offering and the learning objectives to be mastered shall be developed. When approved by the board, they shall become a part of these policies and rules by reference.

Educational Goals and Objectives

District educational goals and curriculum objectives for the basic educational program shall be on file in the district office, and available for inspection upon request.

Additional Educational Programs

Additional educational programs shall be in one of the following categories:

Special Programs (IDAA), Support Programs (IDAB) and Exceptional Programs (IDAC).

Adopted: 08/10/2020

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ICA Pilot Projects (See IDAE) **ICA**

The board supports the use of pilot projects before any new instructional technique is implemented on a district-wide basis.

Pilot project means any research or experimentation program or project designed to explore or develop new, unproven teaching methods or techniques. All instructional materials, including teachers' manuals, audio/visual materials

or any other supplementary instructional material to be used in connection with a pilot project shall be available for inspection by parents or guardians of students engaged in the program or project.

Pilot Project Evaluation

Before any pilot project proposal is submitted to the board for approval, an evaluation format shall be developed and included with the pilot project.

Student Surveys

As required by the Protection of Pupil Rights Amendment (PPRA), any instrument designed to survey students, either by district staff or by an outside agency or individual, shall be made available for inspection by parents or guardians before the survey is administered. Further, pursuant to the Kansas Student Data Privacy /act (SDPA), no nonacademic test, questionnaire, survey, or examination containing any questions about the personal abd private attitudes, values, beliefs, or practices of the student or the student’s parents, guardians, family members, associates, friends, or peers that is administered during the school dy shall be administered to any kindergarten through 12th grade students unless the requirements outlined in policy IDAE are followed.

Adopted: 02/10/2025

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ICAA Teaching Methods (GRBC, ICA, IDAE, II, and IJ) **ICAA**

Use of current research findings to improve instruction is required as a part of the district's school improvement efforts. Staff development programs will be designed to help teachers learn research-based instructional skills and to apply them in daily instruction.

Adopted: 09/09/2013

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ID Instructional Program (See CJ, CL, IC and IJ) **ID**

All licensed staff shall cooperatively develop an integrated, comprehensive, performance-oriented preK-12 Instructional Program, which will be composed of the specific courses and programs offered that allow students to meet the goals and objectives set forth in the educational program. The instructional program is to include district instructional goals and learning objectives and be based on valid educational research and current Kansas State Board of Education requirements. After board of education approval, district instructional goals and learning objectives shall be used by the staff as the basis for developing and implementing specific curricula. The superintendent may develop a schedule for periodic curriculum reviews.

Modification

Additions, deletions, or alterations to the Instructional Program shall be approved by the administration.

Personnel

Outside resources and district personnel may be used in curriculum development.

Financial Resources

The board encourages the superintendent to secure federal, state and private grants, or other alternative funding sources for use in curriculum development. The licensed staff is encouraged to use available commercial, public domain and community resources to assist in developing the instructional program and extending it beyond the traditional classroom setting.

Adopted: 09/09/2024

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In addition to the educational program, the district may provide programs to meet special needs. These programs may be outlined in the appropriate handbooks or other documents following board review and approval.

Partnerships/Work-Study Program

The board may approve partnership/work-study programs with business and/or educational institutions for the purpose of improving and/or expanding the quality of curricular offerings, and may approve opportunities for partnership organizations to assist with specified programs.

A periodic review of the partnership's goals and objectives shall be conducted.

Adopted: 08/09/2021

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IDAB Support Programs (See IC and LDD) **IDAB**

Support program information approved by the board shall be filed with the clerk and made available to staff as needed.

Drug Education

All students shall be made aware of the legal, social and health consequences of drug and alcohol use. Students shall be instructed on effective techniques for resisting peer pressure to use illicit drugs or alcohol. Students shall be informed that the use of illicit drugs and the unlawful possession and use of alcohol is both wrong and harmful.

The board's comprehensive drug and alcohol abuse and prevention program shall be included as part of the district's curriculum. The curriculum at each grade level shall be age-appropriate and developmentally based.

A student who voluntarily seeks assistance, advice or counseling from school personnel regarding drugs or drug abuse shall not be disciplined by school authorities because the student sought assistance.

Student Mental Health

The superintendent may develop and implement a student mental health awareness program. The superintendent shall identify community or area mental health agencies able to provide assistance.

Dropout Prevention

The superintendent may develop and implement programs to prevent students from dropping out of school, or to encourage dropouts to return to school.

The staff shall incorporate the philosophy and goals of this policy into the schools' programs.

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At-Risk Students

The superintendent shall be responsible for developing a program for identifying and working with at-risk students.

Guidance

The guidance program shall be organized to serve all students.

Counselor(s) shall provide guidance services consistent with district philosophy, job descriptions and board policies.

Homebound Instruction

Homebound instruction may be provided to a student as deemed necessary by the superintendent or by the student's Individualized Education Program (IEP) team or Section 504 team.

Adopted: 01/09/2023

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In addition to the basic programs approved by the board, the district shall provide programs to meet exceptional needs. Program information approved by the board shall be filed with the clerk and made available to staff as needed.

Adopted: 09/09/2013

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IDACA Special Education Services **IDACA**

In accordance with the provisions of Federal and state law, it is the policy of this district to provide a free appropriate public education for every exceptional child. Special education services are provided for such children, including individual educational programs offered in the least restrictive environment.

Child Find, Identification, and Eligibility

The district shall coordinate and maintain a system which schedules and structures available services for pupils who are referred to determine eligibility for special education services in accordance with procedural processes established in Federal and state law.

Actions and Due Process for Students

Parental involvement and cooperation are important to the success of these educational programs. In order to encourage the involvement and cooperation of parents in special education services and to safeguard the rights of exceptional children to a free appropriate public education, the board utilizes and refers parents to the "Procedural Safeguards in Parent Rights in Special Education" published by the Kansas State Department of Education.

In the provision of special education and related services, the district will implement all Federal and Kansas statutes, rules, and regulations.

Adopted: 02/10/2025

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IDACB Section 504 Accommodations for Students **IDACB**

In accordance with the provisions of the Rehabilitation Act of 1973 and Title II of the Americans with Disabilities Act, the district is committed to providing students with disabilities the opportunity to participate in and benefit from its programs and activities. Accordingly, the district will make reasonable modifications to its programs and activities to accommodate otherwise qualified students with disabilities, unless such modifications would impose an undue burden on the operation of the particular program or activity or would fundamentally alter the nature or purpose of the program or activity. No district board member, employee, or contractor shall retaliate against any person because of his or her exercise of rights under Section 504.

Adopted: 10/14/14

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IDAD Title I Programs **IDAD**

The board shall ensure the district's Title I programs operate in accordance with federal laws and conditions. The superintendent or superintendent's designee is responsible for administering the district's Title I program; assessing the educational needs of all students, particularly the needs of educationally disadvantaged children; developing appropriate communication channels between all parties; to the extent practicable, providing full opportunities for the participation of parents/guardians with limited English proficiency, parents/guardians with disabilities, and parents/guardians of migrant children, including providing information and school reports required under federal law in a format and language such parents/guardians can understand; developing in-service training for parents and staff; and developing appropriate evaluation procedures.

Annual Parent Meeting

The Title I Instructor shall designate at least one meeting date each school year to provide parents of Title I students the opportunity to meet with school personnel in order to participate in the design and implementation of the Title I program.

Adopted: 7/14/14

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IDAE Student Privacy Policy **IDAE**

(See BCBK, ICA, ICAA, II and JR et seq.)

The superintendent, the board and staff shall protect the right of privacy of students and their families in connection with any surveys or physical examinations conducted, assisted or authorized by the board or administration. The district shall annually provide parents notice of their rights under the Protection of Pupil Rights Amendment and the Student Data Privacy Act, at the beginning of each school year, and at any other time the school district policies in the area are substantially changed.

Student Data Restrictions

Any student data submitted to and maintained by a statewide longitudinal student data system shall only be disclosed in accordance with the Student Data Privacy Act. Disclosure of all other student data or student record information maintained is governed by the Family Educational Rights and Privacy Act ("FERPA").

Annual written notice presented to parents and legal guardians of district students shall: 1) require parent or guardian's signature; and 2) shall state student data submitted to and maintained by a statewide longitudinal data system only be disclosed as follows.

Student data may be disclosed to:

- The authorized personnel of an educational agency or the state board of regents who require disclosures to perform assigned duties; and
- The student and the parent or legal guardian of the student; provided the data pertains solely to the student.

Student data may be disclosed to authorized personnel of any state agency, or to a service provider of a state agency, educational agency, or school performing instruction, assessment, or longitudinal reporting, provided a data-sharing agreement between the educational agency and other state agency or service provider provides the following:

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- purpose, scope and duration of the data-sharing agreement;
- recipient of student data use such information solely for the purposes specified in agreement;
- recipient shall comply with data access, use, and security restrictions specifically described in agreement; and
- student data shall be destroyed when no longer necessary for purposes of the data-sharing agreement or upon expiration of the agreement, whichever occurs first.

*A service provider engaged to perform a function of instruction may be allowed to retain student transcripts as required by applicable laws and rules and regulations. Destruction shall comply with the NISTSP800-88 standards of data destruction.

Unless an adult student or parent or guardian of a minor student provides written consent to disclose personally identifiable student data, student data may only be disclosed to a governmental entity not specified above or any public or private audit and evaluation or research organization if the data is aggregate data. "Aggregate data" means data collected or reported at the group, cohort, or institutional level and which contains no personally identifiable student data.

The district may disclose:

- Student directory information when necessary and the student's parent or legal guardian has consented in writing;
- directory information to an enhancement vendor providing photography services, class ring services, yearbook publishing services, memorabilia services, or similar services;
- any information requiring disclosure pursuant to state statutes;
- student data pursuant to any lawful subpoena or court order directing such disclosure; and

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- student data to a public or private postsecondary educational institution for purposes of application or admission of a student to such postsecondary educational institution with the student's written consent.

Student Data Security Breach

If there is a security breach or unauthorized disclosure of student data or personally identifiable information of any student submitted to or maintained on a statewide student longitudinal data system, each affected student or the parent or legal guardian of the student, if a minor, shall be immediately notified, and an investigation into the causes and consequences of the breach or unauthorized disclosure will be conducted.

Biometric Data

The district shall not collect biometric data from a student or use any device or mechanism to assess a student's physiological or emotional state, unless the adult student or the parent or legal guardian of the minor student consents in writing. "Biometric data" includes measurable biological or behavioral characteristics that can be used for automated recognition of an individual, such as fingerprints, retina and iris patterns, voiceprints, DNA sequence, facial characteristics, and handwriting.

Nothing in this policy shall prohibit the collection of audio voice recordings, facial expression information, and student handwriting for:

- provision of counseling or psychological services,
- conducting student threat assessments,
- completing student disciplinary investigations or hearings, or
- conducting child abuse investigations.

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Select Student Surveys

No non-academic test, questionnaire, survey, or examination containing any questions about the personal and private attitudes, values. beliefs or practices of the student or the student's parents, guardians, family members, associates, friends, or peers that is administered during the school day shall be administered to any kindergarten through 12th grade student unless:

- the parent or guardian is notified in writing not more than four months in advance of the administration of such test, questionnaire, survey, or examination that such is to be administered; and
- the parent or guardian of the student gives consent through written or electronic signature or, in the event of an immediate need, gives verbal consent for the student to participate.

Advance notification to a parent or guardian must include:

- A copy of the test, questionnaire, survey, or examination that is to be administered;
- Information on how the parent or guardian may provide written consent to authorize the student to take such test, questionnaire, survey or examination;
- The name of the company or entity that produces or provides the test, questionnaire, survey, or examination to the school; and
- Whether the school will receive or maintain the resulting data and an explanation of how the school intends to use and maintain such data.

For written consent to be accepted, timely notice in compliance with the requirements of this policy must be provided, and the parent or guardian must have had an opportunity to review the information contained in the notice. Written consent must be provided separately for each individual test, questionnaire, survey, or examination that is to be administered. Prior to administering any such test, questionnaire, survey, or examination, a copy of it must be posted and maintained on the district's website.

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A student has the right to refuse to take any test, questionnaire, survey, or examination as described herein at any time, regardless of receipt of parent or guardian consent to participate. Prior to administering any such test, questionnaire, survey, or examination, each student shall be informed that such student has the right to refuse to take it and that the student will not suffer any adverse consequences based on refusal to participate.

No personally identifiable student data shall be collected through any such test, questionnaire, survey, or examination.

Except as otherwise provided in this policy, the provisions of this subsection shall apply to any test, questionnaire, survey, or examination as described herein that is administered or proposed to be administered to any student by any employee of a school district, including, but not limited to, any administrator, teacher, counselor, social worker, psychologist, or nurse.

If, however, any district employee becomes aware that a student may be at risk of suicide by a credible report from the students, the student's peers, or another school district employee, the school personnel who are designated to administer a suicide risk assessment or screening tool may administer such risk assessment or screening tool in accordance with the provisions of this subsection to determine whether the student could be at risk for suicide. Such designated school personnel may include, but is limited to, any administrator, teacher, counselor, social worker, psychologist, or nurse. Prior to the administration of any such risk assessment or screening tool, the designated staff member shall verbally notify the parent or guardian before the administration of such risk assessment or screening tool and obtain the consent of the parent or guardian.

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If the designated staff member is unable to verbally notify the parent or guardian of the student and obtain consent after reasonable attempts to do so, the designated staff member may administer the **IDAE** risk assessment or screening tool without such consent. If a risk assessment or screening tool is administered without the parent or guardian's consent, as soon as contact with the parent or guardian is made, the designated staff member shall notify the parent or guardian of the administration of such assessment or screening tool and provide to the parent or guardian all information obtained from the risk assessment or screening tool administered to the student.

Adopted: 09/12/2022

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With parental permission, eligible students who can complete graduation requirements as prescribed by the board are eligible to be released from school during the regular school day to attend classes at a Regent's university, community college, technical college or vocational educational school.

Concurrent Enrollment

A student enrolled in grades 10, 11 or 12, or a gifted child in grades 9 through 12 who has demonstrated the ability to benefit from participation in the regular curricula of eligible postsecondary education institutions, may apply to the principal for permission to enroll at an eligible postsecondary education institution.

The district may enter into an agreement with the college for the purpose of allowing these students to receive dual credit.

Adopted: 09/09/2013

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Any district elementary or middle school that includes any of the grades six through nine may conduct athletic practice during the school day only at times when one or more elective academic courses or a study period is offered to students.

District high school/s shall not conduct athletic practice during the school day, and practice shall not be counted for credit or as a part of the school term.

District schools shall neither offer credit for athletic practice nor count athletic practice as a physical education course.

Adopted: 09/09/2013

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IE Instructional Arrangements **IE**

Each building principal shall organize the instructional program in a manner compatible with these policies.

Class Size

Class size shall be determined by: class enrollment, teacher availability, budget and facility limitations.

Scheduling for Instruction

Class schedules shall be developed to meet district instructional goals and learning objectives.

Pre-enrollment

The administration shall develop and coordinate pre-enrollment activities each spring.

Adopted: 09/09/2013

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The board may consider a petition for creation of a charter school if the petition meets all requirements of current law and regulations.

Adopted: 09/09/2013

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IF Textbooks, Instructional Materials and Media Centers IF
(See IKD and KN)

All textbooks, instructional materials and the selection criteria for district media center materials shall be subject to board approval.

Textbooks and instructional materials shall support the district's instructional program. Media center materials shall support and supplement the curriculum, promote wise use of leisure time, develop literary discrimination and appreciation, and encourage students to become productive citizens.

Selection Criteria: Textbooks and Instructional Materials

Textbooks and instructional materials shall provide:

- An effective education for all students;
- factual knowledge, literary appreciation, aesthetic values and ethical standards;
- practice for students to develop abilities in critical thinking, communication, mathematics and science skills;
- information which helps students develop an appreciation of American cultural, ethnic and racial diversity and balanced views concerning international, national, state and local issues and problems; and
- sufficient flexibility for meeting the special needs of individuals and groups.

The superintendent shall develop selection procedures which meet the above criteria, which shall include a review of available material by appropriate staff members.

Selection Criteria: Media Center Materials

Materials shall be chosen for accuracy, artistic quality, format and authoritativeness.

Materials shall be chosen on various reading levels presenting different points of view, including current issues.

Books and other media materials shall be evaluated before purchase, either through direct examination or by using reputable, unbiased, professionally prepared selection tools.

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The media center(s) shall obtain, process, and circulate materials and equipment and provide references and other services to students and faculty. Media specialists shall work toward providing resources so that students have an opportunity to achieve high levels of performance.

Collection Development

The media collection shall be developed systematically, be well balanced in coverage of subjects, and include various types of materials and diverse content in multiple formats.

The collection shall reflect, enhance and complement the broad interests represented in the curriculum. The collection should be large enough to allow materials to be placed in classrooms for extended periods of time.

Challenges of Materials

Any student, parent, or legal guardian of a student currently enrolled in the district having a complaint about textbooks, media center, or other instructional materials shall meet with the teachers, media specialist, or principal. If the matter cannot be resolved, the principal shall notify the superintendent and ask the complainant to complete a request for review form which is available through building principals or at the district office. After receiving the completed form, the superintendent shall review and consider the request.

If the issue outlined in the request is not resolved after review by the superintendent, the requestor may seek review by the board.

In determining whether to forward a challenge to a review committee, the board shall consider the following factors:

- The basis of the challenge;
- whether the material has been previously challenged and reviewed pursuant to this process; and
- whether it is necessary to submit it for additional review.

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If the board chooses not to submit the challenge to the review committee, the superintendent will notify the requestors of the board's decision. If the board chooses to submit the challenge to a review committee, it shall forward all appropriate written materials necessary to the review committee.

Composition of Review Committee

When a review committee is established to handle requests for review concerning textbooks, media center, or instructional materials, the review committee shall be composed of:

The building principal, library media specialist, two subject area specialists, two community members, and one student. If the request for review proposes that the material is inappropriate for minors, the student representative may be left off the committee. The superintendent shall be responsible for appointing review committee members, unless otherwise determined by the board on a case-by-case basis.

Purview of Review Committee

The review committee shall examine and evaluate the material as a whole; consider the district's policy, procedures, and philosophy for selection of textbook, instruction materials, and media center materials; weigh strengths and weaknesses; and form opinions based upon the selection criteria.

Written Report

Within 30 days of receiving access to the challenged materials, the review committee shall review the material and prepare a written report containing conclusions and recommendations for the board of education.

If the board receives simultaneous challenges of multiple material or if circumstances render the 30-day timeline impracticable, the board may extend the committee's deadline to complete its review.

No reviews will be conducted during summer break or when school is not in session for one week or longer. The timeline for any review shall be tolled during such breaks.

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Board Review and Action

The board shall review the recommendation of the review committee within 30 days of receipt thereof and may accept the review committee's recommendation, reject the review committee's recommendation, or make its own determination regarding the challenged book or material.

The decision of the board is final.

Removing Challenged Materials

Challenged materials may not be removed from use during the review period at the discretion of the superintendent.

Impact of Simultaneous or Repeated Requests

If more than one request for review is received simultaneously, or, if one or more requests for review is received while another review is pending, timelines established in the policy may be extended by the superintendent or the board to allow the requests to be processed in turn. When more than one request for review is received for the same book or material, such requests may be consolidated to reduce redundancy in review at any stage of this process.

If a book or material has been reviewed by a review committee, it will not be eligible for an additional review for at least one year from the date the board took action on the previous challenge of the material

Adopted: 09/09/2024

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IFA **Classroom Displays** **IFA**

(see IKD, IKDA and KN)

Materials displayed in and around a classroom are generally considered instructional materials and must comply with board policy. They may be selected by the classroom teacher but should be grade-level appropriate and align with the subject-matter being taught. Materials or displays not meeting these criteria are subject to removal by the principal.

Classroom are not public forums for the display or distribution or political, religious, or personal viewpoints. Employees may not use classrooms for the posting or display of materials to promote or convey a political, religious, or personal message.

This policy does not require a principal to remove photos, decorations, or other personal items from a teacher's desk or surrounding areas as long as the items do not disrupt the learning process.

Adopted: 01/09/2023

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IFBH Outside Speakers (See IKB) **IFBH**

With administrative approval, outside speakers may be invited to meet with groups of students as part of the educational process.

Outside speakers should be selected so that various points of view are presented. Speakers shall be informed of any rules when they are invited to make a presentation.

The teacher/sponsor or any member of the school administration may interrupt or suspend any proceedings if the speaker is not abiding by these rules.

With prior board approval an honorarium may be paid to outside speakers.

Adopted: 09/09/2013

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IFC Community Resources (See KFD) **IFC**

The use of community resources is encouraged where legitimate educational objectives may be advanced.

The licensed staff shall maintain a list of suitable community resources which may be used for field trips and other excursions.

Adopted: 08/12/2019

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IFCB Field Trips **IFCB**

USD Approved Field Trips

Field trips may be approved by the principal when reasonable educational objectives can be established.

Advance requests for field trips including transportation and other resource needs shall be submitted by the teacher to the principal. Each building principal shall develop a form to notify parents of a forthcoming field trip. The form shall include the nature of the trip, departure time, expected return time, name of sponsor(s) and mode of travel.

Non-Sanctioned Field Trips

Non-sanctioned field trips organized by employees acting as independent contractors/agents involving students on a volunteer, self-supporting basis are not approved by the board and are not considered a part of the curriculum. Total responsibility for privately planned field trips or tours rests with the individual(s) and agency sponsoring them. The district assumes no legal or financial responsibilities for non-sanctioned field trips.

Every attempt should be made to schedule non-board approved trips during weekends and/or vacation periods. If travel arrangements necessitate that some school days are missed, normal procedures for staff and students' absences must be followed.

Non-sanctioned Field Trips (continued)

If recruitment of students is sought through the schools(s), the request for recruitment shall be made in accordance with those of private citizens.
Recruitment efforts may occur during class time or the employee's work day.

Adopted: 09/09/2013

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IFCC Overnight Accommodations **IFCC**

During school district sponsored travel that requires overnight stays by students, separate overnight accommodations will be provided for students of each biological sex.

Definitions

"Biological sex" means the biological indication of male and female in the context of reproductive potential or capacity, such as sex chromosomes, naturally occurring sex hormones, gonads, and nonambiguous internal and external genitalia present at birth, without regard to an individual's psychological, chosen, or subjective experience of gender.

"School district sponsored travel" means any travel that is necessary for students to attend, participate, or compete in any event or activity that is sponsored or sanctioned by a school operated by the school district, including, but not limited to, any travel that is organized:

- By any club or other organization recognized by the school;
- Through any communication facilitated by the school, such as email; or
- Through fundraising activities conducted, in whole or in part, by school district employees or on school district property.

Notice to Parents

This policy will be provided to parents prior to a student's participation in a school district sponsored activity or travel that required overnight stays by students.

Adopted: 10/09/2023

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IHA Grading System **IHA**

The district shall have board-approved methods for assessing and reporting the quality of student academic progress. Information shall be published in appropriate handbooks.

Adopted: 09/09/2013

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IHB Homework **IHB**

Homework shall not be used as a means to discipline students. Homework shall be assigned as needed to reinforce lessons introduced in the classroom.

Adopted: 09/09/2013

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IHEA Make-Up Opportunities (See JBD and JDD) **IHEA**

Within time limits established by the administration, all teachers shall supply make-up work assignments when requested. The time limits shall be included in the student handbooks each year.

Adopted: 09/09/2013

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IHF **Graduation Requirements** (See JFCA) **IHF**

The board may adopt graduation requirements exceeding the minimums set forth by state regulation. Unless otherwise provided herein, in order to qualify for graduation, the board requires each candidate to earn 24 academic credits of a type meeting state and district requirements.

Exceptions may be granted by the board to waive local graduation requirements that are in excess of the state minimum requirements for students on a case by case basis.

The board shall award a student a diploma if the student is at least 17 years old; is enrolled or resides in the district; was in custody of the Secretary of the Kansas Department of Corrections (KDOC), the Secretary for DCF, or a federally recognized Indian tribe in this state at any time on or after the student's 14th birthday; and has achieved at least the minimum high school graduation requirements adopted by the state board of education.

Other situations which may warrant waiver of graduation requirements in excess of the minimum requirements adopted by the state board include, but may not be limited to, the following circumstances:

- If such student is an adult learner whose four-year cohorts have graduated; or
- if such a student is attending an alternative school or program and has experienced high mobility, teen pregnancy, long-term illness, or other hardship conditions.

Adopted: 10/12/2015

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II Educational Testing Program II

(See BCBK, BE, CN, CNA, IDAE, IJ, JF and KBA)

The district educational testing program shall consist of multiple assessments. These assessments shall include, as a minimum, individual teacher subject matter tests, district group achievement tests, and state required tests.

Test Integrity

The board requires all licensed staff members to protect the integrity of the student assessment process. Honest administration of the test and accurate reporting of student achievement to the board, the community and the state of Kansas is necessary to maintain accountability measures. All students and staff are required to maintain a high level of integrity in the administration and completion of student assessments.

Reporting Test Results

The superintendent or superintendent's designee shall report annually to the board the results of the district's academic achievement testing program. State required test results shall be disaggregated as required by current regulation and shall be reported annually to the board, district patrons and the State Board of Education.

Adopted: 09/09/2013

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IIA Performance-Based Credits IIA

A student may earn credits towards high school graduation by demonstrating mastery of the course outcomes through a performance instrument. The standards for designing and passing the performance instrument shall be set sufficiently high to ensure credits earned by such means shall be equivalent to those offered in the framework of the Carnegie unit.

A written request to "test out" of a class must be submitted prior to the beginning of each semester/year. A student may not request to "test out" of a class in which he or she is currently enrolled or has been enrolled.

The request is to be evaluated within 30 school days by a review committee composed of: a building administrator, a school counselor, a faculty member appointed by the principal, and the students' parent(s) or guardian(s).

If the request is approved, the course instructor will have 30 school days to design a performance instrument that reflects mastery of all course outcomes. Commercially available instruments may be used if they cover all course objectives. A performance instrument shall be approved by the principal. The principal, in consultation with the instructor, will determine the setting and the timelines for the administration of the instrument, as well as the criteria for successful completion of those tasks.

The student has 10 school days in which those designated tasks developed by the teacher and approved by the administration must be performed.

Credit for such classes shall be awarded only on a pass/fail basis. Students will be allowed only one opportunity to "test out" of any particular class. It will not be the responsibility of the school or the instructor to provide

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instructional and/or review time for the student. However, the outcomes, as noted in the district curriculum guide, and class syllabus will be made available.

Graduation Credit Through Integrated Coursework

The board may allow graduation credit for integrated academic or career and technical education course work. The teacher awarding academic credit shall be fully licensed and may work collaboratively with another instructor to develop a course plan for instruction. The teacher shall monitor the student's progress and level of achievement. The plan will be reviewed periodically to maintain rigor and relevance.

Credit Through Alternative Educational Opportunities

Students enrolled in grades six through twelve may earn course credits through alternative educational opportunities with sponsoring entities. For the purposes of this policy, terms have the following meanings.

- "Alternative educational opportunity" means instruction that primarily occurs outside the classroom with a sponsoring entity.
- "Sponsoring entity" means a business, not-for-profit organization, nonprofit organization, trade association, parent of a student, teacher, or administrator that partners with a school district to provide an alternative educational opportunity to students.

Eligibility Requirements for Sponsoring Entities

The board may accept a proposal from a sponsoring entity if the alternative educational opportunity provided by the sponsoring entity provides an additional learning opportunity for students through a work-based, pre-apprenticeship, apprenticeship, internship, industry certification, or community program; and either the proposal is approved by the state board of education as an alternative educational opportunity, or it complies with the requirements of this policy regarding such opportunities.

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Requirements for the Provision of Alternative Educational Opportunities

Each approved alternative educational opportunity with a sponsoring entity shall be managed and directed by a licensed teacher employed by the school district. The teacher may work collaboratively with the principal, the sponsoring entity, or another teacher to develop a course plan for instruction with learning outcomes identified. The teacher shall monitor the student's progress and level of achievement based on this plan. The plan will be reviewed periodically and adjusted as needed to promote a quality learning experience. The principal shall provide a report annually, or as requested, to the superintendent evaluating the additional educational opportunity provided to participating students and making recommendations to the superintendent on continuation, termination, or modification of the opportunity.

Processes for Submitting a Proposal for an Additional Educational Opportunity

Sponsoring entities wishing to partner with the district to provide additional educational opportunities to students, shall submit a proposal to the superintendent outlining the contact information and credentials of the person(s) that would be working directly with the student participants in this experience; educational goals for the partnership; any time, place, manner, and number of participant restrictions regarding how the learning opportunity would be provided; proposed learning outcomes for participating students; and any details regarding prerequisite coursework, certification, or experience a candidate for this experience should possess prior to entering the program.

Criteria for Evaluating Such Proposals

Prior to making a recommendation to the board on whether the district should partner with or continue to partner with a sponsoring entity, the superintendent shall review the proposed alternative educational opportunity in comparison with the board approved curriculum and goals, consulting other staff members as necessary in that process. Before recommending action to continue such partnership from year-to-year, the superintendent may seek and shall review any available reports on the opportunity provided by the principal in accordance with this policy.

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The board should consider the recommendation of the superintendent in determining whether to partner with or continue partnership with a sponsoring entity. In order for the board to partner with a sponsoring entity and to maintain such partnership, the sponsoring entity must first meet the eligibility requirements as outlined in this policy.

Additional considerations weighing into the decision to partner with a sponsoring entity may include, but may not be limited to: whether the learning experience meets the curricular, rigor, and relevance needs of the student and/or the district; qualifications, experience, reputation, and responsibility of the sponsoring entity and/or individuals that would be working directly with students; related costs for the district, regarding the provision of transportation, equipment, human resources to monitor the experience, etc.; space and time constraints if the experience will be provided in district facilities; student and staff safety; the need for and/or availability of insurance coverage, as applicable; effect on other district course offerings and activities; and student interest. As the welfare of students is of paramount importance to the board, the district reserves the right to complete background checks on any individuals working directly with students on behalf of the sponsoring entity and to base decisions on entering or exiting such a partnership, in whole or in part, on the results thereof.

Determining the Course Credit that May Be Earned Through These Opportunities

The superintendent may develop procedures for review of the experience and the award of credit in accordance with board approved curriculum. The superintendent may award credit for the experience as deemed appropriate for district elective offerings based on meeting local standards for those offerings. In order for any alternative educational experience to be approved for credit in a state-required course, such experience must meet all applicable statutory, regulatory, and Kansas State Board of Education approved standards for award of such credit.

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State Reporting Requirements

The superintendent or the superintendent's designee shall make reports to the Kansas State Department of Education as required thereby. Such reports will include information regarding the alternative educational opportunities offered at each school, the names of sponsoring entities, the number of students participating in such opportunities, and credits earned.

Adopted: 09/12/2022

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Purpose

The district provides computer network and internet access for its students and employees. This service allows employees and students to share information, learn new concepts, research diverse subjects, and create and maintain school-based websites. The district has adopted the following Acceptable Use Guidelines to govern the conduct of those who elect to access the computer network or district Internet.

Acceptable Use Guidelines

Users shall adhere to the following guidelines of acceptable use:

- All use of the Internet will be in support of educational activities.
- Users will report misuse and breaches of network security.
- Users shall not access, delete, copy, modify, nor forge other users' e-mails, files, or data.
- Users shall not use other users' passwords nor disclose their password to others.
- Users shall not pursue unauthorized access, disruptive activities, nor other actions commonly referred to as "hacking," internally or externally to the district.
- Users shall not disclose confidential information about themselves or others.
- User shall not utilize unlicensed software.
- Users shall not access or permit access to pornography, obscene depictions, or other materials harmful to minors.
- Students shall not disable or attempt to disable Internet filtering software.
- USD 357 is not responsible for loss of data, service interruptions, the accuracy of information obtained via the Internet or unavailable technology time.

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Prohibitions

Although the district reserves the right to determine what use of the district network is appropriate, the following actions are specifically prohibited:

- Transferring copyrighted materials to or from any district network without the express consent of the owner of the copyright.
- Use of the network for creation, dissemination, or viewing of defamatory, factually inaccurate, abusive, obscene, profane, sexually oriented, threatening, harassing, or other material prohibited by law or district policy.
- Dissemination of personnel or student information via the network when such information is protected by law, including the Family and Educational Rights Act or Student Data Privacy Act.
- Utilization of the network to disseminate non-work-related material.
- Utilization of the network as a means for advertising or solicitation.

Monitoring

The school district reserves the right to monitor, without prior notice, any and all usage of the computer network and district Internet access, including, but not by way of limitation, e-mail transmissions, and receptions. Any information gathered during monitoring may be copied, reviewed, and stored. All such information files shall be and remain the property of the school district, and no user shall have any expectation of privacy regarding his/her use of the computer network or the district Internet.

Internet Safety

In compliance with the Children's Internet Protection Act (CIPA) and the Kansas Children's Internet Protection Act, the school district will implement filtering and or blocking software to restrict access to Internet sites containing child pornography, obscene depictions, or other materials harmful to

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minors. The school district, however, cannot and does not guarantee the effectiveness of filtering software. Any student who connects to such a site must immediately disconnect from the site and notify a teacher. An employee who accidentally connects to such a site must immediately disconnect from the site and notify a supervisor. If a user sees another user accessing inappropriate sites, he or she should notify a teacher or supervisor immediately. The school district administration reserves the right to prohibit access to any network or Internet it deems inappropriate or harmful. The school district shall instruct students regarding appropriate online behavior including cyberbullying.

Penalties for Improper Use

Access to the network and Internet is a privilege, not a right, and inappropriate use will result in the restriction or cancellation of the access. The district has the right to make the determination of what constitutes inappropriate use and use as an educational tool. Inappropriate use may lead to any disciplinary and/or legal action, up to and including suspension and/or expulsion of district students and suspension and/or termination of employees. Law enforcement shall be notified of inappropriate use which may constitute a violation of Federal or state law, and such use may result in criminal prosecution.

Adopted: 10/13/14

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IIBG Computer and Device Use (See ECH, JCDA and KBA) IIBG

Use of District Computers and Devices/Privacy Rights

District issued computer systems and electronic devices (including, but not limited to, Smartboards, iPads, iTouches, iPhones, eReaders, and eBooks) are for educational and professional use only. All information created by staff or stored thereon shall be considered district property and shall be subject to unannounced monitoring by district administrators. Unauthorized access to and/or unauthorized use of the district server or security system (including, but not limited to surveillance footage) is also prohibited. The district retains the right to discipline any student, up to and including expulsion, and any employee, up to and including termination, for violation of this policy.

Copyright

Software acquired by staff, using either district or personal funds, and installed on district computers or electronic devices must comply with copyright laws. Proof of purchase (copy or original) for software must be filed in the district office.

Installation

No software, including freeware and shareware, or other applications may be installed on any district computer or electronic device until cleared by the network administrator. The administrator will verify the compatibility of the software or application with existing software, hardware, and applications and prescribe installation and de-installation procedures. Program files must have the superintendent's approval to be installed on any district server or computer.

Hardware

Staff shall not install unapproved hardware on district computers or make changes to software settings that support district hardware.

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Audits

The administration may conduct periodic audits of software and applications installed on district equipment to verify legitimate use.

E-mail Privacy Rights

Employees and/or students shall have no expectation of privacy when using district e-mail or other official communication systems. Any e-mail or computer application or information in district computers, computer systems, or electronic devices is subject to monitoring by the administration.

Ownership of Employee Computer and Device Materials

Computer materials, devices, software, or applications created as part of any assigned district responsibility or classroom activity undertaken on school time shall be the property of the board.

Lost, Stolen, or Damaged Computers and/or Equipment

Students and staff members shall be responsible for reimbursing the district for replacement of or repair to district issued computers or electronic devices on the second incident that occurs within a 5-year time period to any devices which are lost, stolen, or damaged while in the students' or staff members' possession.

Adopted: 7/14/14

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IIBGA **Children's Internet Protection Act** **IIBGA**

The district shall implement and enforce an internet safety plan meeting the requirements of both the federal and the Kansas Children's Internet Protection Acts (CIPA). The superintendent shall develop a plan to implement the Children's Internet Protection Acts.

Such plan shall include technology protection measures and such other measures as deemed appropriate to address the following issues:

(1) Access by minors to inappropriate matter on the Internet and World Wide Web,

(2) The safety and security of minors when using electronic mail, chat rooms, and other forms of direct electronic communications,

(3) Unauthorized access, including so-called "hacking," and other unlawful activities by minors online;

(4) Unauthorized disclosure, use, and dissemination of personal information regarding minors; and

(5) Measures designed to restrict minors' access to materials that may be harmful to them.

For the purposes of this policy, "minor" shall be defined to mean any student who is under 18 years of age. The board charges the superintendent to develop the CIPA implementing plan so that all of the protections provided by this policy and the corresponding plan may be afforded to all district students, regardless of their age.

If the district is providing public access to any computer, the CIPA plan shall also implement and enforce technology protection measures to ensure no minor has access to visual depictions that are child pornography, harmful to minors, or obscene. This plan shall be on file with the board clerk and in each school office with Internet access, and copies shall be made available upon request. The superintendent shall ensure compliance with CIPA by completing Federal Communication Commission forms as required.

Adopted: 09/09/2013

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Application

Students may apply for permission to enroll in an online course for credit. Applications for the next academic year shall be submitted to the principal no later than April 20. The student and the student's parents shall be informed of the administrator's decision in writing no later than June 1.

Students may enroll in an online course as an alternative to any course offered by the high school.

Guidelines

The following guidelines shall be used by the administration:

1.Only administration approved courses shall be posted on student transcripts.

2.Approval of any course shall be based upon the course content and rigor, its length and scope, its method of assessing knowledge acquired by the student, the qualifications of the instructor, and other appropriate factors.

3. Enrollment in an online course will be allowed only if an appropriately certified staff member is available and willing to supervise the student's participation in the course.

4. Suspended or expelled students may also apply for permission to enroll in online course work.

Other Regulations or Guidelines

Approval of online coursework shall be based on the requirements of Kansas law, Kansas State Department of Education regulations, and board credit requirements and/or guidelines in effect at the time the student request is made.

Adopted: 09/12/2022

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Employees are encouraged to use district electronic mail and other district technology resources to promote student learning and communication with parents of students and education-related entities. If those resources are used, they shall be used for purposes directly related to work-related activities. Technology-based materials, activities, and communication tools shall be appropriate for and within the range of the knowledge, understanding, age, and maturity of students with whom they are used.

District employees, including, but not limited to, classroom teachers and extracurricular activity coaches and sponsors, may set up blogs and other social networking accounts using district technological resources and following district policy and guidelines to promote communications with students, parents, and the community concerning school-related activities and for the purpose of supplementing classroom instruction. Social networking sites and other online communication options offering instructional benefits may be used for the purpose of supplementing classroom instruction and to promote communications with students and parents concerning school-related activities.

In order for district employees and activity sponsors to utilize a social networking site for instructional, administrative, or other work-related communication purposes, they shall comply with the following:

1. They shall request prior permission from the superintendent or the superintendent's designee.
2. If permission is granted, staff members will set up the site following any district guidelines developed by the superintendent and approved by the board. If the

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3. expenditure of district funds is required to complete the set-up or maintenance of the site, the requesting staff member shall present an itemized summary of such costs to the superintendent. Superintendent approval shall be required prior to the expenditure of district funds for such purpose.
4. Guidelines shall specify whether access to the site must be given to district administrators and technology staff.
5. If written parental consent is not otherwise granted through acceptable use policy forms provided by the district, staff shall notify parents of the site and obtain written permission for students to become "friends" of the site prior to the students being granted access. This permission shall be kept on file at the school as determined by the principal.
6. Once the site has been created, the sponsoring staff member is responsible for the following:
    a. Monitoring and managing the site to promote safe and acceptable use and compliance with district policies.
    b. Observing confidentiality restrictions concerning release of personally identifiable student information under state and federal law.

Staff members are discouraged from creating personal social networking accounts to which they invite current or future students to be friends. Employees taking such action do so at their own risk. All employees shall be subject to disciplinary action if their conduct relating to use of technology or online resources violates this policy or other applicable board policy,

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statutory, or regulatory provisions governing employee conduct or the protection of student record information; or if it impairs the staff member's job performance or effectiveness in the work setting. District staff shall endeavor to protect the health, safety, and emotional well-being of students and confidentiality of student record information both in the school setting and in their online actions. Conduct in violation of this policy, including, but not limited to, conduct relating to the use of technology, social networking, or online resources, may form the basis for disciplinary action up to and including termination from employment.

Adopted: 09/09/2013

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IJ Evaluation of Instructional Program **IJ**
(See IC, ICAA, ID & II)

The superintendent may develop guidelines to evaluate the instructional program. This evaluation may be part of the district's school improvement efforts.

The superintendent may establish special curriculum committees to study the district's instructional program on a regular schedule. The superintendent may require reports from these committees which shall include the committee's recommendations for improvement, modification or elimination of any part of the instructional program. The superintendent may submit a comprehensive report from the committees to the board.

Adopted: 08/10/2020

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IKA **Financial Literacy** (See ID) **IKA**

The board supports the goal of providing district students with sufficient knowledge of economic systems to make informed, financial choices. In furtherance of this goal, the board directs the superintendent to develop and implement a plan to incorporate outcome-based personal financial literacy education into the district's instructional program.

The superintendent shall document district efforts to provide financial literacy education opportunities for district students and shall provide, upon request, feedback or information to the Kansas State Department of Education on such efforts.

Adopted: 10/12/2015

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IKB Controversial Issues (See GBU, IA and IFBH) **IKB**

When a controversial subject arises in the classroom, teachers may use the opportunity to teach about the controversy.

Teachers shall ensure that various positions concerning any controversial subject are presented and that students have the opportunity to freely discuss the topic.

Adopted: 09/09/2013

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Opt-Out Procedure and Form

Parents or guardians (or a student over eighteen years of age) who do not want the student involved in all or some portion of the district's Human Sexuality and AIDS education classes shall be provided a written copy of the goals and objectives for the student's appropriate Human Sexuality and AIDS class. Following review of the curriculum goals the parent or guardian must complete the opt-out form and state the portion(s) of the curriculum in which the student is not to be involved.

Opt-Out Form

Parents or guardians (or students eighteen years of age or older) may obtain the opt-out request form from the principal, completing and signing the form and returning the form to the principal. The signed form will be kept on file in the principal's office.

The building principal shall receive a copy of the signed form so the named student shall be excused from all or a portion of the Human Sexuality and AIDS classes. Arrangements shall also be made for class reassignment of the student during the opt-out period.

Annual Request Required

Opt-out requests shall be required annually and are valid only for the school year in which they are submitted.

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Notice of Availability

Public notice of the availability of the Human Sexuality and AIDS curriculum goals and objectives shall be made by means of distribution at enrollment.

Adopted: 09/09/2013

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IKD Religion in Curricular or School Sponsored Activities IKD
(See AEA, IF, IKDA and KN)

No religious belief or non-belief shall be promoted or disparaged by the district or its employees. Students and staff should be tolerant of each other's religious views. Students and staff members may be excused from participating in practices contrary to their religious beliefs unless there are clear educational issues of overriding concern which prevent it.

Teaching About Religion

Teachers may teach about religion, religious literature and history but are prohibited from promoting, expounding upon, criticizing or ridiculing a religion. Religious texts may be used to teach about religion, but the use of religious texts is prohibited if used to promote a particular religious doctrine.

Religion in the Curriculum and School Activities

In compliance with this policy, religious themes may be presented in the curriculum and as part of school activities. Music, art, literature and drama having a religious theme or basis are permitted as part of the curriculum or as part of a school activity if they are presented in a balanced and objective manner and are a traditional part of the cultural and religious tradition of a particular holiday or field of study. The emphasis on religious themes in the arts, literature and history should be only as extensive as necessary for a balanced and thorough study of these areas. These studies should never foster any particular religious tenets or demean any religious beliefs or non-beliefs.

Religious Symbols in the Classroom

Temporary display of religious symbols is permitted as part of the curriculum. The temporary use of religious symbols such as a cross, menorah,

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crescent, Star of David, crèche, symbols of native American religions or other symbols that are a part of a religious holiday are permitted as a teaching aid if they are displayed as an example of a holiday's cultural and religious heritage.

Religious Holidays

Holidays which have a religious and a secular basis may be observed. School vacations shall have secular designations, e.g., Winter Vacation, Spring Break.

Graduation and Other Ceremonies

School ceremonies shall be secular in nature. While recognizing the significance of tradition, the board requires that graduation exercises and dedication ceremonies be secular in nature.

Adopted: 09/09/2013

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IKDA Religious Objections to Activities (See IKD) IKDA

A parent or guardian (or a student eighteen years of age or older) may request that the student be excused from participating in activities for religious reasons. The request may be granted, or denied, or partially granted and partially denied.

This policy shall not be interpreted to allow parents to prevent the dissemination of information which parents find religiously objectionable. Rather, this policy only extends to actual participation by their child in an activity, the performance of which is contrary to the child's religious teachings.

The principal shall review the request and determine whether the request should be granted or denied. The principal shall notify the parents of the decision within a reasonable amount of time after the request is submitted.

If the parents are dissatisfied with the principal's decision, they may appeal in writing to the superintendent.

If the opt-out request is granted, students who opt-out of activities for religious reasons may still be required to view the activity, to learn the subject matter of the activity, or to discuss the activity. The student may be reassigned during the activity or given alternative class assignments.

Opt-out requests must be submitted annually and are valid only for the school year in which they are submitted.

Adopted: 09/09/2013

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IKE Assemblies IKE

Each building principal may schedule assemblies as needed.

Adopted: 09/09/2013

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IKI Lesson Plans **IKI**

Each teacher shall develop, maintain and follow lesson plans which conform to the approved curriculum, the district's educational goals and the expected student learning outcomes. Principals shall establish methods to regularly review teacher lesson plans.

Adopted: 09/09/2013

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ING Animals and Plants in the School ING

With the prior approval of the principal, animals or plants may be brought to school for instructional purposes.

If someone is injured by an animal or comes into contact with a toxic plant, the incident shall be immediately reported to the administration by the supervising teacher. The principal shall notify the appropriate persons.

Service Animals in the Schools

Service animals are permitted in the schools and on school property in accordance with federal law. In order for the district to accommodate the health and safety of our students and staff while maintaining our educational services, programs, and activities, employees and students are encouraged to notify their building administrator prior to bringing a service animal to school for the first time. Patrons or individuals attending functions or having short term business on school property are not required to provide advance notice to school staff in order to be accompanied by a service animal on school property.

Access to school buildings will not be denied to a service animal as long as the animal is individually trained and required to do work or perform tasks for the benefit of an individual with a disability. Such work or tasks must be directly related to the individual's disability. District staff shall not be responsible to provide care or control of a service animal, and any service animal which is out of control or is not housebroken may be excluded by district staff.

For the purpose of this policy, "service animals" is not deemed to include animals provided by the school for instructional purposes or for therapy or comfort animals.

Adopted: 09/12/2022

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Table of Contents

Section J - Students

Goals and Objectives **JA**

Attendance Records **JB**

Enrollment **JBC**

Resident Students

Nonresident Students

Enrollment Restriction

Enrollment Procedures

Part-Time Students

Identification of Students

Enrollment Information

Assignment to a School Building, Grade Level, or Classes

Transferring Credit

Transfers from Non-Accredited Schools

Homeless Students **JBCA**

Coordinator

Foster Care Students **JBCB**

Point of Contact

Mobile Crisis Helpline

Absences and Excuses **JBD**

Excused/Unexcused Absences

Significant Part of a School Day

Make-Up Work

Truancy **JBE**

Waiver of Compulsory Attendance Requirements

Involvement of Law Enforcement

Reporting to Parents

Dual Enrollment Students

Release of a Student During the School Day **JBH**

Searches of Property **JCAB**

Search of Lockers

Searches of Property

Use of Trained Dogs in Conducting Sweeps

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Searches of Students **JCABB**

Interrogation and Investigations **JCAC**

Coordination with Law Enforcement

Notification of Investigations Conducted by Law Enforcement Officers

Child Abuse and Identity Investigations Conducted by Law Enforcement Officers

Law Enforcement Initiated Investigations at School

Taking Students Into Custody

Disturbance of School Environment

Definition

Student Conduct **JCDA**

Tobacco-Free School Grounds for Students **JCDAA**

Dress Code **JCDB**

Weapons **JCDBB**

Weapons and Destructive Devices

Penalties for Weapon Violations

Complaints of Discrimination **JCE**

Complaints About Discrimination

Informal Procedures

Formal Complaint Procedures

Formal Complaint Appeal

Demonstrations **JCEC**

Corporal Punishment **JDA**

Detention **JDB**

Probation **JDC**

Suspension and Expulsion Procedures **JDD**

Reasons for Suspension or Expulsion

Short-term Suspension

Long-Term Suspension or Expulsion

Rules Which Apply in all Cases When a Student May be Suspended or Expelled

Student Rights During a Long-Term Suspension/Expulsion Hearing

Appeal to the Board

Drug-Free Schools **JDDA**

Student Conduct

Student Misuse of Medication **JDDAA**

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Reporting to Law Enforcement **JDDB**

Bullying **JDDC**

Academic Achievement **JF**

Reporting

Report Cards

Peer Grading of Assignments **JFA**

Peer Grading Prohibited

Limited Peer Grading Allowed:

Promotion and Retention **JFB**

Graduation Exercises **JFC**

Early Graduation **JFCA**

Student Insurance Program **JGA**

Health Assessments and Physicals **JGC**

Local Health and Wellness **JGCA**

Health and Wellness Committee

Recordkeeping

Inoculations **JGCB**

Automated External Defibrillators **JGCBA**

Communicable Diseases **JGCC**

Health Screenings **JGCD**

Vision Screenings

Hearing Screening

Dental Screenings

Selected Screenings

Student Psychological Services **JGD**

Sexual Harassment **JGEC**

Response to Harassment Complaints

Definitions

Supportive Measures

The Formal Complaint

Formal Complaint Notice Requirements

Formal Complaint Investigation Procedures

Formal Complaint Investigation Report

Decision-Maker's Determination

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Appeals

Informal Resolution Process

Racial and Disability Harassment: Students **JGECA**

Supervision of Students **JGFB**

Student Transportation **JGFF**

Use of Vehicles and Bicycles

Walkers

Notice

Student Accidents and Health Emergencies **JGFG**

Emergency Care

Records

Administration of Emergency Opioid Antagonist **JGFGA**

Training

Procurement of the Product

Storage

Use of the Product

Follow-up

Protection from Liability

Stock Supply of Emergency Medicine **JGFGAA**

Supervision of Medications **JGFGB**

Student Self-Administration of Medications **JGFGBA**

Student Eligibility

Authorization Required

Employee Immunity

Waiver of Liability

Accommodating Students with Diabetes **JGFGBB**

Student Eligibility

Employee Immunity

Transportation **JGG**

Use of Surveillance Cameras **JGGA**

School Food Service Programs **JGH**

Free or Reduced Price Meals

Contracts With Other Agencies

Vending Machines and Other Automated Play Machines **JGHB**

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Student Activities **JH**

Eligibility for Activities

Participation in Kansas State High School Activity Association Activities

Adding or Eliminating Activities

Activity Fund Management

Student Organizations **JHC**

Student Clubs

Non-School Sponsored Student Clubs

Student Government

Student Publications **JHCA**

School-Sponsored Student Publications

Non-School Sponsored Student Publications

Advertisements

Gang Intimidation **JHCAA**

Community Activities **JI**

Employment of Students **JJ**

In-School Employment

Outside Employment

Vocational or Other Work Experience

Solicitations **JK**

Gifts **JL**

Student Gifts to Staff Members

Faculty Gifts to Students

Student Organization Gifts to the School

Contests for Students **JM**

Awards **JN**

Exceptional Students **JQ**

Concurrent Enrollment

Temporarily Disabled Students **JQA**

Alternative Arrangements for Nontraditional Students **JQE**

Adult Students **JQI**

Foreign Exchange Student **JQKA**

Hearing Procedures for Exceptional Students **JQL**

Class-size/Caseload Limits for Exceptional Students **JQLA**

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Student Records **JR**

Types of Records **JRA**

Release of Student Records **JRB**

Directory Information

Forwarding Pupil Records

Disposition of Records **JRC**

Hearing Request **JRD**

Student Fees and Charges **JS**

Credit Card Payments

Fee Schedules

Debt Collection

Forwarding Pupil Records

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JA Goals and Objectives (See BDA, CM, GAA, and JCDA) JA

These student policies are designed to prevent misunderstanding by students about their rights and responsibilities. The ideas and recommendations of students shall be considered when adopting policies, rules and regulations governing the conduct of students and their rights and responsibilities.

All student handbooks shall be consistent with board policy, approved by the board and adopted, by reference, as a part of these policies and regulations.

Adopted: 09/12/2022

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JB Attendance Records (See JBC, JBD, and JBE) **JB**

Daily attendance records shall be maintained for each student in each school. The primary responsibility for recording attendance shall be assigned to teachers using forms prescribed by the superintendent. A cumulative attendance record for each student shall be maintained.

The superintendent shall include attendance data in an annual report to the board. Attendance problems shall be reported to the board as necessary.

Adopted: 04/28/2016

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Resident Students

A "resident student" is any child who has attained the age of eligibility for school attendance and lives with a parent or a person acting as a parent who is a resident of the district. Children who are "homeless" as defined by Kansas law and who are located in the district will be admitted as resident students. For purposes of this policy, "parent" means the natural parents, adoptive parents, step-parents, and foster parents. For purposes of this policy, "person acting as a parent" means a guardian or conservator, a person liable by law to care for or support the child, a person who has actual care and control of the child and provides a major portion of support, or a person who has actual care and control of the child with written consent of a person who has legal custody of the child.

Non-resident Students

Details concerning the enrollment and continued enrollment process for non-resident students may be found in board policy JBCC.

Enrollment Restriction

Unless approved in advance by the board, no student, regardless of residency, who has been suspended or expelled from another school district will be admitted to the district until the period of such suspension or expulsion has expired.

Enrollment Procedures

The superintendent shall establish orderly procedures for enrolling all students, including pre-enrollment, changes in enrollment, normal enrollment times, and communication to parents and to the public.

Part-Time Students

The board allows any child to enroll part-time in the school district to allow the student to attend any courses, programs, or services offered by the school if the child:

- Is also enrolled in a nonaccredited private elementary or secondary school or in any other private, denominational, or parochial school as required by law;

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- requests to enroll part-time in the school district; and
- meets the age of eligibility requirements for school attendance.

District administrators shall make a good faith attempt to accommodate scheduling requests of students enrolling the school district in these situations but shall not be required to make adjustments to accommodate every such request.

Part-time students, other than those specified previously in this policy, may enroll with the administration's permission if they complete all paperwork in a timely fashion and are in attendance no later than the September 20 count period. Such part-time students may be admitted only to the extent that staff, facilities, equipment, and supplies are available, and the students follow the district's student conduct policies and rules.

Identification of Students

All students enrolling in the district for the first time shall provide required proof of identity. Students enrolling in kindergarten or first grade shall provide a certified copy of their birth certificate, a certified copy of the court order placing the child in the custody of the Secretary of the Department for Children and Families, or other documentation which the board determines to be satisfactory. Students enrolling in grades 2-12 shall provide a certified transcript, similar pupil records or data, or other documentary evidence the board deems satisfactory.

The above requirements are not to serve as barriers to immediate enrollment of students designated as homeless or foster children as required by Every Student Succeeds Act (ESSA) and the McKinney-Vento Act as amended by ESSA. The district shall work with the Department for Children and Families, the school last attended, or other relevant agencies to obtain necessary enrollment documentation.

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If proper proof of identity is not provided within 30 days of enrolling, the superintendent shall notify local law enforcement officials as required by law and shall not notify any person claiming custody of the child.

Enrollment Information

The enrollment documentation shall include a student's permanent record card with a student's legal name as it appears on the birth certificate or as changed
by a court order and the name, address, and telephone number of the lawful custodian. The records shall also provide proper proof of identity.

Assignment to a School Building, Grade Level, or Classes

Unless otherwise provided herein, the superintendent shall assign students to the appropriate building. Any student desiring to attend a school outside the attendance area in which the student resides may do so only with the prior written permission of the superintendent.

If required by law, students placed in foster care or students who are homeless may be educated in their "school of origin" instead of the building corresponding to the assigned attendance area. (For the definition of "school of origin", see regulations for JBCA and JBCB.)

Assignment to a particular grade level or particular classes shall be determined by the building principal based on the educational abilities of the student. If the parents disagree, the principal's decision may be appealed to the superintendent. If the parents are still dissatisfied with the assignment, they may appeal in writing to the board.

Transferring Credit

In the middle school and high school, full faith and credit shall be given to units earned in other accredited schools at the time the student enrolls in the district, unless the principal determines there is valid reason for not doing so. For online credit approval procedures after enrollment, see board policy IIBGB.

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Transfers from Non-Accredited Schools

Students transferring from non-accredited schools will be placed by the principal. Initial placement will be made by the principal after consultation with parents or guardians and guidance personnel. Final placement shall be made by the principal based on the student's documented past educational experiences and performance on tests administered to determine grade level placement.

Adopted: 10/09/2023

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JBCA Homeless Students (See EDAA and JBC) **JBCA**

The district, in accordance with state and federal law and the Kansas state plan, will ensure that homeless children in the school district have access to a free and appropriate public education. Homeless students are individuals who lack a fixed, regular and adequate nighttime residence. For the purposes of this policy, a student awaiting foster care placement shall not be considered homeless.

Coordinator

The board shall designate a homeless coordinator for the district.

Adopted: 03/13/2017

Note: The reader is encouraged to review regulations and forms for related information.

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JBCB Foster Care Students (See EDAA, JBC, and JBCA) **JBCB**

The district, in accordance with state and federal law and the Kansas state plan, will ensure students placed in foster care within the school district have access to a public education in a stable educational environment. For the purposes of this policy and its applicable regulations, "foster care" means 24-hour substitute care for children placed away from their parents and for whom a child welfare agency has placement and care duties.

Point of Contact

The board shall designate an employee to serve as a point of contact for child welfare agencies on behalf of the district.

Mobile Crisis Helpline

Crisis support for Kansas families and children to resolve an emotional, psychiatric, or behavioral health crisis is available through the Department of Children and Families Mobile Crisis Helpline, 1-833-441-2240, including:

- Problem solving to resolve behavioral health crisis;
- Referral to community resources or recommendation to engage in stabilization services;
- In-person support via mobile crisis response; and
- Contacting mobile crisis response unit to assist in emergency situations.

Services are available to all Kansans 20 years or younger including anyone in foster care or formerly in foster care.

Note: The reader is encouraged to review regulations and forms for related information.

Adopted: 02/14/2022

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(See JBC, JBCA, JBCB, and JQKA)

Kansas law requires the board to allow nonresident students to enroll in and attend the schools of the district if the board's capacity determination finds there are open seats for such students. In order to determine the district's capacity to accept nonresident students at each grade level in each district school, the board has adopted this policy.

Details concerning the open enrollment and continued enrollment processes for nonresident students may be found in this policy, while general processes on enrollment documentation, assignment to buildings and classes, etc., may be found in board policy JBC.

Definitions

For the purposes of this policy, the following definitions apply.

"Homeless child" means a child who lacks a fixed, regular and adequate nighttime residence and whose primary nighttime residence is:

A. A supervised publicly or privately-operated shelter designed to provide temporary living accommodations, including welfare hotels, congregate shelters and transitional housing for the mentally ill;

B. an institution that provides a temporary residence for individuals intended to be institutionalized; or

C. a public or private place not designed for, or ordinarily used as, a regular sleeping accommodation for humans.

"Nonresident student" means a student who is enrolled and in attendance at or seeking to enroll and attend a school located in a district where such student is not a resident.

"Parent" means and includes natural parents, adoptive parents, stepparents, and foster parents.

"Person acting as parent" means:

A. A guardian or conservator; or

B. a person, other than a parent, who:

   i. Is liable by law to maintain, care for or support the child;

   ii. has actual care and control of the child and is contributing the major portion of the cost of support of the child;

   iii. has actual care and control of the child with the written consent of a person who has legal custody of the child; or

   iv. has been granted custody of the child by a court of competent jurisdiction.

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"Receiving school district" means a school district of nonresidence of a student who attends school in such school district.

"Sibling" means a brother or sister of the whole or half blood, adoptive brother or sister, a stepbrother or stepsister or a foster brother or foster sister.

Determining Capacity for Nonresident Enrollment

The superintendent or designee has the responsibility for studying capacity in each school of the school district and at each grade level within each school and for making recommendations to the board regarding the district's capacity to accept nonresident students. To make recommendations to the board to assist with determining capacity, the superintendent or the superintendent's designee(s) shall do the following.

The superintendent or designee shall develop recommendations on capacity and classroom student-to-teacher ratios in each grade level in each school serving kindergarten students and students in grades one through eight. Such recommendations may be based on, but not be limited to, the following factors:

- Present classroom student-teacher ratios in each grade level in each school;
- projected enrollment shifts based on the resident student population, which may include a percentage adjustment for anticipated growth or decline based on documented enrollment trends; and
- maximum capacity of the classroom and associated learning, activity, and common area spaces.

The superintendent or designee shall develop recommendations on capacity and student-to-teacher ratios for each school building or program serving students in grades nine through twelve. Such recommendations may be based on, but not be limited to, the following factors:

- Present building or program student-teacher ratios;
- projected enrollment shifts based on the resident student population, which may include a percentage adjustment for anticipated growth or decline based on documented enrollment trends;

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- anticipated demand for particular courses or programming; and
- maximum capacity of the classroom and associated learning, activity, and common area spaces.

On or before May 1 of each year, the superintendent shall present the recommendations concerning capacity and student-to-teacher ratios to the board for adoption or modification, and the board shall determine, for each grade level in each school building of the school district for the next succeeding school year, the following:

- Capacity based on the study conducted by the superintendent or the superintendent's designee;
- the number of students expected to attend school in the school district; and
- the number of open seats available to nonresidents at each grade, building, or program level.

On or before June 1 of each year, the district shall publish the number of open seats available to nonresident students in each grade level for each school building of the district for the next succeeding school year on the school district's website.

From June 1 through June 30, district administration shall accept applications from nonresident students.

If the number of applications for a grade level in a school building is less than the number of available seats for that grade level in the school building, the nonresident students shall be accepted for enrollment and attendance at the school district, except as provided below for nonresident students regarding continued enrollment.

If the number of applications for a grade level in a school building is greater than the number of available seats for the grade level in the school building, district administration shall randomly select nonresident students using a confidential lottery process. This process shall be completed on or before July 15 of each year.

The district shall provide to the parent or person acting as a parent of a nonresident student who was not accepted for or denied enrollment at such school district the reason for the nonacceptance or denial and an explanation of the nonresident student selection process.

Priority in Filling Open Seats

Subject to having capacity to enroll nonresident students, the district shall give priority in enrollment to the following nonresident students, who shall receive open seats without necessity of being selected through the open-seat lottery:

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- Any sibling of a nonresident student who was accepted to enroll in and attend school in the district, with priority given when the nonresident student is first accepted and, if necessary, at any other time the district considers transfer applications; and
- any nonresident student who is a military student as defined in K.S.A. 72-5139, with priority given when the student is first accepted and, if necessary, at any other time the district considers transfer applications.

Regardless of capacity determinations, the following categories of students shall be allowed to enroll as if resident students:

- any child who is in the custody of the Department for Children and Families and who is living in the home of a nonresident student who transfers to the district;
- any nonresident student who has a parent or person acting as parent employed by the district, while the parent or person acting as a parent remains employed by the district; or
- any child who is experiencing homelessness shall be permitted to enroll in and attend the school district of origin or the school district of residence.

If one of these exceptions no longer applies to the student, the student's enrollment status would be subject to review under the terms for continued enrollment under this policy.

Prohibitions Regarding Open Enrollment Provisions of this Policy

The district shall not:

- Charge tuition or fees to any nonresident student who transfers to the district pursuant to this policy, except fees that are otherwise charged to every student enrolled in and attending school in the district; or
- accept or deny a nonresident student transfer based on ethnicity; national origin; gender; income level; disabling condition; proficiency in the English language; or measure of achievement, aptitude, or athletic ability.

Except for a child in the custody of the Department for Children and Families or a child who is experiencing homelessness, a nonresident student shall not transfer more than once per school year to one or more receiving school districts pursuant to the provisions of this policy or authorizing Kansas law.

Transportation of Nonresident Students

The district, by virtue of being a receiving school district of a nonresident student, shall not be required to provide transportation to nonresident students unless otherwise required to do so by state

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and/or federal law, as a related service through a student's individualized education program, or as an accommodation pursuant to the student's Section 504 plan. If space is available on district transportation vehicles, the district may assign nonresident students an in-district bus stop to and from which transportation may be provided by the district for nonresident students. The district shall ensure that transportation for nonresident homeless students is provided comparably to that of housed students.

KSHSAA Eligibility

Nothing in this policy or state law shall exempt a nonresident student who transfers into the district from the requirements of the Kansas State High School Activities Association ("KSHSAA") regarding eligibility to participate in KSHSAA activities.

Information Share with the Kansas State Department of Education

The superintendent shall submit, or have submitted, to the Kansas State Department of Education this policy, the number of nonresident student transfers approved and denied in each grade level, and whether the denials were based on capacity or in accordance with the policy's terms, as required.

Nonresident Student Continued Enrollment

A nonresident student who has been accepted for enrollment and attendance at a district school shall be permitted to continue enrollment and attendance in the district until such student graduates from high school, reaches the age of 21 (if the student is a student with an exceptionality, not solely eligible for gifted services under an individualized education program), or receives a G.E.D., unless such student is no longer deemed by district administration to be in good standing.

Except as otherwise specified herein, nonresident students who have previously been accepted for enrollment by the school district will be allowed to continue enrolling in the district as specified above. The district will not require parents to resubmit a new application each school year and will advance the previous application of an enrolled student amending only the grade placement of the student unless the district provides notification to the parent, person acting as a parent, or student that enrollment is not going to be continued for the upcoming school year for reasons specified as follows.

Regardless of capacity to accept nonresident students at a nonresident student's grade level or in the student's designated school or program, an individual student may be denied continued enrollment for not being in good standing. Nonresident students admitted to the district shall be evaluated each spring by district administration to determine standing for continued enrollment.

Students may be denied continued enrollment for the next school year based on the results of these evaluations. However, if the student has a disability, the student's ability to meet these expectations shall be considered prior to denying continued enrollment in the district. Similarly, administration shall

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consider the adverse impact of homelessness on a student's attendance and any resulting suspensions or expulsions before making a determination on the continued enrollment of a student who is homeless. As part of this reflection, administration shall consider the obstacles a homeless student faces to arrive at school on time or each day due to housing instability, lack of transportation, or lack of other basic resources that can hinder consistent attendance.

A student meeting one or more of the following criteria shall automatically be deemed not in good standing and may be denied continued enrollment based solely thereon.

- The nonresident student failed to maintain a 90% attendance rate in the last school year, excluding excused absences under board policy JBD and/or any relevant student handbook language;
- the nonresident student or the student's parent or person acting as a parent provided false or fraudulent information in the application process;
- the nonresident student is not a resident of Kansas;
- the student is currently under a period of suspension or expulsion from any Kansas school district, and such suspension or expulsion will not expire until after the next school year has begun.
- the student has had three or more out-of-school suspensions in the current school year, excluding suspensions a manifestation determination determined to be a manifestation of the student's disability or a failure on the part of school staff to implement an individualized education program, Section 504 plan, or behavior intervention plan; or
- the student has been given a long-term suspension or expulsion by the district in the current school year.

Parents shall be informed of any administrative decision not to continue enrollment of a nonresident student no later than June 1st.

Adopted: 10/09/2023

KASB Recommendation – 6/23; 10/23

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JBD Absences and Excuses (See AEB, IHEA, JBE and JDD) JBD

When a student is absent from school an attempt shall be made to contact the parent or guardian to determine the reason for the absence. The principal has been designated to determine the acceptability and validity of excuses presented by the parent(s) or the student.

Procedures for notifying parents on the day of a student's absence shall be published in the student handbook.

Excused/Unexcused Absences

Excused Absences

The definition of "excused absence" includes but is not limited to:

- **Personal Illness:** Excessive illnesses may require a physician's statement and may not be excused.
- **Health-related treatment, examination, or recuperation:** Students will be expected to meet assignment deadlines and communicate with teachers prior to the absence.
- **Serious illness or death in the immediate family;**
- **Obligatory religious observances;**
- **Participation in a district-approved or school-sponsored activities or course:** Students will be expected to make reasonable efforts to meet assignment deadlines and communicate with teachers prior to the absence.
- **Absences prearranged by parents and approved by the principal;**

  Students are asked to make reasonable efforts to complete work ahead of time.
- **Students of active duty military personnel**; may have additional excused absences at the discretion of the principal for visitations relative to leave or deployment.

All absences which do not fit into one of the above categories would be considered an unexcused absence. A student serving a period of suspension or expulsion from the district shall not be considered inexcusably absent.

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Unexcused Absences

- It is impossible to list all of the possible reasons for receiving an unexcused absence. Examples of unexcused absences are oversleeping, shopping, pictures, haircuts, and leaving school without permission. The administration will determine if an absence is unexcused. **It is**

Significant Part of a School Day

The board defines a "significant part of a school day" as an absence of one hour or more.

Make-Up Work

It is the student's responsibility to obtain make-up assignments from teachers following an excused or unexcused absence.

Adopted: 03/09/2015

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Unless reporting would violate the terms of any memorandum of understanding between the district and the authority to which reports would be made, the building principal shall report students who are inexcusably absent from school to the appropriate authority.

Truancy is defined as any three consecutive unexcused absences, any five unexcused absences in a semester or seven unexcused absences in a school year, whichever comes first. Truancy shall not apply to students who have attained a high school diploma, a general educational development credential, or a high school equivalency. Exceptions also exist for students attending the Kansas academy of mathematics and science and for students who are part of a recognized church or religious denomination objecting to a regular public high school education under circumstances specified in state law.

For truancy purposes, being enrolled and continuously attending a public school; a private, denominational, or parochial school taught by a competent instructor for a period of time which is substantially equivalent to the period of time public school is maintained in the school district in which the private, denominational, or parochial school is located; or a combination of attendance in both a public school and a private, denominational, or parochial school may satisfy compulsory attendance requirements. School year means the period from July 1 to June 30. Students who are absent without a valid excuse for a significant part of any school day shall be given an unexcused absence for truancy accounting purposes and shall be considered truant.

Prior to reporting to either the Department for Children and Families (if the student is under 13) or the county or district attorney (if the student is 13 or more years of age but less than 18 years of age), a letter shall be sent to the student's parent(s) or guardian notifying them that the student's failure to attend school without a valid excuse shall result in the student being reported truant.

Waiver of Compulsory Attendance Requirements

Students 16 or 17 years of age may be exempt from compulsory attendance regulations if:

- The student is regularly enrolled in and attending a program recognized by the board as an approved alternative educational program;

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- the parent(s) or person acting as parent provides written consent to allow the student to be exempt from the compulsory attendance requirement and the student and the student's parent or person acting as parent attend the counseling session required by law and signs the appropriate consent and waiver form;
- the student is not subject to truancy law in accordance with law or this policy;
- the child is regularly enrolled and continuously attending school as required by law and is concurrently enrolled in a postsecondary educational institution; or
- the student is exempt from compulsory attendance requirements pursuant to a court order.

Involvement of Law Enforcement

Law enforcement officers may return truant children to the school where the child is enrolled, to the child's parent or guardian or to another location designated by the board to address truancy issues.

Reporting to Parents

If a truant child is returned to school by a law enforcement official, the principal shall notify the parent or guardian.

Dual Enrollment Students

Eligible students who are enrolled in a board-approved dual enrollment program shall not be considered truant for the hours during the school day they attend classes at a Regent's university, community college, technical college, vocational educational school.

Adopted: 01/09/2023

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JBE Truancy

WAIVER OF COMPULSORY ATTENDANCE FORM

I, (name of parent(s) or legal guardian) , understand that pursuant to Kansas law, (name of student) is required to attend school until he/she receives a high school diploma or General Educational Development (GED) credential or reaches the age of 18, whichever occurs first.

Pursuant to K.S.A. 72-3120, as amended, Unified School District No. 357 encourages (name of student) to remain in school or to pursue an education alternative.

The school has informed me that the academic skills listed below have not been achieved by (name of student):

[List skills that have not been achieved.]

Based on information attached, I understand the difference in future earning power between a high school graduate and a high school dropout is.

The school has indicated to me and to my child that (name of student) is encouraged to attend one of the following area alternative education programs:

[List available alternative educational programs.]

The undersigned, hereby give(s) written consent to allow (name of student), who is **[choose one]** ___16 ___17 years of age, to be exempt from the Kansas compulsory attendance requirement and state I/we have attended the final counseling session conducted by Unified School District No. 357 in which the aforementioned information was presented to us.

Signed:_____ Date: _____
Parent or Legal Guardian

Signed:_____ Date:_____
Student

Adopted: 09/09/2024

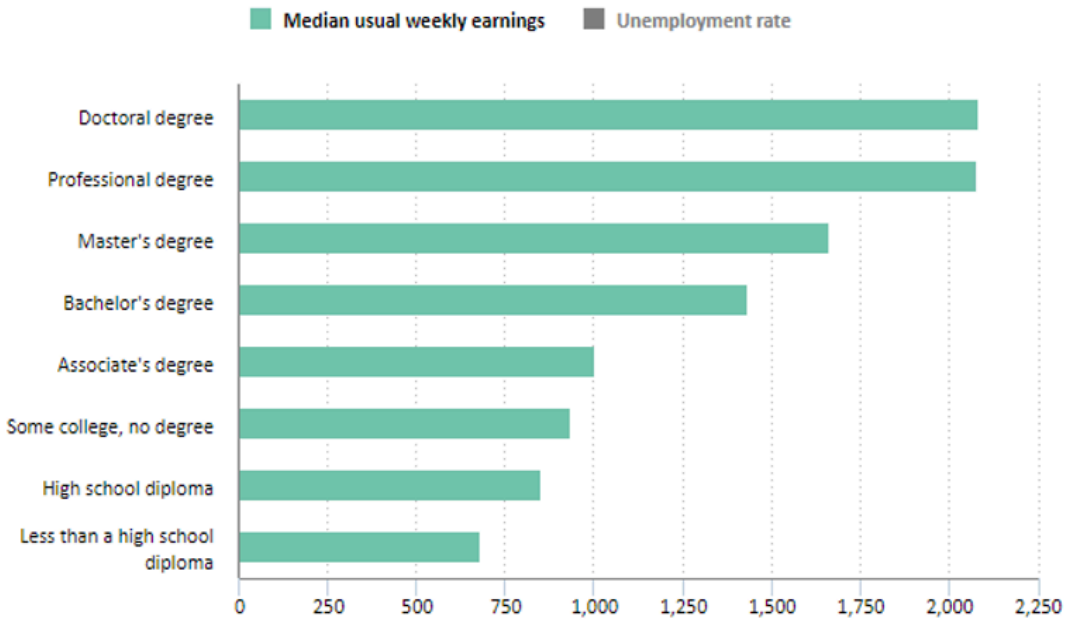
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Earnings and unemployment rates by educational attainment, 2022

Educational attainment	Median usual weekly earnings	Unemployment rate
Doctoral degree	$2,083	1.0%
Professional degree	2,080	1.4
Master's degree	1,661	1.9
Bachelor's degree	1,432	2.2
Associate's degree	1,005	2.7
Some college, no degree	935	3.5
High school diploma	853	4.0
Less than a high school diploma	682	5.5

Note: Data are for persons age 25 and over. Earnings are for full-time wage and salary workers.
Source: U.S. Bureau of Labor Statistics, Current Population Survey.

Earnings and unemployment rates by educational attainment, 2022



Click legend items to change data display. Hover over chart to view data.
Note: Data are for persons age 25 and over. Earnings are for full-time wage and salary workers.
Source: U.S. Bureau of Labor Statistics, Current Population Survey.

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JBH Release of a Student During the School Day (See EBB and EBBD) JBH

Building principals shall only release a student during the school day with a written or verbal request from the student's lawful parent or person acting as a parent.

Before releasing a student during the school day, the building principal shall be responsible for verifying the identity of the person seeking release of the student.

If the principal is not satisfied with the identification provided by the person seeking release of a student, or if the safety of students(s), staff members(s), or others would be endangered by orchestrating the student's release from school, the student's release may be refused.

Students shall not be allowed to run personal errands for school employees off school premises during the school day.

Adopted: 03/18/2024

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JCAB Searches of Property (See JCABB) **JCAB**

Principals are authorized to search property if there is reasonable suspicion that district policies, rules or directives are being violated. In addition, all lockers shall be subject to random searches without prior notice or reasonable suspicion. All searches by the principal shall be carried out in the presence of another adult witness.

Whenever the principal is mentioned in this policy, it shall be construed to include the superintendent "or designated representative".

Search of Lockers

Lockers in the district schools shall be under supervision of the principal. Students shall have no expectation of privacy in any school locker.

The combinations and/or keys to all locker locks shall be in the possession of the principal and stored in a place designed to guard against unauthorized access or use. The principal may search any locker at any time without notice. Students shall not place locks, other than those approved by the school, on any locker.

Searches of Property

Any person other than the principal who wishes to search a student's locker or property shall report to the principal before proceeding. In no event shall any person be permitted to search a student's locker or property

without the principal's consent unless the person has a valid search warrant authorizing a search.

If a law enforcement officer desiring to search a student's locker or property has a search warrant, the principal shall permit the search which shall be made in the presence of the principal.

Prohibited items found during the search shall remain in the custody of either the building principal or the law enforcement office. If any items are turned over to law enforcement officials the principal shall receive a receipt for the items.

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Use of Trained Dogs in Conducting Sweeps

At the request of the principal or on a schedule agreed upon by the service provider and the principal, law enforcement officers or licensed private agencies contracting with the school for such service, may use trained dogs on school premises to identify student property which may contain illegal or illicit materials and to determine whether materials, such as drugs, weapons, or other materials which may threaten the general health, welfare, and safety of the students and/or staff are present in the district parking lot, hallways, lockers, classrooms, and/or locker rooms. Students will never be sniffed by the dogs used to conduct the sweep.

Adopted: 03/09/2015

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JCABB Searches of Students (See JCAB and JCAC)) JCABB

Principals are authorized to search students if there is reasonable suspicion that district policies, rules or directives are being violated. Strip searches shall not be conducted by school authorities. All searches by the principal shall be carried out in the presence of another adult witness.

The student shall be told why a search is being conducted. The student shall be requested to empty items such as, but not limited to, pockets, purses, shoulder bags, book bags and briefcases. The principal shall attempt to call the student's parent/s and may call law enforcement. Items which the principal believes may be connected with illegal activity shall remain in the custody of the principal unless the items are turned over to law enforcement officials. If the student refuses to cooperate, the principal may take disciplinary action and/or seek assistance from law enforcement.

If law enforcement assistance is present, further search of the student shall be with cooperation and assistance of law enforcement officials. The principal shall remain with the student and be present during any search of the student made by law enforcement officials on school property. The principal shall receive and file a receipt for items turned over to law enforcement officials.

If the principal believes a student is in possession of an object which can jeopardize the health, welfare or safety of the student or others, the student shall be removed to a safe location. This determination may be based on any information received by the principal or any member of the faculty or staff.

Written documentation of each search shall be maintained by the principal and submitted to the superintendent. The superintendent shall keep a copy of the written report on file.
(Whenever the principal is mentioned in this policy, it shall be construed so as to include the superintendent "or designated representative.")

Adopted: 04/28/2016

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(See EBC, GAAD, JCABB, JCEC and JHCAA)

Building administrators, school security officers and/or others designated by the superintendent may conduct investigations and question students about violation of school rules, the student conduct code, and/or law. Unless otherwise provided herein, such investigators shall not be required to contact the student's parent, guardian, or representative prior to questioning and may request law enforcement, school resource officer(s), and/or school security officer(s) for assistance in conducting the investigations.

If there is reason to believe a violation of a criminal law has been committed, the building administrator, the superintendents' designee, and/or school security officer with authorization of the superintendent or the superintendent's designee shall notify the appropriate law enforcement agency of criminal conduct as provided in law and/or board policy and may request further investigation of the alleged violation

When a school resource officer or campus police officer initiates an investigation of a potential violation of criminal law by another student on the officer's own initiative and not at the behest of a building administrator or the designee of the superintendent, such officer will notify the building administrator and will make a reasonable attempt to contact the student's parent, guardian, or representative prior to initiating questioning.

Coordination with Law Enforcement

School administrators and/or school security officers shall meet at least annually with local law enforcement officials to discuss the district’s policies and rules regarding law enforcement contacts with the district and reporting potential criminal acts at school or school activities.

Notification of Investigations Conducted by Law Enforcement Officers

When law enforcement officers initiate an investigation involving questioning of a student on a topic unrelated to a report of child abuse or neglect or to the identity of the student during school hours, the building administrator shall make a reasonable attempt to contact a parent, guardian or representative

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of the student(s) prior to such questioning. Notification or attempted notification of a parent, guardian or representative shall be documented by the administrator involved. If a student's parent, guardian, or representative is not present during such questioning of a student, the principal may be present unless otherwise specified in law or board policy.

Child Abuse and Identity Investigations Conducted by Law Enforcement Officers

The administration shall cooperate with law enforcement officers who are conducting investigations of suspected child abuse or neglect or concerning the student's identity. For any investigations concerning known or suspected child abuse or neglect, school staff shall follow the procedures outlined in board policy GAAD instead of the requirements of this policy.

Law Enforcement Initiated Investigations at School

In cases not involving the investigation of known or suspected child abuse or neglect or involving the student's identity, law enforcement officers shall not be permitted to initiate and conduct investigations involving the questioning of students during school hours unless the student's parent or guardian has given the school permission to allow the questioning, a valid warrant has been presented to the building administrator for such purpose, or in demonstrated emergency situations. If a demonstrated emergency is found, the building administrator shall require identification of law enforcement officials and reasons for the interrogation or investigation of a student. If the building administrator is not satisfied with either the identification or the reason, the request shall not be granted. The building administrator shall attempt to notify the superintendent and the officer's superiors of the reasons for the refusal.

Taking Students into Custody

Students shall not be voluntarily released by school officials to law enforcement authorities unless the student has been placed under arrest or taken into custody by law enforcement, school resource officers, campus police officers, or Department for Children and Families ("DCF") authorities pursuant to

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a child abuse investigation. Except as otherwise specified in this policy, a reasonable effort shall be made to notify the student's parent, guardian, or representative when students are removed from school for any reason. Parents shall not be notified by school officials when their child is taken into custody by DCF, school resource officers, campus police officers, and/or law enforcement as a result of allegations of abuse or neglect and there is reason to believe sharing the information may lead to harm of the child or others. Except as provided above and/or as specified in a court order or arrest warrant, if a student is taken into custody by a law enforcement officer, school resource officer, or campus police officer, administrators shall make a good-faith effort to contact the parent or guardian. Notification efforts shall be documented.

When a student has been taken into custody or arrested on school premises without prior notification to the building administrator, the school staff present shall ask the law enforcement officer to notify the building administrator of the circumstances as quickly as possible and shall themselves contact the building administrator with any information they have regarding the child being taken into custody. School resource officers and campus police officers are expected to contact the building administrator as soon as practicable after taking a student into custody.

Disturbance of School Environment

Law enforcement officers may be requested to assist in controlling disturbances at school and, if necessary, to take students or other persons into custody.

Definition

For the purpose of this policy, "campus policy officer" is a school security officer employed by and designated by the board to aid and supplement law enforcement agencies of the state, city, and/or county in which the school district is located.

For the purpose of this policy, students will not be deemed to be "taken into custody" when they are being questioned by a school resource officer, school security officer, and/or campus police officer

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about a violation of state law, county resolutions, city ordinances, board policy or regulation, and/or school rules on property owned, occupied, or operated by the school district or at the site of a function sponsored by the district.

Adopted: 09/12/2022

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JCDA Student Conduct (See AEB, IIBG, JA, JDD and JHCAA) JCDA

Each principal shall develop rules and regulations to govern student conduct consistent with board policies. The rules shall be reviewed by the board and adopted as policy by reference. The rules of conduct shall be published in student handbooks.

Violation of any provision of the behavior code may result in disciplinary action up to and including suspension and/or expulsion.

Adopted: 09/09/2013

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(See GAOC and KMA)

The use, possession, or promotion of any tobacco product by any student is prohibited at all time in any district facility; in school vehicles; at school-sponsored activities, programs, or events; and on school owned or operated property.

Student violations will result in disciplinary actions as outlined by board policy and/or student handbooks. Disciplinary actions may include parent/guardian notification, participation in a tobacco and electronic nicotine delivery systems education program, referral to a cessation program, and/or community service. Student violations may be reported to law enforcement if use or possession is deemed to be illegal.

The following definitions apply to this policy.

"Tobacco product" means any product that is made from or derived from tobacco, or that contains nicotine, that is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved, inhaled, or ingested by any other means, including, but not limited to, electronic nicotine delivery system (hereafter "ENDS"), cigarettes, cigars, pipe tobacco, chewing tobacco, snuff, or snus. Tobacco product also means any component or accessory used in the consumption of a tobacco product, such as filters, rolling papers, pipes, charging devices, cartridges, and any substances used in ENDS, whether or not they contain nicotine. This definition does not include FDA-approved nicotine replacement therapies including transdermal nicotine patches, nicotine gum, and nicotine lozenges prescribed to the student by a medical practitioner or obtained over the counter and used in accordance with label requirements.

"Electronic nicotine delivery system" or "(ENDS)" means any device that delivers a vaporized solution (including nicotine, THC, or any other substance) by means of cartridge or other chemical delivery systems. Such definition shall include, but may not be limited to, any electronic cigarette, vape

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pen, hookah pen, cigar, cigarillo, pipe, or personal vaporizer. ENDS are not FDA-approved nicotine replacement therapy devices.

"Promotion" includes, but is not limited to, product advertising via branded gear, bags, clothing, any personal articles, signs, structures, vehicles, flyers, or any other materials.

Adopted: 08/10/2020

KASB Recommendation 7/96; 9/97; 4/07; 6/13; 6/16; 12/18; 6/20

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JCDB Dress Code **JCDB**

Neatness, decency and good taste are guidelines of the district dress code. Students must dress in a manner that is not obscene, offensive or substantially or materially disruptive to the learning environment. Apparel that is sexually suggestive; promotes violence, illegal activities, drugs, alcohol, and/or tobacco; or is determined to be gang-related is prohibited.

Student apparel and grooming must also meet requirements of any courses which are part of the approved curriculum in which they are enrolled.

Traditional tribal regalia or objects of cultural significance shall not be prohibited as a public event.

Dress codes shall be published in the appropriate student handbooks.

Adopted: 02/14/2022

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JCDBB **Weapons** (See EBC, JDC, JDD, JHCAA and KGD) **JCDBB**

A student shall not knowingly possess, handle, or transmit any object that can reasonably be considered a weapon at school, on school property, or at a school-sponsored event. This shall include any weapon, any item being used as a weapon or destructive device, or any facsimile of a weapon.

Weapons and Destructive Devices

As used in this policy, the term "weapon" and/or "destructive device" shall include, but shall not be limited to:

* any weapon which will or is designed to or may readily be converted to expel a projectile by the action of an explosive;
* the frame or receiver of any weapon described in the preceding example;
* any firearm muffler or firearm silencer;
* Any explosive, incendiary, or poison gas bomb, grenade, rocket having a propellant charge of more than four ounces, missile having an explosive or incendiary charge of more than 1/4 ounce, mine, or similar device;
* any weapon which will, or which may be readily converted to, expel a projectile by the action of an explosive or other propellant and which has any barrel with a bore of more than 1/2 inch in diameter;
* any combination of parts either designed or intended for use in converting any device into a destructive device described in the two immediately preceding examples and from which a destructive device may be readily assembled;
* any bludgeon, sand club, metal knuckles, or throwing star;
* any knife, commonly referred to as a switchblade, which has a blade that opens automatically by hand pressure applied to a button, spring, or other device in the handle of the knife or any knife having a blade that opens, falls, or is ejected into position by the force of gravity or by an outward, downward, or centrifugal thrust or movement;
* any electronic device designed to discharge immobilizing levels of electricity, commonly known as a stun gun.

Penalties for Weapon Violations

Possession of a weapon and/or destructive device listed under the "Weapons and Destructive Devices" heading of this policy shall result in expulsion from school for a period of one calendar year, except the superintendent may recommend this expulsion be modified on a case-by-case basis.

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Possession of, handling of, and/or transmitting a weapon of a type other than described under the "Weapons and Destructive Devices" heading above, an item being used as a weapon or destructive device, or a facsimile of a weapon may result in disciplinary action up to and including suspension and/or expulsion. Expulsion hearings for weapons violations shall be conducted by the superintendent or the superintendent's designee.

Students violating this policy shall be reported to the appropriate law enforcement agency(ies) and, if a juvenile, to the Secretary for DCF or the Secretary of KDOC as appropriate.

Possession of an air gun at school, on school property, or at a school supervised activity will not be prohibited for students participating in an air gun-related activity sponsored by an organization held at school or when in transit to or from such activities held off district property.

Adopted: 10/10/2016

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JCE **Complaints of Discrimination** **JCE**

(See JDDC, JGEC, JGECA, KN and KNA)

Complaints About Discrimination

The district is committed to maintaining a working and learning environment free from discrimination, insult, intimidation, and harassment due to race, color, religion, sex, age, national origin, or disability.

Discrimination against any student on the basis of race, color, national origin, sex, disability, or religion in the admission or access to, or treatment in the district's programs and activities is prohibited. The Superintendent, PO Box 760, Belle Plaine, KS 67013, 620-488-2288 or compliance coordinator has been designated to coordinate compliance with nondiscrimination requirements contained in Title VI of the Civil Rights Act of 1964, Title IX of the Education Amendments of 1972, Section 504 of the Rehabilitation Act of 1973, and The Americans with Disabilities Act of 1990.

Any incident of discrimination, including acts of harassment, shall promptly be reported for investigation and corrective action by the building principal or district compliance coordinator. Any student or employee who engages in discriminatory conduct shall be subject to disciplinary action, up to and including termination from employment or expulsion from school.

Any perceived incident of discrimination in any form shall be promptly reported to the building principal, another administrator, the counselor, another certified staff member, or the district compliance coordinator for investigation and corrective action by the building or district compliance officer. Any school employee who receives a complaint of discrimination or harassment from a student shall inform the student of the employee's obligation to report the complaint and any proposed resolution of the complaint to the building principal.

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If the building principal is the alleged harasser, the report shall be made to the district compliance coordinator. Complaints alleging discriminatory and/or harassing conduct on the part of the superintendent shall be addressed to the board of education. Any general student complaint, not alleging an act of discrimination shall be resolved under the district's general complaint procedures in policy KN. Except as otherwise provided in this policy or board policies GAAC, JGEC, or KNA regarding complaints of discrimination on the basis of sex or regarding child nutrition programs, complaints about discrimination, including complaints of harassment, will be resolved through the following complaint procedures.

Informal Procedures

The building principal shall attempt to resolve complaints of discrimination or harassment in an informal manner at the building level. Any school employee who receives a complaint of such discrimination or harassment from a student, another employee, or any other individual shall inform the individual of the employee's obligation to report the complaint and any proposed resolution of the complaint to the building principal. The building principal shall discuss the complaint with the individual to determine if it can be resolved.

If the matter is resolved to the satisfaction of the individual, the building principal shall document the nature of the complaint and the proposed resolution of the complaint and forward this record to the district compliance coordinator. Within 20 days after the complaint is resolved in this manner, the principal shall

contact the complainant to determine if the resolution of the matter remains acceptable.

If the matter is not resolved to the satisfaction of the individual in the meeting with the principal, or if the individual does not believe the resolution remains acceptable, the individual may initiate a formal complaint.

Formal Complaint Procedures

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- A formal complaint shall be filed in writing and contain the name and address of the person filing the complaint. The complaint shall briefly describe the alleged violation. If an individual does not wish to file a written complaint, and the matter has not been adequately resolved through the informal procedures described herein, the building principal may initiate the complaint. Forms for filing written complaints are available in each school building office and the central office.

- A complaint should be filed as soon as possible after the conduct occurs but not later than 180 days after the complainant becomes aware of the alleged violation, unless the conduct forming the basis for the complaint is ongoing.

- If appropriate, an investigation shall follow the filing of the complaint. If the complaint is against the superintendent, the board may appoint an investigating officer. In other instances, the investigation shall be conducted by the building principal, the compliance coordinator, or another individual appointed by the board or the superintendent. The investigation shall be informal but thorough. The complainant and the respondent will be afforded an opportunity to submit written or oral evidence relevant to the complaint and to provide names of potential witnesses who may have useful information.

- A written determination of the complaint's validity and a description of the resolution shall be issued by the investigator, and a copy forwarded to the complainant and the respondent within 30 days after the filing of the complaint. If the investigator anticipates a determination will not be issued within 30 days after the filing of the complaint, the investigator shall provide written notification to the parties including an anticipated deadline for completion. In no event, shall the issuance of the written determination be delayed longer than 10 days from the conclusion of the investigation.

- If the investigation results in a recommendation that a student be suspended or expelled, procedures outlined in board policy and state law governing student suspension and expulsion will be followed.

- If the investigation results in a recommendation that an employee be suspended without pay or terminated, procedures outlined in board policy, the negotiated agreement (as applicable), and state law will be followed.

(See JDDC, JGEC, JGECA, KN, and KNA)

- Records relating to complaints filed and their resolution shall be forwarded to and maintained in a confidential manner by the district compliance coordinator.

Formal Complaint Appeal

- The complainant or respondent may appeal the determination of the complaint.

- Appeals shall be heard by the district compliance coordinator, a hearing officer appointed by the board or the superintendent, or by the board itself.

- The request to appeal the resolution shall be made within 20 days after the date of the written determination of the complaint at the lower level.

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- The appeal officer shall review the evidence gathered by the investigator at the lower level and the investigator's report and shall afford the complainant and the respondent an opportunity to submit further evidence, orally or in writing, within 10 days after the appeal is filed.

- The appeal officer will issue a written determination of the complaint's validity on appeal and a description of its resolution within 30 days after the appeal is filed.

The district prohibits retaliation or discrimination against any person for opposing discrimination, including harassment; for participating in the complaint process; or making a complaint, testifying, assisting, or participating in any investigation, proceeding, or hearing.

Use of this complaint procedure is not a prerequisite to the pursuit of any other remedies including the right to file a complaint with the Office for Civil Rights of the U.S. Department of Education of the Kansas Human Rights Commission.

Adopted: 01/09/2023

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JCEC Demonstrations (See JCAC) **JCEC**

Student demonstrations on school property shall be conducted in an orderly and non-disruptive manner. Demonstrations may be terminated at any time by the principal or the superintendent.

Adopted: 09/09/2013

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JDA Corporal Punishment

JDA

Corporal punishment shall not be permitted in the school district.

Adopted: 09/09/2013

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Detention periods may be established by building principals and administered according to rules approved by the board.

Adopted: 09/09/2013

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JDC Probation (See JCDBB and JDD) **JDC**

Any punishment, suspension or expulsion, may be deferred by the superintendent, principal or designee. The student involved may be placed on probation for a set period of time. The punishment, suspension or expulsion, shall remain deferred so long as the student meets the conditions of the probation. If a student is placed on probation, written notification shall be sent to the student's parent or guardian.

A student placed on probation shall be given a written list of the terms and conditions of the probation. The student shall sign a statement that: the terms and conditions have been explained, the student understands the conditions, the student agrees to abide by the conditions and failure to abide by the conditions may be reason to reinstate the original punishment.

Adopted: 09/09/2013

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JDD Suspension and Expulsion Procedures JDD
(See AEB, EBC, IHEA, JBD, JCDBB, JDC, JCDA, JDDB, JDDC and JHCAA)

Except as limited by Section 504 or the Individuals with Disabilities Education Act ("IDEA"), a student may be suspended or expelled, for reasons set forth in Kansas law. Any student who is suspended for a period of more than 10 days or expelled shall receive a copy of the current suspension and expulsion law and this policy. Suspension/expulsion hearings shall be conducted by the superintendent/designee or other certificated employee, or committee of certificated employees of the school in which the pupil is enrolled, or by any other hearing officer appointed by the board.

Reasons for Suspension or Expulsion

Students may be suspended or expelled for one or more of the following reasons:

- Willful violation of any published, adopted student conduct regulation;
- Conduct which substantially disrupts, impedes, or interferes with school operation;
- Conduct which endangers the safety or substantially impinges on or invades the rights of others;
- Conduct which constitutes the commission of a felony;
- Conduct at school, on school property, or at a school supervised activity which constitutes the commission of a misdemeanor;
- Disobedience of an order of a school authority if the disobedience results in disorder, disruption or interference with school operation; and
- Possession of a weapon at school, on school property or at a school- sponsored event.

Short-term Suspension

Except in an emergency, a short-term suspension (not exceeding ten school days) must be preceded by oral or written notice of the charges to the student and an informal hearing. If a hearing is not held prior to the suspension, an informal hearing shall be provided no later than 72 hours after imposition of a short-term suspension.

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Written notice of any short-term suspension shall be delivered to the student's parent or guardian within 24 hours after the suspension has been imposed. Short-term suspension hearings may be conducted by any person designated in policy as having the authority to suspend.

At the informal suspension hearing, the student shall have the right to be present and to be notified of the charges and the basis for the accusation. The student shall have the right to make statements in his/her defense after receiving notice of the charges.

Long-Term Suspension or Expulsion

Before a student is subject to long-term suspension (not to exceed 90 school days) or expulsion (not to exceed 186 school days or one calendar year for certain weapon and/or destructive device violations), a hearing shall be conducted by a hearing officer who has been authorized by the board. Formal hearings shall be conducted according to procedures outlined in current Kansas law and:

- The student and parents or guardians shall be given written notice of the time, date and place of the hearing.
- The notice shall include copies of the suspension/expulsion law, and appropriate board policies, regulations and handbooks.
- The hearing may be conducted by either a certified employee or committee of certified employees authorized by the board, the chief administrative officer, or other certified employee of the district in which the student is enrolled, or by an officer appointed by board.
- Expulsion hearings for weapons violations shall be conducted in compliance with Kansas law by persons appointed by the board.
- Findings required by law shall be prepared by the person or committee conducting the hearing.
- A record of the hearing shall be available to students and parents or guardians according to Kansas law.
- Written notice of the result of the hearing shall be given to the pupil and to parents and guardians within 24 hours after determination of such result.

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Rules Which Apply in all Cases When a Student May be Suspended or Expelled

- Refusal or failure of the student and/or the student's parents to attend the hearing shall result in a waiver of the student's opportunity for the hearing.
- A student suspended for more than 10 school days or expelled from school shall be provided with information concerning services or programs offered by public and private agencies which provide services to improve the student's attitude and behavior.
- A student who has been suspended or expelled shall be notified of the day the student can return to school.
- If the suspension or expulsion is not related to a weapons violation, the principal may establish appropriate requirements relating to the student's future behavior at school and may place the student on probation. (See JDC)
- If the expulsion is related to a weapons violation the superintendent may establish appropriate requirements relating to the student's future behavior at school and may place the student on probation if the student is allowed to return. (See EBC, JCDBB and JDC)
- The days a student is suspended or expelled are not subject to the compulsory attendance law.
- During the time a student is suspended or expelled from school, the student may not:

- Be on school property or in any school building without the permission of the principal.
- Attend any school activity as a spectator, participant or observer.

A student over the age of 18 or the parents or guardian of a student who is suspended for more than 10 days or expelled from school may appeal to the board within 10 calendar days of receiving written notice of the hearing results.

When a suspension is imposed during the school day, the student shall not be removed from school until a parent has been notified. If a parent cannot be notified during regular school hours, the student shall remain at school until the regular dismissal time.

Student Rights During a Long-Term Suspension/Expulsion Hearing

The student shall have the right:

- to counsel of his/her own choice;
- to have a parent or guardian present;
- to hear or read a full report of testimony of witnesses;
- to confront and cross-examine witnesses who appear in person at the hearing; to present his or her own witnesses;
- to testify in his or her own behalf and to give reasons for his or her conduct;
- to an orderly hearing; and
- to a fair and impartial decision based on substantial evidence.

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Appeal to the Board

The following conditions shall apply if a student who is age 18 or older or the student's parent or guardian files a written appeal of a suspension or expulsion:

- Written notice of the appeal shall be filed with the clerk within 10 calendar days of receiving the results of the hearing.
- The board or hearing officer appointed by the board shall hear the appeal within 20 calendar days after the notice of appeal is filed.

Suspension and Expulsion Procedures

- The student and the student's parent shall be notified in writing of the time and place of the appeal at least 5 calendar days before the hearing.
- The hearing shall be conducted as a formal hearing using rules similar to those noted earlier for expulsion hearings.
- The board shall record the hearing.
- The board shall render a final decision no later than the next regularly scheduled board meeting after the conclusion of the appeal hearing.

Adopted: 01/09/2023

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Report to Staff Member USD 357

Pursuant to K.S.A. 72-6143, administrative, professional or paraprofessional employees of a school who have information that a pupil has engaged in the following shall report the information and the identity of the student to the superintendent. The superintendent shall investigate the matter and if it is determined the student has been involved in the following, the superintendent shall provide information, and the identity of the pupil to all employees who are involved, or likely to be directly involved, in teaching or providing related services to pupil:

1. Any student who has been expelled for conduct which endangers the safety of others;
2. Any student who has been expelled for commission of felony type offenses;
3. Any student who has been expelled for possession of a weapon;
4. Any student who has been adjudged to be a juvenile offender and whose offense, if committed by an adult, would constitute a felony, except a felony theft offense involving no direct threat to human life;
5. Any student who has been tried and convicted as an adult of any felony, except theft involving no direct threat to human life.

You are notified that_____, within the past 365 days, has been expelled, adjudged or convicted for an activity listed above**.**

School District staff are required by both Federal Law and K.S.A. 72-6311 to protect the right of privacy of any student under the age of 18 and the student's family regarding personally identifiable records, files, data and information directly related to the student and his/her family. I acknowledge this responsibility and agree that I will disclose the above information only to other USD357 employees and officials. Violation of these privacy rights could include sanctions up to and including termination.

Signed:_____
School employee who receives the report

Signed:_____
Administrator or school employee making report

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Maintaining drug-free schools is important in establishing an appropriate learning environment for the district's students. Unless otherwise specified in this policy, the possession, use, sale, distribution, and/or being under the influence of illicit drugs, controlled substances, and/or and alcohol by students at school, on or in school property, or at school sponsored activities or events is prohibited.

Possession, use, and/or being under the influence of a controlled substance by a student for the purposes of this policy shall only be permitted if such substance was:

1. Obtained directly from, or pursuant to a valid prescription or order, issued to such student from a person licenses by the state to dispense, prescribe, or administer controlled substances;
2. In the case of use or possession, approved and administered, if administered at all, in accordance with board policy JGFGB and/or board policy JGFGBA; and
3. Used, if at all, in accordance with label directions.

Student Conduct

As a condition of continued enrollment in the district, students shall abide by the terms of this policy.

Students shall not manufacture, sell, distribute, dispense, possess, use and/or be under the influence of illicit drugs, controlled substances or alcoholic beverages at school, on or in school district property, or at any school activity, program, or event. Any student violating the terms of this policy will be reported to the appropriate law enforcement officials, and will be subject to

disciplinary action. Violation of any provision of this behavior code may result in suspension and/or expulsion.

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Students who are suspended or expelled under the terms of this policy will be afforded the due process rights contained in board policies and Kansas statutes, K.S.A. 72-6114, et seq. Nothing in this policy is intended to diminish

the ability of the district to take other disciplinary action against the student in accordance with other policies governing student discipline. If a student agrees to enter and complete a drug education or rehabilitation program, the cost of such program will be borne by the student and his or her parents.

A list of area drug and alcohol counseling and rehabilitation programs along with names and addresses of contact persons for the programs, is on file with the board clerk. Parents or students should contact the directors of the programs to determine the cost and length of the program.

A copy of this policy will be provided to all students and the parents of all students. Parents of all students will be notified that compliance with this policy is mandatory.

Adopted: 08/13/2018

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Student Misuse of Medication **JDDAA**

(See JDDA, JGFGB, JGFGBA, and LDD)

Unless otherwise provided herein, students found to be self-administering their own medication at a dosage or rate exceeding product label instructions; distributing over-the-counter or prescription medications to other students; or using or possessing another person's over-the-counter or prescription medication will be subject to disciplinary action, up to and including suspension and expulsion from school.

Notwithstanding the misuses of medication outlined in this policy, Kansas law and board policy allow a bystander to administer an opioid antagonist to a person the bystander believes to be experiencing an opioid overdose.

Adopted: 03/18/2024

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JDDB Reporting to Law Enforcement (See EBC and JDD) JDDB

Unless reporting would violate the terms of any memorandum of understanding between the district and local law enforcement, whenever a student engages in conduct which constitutes the commission of any misdemeanor or felony, at school, on school property, or at a school supervised activity and/or has been found:

1. in possession of a weapon,
2. in possession of controlled substance or illegal drug; or
3. to have engaged in behavior at school which has resulted in or was substantially likely to have resulted in, serious bodily injury to others, the principal or superintendent shall report such act to the appropriate law enforcement agency.

Adopted: 10/10/2016

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Report to Local Law Enforcement

USD 357

Pursuant to K.S.A. 72-6143, the administrator or other school employee whose signature appears below is reporting the following crimes:

Briefly describe each incident and the person/s involved in a misdemeanor or felony; possession of a weapon at school, on school property, or at a school activity; or possession, use, sale or distribution of an illegal drug or controlled substance at school, on school property or at a school activity; or behavior at school, on school property, or at a school activity, which resulted in, or is likely to result in, serious bodily injury to others.

Date	School/Location	Student/s or Person/s Involved	Brief Description
1.			
2.			
3.			
4.			
5.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed:_____
Administrator or other school employee

c/o Superintendent, USD 357; c/student's file

Adopted: 08/13/2018

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JDDC **Bullying** (See EBC, GAAE, JCE, JDD, JGEC, JGECA, and KGC) **JDDC**

The board of education prohibits bullying in any form by any student, staff member, or parent towards a student or a staff member on or while using school property, in a school vehicle, or at a school-sponsored activity or event. For the purposes of this policy, the term "bullying" shall have the meaning ascribed to it in Kansas law.

The administration shall propose, and the board shall review and approve a plan to address bullying as prohibited herein. The plan shall include provisions for the training and education of staff members and students and shall include appropriate community involvement as approved by the board.

Students who have bullied others in violation of this policy may be subject to disciplinary action, up to and including suspension and/or expulsion. If appropriate, students who violate the bullying prohibition shall be reported to local law enforcement.

Adopted: 04/28/2016

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USD 357 Bullying Plan

(Also see Policies GAAE and JDDC)

Bullying means: Any intentional gesture or any intentional written, verbal, electronic, or physical act or threat either by any student, staff member, or parent towards a student or by any student, staff member or parent towards a staff member that is sufficiently severe, persistent, or pervasive that it creates an intimidating, threatening, or abusive educational environment that a reasonable person, under the circumstances, knows or should know will have the effect of:

- Harming a student or staff member, whether physically or mentally;
- Damaging a student's or staff member's property:
- Placing a student or staff member in reasonable fear of harm; or
- Placing a student or staff member in reasonable fear of damage to the student's or staff member's property.

Bullying also includes cyberbullying. "Cyberbullying" means bullying by use of any electronic communication device through means including, but not limited to, e-mail, instant messaging, text messages, blogs, mobile phones, pagers, online games, and websites.

Additionally, bullying means any form of intimidation or harassment prohibited by the board of education of the school district in policies concerning bullying adopted pursuant to K.S.A. 72-6147 or subsection (e) of K.S.A. 72-1138, and amendments thereto. USD 357 will not tolerate these actions by students, staff, or parents.

For the purposes of this plan and its authorizing policies, "parent" includes a biological, adoptive, or step-parent; guardian; custodian; or other person with authority to act on behalf of a student.

Similarly, a "staff member" means any person employed by the district.

Any act of bullying by either an individual student or group of students towards a student or staff member of the district is prohibited on or while utilizing school property, in a school vehicle, or at school-sponsored activities, programs, and events. This policy applies to students who directly engage in an act of bullying, to students who, by their behavior, support another student's act of bullying, and to all staff members and parents who engage in similar behaviors.

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Training concerning identifying, reporting, investigating, and preventing bullying behaviors as outlined in district policies and this plan shall be provided to students and staff members using resources available for such purpose and shall be provided through school assemblies, staff development, or other appropriate forums at least annually.

USD 357 focuses on bullying prevention by:

1. Developing a bullying prevention program based on the KSDE Bullying Prevention Resource Toolkit including addressing bullying, building adult capacity to change climate and culture, curriculum and instructional resources, and measuring social -emotional learning;
2. Using the Kansas State Department of Education's Social - Emotional and Character Development Standards to address school bullying and student mental health;
3. Implementing a social- emotional learning curriculum that includes an anti-bullying family engagement component;
4. Providing students and families with information and resources annually on bullying, cyberbullying, digital citizenship and how to make smart choices on-line;
5. Providing students and families with the district's student behavior expectations relating to bullying and explanations for incidences that do not meet the legal definition of bullying;
6. Tracking incidences of bullying including physical, cyber, verbal, and relational bullying and reporting this information to the Kansas State Board of Education;
7. Collecting data on bullying incidences from social emotional data sources and annually reviewing this information with the board of education;
8. Developing cultural awareness and understanding that certain demographic groups are disproportionately bullied at a higher rate than peers based upon sex, disability, socio-economic status, religious beliefs, gender identity and expression, sexual-orientation, and race/ethnicity (including migrant populations);
9. Requiring all school employees to complete the following bullying prevention, identification, reporting and training module (describe district's annual training program).

The board or the district administration on behalf of the board may seek student, staff, parent, and/or community input on the adoption, revision, and/or implementation of the board's bullying policies or plan as directed or approved by the board.

No teacher, administrator, or school district employee shall engage in, permit, or tolerate bullying.

Retaliation against a victim, good faith reporter, or a witness to bullying is prohibited. A student or staff member who engages in an act of bullying, reprisal, retaliation, or false reporting of bullying, shall be

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subject to discipline in accordance with school district policy and procedures. The school administration and/or board may consider the following factors when determining an appropriate disciplinary action for such prohibited conduct: the ages of the parties involved; the developmental and maturity levels, special education needs of the parties involved, and the nature, frequency, and severity of the behavior.

Discipline guidelines for student bullying may be found in student and employee handbooks. Offenses over time or single offenses which are severe in nature may result in discipline up to and including suspension and/or expulsion or termination from employment. Parents participating in prohibited bullying conduct aimed at district students and/or staff members may jeopardize their access to district facilities; district property; school sponsored activities, programs, and events; and/or district students and/or staff members through the district's communication systems. As appropriate, reports to local law enforcement will be filed to report criminal bullying behaviors. (See Policies EBC, GAAC, GAACA, JGEC, JGECA and KN)

Adopted 08/09/2021

KASB Recommendation – 6/18; 6/21

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Report to Local Law Enforcement

USD 357

Pursuant to Kansas law, the administrator or other school employee whose signature appears below is reporting the following crimes:

Briefly describe each incident and the person/s involved in a misdemeanor or felony behavior at school, on school property, or at a school activity.

Date	School/Location	Student/s or Person/s Involved	Brief Description of bullying incident/s.
1.			
2.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed:_____
Administrator or other school employee

c/o Superintendent, USD 357; c/student's file/employee's file as allowed by applicable negotiated language.

Adopted: 08/13/2018

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JF Academic Achievement (See II and JR et seq) **JF**

Staff shall establish high expectations for all students. These expectations shall be based on individual student ability to meet the board approved learning objectives for each subject.

Reporting

Periodic reports on each student's progress may be issued to the parents.

Report Cards

Report cards shall be available to each student at the end of each specific grading period for each subject taken. The superintendent shall develop standard reporting forms for each grade level.

Adopted: 09/09/2013

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Limited Peer Grading Allowed:

Peer grading shall be allowed when the teacher believes peer grading will be a valuable learning experience for the class. During a peer grading activity, the teacher shall use the activity to help students review class concepts or objectives. If peer grading is allowed, students shall not be asked to publicly reveal either their own grade or the grade of another student.

Adopted: 09/09/2013

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JFB Promotion and Retention **JFB**

Students may be promoted when they have demonstrated mastery of the board-approved learning objectives.

The final decision to promote or retain a student shall rest with the principal after receiving information from parents/guardians, teachers and other appropriate school personnel.

Adopted: 04/28/2016

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JFC Graduation Exercises **JFC**

Students who have completed the requirements for graduation may be allowed to participate in graduation exercises unless participation is denied for appropriate reasons. Graduation exercises shall be under the control and direction of the building principal.

Adopted: 09/09/2013

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JFCA Early Graduation (See IHF) **JFCA**

Students who complete all state and local graduation requirements may request permission to graduate early.

A student who wishes to graduate from high school early may request permission to do so. The student and parents shall consult with high school administrative and/or guidance personnel in order to develop a graduation plan. The administration shall approve or deny each request based on the circumstances of the individual student. The student's request shall be in writing, addressed to the administration, state the reasons supporting the request, and include a copy of the graduation plan and a letter of support from the student's parents. The letters of request shall be sent to the administration.

Adopted: 04/28/2016

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JGA Student Insurance Program **JGA**

Parents or guardians shall be notified annually in writing of student insurance provided by the district, and that medical expenses not covered by such policies are the responsibility of the parents.

Adopted: 04/28/2016

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JGC **Health Assessments and Physicals** (See JGCB) **JGC**

Unless otherwise provided herein, all students under the age of nine shall submit evidence they have undergone a health assessment prior to entering kindergarten or before enrolling in a Kansas public school for the first time.

The above requirement is not to serve as a barrier to immediate enrollment of students designated as homeless or foster children as required by the Every Student Succeeds Act (ESSA) and the McKinney-Vento Act as amended by ESSA. The district shall work with the Department for Children and Families, the school last attended, or other relevant agencies to obtain necessary documentation of health assessments.

All students engaged in athletic activities covered by KSHSAA rules shall provide the building principal with proof of a physical examination and clearance to participate.

Principals shall work cooperatively with local, county and state health agencies to disseminate materials related to the availability of health assessments.

Adopted: 03/03/2017

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The board is committed to providing a school environment that promotes student health and wellness as part of the total learning experience for its students. To this end, the board shall promote and monitor a local health and wellness plan that includes methods to promote student health and wellness, prevent and reduce childhood obesity, and provide assurance that school meals and other food and beverages sold and otherwise made available on the school campus during the school day are consistent with applicable minimum federal standards. The plan shall:

- Include goals for providing proper student nutrition promotion and education, physical activity, and other school-based activities designed to promote student wellness which are based on evidence-based strategies and techniques;
- Meet federal nutrition standards and guidelines for all foods and beverages provided to students in each school during the school day;
- Ensure standards and nutrition guidelines for all foods and beverages sold to students during the school day at each district school are consistent with the requirements of the School Breakfast Program, the National School Lunch Program, and the competitive food standards established pursuant to the National School Lunch Program.
- Provide students with opportunities to improve personal health and disease prevention;
- Develop essential health skills necessary to maintain and enhance personal and community health behaviors;
- Include goals for addressing student social and mental health needs;
- Develop skills to prevent injury; and
- Understand the effects and consequences of nicotine, alcohol, and drug use.

The superintendent or designee shall be responsible for the implementation and oversight of this policy and plan to ensure each of the district's schools, programs, and curriculum is compliant with this policy, the plan, and existing law and regulations.

Each building principal or designee shall annually report to the superintendent or designee regarding compliance in his/her school. Staff members responsible for programs related to school health and wellness shall also report to the superintendent or designee regarding the status of such programs. The superintendent or designee shall then annually report to the board on the district's compliance with law, policy, and the district's plan related to school wellness.

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Health and Wellness Committee

The board shall establish a health and wellness committee composed of, but not necessarily limited to, at least one of each of the following: school board member, district administrator, district food service representative, student, parent/guardian, school health professional, physical education teacher, and member of the public.

The health and wellness committee shall serve as an advisory committee regarding student health issues and shall be responsible for developing, implementing, and periodically reviewing and updating a school health and wellness policy and plan that complies with law to recommend to the board for adoption.

The health and wellness committee shall review and consider evidence-based strategies and techniques in establishing goals for nutrition education and promotion, physical activity, and other school-based activities that promote student health and wellness as part of the policy and plan development and revision process.

The superintendent or designee and the health and wellness committee shall conduct an assessment at least once every three (3) years on the contents and implementation of this policy and plan as part of a continuous improvement process to strengthen them and ensure proper implementation. This triennial assessment shall be made available to the public in an accessible and easily understood manner and include:

- The extent to which district schools are in compliance with law, policy, and its plan related to school wellness;
- The extent to which this policy and plan compare to model local wellness policies; and
- A description of the progress made by the district in attaining the goals of this policy.

At least once every three (3) years, the district shall update or modify this policy and wellness plan based on the results of the most recent triennial assessment and/or as district and community needs

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and priorities change; wellness goals are met; new health science, information, and technologies emerge; or new federal or state guidance or standards are issued.

The district shall annually inform and update the public, including parents/guardians, students, and others in the community, about the contents, updates and implementation of this policy and plan via the district website, student handbooks, newsletters, or other efficient communication methods. This annual notification shall include information on how to access the school health and wellness policy and plan; information about the most recent triennial assessment; information on how to participate in the development, implementation, and periodic review and update of the school health and wellness policy and plan; and a means of contacting health and wellness committee leadership.

Recordkeeping

The district shall retain records documenting compliance with the requirements of the school health and wellness policy, which shall include:

- The written school health and wellness policy and plan;
- Documentation demonstrating that the district has informed the public, on an annual basis, about the contents of the school health and wellness policy and plan and any updates to these documents;
- Documentation of efforts to review and update the school health and wellness policy and plan, including who was involved in the review and methods used by the district to inform the public of their ability to participate in the review; and
- Documentation demonstrating the most recent assessment on the implementation of the school health and wellness policy and plan and notification of the assessment results to the public.

KASB Recommendation–6/05; 4/07; 6/14; 12/15; 6/17

Adopted: 01/11/2021

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DISTRICT WELLNESS PLAN

The board offers the following district health and wellness plan as a supplement to its health and wellness policy, JGCA. This plan reflects some of the board's elected methods to promote student health and wellness, prevent and reduce childhood obesity, and provide assurance that school meals and other food and beverages sold and otherwise made available on the school campus during the school day are consistent with applicable minimum federal standards. This plan is periodically revised in accordance with policy JGCA. Questions concerning its contents may be directed to the superintendent at 719 N. Main, Belle Plaine, KS 67013.

NUTRITION PROMOTION AND EDUCATION

Designated instructional staff will integrate nutrition education into the district's sequential, comprehensive health education program. The program will be reviewed and updated, as appropriate.

Nutrition education will be interactive and will endeavor to provide students with the knowledge and skills needed to adopt healthy eating behaviors.

Nutrition education may be provided in school cafeterias, as well as in the classroom, with coordination between the food service personnel and teachers.

The district will provide appropriate training to the staff members responsible for providing nutrition education and training to students on strategies for promoting healthy eating behaviors.

Consistent nutrition messages will be disseminated throughout the district, schools, classrooms, cafeterias, homes, and community utilizing one or more of the following methods:

1. Handouts;
2. Posters and bulletin boards;
3. Postings on the district's website;
4. Articles and information provided in district or school newsletters;
5. Presentations that focus on nutritional value and healthy lifestyles;
6. Special programs that highlight aspects of nutrition education; and
7. News media.

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Lessons and Activities

District staff will develop and implement nutrition education lessons and activities for all grades that are appropriate to the student's age and developmental levels.

Instructional staff will be requested to integrate nutritional themes into daily lessons and activities, as appropriate, to complement the academic standards based on nutrition education. Nutritional themes may include, but are not limited to:

1. Knowledge of USDA dietary guidelines;
2. Sources and variety of foods;
3. Guide to a healthy diet, including snacks and the importance of breakfast;
4. Concepts of control and prevention of disease and nutritional deficiencies;
5. Use and misuse of dietary supplements;
6. Understanding calories;
7. Understanding and using food labels;
8. Essential nutrients and their relationship to physical performance and body composition;
9. Appreciating cultural diversity related to food and eating;
10. Recognizing appropriate serving sizes;
11. Safe food preparation, handling, and storage; and
12. Identifying and limiting junk food.

District staff members are expected to be supportive in helping students to practice the nutritional themes used in lessons and activities.

Family and Community Involvement

The superintendent or designee will be responsible for promoting family and community involvement in supporting and reinforcing nutrition education in the schools utilizing one or more of the following methods:

1. Nutrition education materials are sent home with students, posted in school buildings, and made available on the district's website;
2. Parents/Guardians are encouraged to send healthy snacks/meals to school;

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3. Families are invited to attend any exhibitions of student nutrition projects or health fairs;

4. Nutrition education workshops and screening services may be offered;

5. Links with nutrition service providers (e.g., qualified public health and nutrition professionals) may be established on the district's website to inform families about supplemental nutritional services available in the community;

6. Nutrition education curriculum may include homework that students can do with their families, such as:

    a. Reading and interpreting food labels,

    b. Reading nutrition-related articles, and

    c. Preparing healthy recipes; and

7. School staff members will be encouraged to cooperate with other agencies and community groups to provide opportunities for student projects related to nutrition, as appropriate.

PHYSICAL ACTIVITY

Developmentally appropriate physical activities during the school day for students will be designed to achieve optimal health, wellness, fitness, and performance benefits, and may include the following:

1. Daily school-wide exercise program for students in which all students participate in their classrooms;

2. Physical activity breaks for students between lessons or classes, as appropriate; activities will be planned to maximize student participation;

3. Providing information to parents/guardians that encourages students' physical activity outside the school environment, such as outdoor play at home, sports, recreation programs, before and after-school programs, community programs, etc.;

4. Establishing guidelines governing the age-appropriate physical activity opportunities for students that will be provided in each school;

5. Offering and supervising walking programs for students on school property before school, at lunch, or after school;

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6. Daily recess periods for elementary school students featuring time for unstructured but supervised active play;

7. Introducing physical activities other than competitive sports to students;

8. Organizing and supervising walking trains for students going to and coming home from school;

9. Programs conducted before and after school in district facilities providing developmentally appropriate physical activities to students in an effort to promote physical activity. Designated staff will meet with providers of before and after-school programs in district facilities to discuss and support opportunities for physical activity for attendees;

10. Sending students home with suggestions for physical activities for use by parents/guardians through:

    a. Monthly suggested activity calendars,

    b. Periodic information and updates,

    c. Notices of family activity events taking place in the schools or community;

11. Promoting the use of school facilities by students and the community for physical activity, fitness, sports, and recreation programs offered by district schools and/or community-based organizations outside of school hours through:

    a. Announcements,

    b. Posted notices,

    c. Newsletters,

    d. District's website,

    e. District's calendar,

    f. News media.

PHYSICAL EDUCATION

Professional staff will provide physical education instruction that complies with the established curriculum and academic standards to ensure that students develop required skills and knowledge.

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The physical education curriculum and program will be reviewed and updated, as appropriate.

District schools will encourage all students to participate in physical education classes.

Physical education staff will utilize appropriate instructional strategies that provide meaningful inclusion of all students, regardless of skill or fitness level.

The district's physical education programs will:

1. Provide physical activity options and alternatives from a variety of categories such as outdoor, rhythmical, and lifetime;

2. Feature cooperative as well as competitive games;

3. Teach self-management skills as well as movement skills;

4. Actively teach cooperation, fair play, and responsible participation;

5. Promote participation in physical activity outside of school;

6. Endeavor to be an enjoyable experience for students;

7. Encourage lifelong participation in health-enhancing physical activities;

9. Attempt to create a positive learning environment in which students feel safe and supported; and

10. Utilize physical activities that are developmentally appropriate.

Suitably adapted physical education will be included, when practicable, as part of a student's IEP, Section 504 Plan, or accommodation when chronic health problems, disabling conditions, or other special needs preclude such student's participation in regular physical education instruction or activities. Documented medical conditions and disabilities will be accommodated in accordance with the applicable IEP or Section 504 Plan.

An annual assessment and inventory of equipment, facilities, and resources used for physical education courses will be made by physical education staff. Equipment, facilities, and resources determined to be obsolete, out-of-date, unusable, or unsafe will be reported for disposition.

Physical education staff will attend professional development opportunities and in-service programs, in accordance with board policy. District schools will discourage the withholding or use of physical education solely as a form of punishment.

Student physical activity on school grounds during school hours will be supervised to enforce safety rules and to attempt to prevent injuries.

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Building administrators are encouraged to notify district staff that physical activity (e.g., recess) will not be used or withheld as a form of punishment;

Assessment

A local assessment system may be implemented to track student progress on the Health and Physical Education academic standards. Course grades will be awarded in the same manner grades are awarded in other subject areas and will be included in calculations of grade point average, class rank, and academic recognition programs.

Family and Community Involvement

To promote family and community involvement in supporting and reinforcing physical education in the schools, the building principal or designee will be responsible for ensuring that:

1. Physical education activity ideas are sent home with students;

2. Parents/Guardians are actively encouraged to promote their child's participation in the school's physical education programs and any after-school activities through information distributed by the school;

3. Families are invited to attend and participate in physical education activity programs and health fairs when held;

4. Physical education curriculum may include homework that students can do with their families.

5. School staff is encouraged to consider student preferences and interest when developing physical education programs.

6. School staff is encouraged to work with local recreation agencies and community organizations to provide opportunities for students to participate in physical activity programs outside of school.

OTHER SCHOOL BASED ACTIVITIES

Drinking water shall be available and accessible to students, without restriction and at no cost to the student, at all meal periods and throughout the school day.

Nutrition professionals who meet hiring criteria established by the district and in compliance with federal regulations shall administer the school meals program. Professional development and continuing education shall be provided for district nutrition staff, as required by federal regulations.

1. Students shall be provided a clean and safe meal environment.

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2. District administrators may consider offering alternative service models to increase school breakfast participation, such as breakfast served in the classroom and "grab & go breakfast" to reinforce the positive educational, behavioral, and health impacts of a healthy breakfast.

3. Students shall have access to hand washing or sanitizing before meals and snacks.

4. Access to the food service operation shall be limited to authorized staff.

5. Nutrition content of school meals shall be available to students and parents/guardians upon request.

6. The district shall provide appropriate training to staff on the components of the school health and wellness policy and plan.

7. Fundraising projects submitted for approval shall be supportive of healthy eating and student health and wellness or at least neutral on that topic.

8. The district shall support the efforts of parents/guardians to provide a healthy diet and daily physical activity for children by communicating relevant information through various methods.

FUNDRAISERS

Fundraising projects must be submitted for district approval in accordance with district policy. School fundraising activities will be approved with consideration of the following:

1. Fundraising activities held during the school day involving the sale of food or beverages will be limited to foods that meet the USDA Smart Snacks in School nutrition standards, unless an exemption is approved by the building principal;

2. Availability of any food or beverage items sold as part of a fundraising activity will be restricted until at least thirty (30) minutes after the last lunch period;

3. Fundraising activities that promote physical activity will be encouraged; and

4. District staff members are encouraged to select foods and beverages which are low in sugar and fat content to be sold as part of any fundraisers for school sponsored activities, programs, or events outside of the school day.

For purposes of this regulation, school day means the period from midnight before school begins until thirty (30) minutes after the end of the official school day.

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Copies of this administrative regulation will be available in the central office and will be distributed to activity sponsors, student treasurers of school activities, and other interested individuals and groups.

Exempt fundraiser foods or beverages may not be sold in competition with school meals in the food service area during the meal service.

NUTRITION GUIDELINES FOR ALL FOODS/BEVERAGES AT SCHOOL

All foods and beverages available in district schools during the school day shall be offered to students with consideration for promoting student health and reducing obesity.

Foods and beverages provided through the National School Lunch or School Breakfast Programs shall comply with established federal nutrition standards.

Foods and beverages offered or sold at school-sponsored events outside the school day, such as athletic events and dances, shall offer healthy alternatives in addition to more traditional fare.

Competitive Foods

Competitive foods available for sale shall meet or exceed the established federal nutrition standards (USDA Smart Snacks in School). These standards shall apply in all locations and through all services where foods and beverages are sold to students, which may include, but are not limited to: a la carte options in cafeterias, vending machines, school stores, snack carts, and fundraisers conducted during the school day.

Competitive foods are defined as foods and beverages offered or sold to students on school campus during the school day, which are not part of the reimbursable school breakfast or lunch.

For purposes of this policy, school campus means any area of property under the jurisdiction of the school that students may access during the school day.

For purposes of this policy, school day means the period from midnight before school begins until thirty (30) minutes after the end of the official school day.

The district may impose additional restrictions on competitive foods, provided that the restrictions are not inconsistent with federal requirements.

Non-Sold Competitive Foods

Non-sold competitive foods available to students, which may include but are not limited to foods and beverages offered as rewards and incentives, at classroom parties and celebrations, or as shared classroom snacks, shall meet or exceed the standards established by the district.

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If the offered competitive foods do not meet or exceed the Smart Snacks in School nutrition standards, the following standards shall apply:

1. Rewards and Incentives:
    - Foods and beverages shall not be used as a reward for classroom or school activities unless the reward is an activity that promotes a positive nutrition message (e.g., guest chef, field trip to a farm or farmers market, etc.).

2. Classroom Parties and Celebrations:
    - Classroom parties/celebrations with food/beverages shall be limited to no more than one (1) per month in each classroom.

The district may provide a list of suggested nonfood ideas and healthy food and beverage alternatives to parents/guardians and staff, which may be posted via the district website, student handbook, newsletters, posted notices and/or other efficient communication methods.

Marketing/Contracting

Any foods and beverages marketed or promoted to students on the school campus during the school day shall meet or exceed the established federal nutrition standards (USDA Smart Snacks in School) and comply with established Board policy and administrative regulations.

Exclusive competitive food and/or beverage contracts shall be approved by the board, in accordance with provisions of law. Existing contracts shall be reviewed and modified to the extent feasible to ensure compliance with established federal nutrition standards, including applicable marketing restrictions.

SAFE ROUTES TO SCHOOL

District schools may provide appropriate instruction on walking and bicycling safety to students.

To make walking and biking to school safer and easier for students, improvements to school zone traffic safety may be made by:

1. Developing drop-off and pick-up procedures and informing students, parents/guardians, and district staff by means of:

a. Publication in handbooks;
b. Reminders to parents/guardians in the form of letters or emails at the start of each school term and as necessary throughout the school year;
c. Presentation at a student assembly;
d. Presentation at a parent meeting; and/or
e. Posting of notice/signs.

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2. Designating a drop-off and pick-up zone to discourage traffic congestion in front of schools;

3. Conducting regular traffic safety training for school personnel, volunteers, and students who drive to school;

4. Encouraging carpooling to alleviate traffic congestion in front of schools;

5. Staggering school arrival and dismissal times for different grades to minimize the flow of traffic; and

6. Using a designated employee, parent/guardian, or volunteer at drop-off locations to open the student's door and expedite the drop-off process.

Designated school personnel, police, and volunteers may periodically evaluate drop-off and pick-up conditions and provide safety information and instruction to drivers.

The Superintendent or designee may meet periodically with local municipality officials, law enforcement, and community organizations to develop, evaluate, and maintain safe routes to school.

In cooperation with the local ordinances and laws, physical improvements such as curb striping and signage revision may be made to the school's drop-off and pick-up zones and/or parking and stopping spots.

PERSONAL AND COMMUNITY HEALTH

The district will provide a framework to educate, support, and promote health enhancing behavior programs for students' grade levels. Research demonstrates that health students do better in school and score higher on achievement tests. Parents should be involved with the health education provided to their students. Students will be provided opportunities to learn and understand personal health, prevention and control of disease, the dangers of substance use, abuse and addictions, mental and emotional health, injury prevention and safety, and community health needs which may include:

- Major body systems, functions, and relationships between systems;
- Healthy personal hygiene habits;
- Importance of personal health and seeking health care;
- Value of and recommended sleep amounts;
- Healthy and unhealthy habits;
- Leading causes of death and risky behaviors;
- Disease prevention skills;
- Communicable and noncommunicable diseases;
- Relationship between nutrition, exercise, and disease prevention;
- Structure and functions of the immune system;

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- Drug types and dangers of alcohol, tobacco, and other illegal drugs;
- Refusal skills;
- Physical and psychological addictions;
- Cumulative risk behaviors;
- Addictive substances and effects on health;
- Personal strategies for drug-free living;
- Communicating care, consideration, and respect;
- Developing stress management skills;
- Avoiding negative self-talk, self-harm, and suicide;
- Developing positive body image and self-esteem;
- Expressing feelings, wants and needs in a healthy manner;
- Role of the individual in maintaining a healthy community;
- Local community needs, issues, and events; and
- Opportunities to develop and maintain a healthy community.

Adopted 01/11/2021

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JGCB Inoculations (See JGC) **JGCB**

Unless provided otherwise herein, all students enrolling in any district school shall provide the building principal with proof of immunization of certain diseases or furnish documents to satisfy statutory requirements. Booster shots mandated by the Secretary of the Department of Health and Environment are also required.

Notice of this policy and the applicable state law shall be distributed to parents or guardians of current and prospective district students on or before May 15th of each school year. The superintendent shall issue a news release each August explaining the required inoculations and booster shots. Parents may delegate in writing their authority to consent to immunizations. At the beginning of a school year, school boards shall provide information on immunizations applicable to school age children to parents and guardians of students in grades six through 12. The information on immunizations shall include:

(1) A list of sources for additional information; and

(2) related standards issued by the national centers for disease control and prevention.

Students who fail to provide the documentation required by law may be excluded from school by the superintendent until statutory requirements are satisfied. Notice of exclusion shall be given to the parents/guardians as prescribed by law. Students who are not immunized against a particular disease(s) may be excluded from school during any outbreak.

The above requirements are not to serve as barriers to immediate enrollment of students designated as homeless or foster children as required by the Every Student Succeeds Act (ESSA) and the McKinney-Vento Act as amended by ESSA. The district shall work with the Department for Children and Families, the school last attended, or other relevant agencies to obtain necessary documentation of inoculations. Each principal shall forward evidence of compliance with the inoculation law to other schools or school districts when requested by the school or by the student's parents/guardians and shall work cooperatively with local, county, and state health agencies to disseminate materials related to the availability of inoculations. **Adopted: 03/13/2017**

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If the board approves their use in district schools and other facilities, automated external defibrillators shall be properly maintained as required by law and used in accordance with recommended instructions.

Adopted: 04/28/2016

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JGCC Communicable Diseases **JGCC**

Any student noted by a physician or the school nurse, or local health officer as having a communicable disease may be excluded from school for the duration of the illness. The student will be readmitted to regular classes upon termination of the illness, as authorized by the student's physician, the local health officer, or after the expiration of any period of isolation or quarantine. The board reserves the right to require a written statement from the student's physician or local health officer indicating that the student is free from all symptoms of the disease.

If a student is absent from regular classes for more than three consecutive days or the principal has been notified that a student has or is suspected of having a communicable disease, the principal shall determine whether a release shall be obtained from the student's physician or local health department before the student reenters school.

Decisions regarding the type of education and the setting for provision of educational services for a student with a communicable disease shall be based on the child's medical condition, the child's educational needs, and the expected type of interaction with others in the educational setting. Final decisions will be made by school administration after receiving input from the student's physician, public health personnel, the student's parent or guardian, and personnel associated with the proposed care or educational setting.

Adopted: 01/11/2021

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JGCD Health Screenings JGCD

Vision, hearing and dental screenings will be conducted in the district as part of the overall health services program. Such screenings will be administered in accordance with state law. When appropriate, other screenings deemed beneficial to students may be performed in the school health program.

When these screenings cannot be performed by district staff, the board authorizes the superintendent to identify healthcare service providers to provide them. Such healthcare service providers shall be required to enter into a contract with the district prior to providing any screenings or other services to students in the school setting.

Vision Screenings

Basic vision screenings shall be provided to students without charge according to the following schedule:

- Annually for every child participating in IDEA part B programs;
- At least once each school year for students in kindergarten and grades, one, two, three, five, seven, and ten;
- Within the first year of enrollment in the district;
- Upon request by the parent or guardian of a student enrolled in an accredited nonpublic school who resides in the school district.

These basic vision screenings shall be performed by a vision screener designated by the board, who shall follow current state vision screening guidelines for performing the screenings. The results of the screening and, if necessary, referral for an examination by an ophthalmologist or optometrist shall be reported to the parents or guardians of the student. Any referral shall not show

A preference in favor of any particular ophthalmologist or optometrist to provide an additional examination.

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While not part of the board provided vision screening program, each student needing assistance in achieving mastery of basic reading, writing, and mathematics skills shall be encouraged to obtain an eye examination by an optometrist or ophthalmologist to determine if the student suffers from conditions impairing the ability to read. Expenses for such an examination, if not reimbursed through Medicaid, private insurance, or any other governmental or private program, shall be the responsibility of the student's parent or guardian.

Hearing Screening

Each year hearing screening procedures will be conducted for students in their first year of attendance in the district. Such procedures will be provided for other students at a frequency of not less than once every three years unless otherwise specified by state law. Students known to have hearing difficulties and students referred by teachers, parents, and/or physicians will be screened regardless of grade level.

Under certain conditions, hearing screening services are provided for students residing within district boundaries who are enrolled in accredited non-public schools. These services are coordinated between the administration of the accredited nonpublic school and district administration and require a request from the student's parent or guardian. Implementation of the program for nonpublic school students follows the same guidelines as for district students.

The results of the test and, if necessary, the desirability of examinations by a qualified physician shall be reported to the parents or guardians of students
screened.

Dental Screenings

Free dental inspections will be provided to students annually, planned for by designated school staff, and conducted by appropriate dental care providers.

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Students presenting a certificate from a legally qualified dentist providing that a dental examination was completed in the three months prior to the school dental inspection need not be provided with an inspection.

A certificate of the result of a school dental inspection, together with suggestions of requirements for the curing of any defects found, shall be made by the dental care provider making such inspection. One copy of this certificate is to be furnished to the child examined, and another will be filed with the clerk of the board. No dental work other than the inspection and provision of the certificate shall be performed by the examining dental care provider without the consent of the parents or guardian of the child.

Selected Screenings

Other screening procedures may be deemed appropriate and beneficial to students. Designated staff will assist in the planning and implementation of other screening programs following standard procedures.

Screening results, and referrals, when necessary, will be communicated to parents.

In accordance with state law, the parent or guardian of any child entering school for the first time shall be informed of the availability of sickle cell screening and of the location of the nearest facility providing blood tests for sickle cell trait and sickle cell anemia.

Adopted: 09/12/2022

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JGD Student Psychological Services (See JR et seq) **JGD**

Various psychological services are available to students through the district, cooperative special education programs, the county, and the state. Results of any such psychological service, testing program, or consultation services will be kept in strict confidence by school authorities and shall be governed by JR through JRD.

Adopted: 04/28/2016

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The board of education is committed to providing a positive and productive learning and working environment, free from discrimination on the basis of sex, including sexual harassment. The district does not discriminate on the basis of sex in admissions, employment, or the educational programs or activities it operates and is prohibited by Title IX from engaging in such discrimination. Discrimination on the basis of sex, including sexual harassment, will not be tolerated in the school district. Discrimination on the basis of sex of employees or students of the district in any district education program or activity is strictly prohibited.

Sexual harassment is unlawful discrimination on the basis of sex under Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1964, and the Kansas Act Against Discrimination. All forms of sexual harassment are prohibited at school, on school property, and at all school-sponsored activities, programs, or events within the United States.

It shall be a violation for any employee to discourage a student from filing a complaint, or to fail to investigate or refer for investigation, any complaint lodged under the provisions of this policy.

Sexual harassment shall include conduct on the basis of sex involving one or more of the following: (1) A district employee conditioning the provision of an aid, benefit, or service of the district on an individual's participation in unwelcomed sexual conduct; (2) unwelcomed conduct determined by a reasonable person to be so severe, pervasive, and objectively offensive that it effectively

denies a person equal access to the district's educational program or activity; or (3) sexual assault, dating violence, domestic violence, or stalking.

Sexual harassment may result from verbal or physical conduct or written or graphic material. Sexual harassment may include, but is not limited to: verbal harassment or abuse of a sexual nature; pressure for sexual activity; repeated remarks to a person with sexual or demeaning implication;

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unwelcome touching; or suggesting or demanding sexual involvement accompanied by implied or explicit threats concerning a student's grades, participation in extra-curricular activities, etc.

The district encourages all victims of sexual harassment and persons with knowledge of such harassment to report the harassment immediately. Complaints of sexual harassment will be promptly investigated and resolved. Any person may make a verbal or written report of sex discrimination by any means and at any time.

The High School Principal, 901 N. Main Street, Belle Plaine, KS 67013, 620-488-2421, has been designated to coordinate compliance with nondiscrimination requirements contained in Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1967, and the Kansas Act Against Discrimination. Information concerning the provisions of these Acts, and the rights provided thereunder, are available from the Title IX Coordinator. Inquiries about the application of Title IX to the district may be referred to the Title IX Coordinator; to the Assistant Secretary for Civil Rights

JGEC **Sexual Harassment** (See GAAC, GAAD, GAF, JDDC and KN) **JGEC-3** at the U.S. Department of Education, Office of Civil Rights, 400 Maryland Avenue, SW, Washington D.C. 20202-1100, (800)421-3481, or at OCR@ed.gov; or both.

Response to Harassment Complaints

The district takes all reports of sexual harassment seriously and will respond meaningfully to every report of discrimination based on sex, including sexual harassment, of which the district has actual knowledge. Any students who believe that he or she has been subjected to sexual harassment should report the alleged harassment to the building principal, another administrator, the guidance counselor, the Title IX Coordinator, or another licensed staff member. All employees receiving reports of sexual harassment from a student shall notify the Title IX Coordinator.

Definitions

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The following definitions apply to the district in responding to complaints of sexual discrimination including sexual harassment as defined by Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1964, and the Kansas Act Against Discrimination.

The "complainant" means an individual who is alleged to be a victim of conduct that could constitute sexual harassment.

"Dating violence" means violence committed by a person who is or has been in a social relationship of a romantic or intimate nature with the victim where the existence of such a relationship shall be determined based on a

consideration of the length of the relationship, the type of relationship, and the frequency of interaction between the persons involved.

The "decision-maker" reviews all the evidence and prepares an impartial written responsibility determination as to whether the alleged conduct occurred and provides an opportunity for the parties and their representatives to prepare written questions to be answered by the other party. The decision-maker shall not be the Title IX Coordinator or investigator.

"Domestic violence" includes crimes of violence committed by a person who is a current or former spouse, partner, person with whom the victim shares a child, or who is or has cohabited with the victim as a spouse or partner, by a person similarly situated to a spouse of the victim under Kansas or applicable federal law, or by any other person against an adult or youth victim having protection from such person's acts by Kansas or applicable federal law.

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A "formal complaint" means a document filed by a complainant or signed by the Title IX Coordinator alleging sexual harassment against a respondent and requesting that the district investigate the allegation of sexual harassment.

The "investigator" is the person who carries out the investigation after the formal complaint is filed and conducts interviews of the witnesses, collects and documents evidence, and drafts an investigative report.

A "respondent" is an individual who has been reported to be the perpetrator of conduct that could constitute sexual harassment.

JGEC **Sexual Harassment** (See GAAC, GAAD, GAF, JDDC and KN) **JGEC-5** "Sexual assault" means an offense classified as a forcible or nonforcible sex offense under the uniform crime reporting system of the Federal Bureau of Investigation.

"Stalking" means engaging in a course of conduct directed at a specific person that would cause a reasonable person to fear for his or her safety or the safety of others or to suffer substantial emotional distress.

The "Title IX Coordinator" is the individual designated at the district level who has responsibility to coordinate compliance with Title IX of the Education Amendments of 1972, Title VII of the Civil Rights Act of 1964, and the Kansas Act Against Discrimination. The Title IX Coordinator's responsibilities include, but are not limited to: developing materials and ensuring professional development occurs for staff involved in Title IX compliance, creating systems to centralize records, gathering relevant data, contacting the complainant (and/or parents or guardians, if applicable) once the district has actual knowledge of alleged sexual harassment, coordinating the implementation of supportive measures, signing a formal complaint to initiate a grievance process, and ensuring any remedies are implemented.

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The Title IX Coordinator, any investigator, decision-maker, or any person who facilitates an informal resolution process shall not have a conflict of interest or bias for or against the complainant or respondent. These individuals shall receive training on the definition of sexual harassment; the scope of the education program and activities; how to conduct an investigation, including appeals and

informal resolution processes; and how to serve impartially, including avoiding

prejudgment of the facts, conflicts of interest, and bias. Decision-makers shall receive training on issues of relevance of questions and evidence, including when questions and evidence about the complainant's sexual predisposition or prior sexual behavior are not relevant. Investigators shall receive training on issues of relevance of questions and evidence in order for them to create investigative reports that fairly summarize relevant evidence.

Any employee who witnesses an act of sexual harassment or receives a complaint of harassment from another employee or a student shall report the complaint to their immediate supervisor, building administrator, or Title IX Coordinator. Employees who fail to report complaints or incidents of sexual harassment to appropriate district officials may face disciplinary action. District officials who fail to investigate and take appropriate corrective action in response to complaints of sexual harassment may also face disciplinary action.

Complaints received will be investigated to determine whether, under the totality of the circumstances, the alleged behavior constitutes sexual harassment under the definition outlined above. Unacceptable student conduct may or may not constitute sexual harassment, depending on the nature of the conduct and its severity, pervasiveness, and persistence. Behaviors which are unacceptable but do not constitute harassment may provide grounds for discipline under the code of student conduct.

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If discrimination or harassment has occurred, the district will take prompt, remedial action to stop it and prevent its reoccurrence.

The Title IX Coordinator shall promptly respond in a meaningful way to any reports of sexual discrimination including sexual harassment of which the district has actual knowledge as follows:

- Contact the complainant within 10 business days and discuss the availability of supportive measures, with or without the filing of a formal complaint, and consider the complainant's wishes as to supportive measures; and
- Inform the complainant of the right to a formal complaint investigation consistent with Title IX and the informal resolution process.

Supportive Measures

The district will treat the complainant and respondent equitably by offering supportive measures. These non-disciplinary and non-punitive measures will be offered as appropriate, as reasonably available, and without cost to the complainant or the respondent. Supportive measures are designed to restore or preserve equal access to the education program or activity without unreasonably burdening the other party. "Supportive Measures" shall include, but not be limited to, measures designed to protect the safety of all parties, to protect the district's educational environment, or to deter sexual harassment. These measures may include counseling, extensions of deadlines or course-related adjustments, modifications of work or class schedules, escort services, mutual restrictions on contact between parties, changes in work locations, leaves of

increased security and monitoring, and other similar measures. The Title IX Coordinator is responsible for coordinating the effective implementation of supportive measures.

The Formal Complaint

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No investigation of alleged sexual harassment may occur until after a formal complaint has been filed.

A formal complaint is a document filed by the complainant or signed by the Title IX Coordinator alleging sexual harassment and requesting an investigation. The procedures for filing a formal complaint are as follows:

- At the time of filing a formal complaint, a complainant must be participating in or attempting to participate in the education program or activity of the district concerning which the formal complaint is filed.
- A formal complaint should be filed in writing and contain the name and address of the person filing the complaint. The complaint should briefly describe the alleged violation. Filing of the complaint with the Title IX Coordinator may be done in person, by mail, or by email. If an individual does not wish to file a written complaint, and the matter has not been adequately resolved, the Title IX Coordinator may initiate the complaint. Forms for filing written complaints are available in each school building office and the central office.
- A complaint should be filed as soon as possible after the conduct occurs, but not later than 180 calendar days after the complainant becomes aware

- of the alleged violation, unless the conduct forming the basis for the complaint is ongoing.
- An investigation shall follow the filing of the complaint. If the complaint is against the superintendent, the board shall appoint an investigating officer. In other instances, the investigation shall be conducted by a qualified individual designated by the Title IX Coordinator or another individual appointed by the board. The investigation shall be thorough. All interested persons, including the complainant and the respondent, will be afforded an opportunity to submit written or oral evidence relevant to the complaint.

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Formal Complaint Notice Requirements

Upon filing of a formal complaint, the district shall provide written notice to the known parties including:

- Notice of the allegations of sexual harassment including sufficient details to prepare a response before any initial interview including:
  - the identities of the parties involved, if known;
  - the conduct allegedly constituting sexual harassment; and
  - the date and location of the alleged incident, if known.
- An explanation of the district's investigation procedures, including any informal resolution process;
- A statement that the respondent is presumed not responsible for the alleged conduct and that a determination regarding responsibility will be made by the decision-maker at the conclusion of the investigation;

- Notice to the parties they may have an advisor of their choice and may inspect and review any evidence; and
- Notice to the parties of any provision in the district's code of conduct or policy that prohibits knowingly making false statements or knowingly submitting false information.

If, in the course of an investigation, the investigator decides to investigate allegations about the complainant or respondent that are not included in the notice initially provided, notice of the additional allegations shall be provided to known parties.

Formal Complaint Investigation Procedures

To ensure a complete and thorough investigation and to protect the parties, the investigator shall:

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- Ensure that the preponderance of the evidence burden of proof and the burden of gathering evidence sufficient to reach a determination regarding responsibility rests on the district and not the parties;
- Provide an equal opportunity for the parties to present witnesses and evidence;
- Not restrict either party's ability to discuss the allegations under investigation or to gather and present relevant evidence;
- Allow the parties to be accompanied with an advisor of the party's choice;
- Provide written notice of the date, time, location, participants and purpose of any interview or meeting which a party is expected to participate;

- Provide the parties equal access to review all the evidence collected which is directly related to the allegations raised in a formal complaint, including the investigative report, and the opportunity to respond to that evidence before a determination is made;
- Be impartial and objectively evaluate all relevant evidence without relying on sex stereotypes;
- Not have conflicts of interest or bias for or against complainants or respondents;
- Not make credibility determinations based on the individual's status as complainant, respondent, or witness.

Formal Complaint Investigation Report

The investigator shall prepare an investigative report that fairly summarizes relevant evidence and share the report with the parties and their advisors for review and response.

Before completing the investigative report, the investigator must send each party and their advisors the investigative report for review and allow the parties 10 days to submit a written response for the investigator's consideration.

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Decision-Maker's Determination

Upon receiving the investigator's report, the decision-maker must make a determination regarding responsibility and afford each party the opportunity to submit written, relevant questions that the parties want asked of any party or witness, provide each party with the answers, and allow for additional follow-up questions.

The decision-maker must issue a written determination regarding responsibility based on a preponderance of the evidence. The decision-maker's written determination shall:

- Identify the allegations potentially constituting sexual harassment;
- Describe the procedural steps taken, including any notifications to the parties, site visits, methods used to gather evidence, and interviews;
- Include the findings of fact supporting the determination;
- Address any district policies and/or conduct rules which apply to the facts;
- A statement of, and rationale for, the result as to each allegation, including a determination regarding responsibility; and
- The procedures and permissible bases for the complainant and/or respondent to appeal the determination.

The written determination may, but is not required to, recommend disciplinary sanctions and any remedies designed to preserve access to the educational program or activity that may be provided by the district to the complainant.

A copy of the written determination shall be provided to both parties simultaneously.

The range of disciplinary sanctions and remedies may include, but may not be limited to, supportive measures, short term suspension, long term suspension, expulsion for students, and/or termination for employees. Complainants and respondents shall be treated equitably by providing remedies to a complainant where a determination of responsibility for sexual harassment

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has been made. The Title IX Coordinator is responsible for the effective implementation of any remedies. If the investigation results in a recommendation that a student be suspended or expelled, procedures outlined in board policy and state law governing student suspension and expulsion will be followed.

If the investigation results in a recommendation that an employee be suspended with or without pay or terminated, procedures outlined in board policy, the negotiated agreement (as applicable), and/or state law will be followed.

Records relating to complaints filed and their resolution shall be maintained by the Title IX Coordinator for seven years.

The decision becomes final on the date the parties receive the results of an appeal, if any appeal is filed; or on the date the opportunity for an appeal expires.

Appeals

The complainant or respondent may appeal the decision-maker's determination regarding responsibility or a dismissal of a formal complaint, on the following bases:

Procedural irregularity that affected the outcomes;

- New evidence that was not reasonably available at the time that could affect the outcome; and/or
- The Title IX Coordinator, investigator, or decision-maker had a conflict of interest or bias against either party that affected the outcome.

The request to appeal shall be made in writing to the Title IX Coordinator within 1100 days after the date of the written determination. Appeals shall be a review of the record by an attorney, an independent hearing officer appointed by the board, or the board. The appeal decision-maker may not be the Title IX Coordinator, the Investigator, or the decision-maker from the original determination.

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The appeal decision-maker will issue a written decision within 30 days after the appeal is filed. The appeal decision-maker will describe the result of the appeal and the rationale for the result.

The appeal decision-maker shall:

- Review the evidence gathered by the investigator, the investigator's report, and the original decision-maker's determination;
- Notify both parties in writing of the filing of an appeal and give them an opportunity to submit further evidence in writing;
- Not have a conflict of interest or bias for or against complainant or respondent and receive the required training;

- Issue a written decision and the rationale for the decision within 30 days after the appeal is filed;
- Describe the result of the appeal and the rationale for the result in the decision; and
- Provide the written decision simultaneously to both parties and to the Title IX Coordinator.

JGEC **Sexual Harassment** (See GAAC, GAAD, GAF, JDDC and KN) **JGEC-15**

Informal Resolution Process

At any time during the formal complaint process and prior to reaching a determination regarding responsibility, the district may facilitate an informal resolution process, such as mediation, that does not involve a full investigation and determination of responsibility.

The informal resolution process may be facilitated by a trained educational professional, consultant, or other individual selected by the Title IX Coordinator under the following conditions:

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- The parties are provided a written notice disclosing the allegations, the requirements of the informal resolution process, and information on when it may preclude the parties from resuming a formal complaint arising from the same allegations;
- At any time prior to agreeing to a resolution, any party has the right to withdraw from the informal resolution process, resume the investigation of the formal complaint, and be informed of any consequences resulting from participating in the informal resolution process;
- The parties voluntarily and in writing consent to the informal resolution process; and
- The informal resolution process cannot be used to resolve allegations that an employee sexually harassed a student.

If the matter is resolved to the satisfaction of the parties, the facilitator shall document the nature of the complaint and the proposed resolution, have both parties sign the documentation and receive a copy, and forward it to the Title IX Coordinator. Within 20 days after the complaint is resolved in this manner, the Title IX Coordinator shall contact the complainant to determine if the resolution of the matter remains acceptable. If the matter is not resolved, or if the individual does not believe the resolution remains acceptable within 20 days after the informal resolution document is executed, the individual or the Title IX Coordinator may proceed with the formal complaint process.

If discrimination or harassment has occurred, the district will take prompt, remedial action to prevent its recurrence. The district prohibits retaliation or discrimination against any person for opposing discrimination, including harassment; for participating in the complaint process; or making a complaint, testifying, assisting, or participating in any investigation, proceeding, or appeal.

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Use of this complaint procedure is not a prerequisite to the pursuit of any other remedies, including the right to file a complaint with the Office for Civil Rights of the U.S. Department of Education, the Equal Employment Opportunity Commission, or the Kansas Human Rights Commission.

The filing of a complaint or otherwise reporting sex discrimination including sexual harassment shall not reflect upon the individual's status or grades. Any act of retaliation or discrimination against any person who has filed

a complaint or testified, assisted, or participated in any investigation, proceeding, or hearing involving sex discrimination, including sexual harassment, is prohibited. Any person who retaliates is subject to immediate disciplinary action, up to and including expulsion for a student or termination of employment for an employee.

False or malicious complaints of sexual harassment may result in corrective or disciplinary action against the complainant.

A summary of this policy and the complaint procedures including how to report or file a formal complaint of sex discrimination or sexual harassment shall be posted in each district facility shall be published in student handbooks, and on the district's website as directed by the Title IX Coordinator. Notification of the policy may include posting informational notices, publishing in local newspapers, publishing in newspapers and magazines operated by the school, or distributing memoranda or other written communications to students and employees. In addition, the district is required to include a statement of nondiscriminatory policy in any bulletins, announcements, publications, catalogs, application forms,

or other recruitment materials that are made available to participants, students, applicants, or employees.

Adopted: 08/09/2021

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JGECA **Racial and Disability Harassment: Students** **JGECA**
(See GAACA, GAAB, GAF, JDDC and KN)

The board of education is committed to providing a positive and productive learning and working environment, free from discrimination, including harassment, on the basis of race, color, national origin, or disability. Discrimination or harassment on the basis of race, color, or national origin ("racial harassment") or on the basis of disability ("disability harassment") shall not be tolerated in the school district. Racial or disability harassment of employees or students of the district in any district is strictly prohibited.

Racial harassment is unlawful discrimination on the basis of race, color or national origin under Titles VI and VII of the Civil Rights Act of 1964, and the Kansas Acts Against Discrimination. Disability harassment is unlawful discrimination on the basis of disability under Section 504 of the Rehabilitation Act of 1973 and the Americans with Disabilities Act. All forms of racial or disability harassment are prohibited at school, on school property, and at all school-sponsored activities, programs or events.

It shall be a violation for any employee to discourage a student from filing a complaint, or to fail to investigate or refer for investigation, any complaint lodged under the provisions of this policy.

Prohibited conduct under this policy includes racially or disability-motivated conduct which:

- Affords a student different treatment, solely on the basis of race, color, national origin, or disability, in a manner which interferes with or limits the ability of the student to participate in or benefit from the services, activities or programs of the school;

- Is sufficiently severe, pervasive or persistent so as to have the purpose or effect of creating a hostile academic environment; or

- Is sufficiently severe, pervasive or persistent so as to have the purpose or effect of interfering with a student's academic performance or ability to participate in or benefit from the services, activities or programs of the school.

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Racial or disability harassment may result from verbal or physical conduct or written graphic material.

The district encourages all victims of racial or disability harassment and persons with knowledge of such harassment to report the harassment immediately. The district will promptly investigate all complaints of racial or disability harassment and take prompt corrective action to end the harassment.

Any student who believes he or she has been subject to racial or disability harassment or has witnessed an act of alleged racial or disability harassment, should discuss the alleged harassment with the building principal, another administrator, the guidance counselor, or another certified staff member. Any school employee who receives a complaint of racial or disability harassment from a student shall inform the student of the employee's obligation to report the complaint and any proposed resolution of the complaint to the building principal. If the building principal is the alleged harasser, the complaint shall be reported to the district compliance coordinator. The building principal shall discuss the complaint with the student to determine if it can be resolved. If the matter is not resolved to the satisfaction of the student in this meeting, the student may initiate a formal complaint under the district's discrimination complaint procedure in policy KN.

Complaints received will be investigated to determine whether, under the totality of the circumstances, the alleged behavior constitutes racial or disability harassment under the definition outlined above. Unacceptable student conduct may or may not constitute racial or disability harassment, depending on the nature of the conduct and its severity, pervasiveness and persistence. Behaviors which are unacceptable but do not constitute harassment may provide grounds for discipline under the code of student conduct. The discipline of a student for violation of any provision of the code of student conduct may be enhanced if the conduct is racially or disability motivated.

If discrimination or harassment has occurred, the district will take prompt, remedial action to prevent its recurrence.

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An employee who witnesses an act of racial or disability harassment shall report the incident to the building principal. Employees who fail to report complaints or incidents of racial or disability harassment to appropriate school officials may face disciplinary action. School administrators who fail to investigate and take appropriate corrective action in response to complaints of racial or disability harassment may also face disciplinary action.

When a complaint contains evidence of criminal activity or child abuse, the compliance coordinator shall report such conduct to the appropriate law enforcement or DCF authorities.

To the extent possible confidentiality will be maintained throughout the investigation of a complaint. The desire for confidentiality must be balanced with the district's obligation to conduct a thorough investigation, to take appropriate corrective action or to provide due process to the accused.

The filing of a complaint or otherwise reporting racial or disability harassment shall not reflect upon the student's status or grades. Any act of retaliation or discrimination against any person who has filed a complaint or testified, assisted, or participated in any investigation, proceeding, or hearing involving a racial or disability harassment complaint is prohibited. Any person who retaliates is subject to immediate disciplinary action, up to and including expulsion for a student or termination of employment for an employee.

False or malicious complaints of racial or disability harassment may result in corrective or disciplinary action against the complainant.

A summary of this policy shall be posted in each district facility and shall be published in student handbooks and on the district's website as directed by the district compliance coordinator. Notification of the policy shall be included in the school newsletter or published in the local newspaper annually, if applicable.

Adopted: 08/09/2021

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JGFB Supervision of Students (GAO, GBR and JH) **JGFB**

Students shall be supervised by school personnel when they are under the jurisdiction of the school.

Each building principal shall coordinate and assign teachers, aides or paraprofessionals to supervise students engaged in school sponsored activities. All school-sponsored activities shall be supervised by an adult approved by the administration.

Each building principal shall ensure appropriate staff members are available for supervising students at specific times and in designated areas.

Adopted: 04/28/2016

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JGFF **Student Transportation** (See JGG) **JGFF**

Use of Vehicles and Bicycles

The superintendent may develop procedures regulating the driving, parking, and use of vehicles and the use and parking of bicycles or other similar equipment during the school day. Failure to observe district rules and/or procedures may result in disciplinary action.

Rules and procedures concerning use of vehicles and bicycles on school property may be approved by the board and may be included in the student and/or other district handbook.

Walkers

Students who walk to and from school are urged to become familiar with traffic safety laws governing such activities, to be alert to their surroundings, and to exercise caution while crossing streets in high traffic areas.

Notice

At the beginning of each school year, district staff will provide students with appropriate notice of the rules and procedures relevant to their use of transportation to school and school-related activities.

Adopted: 09/12/2022

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JGFG Student Accidents and Health Emergencies JGFG

When a staff member becomes aware that a student has been involved in an accident or is in need of emergency care at school, on school property or at a school-sponsored activity, the staff member shall follow the rules for the care of an injured student and shall report the accident to the building principal. If a student has an accident which appears to require medical treatment, an employee shall send for medical help and try to make the student as comfortable as possible while waiting for medical assistance to arrive. If an employee is qualified to administer first aid, that aid may be given. Qualified employees, for the purpose of this policy, are those employees who have successfully completed an approved first aid program or the school nurse.

When appropriate, the student's parent(s) shall be notified of the student's condition as soon as possible to determine appropriate action. If the student needs medical attention and the parents cannot be reached, the principal shall seek emergency medical treatment.

Emergency Care

At the scene of an emergency or accident when medical help is not readily available to assist in the care of an injured student, an employee may render emergency care or assistance, including, but not limited to, first aid, as deemed reasonably necessary until medical help arrives. Kansas law provides protection from civil liability for any person who, in good faith and without compensation, renders emergency care or assistance to any person, including a minor without first obtaining the consent of the parent or guardian of such minor, at the scene of an emergency or accident. However, this protection does not extend to individuals whose acts or omissions in rendering emergency care in these circumstances.

Records

Appropriate records documenting student accidents shall be maintained.

Adopted: 02/11/2019

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JGFGA Administration of Emergency Opioid Antagonists **JGFGA**

Kansas law creates standards governing the use and administration of emergency opioid antagonists approved by the U.S. Food and Drug Administration ("FDA") to inhibit the effects of opioids and for the treatment of an opioid overdose. Any first responder or school nurse is authorized to possess, store, distribute, and administer emergency opioid antagonists as clinically indicated, provided that all personnel with access to emergency opioid antagonists are trained in proper protocol.

Similarly, Kansas law allows a patient or bystander (meaning a family member, friend, caregiver, or other person in a position to assist a person who the bystander believes to be experiencing an opioid overdose) to acquire and utilize emergency opioid antagonists.

Therefore, to prioritize student health and safety in its schools, programs, and activities, the board authorizes the district to obtain, store, and administer naloxone, Narcan, and/or other opioid antagonists for emergency use in its schools. The school nurse or other properly trained staff member may administer such medication in emergency situations. Opioid antagonists may be available during the regularly scheduled school day. They may be available at other times at the discretion of the superintendent.

The board establishes the following rules governing the utilization and administration of emergency opioid antagonists, such as, but not necessarily limited to, naloxone and Narcan, by members of district staff.

Training

If obtaining the emergency opioid antagonist through a pharmacy, the providing pharmacy of the emergency opioid antagonist (hereafter "the product") shall provide written education and training materials to the individual to whom the product is dispensed. First Aid for Opioid Overdose must be obtained by each school nurse and other staff members designated by the superintendent to respond to potential opioid overdose situations. In addition, all district staff members with access to emergency opioid antagonists shall be trained, at a minimum, on the following:

- Techniques to recognize signs of opioid overdose;
- standards and procedures to store, distribute, and administer an emergency opioid antagonist;
- emergency follow-up procedures, including the requirement to summon emergency ambulance services either immediately before or immediately after administering an emergency opioid antagonist to a patient; and
- inventory requirements and reporting any administration of an emergency opioid antagonist to the school nurse or another healthcare provider.

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District staff members personally acquiring such products for use as a patient or bystander are encouraged to inform the school nurse or the superintendent's designee, so that they may be trained in proper protocol and included in the school or district's crisis response plan regarding potential opioid overdose.

Procurement of the Product

The school nurse or other staff member(s) designated by the superintendent will be responsible for the procurement of the product.

Storage

The following storage protocols shall be followed:

- The product will be clearly marked and stored in an accessible place at the discretion of the school nurse or the superintendent's designee.
- The product will be stored in accordance with the manufacturer's instructions to avoid extreme cold, heat, and direct sunlight.
- Inspection of the product shall be conducted at least quarterly.
- The individual responsible for the product's safekeeping shall check, document, and track the expiration date found on the box and replace the product once it has expired.

Use of the Product

In case of a suspected opioid overdose, the school nurse, designee, or other individual shall follow the protocols outlined in the training or product instructions.

Follow-up

- After administration of the product, the school nurse, or other designated staff, will report appropriate information to emergency services, parents (guardians), central office personnel, and if determined necessary, the patient will be transported to a hospital.
- The school nurse or other designated staff will complete the designated incident report and file the report with the school nurse or district office, whichever is applicable.

Protection from Liability

Any patient, bystander, school nurse, a first responder, or technician operating under a first responder agency, who, in good faith and with reasonable care, receives and administers an emergency opioid antagonist pursuant to this policy to a person experiencing a suspected opioid overdose shall not, by an act or omission, be subject to civil liability or criminal prosecution, unless personal injury results

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from the gross negligence or willful or wanton misconduct in the administration of the emergency opioid antagonist.

Adopted: 09/09/2024

KASB Recommendation – 6/23

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NALOXONE (NARCAN) INCIDENT REPORT

Instructions: *To be completed as soon as possible after the incident occurred and appropriate response actions/interventions were taken. File form with the building principal.*

Date of report: _____

Name of person completing this report:

Patient name:

Date of birth: _____ Grade: _____

Date incident occurred: _____ Time: _____ ☐am ☐pm

Person providing medication:

Dose: _____

SUMMARY OF INCIDENT

Provide a summary of the incident and describe how it occurred: _____

_____

_____

_____

ACTION TAKEN/INTERVENTION

911 Called: ☐Yes ☐No

School nurse notified: ☐Yes, Date: _____ Time: _____ ☐No ☐N/A

Parent/Guardian notified: ☐Yes, Date: _____ Time: _____ ☐No ☐N/A If yes, name of the parent/guardian who was notified: _____

Describe interventions taken and outcome: _____

_____

_____

_____

FOLLOW-UP AND PREVENTION (To be completed by building principal)

List any follow-up information related to the incident and prevention measures enacted to prevent similar incidents in the future: _____

_____

_____

Building administrator's signature: _____

Date: _____

Name of District: _____

6/23

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Stock Supply of Emergency Medication **JGFGAA**

Any school may maintain a stock supply of emergency medication, such as epinephrine and/or albuterol, upon obtaining a prescription from a physician, certified nurse-midwife, a licensed advanced practice registered nurse, or a licensed physician assistant.

A stock supply of epinephrine may consist of one or more standard-dose or pediatric-dose epinephrine auto-injectors. A school nurse or designated school personnel may administer epinephrine in an emergency situation to any individual who displays the signs and symptoms of anaphylaxis at school, on school property or at a school-sponsored event if the staff member reasonably believes that an individual is exhibiting the signs and symptoms of an anaphylactic reaction.

A stock supply of albuterol may consist of one or more albuterol metered-dose inhalers, one or more doses of albuterol solution and one or more spacers or nebulizers. A school nurse or designated school personnel may administer albuterol in an emergency situation to any individual who displays the signs and symptoms of respiratory distress at school, on school property or at a school-sponsored event if the staff member reasonably believes that an individual is exhibiting the signs and symptoms of respiratory distress.

A school that maintains a stock supply of emergency medication shall adhere to the following requirements and establish procedures in accordance therewith:

- The emergency medication will be stored in a safe location that is readily accessible to the school nurse or designated school personnel in accordance with manufacturer temperature recommendations;
- The school nurse or designated school personnel shall periodically monitor the inventory and expiration dates of the emergency medication;
- Emergency medication shall only be administered by designated school personnel; and

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- Training requirements for designated school personnel shall be conducted as outlined in this policy.

Information related to the school's emergency medication policies and procedures shall be published student and employee handbooks.

A school may accept monetary gifts, grants, and donations to carry out the provisions of this section or may accept epinephrine auto-injectors, albuterol metered-dose inhalers, albuterol solution, spacers, or nebulizers from a manufacturer or wholesaler.

Training

Training shall be conducted by a school nurse, physician, or mid-level practitioner at least annually for designated school personnel. Such training shall include, but may not be limited to, the following:

- Recognition of the symptoms of anaphylaxis and respiratory distress;
- Administration of emergency medication;
- Calling for emergency medical system responders;
- Monitoring the condition of an individual after emergency medication has been administered;
- Notification of the parent, guardian, or next of kin; and
- Safe disposal and sanitation of used equipment.

The school shall maintain records of the training provided to designated school personnel.

Use of Stock Medication

If epinephrine or albuterol is administered in an emergency situation, the school nurse, designee, or other individual shall follow the protocols outlined in the training or product instructions.

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Follow-up

After administration of the emergency medication, the school nurse or other designated staff member will report appropriate information to emergency services, parents or guardians, central office personnel, and, if determined necessary, the patient will be transported to a hospital.

The school nurse or other designated staff member will complete an incident report and file the report with the school nurse or district office, whichever is applicable.

Protection from Liability

- The practice of the healing arts shall not be construed to include any person administering epinephrine or albuterol in emergency situations to an individual if:
- The person administering the epinephrine reasonably believes that the individual is exhibiting the signs and symptoms of an anaphylactic reaction; or
- The person administering the albuterol reasonably believes that the individual is exhibiting the signs and symptoms of respiratory distress;
- A physician or mid-level practitioner, after reviewing the school's policies and procedures, has authorized, in writing, the school to maintain a stock supply of emergency medication; and
- The emergency medication is administered at school, on school property or at a school-sponsored event.

Any person who in good faith renders emergency care or treatment, without compensation, through the administration of emergency medication to an individual at school, on school property, or at a school-sponsored event, and any school that employs or contracts such person shall not be held liable for any civil damages as a result of such care or administration or as a result of any act or failure to act in

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providing or arranging further medical treatment when the person acts as an ordinary reasonably prudent person would have acted under the same or similar circumstances.

Adopted: 02/10/2025

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JGFGB Supervision of Medications (See JGFGBA) JGFGB

The supervision of medications shall be in strict compliance with the rules and regulations of the board as carried out by district personnel. Diagnosis and treatment of illness and the prescribing of drugs and medicines are not the responsibility of the public schools and are not to be practiced by any school personnel, including school nurses, unless authorized.

School personnel shall not be required to be custodians of any medication except as required by a written order of a licensed medical person. Pre-school-8th grade students are not allowed to take medication at school by themselves unless we have agreed to a rare exception.

The medication shall be examined by the school employee administering the medication to determine that it appears to be in the original container, to be properly labeled and to be properly authorized by the written order of the licensed medical person. Two containers, one for home and one for school should be requested from the pharmacist.

Any changes in type of drugs, dosage and/or time of administration should be accompanied by new physician and parent permission signatures and a newly labeled pharmacy container.

All medication maintained in the school setting should be kept in a locked container. This includes medication requiring refrigeration.

Medications should be inventoried at the end of each school year. Out-of-date stock should be returned to the parent or destroyed.

Over-the-counter medications should not be maintained on any school premises, including athletic areas.

The building administrator may choose to discontinue the administration of medication provided that the parents or medical person are notified in advance of the date and the reasons for the discontinuance.

An individual record should be kept of each medication administered. The record should include student identification, date prescribed, name of medication, time and date(s) administered, signature of person administering and section for comments.

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In the administration of medication, the school employee shall not be deemed to have assumed any legal responsibility other than acting as a duly authorized employee of the school district.

Adopted: 09/09/2013

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Epinephrine and Inhalers

The self-administration of medication is allowed for eligible students in grades K–12. As used in this policy, medication includes, but is not limited to a medicine for the treatment of anaphylaxis or asthma including, listed in current federal regulation as an inhaled bronchodilator or auto-injectable epinephrine. Self-administration is the student's discretionary use of an approved medication for which the student has a prescription or written direction from a health care provider.

As used in this policy, "health care provider" means a physician licensed to practice medicine and surgery; an advanced registered nurse practitioner, or a licensed physician assistant who has authority to prescribe drugs under the supervision of a responsible physician.

Student Eligibility

An eligible student shall meet all the following requirements:

- Have a written statement from the student's health care provider stating the name and purpose of any prescription medication/s;
- Know the prescribed or recommended dosage; and
- Know the time the medication is to be regularly administered;
- Be able to articulate any additional special circumstances under which the medication is to be administered;
- Know the length of time for which the medication is prescribed;
- The student shall also demonstrate to the health care provider or the provider's designee, as applicable, and the school nurse or the nurse's designee the skill level necessary to use the medication and any device that is necessary to administer the medication. In the absence of a school nurse, the school shall designate a person who is trained to witness the demonstration.

Authorization Required

With regard to prescription medications that are not administered on a regular schedule, the student's health care provider shall prepare a written treatment plan for managing the student's asthma or anaphylaxis episodes and for medication use by the student during school hours. The student's parent or

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guardian shall **annually** complete and submit to the school any written documentation required by the school, including the treatment plan prepared by the student's health care provider. Permission forms shall be updated during enrollment and as needed during the year**.**

Employee Immunity

All teachers responsible for the student's supervision shall be notified that permission to carry medications and self-administer has been granted. The school district shall provide written notification to the parent or guardian of a student that the school district and its officers, employees and agents are not liable for damage, injury or death resulting directly or indirectly from the self-administration of medication.

Waiver of Liability

The student's parent or guardian shall sign a statement acknowledging that the school districts and its officers, employees or agents incur no liability for damage, injury, or death resulting directly or indirectly from the self-administration of medication and agreeing to release, indemnify and hold the district and its officers, employees and agents, harmless from and against any claims relating to the self-administration of medication allowed by this policy.

Additional Requirements

- The school district shall require that any back-up medication provided by the student's parent or guardian be kept at the student's school in a location to which the student has immediate access if there is an asthma or anaphylaxis emergency;
- The school district shall require that all necessary and pertinent information be kept on file at the student's school in a location easily accessible if there is an asthma or anaphylaxis emergency;
- Eligible students shall be allowed to possess and use approved medications at any place where the student is subject to the jurisdiction or supervision or the school district, its officers, employees or agents; or
- The board may adopt policy or handbook language which imposes additional requirements relating to the self-administration of medication allowed for in this policy and may establish a procedure for, and the conditions under which, the authorization for student self-administration of medication may be revoked.

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Over the Counter Medications

A student may self-administer specified over-the-counter medications with written parental authorization on file in the school office.

The student's parent or guardian shall sign a statement acknowledging that the school district and its officers, employees, or agents incur no liability for damage, injury, or death resulting directly or indirectly from the self-administration of over-the-counter medication and agreeing to release, indemnify, and hold the district and its officers, employees, and agents, harmless from and against any claims relating to the self-administration of medication allowed by this policy.

Misuse of Medication

Self-administration of any medication, including prescription and over-the-counter medication, at a dosage rate exceeding product label instructions may result in denial of the privilege to self-administer any medication and/or disciplinary action as outlined in policy JDDAA.

Adopted: 02/10/2025

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JGFGBB Accommodating Students with Diabetes JGFGBB

As used in this policy, diabetes management and treatment plan means a plan prepared and implemented for a student with diabetes which is prescribed by a physician licensed to practice medicine and surgery; a certified, advanced registered nurse practitioner who has authority to prescribe drugs; or a licensed physician assistant who has authority to prescribe drugs pursuant to a written protocol with a responsible physician.

Student Eligibility

Self-care of diabetes may be allowed for students in grades K-12. To be eligible, a student shall meet all requirements of this policy.

Parents or guardians shall submit a written diabetes management and treatment plan from the student's health care provider.

The student shall provide written authorization from the student's health care provider and parent or guardian stating the student has been instructed on managing and caring for their diabetes and is authorized to do so in school. An annual written renewal of parental authorization for the self-care of diabetes shall be required.

While at school, each student capable of managing and caring for the student's diabetes will be allowed to:

- Perform blood glucose level check,
- Administer insulin through the delivery system the student uses,
- Treat hypoglycemia and hyperglycemia,
- Possess the supplies or equipment necessary to monitor and care for their diabetes.

Storage of insulin and needles will be at the discretion of school personnel.

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- Otherwise attend to the management and care of the student's diabetes in the classroom, in any area of the school, on school grounds, or at any school-related activity.

Notwithstanding the above, the district reserves the right to put reasonable place and manner procedural safeguards in place for the safe and nondisruptive exercise of such rights by students with diabetes.

Employee Immunity

The board and its employees and agents, who authorize the self-administration of medication and treatment for diabetes in compliance with the provision of this policy, shall not be liable in any action for any injury resulting from the self-administration of medication. The district shall provide written notification to the parent or guardian of a student for whom this policy is applicable that the board and its employees and agents are not liable for any injury resulting from the self-administration of medication. The parent or guardian shall sign such notice and acknowledge that the district incurs no liability for any injury resulting from the self-administration of medication and agrees to indemnify and hold the board and its employees and agents harmless against any claims relating to the self-administration of medication pursuant to this policy.

Adopted: 10/13/14

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JGG Transportation (See ED and EDDA) JGG

School-provided transportation shall be available to and from school for those students who qualify. Transportation may be provided by the district for all school activities. Transportation may be denied to students who are detained after school for disciplinary reasons.

Students who use school-provided transportation shall be under the jurisdiction of the vehicle driver while in the vehicle. Students shall be subject to the district's student behavior code and other regulations developed by the superintendent and approved by the board.

Drivers shall report violations of the rules to the building principal who may discipline students. The principal may suspend or revoke the transportation privilege of a student who violates any rule or regulation.

When the district provides transportation to an activity, participating students are prohibited from driving personal automobiles to and from district-sponsored activities held during or after the school day. Exceptions must be approved by the administration.

All rules shall be published in the student handbook.

Adopted: 09/12/2022

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JGGA Use of Surveillance Cameras (See CN and JR et seq) **JGGA**

The district may use surveillance cameras to monitor student activity.

Surveillance cameras may be used to monitor students riding in district vehicles and to monitor student behavior in or around any district facility.

Surveillance footage which is a record of student behavior shall be secured in a secure location until the digital storage mechanism or tape on which the footage is maintained is either reused or erased. Surveillance footage of personally identifiable students depicting their involvement in an altercation or other violation of law or policy shall be considered a student record and shall be subject to current law for the release of student record information.

Adopted: 7/14/14

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JGH School Food Service Programs **JGH**

The district shall provide a school food service program. Food service rules shall be published in student handbooks. Building principals shall develop individual building rules.

Free or Reduced-Price Meals

Free or reduced-price meals shall be provided for students who qualify under state and federal rules and regulations.

The eligibility forms, rules and regulations governing this program shall be provided by the administration to students or their parents.

Contracts with Other Agencies

The board may enter into contracts with the governing authority of any nonpublic school or any child-care institution to provide meals for children who attend these institutions. The board may also contract for meal service with any municipality, any state university or any corporation whose operations are substantially controlled by a state university. Contracts shall provide for payment of the costs incurred by the district to provide the service. Income received by the district under any contract to provide this service shall be deposited in the district food service fund and may be expended whether budgeted or not.

Adopted: 09/09/2013

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JGHB **Vending Machines and Other Automated Play Machines** **JGHB**
(See DK and JGCA)

No vending machine or play machine may be placed in any building without prior approval of the superintendent.

Vending machine foods and beverages available for sale to students will comply with established federal nutrition standards and guidance on snacks in school.

Advertising associated with product vending will be limited to signage on equipment, paper cups and other serving containers, and will promote a positive nutrition message.

The building principal shall manage the machine(s). A monthly report shall be prepared by each principal showing all receipts and expenditures for each machine. Proceeds from machines shall be deposited in the appropriate activity account.

Approved:

KASB Recommendation–7/96; 4/07; 6/17

Adopted: 06/26/2017

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(See DK, JGFB, JM and KG)

The principal shall be responsible for organizing and approving all student activities. All school-sponsored activities shall be supervised by an adult approved by the administration.

Eligibility for Activities

Unless otherwise provided herein, students who participate in any school activity shall meet the following requirements:

- all applicable KSHSAA regulations;
- academic eligibility requirements noted in handbooks; and
- other requirements requested by the administration and approved by the board.

Participation in Kansas State High School Activity Association Activities

Any student meeting the following requirements shall be permitted to participate in any district activities that are regulated, supervised, promoted, and developed by the Kansas State High School Activities Association ("KSHSAA"). The requirement includes:

- Being a resident of the school district;
- being enrolled and attending a virtual school as defined in K.S.A. 72-3712, or a nonpublic elementary or secondary school;
- complying with the health certification and inoculation requirements of K.S.A. 72-6262, as amended, prior to participation in any such activity;
- meeting applicable age and eligibility requirements required by KSHSAA;
- paying any fees required by the district for participation in such activity, if such fees are generally imposed upon all other students who participate in the activity; and
- seeking participation at the appropriate school of the district that corresponds to where the student resides within the school district's respective school attendance boundaries established by the board.

Except as otherwise provided in this policy, any student attending a virtual school, who seeks to participate in an activity in the student's resident school district shall not be required to enroll in or attend a minimum number of courses at such school district.

Any student attending a home school, who is a resident of the district and seeks to participate in a KSHSAA activity sponsored by the district, shall be deemed to meet any academic eligibility requirements established by KSHSAA for participation in such activity if:

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- The student is maintaining satisfactory progress towards achievement or promotion to the next grade level; and
- the parent, teacher, or organization that provides instruction to the student submits an affidavit or transcript to KSHSAA indicating the student meets these academic eligibility requirements.

Upon submission of an affidavit, the student attending a home school shall be deemed to meet any academic eligibility requirements established by KSHSAA and shall retain such academic eligibility during the activity season for which the affidavit was submitted.

The board may require a student who participates in an activity pursuant to this policy, including, but not limited to, virtual school students, to enroll in or complete a particular course as a condition of participation, if such requirement is imposed upon all other students who participate in a particular KSHSAA activity.

Except as provided in this policy regarding modified academic eligibility requirements for home school students, and any student who seeks to participate in an activity pursuant to this policy shall be subject to any tryout or other participation requirements that are otherwise applicable to all other students for participation in the activity.

Adding or Eliminating Activities

Administrative recommendations to add or eliminate specific activities {shall/may} be considered by the board. Individual patrons or groups of patrons may request the addition or elimination of activities using rules approved by the board and filed with the clerk.

Activity Fund Management

The building principals shall maintain an accurate record of all student activity funds in the respective attendance centers. A monthly report to the board of the revenue and expenditures of the activity fund shall be made. No funds shall be expended from these accounts except in the support of the student activity program.

Receipts shall be issued for all revenue taken into the activity fund of each attendance center. All payments from the activity fund shall be by checks provided for that purpose.

Adopted: 09/09/2024

KASB Recommendation – 6/00; 4/07; 11/12; 12/15; 6/23, 6/24

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JHC Student Organizations **JHC**

Students may form clubs and other groups organized to promote or pursue specialized activities outside the regular classroom. Membership in student organizations, whether school sponsored or non-school sponsored, must be open to all interested and eligible students. The building principal and the board shall approve school sponsored student organizations, and a staff member shall attend the meetings or activities to supervise use of the facilities by all student organizations as an advisor or supervisor.

Student Clubs

The administrator shall establish regulations for the operation of school sponsored clubs, and for the use of school facilities by non-school- sponsored clubs.

School sponsored clubs shall be under the direct control of school personnel. Every school sponsored club shall have a constitution which has been approved by the building principal and filed in the school office. If non-curriculum related school sponsored clubs are allowed to meet on school property during non-instructional time, then non-school sponsored student clubs may also meet on school property at such times.

Non-School Sponsored Student Clubs

Non-school sponsored clubs shall submit a request for use of school facilities and have such request granted prior to using the facilities. The non-school sponsored club shall specify in its facility use request the adult who will provide supervision of the activity.

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Student Government

Student councils under the direct control of the building principal or designated faculty representative may be established. Student councils may exercise only the authority expressly delegated to them by the building principal.

Adopted: 09/12/2022

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School-Sponsored Student Publications

School-sponsored student publications shall be under the supervision of the building principal or designated faculty representative.

Students who have facts and opinions should be allowed to express them in print as well as through oral communications. However, student editors and writers must observe the same legal responsibilities as those imposed upon conventional newspapers and communication media. No student shall distribute any school publication which:

Is obscene according to current legal definitions;

Is libelous according to current legal definitions; or

Creates a material or substantial interference with normal school activity or with appropriate discipline in the operation of the school.

Student publications which are not libelous, disruptive, or obscene may be distributed on school property during school hours at times and in areas designated by the building principal.

If a decision to disapprove distribution of a publication is made, the principal shall state reasons for the decision to the student(s).

If the student is dissatisfied with the principal's decision, the student may appeal the decision to the superintendent.

Non-School Sponsored Student Publications

Non-school sponsored student publications may be distributed on school property at times and in areas designated by the building principal.

Distribution of any non-school-sponsored publication may be halted if the material is obscene or libelous, or creates a material or substantial disruption of normal school activity or interferes with the operation of the school.

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Distribution in violation of this policy may result in suspension, expulsion or other discipline of the students involved.

Advertisements

Ads concerning illegal drugs, any controlled substances, or any illegal activity are prohibited in school sponsored publications.

Adopted: 04/28/2016

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JHCAA Gang Activity JHCAA

(See JCAC, JCDA, JCDBB and JDD)

Gang intimidation is the communication of any threat of personal injury to another, actual personal injury to another, or any threat of or actual damage to another's property. Gang intimidation on school owned or operated property; at school-sponsored activities, programs, or events, or which disrupt the school environment is prohibited.

Disciplinary action may be taken against any student for participating in gang intimidation, or causing and/or participating in gang-related activities on school owned or operated property or at school-sponsored activities, programs, or events. District staff may be provided in-service training regarding gang behavior and characteristics to facilitate identification of students involved in gang activities.

Adopted: 01/11/2021

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JI Community Activities **JI**

Students shall not participate in any community activities during school hours without the prior permission of the principal, unless those activities are undertaken as part of a course's approved curriculum.

Adopted: 04/28/2016

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JJ Employment of Students (See IDAA) **JJ**

In-School Employment

Students may be employed by the district. The district shall not employ students in hazardous jobs.

Outside Employment

A student who needs to work on a regular basis during the school day shall file a written request with the principal. If the request is approved, the student shall file a work schedule with the principal. Changes in the schedule shall be reported by the student to the principal. The student shall not begin the new schedule unless the change is approved by the principal.

Vocational or Other Work Experience

A student who works in a board-approved vocational or other work-experience program shall have a schedule developed cooperatively by the employer and the supervising teacher and approved by the principal prior to beginning the work activity.

All board policies remain applicable to students participating in vocational or other work experience programs.

Adopted: 09/09/2013

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JK Solicitations (See KI) **JK**

Commercial firms shall not be permitted to solicit students during school hours or on school property without prior approval of the administration.

Solicitations by students of students during school hours and on school property shall be done only when they are related to school sponsored activities. All student sales projects shall require the principal's prior approval.

Representatives from commercial schools, colleges, armed forces or other agencies shall be permitted to meet with students only by permission of the principal. Student contact by these organizations shall be arranged for and supervised by the guidance office.

Adopted: 09/09/2013

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JL Gifts (See DK, GAJ and KH) **JL**

The giving of gifts between students and staff members is discouraged.

Student Gifts to Staff Members

Students shall be allowed to collect money or purchase gifts for faculty members with the principal's approval.

Faculty Gifts to Students

A gift by a faculty member to an individual student or to classes of students during school hours or on school property shall require prior approval of the principal.

Student Organization Gifts to the School

Student organizations, with prior approval of the organization sponsor and building principal, may donate a portion of the organization's funds to the district. These donations shall require prior board approval.

A gift is defined as any donation, present or endowment in the form of cash, merchandise or personal favor.

Any student organization gift to the district shall become district property when accepted by the board.

Adopted: 09/09/2013

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JM Contests for Students (See JH) **JM**

No student shall enter any contest as a school representative unless the contest is approved by the KSHSAA or by the administration.

Adopted: 09/09/2013

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Awards for participation in interscholastic activities shall be limited to those approved by the KSHSAA.

Adopted: 09/09/2013

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JQ Exceptional Students (See IDCE and JBE) **JQ**

All programs for exceptional students shall be managed in accordance with the local plans for exceptional students, the policy and rules of the local board, and the rules and regulations of the state board of education.

Concurrent Enrollment

A student enrolled in grades 10, 11, or 12, or a gifted child in grades 9 through 12 who has demonstrated the ability to benefit from participation in the regular curricula of eligible postsecondary education institutions, may apply to the principal for permission to enroll at an eligible postsecondary education institution.

Adopted: 09/09/2013

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JQA Temporarily Disabled Students (see JDACB and JGFGBA) JQA

Students who are temporarily disabled by illness, operation or accident authenticated by a health care provider's order, may be eligible for alternative educational services or accommodations in their regular program which allow for meaningful participation in the program.

Students with injuries which prohibit participation in physical education or other classes shall present to the building principal a health care provider's statement prohibiting such activity.

Teachers shall follow medical instructions relating to limitations on the student's participation, and shall either provide alternative methods for the student to earn a credit/grade in the class during the period of the disability or contact the district 504 coordinator for consideration of evaluation under Section 504.

For the purposes of this policy, health care provider shall have the meaning subscribed to in board policy JGJGBA.

Adopted: 04/28/2016

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JQE Alternative Arrangements for Nontraditional Students JQE

Married students, pregnant students and students who are parents shall have access to the same educational opportunities, services and extracurricular activities provided to other students.

A pregnant student may be required to provide a health care provider's release to be allowed to participate in school activities which could pose a health or safety risk.

If there is a delay in obtaining a health care provider's release, in the student's best interest, the administration may deny activity participation until the release is made available.

Adopted: 04/28/2016

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JQKA Foreign Exchange Students (See JBC) **JQKA**

Foreign exchange students from approved organizations may be admitted to the district on a tuition-free basis to the extent staff, facilities, equipment, and supplies are available. Other foreign exchange students who meet residency requirements may be allowed to enroll in the district under rules established by the board. Students who enter the country on an F-1 visa shall pre-pay tuition equal to the current cost per pupil as calculated by the Kansas State Department of Education.

Adopted: 08/10/2020

KASB Recommendation–7/96; 9/97; 4/07; 12/15; 6/20

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JQL Hearing Procedures for Exceptional Students JQL

A hearing procedure shall be available to parents or guardians of exceptional students according to state board of education regulations, the state special education plan, locally adopted procedures, and applicable laws.

Adopted: 04/28/2016

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JQLA Class-size/Caseload Limits for Exceptional Students JQLA

The superintendent shall periodically develop and review class-size/caseload limits for students with exceptionalities.

Adopted: 04/28/2016

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JR Student Records **JR**

(See BCBK, CN, CNA, ECA, IDAE, JGGA, JR et seq. and KBA)

All student records shall be treated as confidential and primarily for local school use unless otherwise stipulated.

When records include information on more than one student, the parents/guardians of any student shall have access to copies of that part of the record that pertains to their child. Each school shall establish procedures for the granting of a request by parents/guardians for access to their child's school records within a reasonable period of time, but in no case more than 45 days after the request has been made.

In situations where the parents of a student are divorced or separated, each parent, custodial and/or non-custodial, shall have equal rights to their child's records unless a court order specifies otherwise. Private agreements between the student's parents shall not be recognized by the district's personnel.

Parents/guardians shall have an opportunity for a hearing to challenge the content of their child's school records to ensure that the records are not inaccurate, misleading or otherwise in violation of the privacy or other rights of students; to have an opportunity for the correction or deletion of any inaccurate, misleading or otherwise inappropriate data contained therein; and to insert into records the parent's/guardian's written explanation of the content of the records.

Any eligible parent/guardian or student may inspect the personal records of the student during regular school office hours. The district reserves the right to interpret selected records to students and/or parent/guardians at the time of the inspection.

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When a student attains 18 years of age, the permission or consent required of and the rights accorded to the parents of the student shall thereafter only be required of and accorded to the student.

The public shall be informed annually of the categories of information the institution has determined to be directory information.

Adopted: 09/09/2013

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Types of Records

(See BCBK, CN, CNA, ECA, IDAE, JGGA, JR et seq. and KBA)

Permanent Student Records: Each school shall permanently retain records relating to each student's academic performance, attendance and activities. Information about students collected and stored by any school personnel shall be separated into one of the following classifications:

Administrative records: official administrative records that constitute the minimum personal information necessary for operating the educational system. It shall include birth date, sex, race, names, telephone numbers, addresses and places of employment of parents, academic work completed, grades, attendance records, withdrawal and reentry records, honors and activities, date of graduation and follow-up records of a student.

Supplementary records: verified information important in operating the educational system but is of a more sensitive nature and of less historical importance. It includes: test data, such as scores on standardized achievement, aptitude and intelligence tests; observational data such as systematically gathered teacher or counselor evaluations and observations of social and personal assets; clinical findings and verified reports of serious or recurrent deviant behavior patterns; general data such as health data, family background information and educational and vocational plans.

Tentative records: useful information that has not been verified or is not clearly needed beyond the immediate present. It includes unevaluated reports of teachers or counselors that may be needed in ongoing counseling or disciplinary actions.

Adopted: 09/09/2013

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(See BCBK, CN, CNA, ECA, IDAE, JGGA, JR et seq. and KBA)

Individual student files are not available for public inspection. Except as provided in IDAE with regard to student records which are student data submitted to or maintained in a statewide longitudinal data system, the custodian of student records shall disclose the student's educational records only as provided for in this policy.

Directory Information

Annual notice shall be given to parents and eligible students concerning their rights with regard to student records. In addition, the custodian of the educational records shall give annual public notice of the class of records the institution has designated as directory information, and of the right of the parent or eligible student to opt-out of the release of directory information without prior written consent. The appropriate forms for providing notice shall be on file in the office of the custodian of the educational records.

After giving notice, and allowing a reasonable period of time for parents or eligible students to inform the district that any or all of the directory information should not be released without prior written consent, the custodian of records may make directory information available without parental or eligible student's consent.

The custodian of records shall make student recruiting information (including student name, address, and telephone listing) available to military recruiters and postsecondary institutions unless parents or eligible students provide a written request to the district providing that the specified information not be released without prior written consent. Notice of the option to opt-out of the release of recruitment information shall be provided to parents and eligible

students in the district's annual notice of rights under the Family Educational Rights and Privacy Act.

For the purposes of this policy, school official means teacher, administrator, other certified employee or board of education. The district may disclose, without the parents or eligible students'

consent, personally identifiable information to school officials with a legitimate educational interest. A school official is a person employed by the school as an administrator, supervisor, instructor, or support-staff member (including health or medical staff and law enforcement unit personnel); the school board (in executive session); a person or company with whom the school has contracted to perform a special task (such as an attorney, auditor, medical consultant, or therapist); or a parent or student serving on an official committee such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks. A school official has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibility.

The custodian may disclose students' education records to the following persons without the prior consent of the parents:

- Other school officials, including teachers within the district who have legitimate educational interests;
- Officials of other schools or school systems in which the student intends to enroll. The school district will forward student records to such institutions without further notice to the parents or eligible student when the disclosure is initiated by a parent or eligible student or an annual notice provided to parents and eligible students by the district informs them that such records will be automatically disclosed to these institutions for the purposes of enrollment or transfer of the student;
- Authorized persons to whom a student has applied for or from whom a student has received financial aid;

- State and local officials or authorities to whom such information is specifically required to be reported or disclosed pursuant to state statutes;
- Organizations conducting studies for educational agencies for the purpose of developing, validating or administering student tests or programs;
- Accrediting organizations;
- Parents of a student 18 years of age if parents claim the student as a dependent for income tax purposes;
- Appropriate persons if knowledge of any information is necessary to protect the health or safety of the student or other persons in an emergency;
- An agency caseworker or representative of a state or local child welfare agency or tribal organization who has the right to access a student's case plan when such agency or organization is legally responsible for the care and

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protection of the student and when any further disclosure of such information thereby will be limited in accordance with law; and

- In compliance with a lawfully issued subpoena or judicial order.

Access will be granted to any third party upon written authorization of the eligible student, parent or guardian.

No personally identifiable information contained in personal school records shall be furnished to any person other than those named herein. When there is written instruction from the student's parents, guardian or the eligible student specifying the records, the reasons and the person(s) to whom the release is to be made, a copy of the records to be released shall be made available to the student, parents or guardian upon request. When information is requested in compliance with a judicial order or pursuant to any lawfully issued subpoena, parent(s)/guardian and the student shall be notified of the orders or subpoenas in advance of compliance with the order or subpoena unless:

- the order or subpoena specifically forbids such disclosure; or

- the order is issued in the context of a court proceeding where a parent is a party and the proceeding involves child abuse and neglect or dependency matters.

Nothing contained in this policy shall preclude authorized representatives of the Comptroller General of the United States, the Secretary and an administrative head of an educational agency or state authorities from having access to student or other records which may be necessary in connection with the audit and evaluation of federally supported education programs or the enforcement of the federal legal requirements which relate to these programs. The data collection by such official with respect to individual students shall not include information (including social security numbers) which would permit the personal identification of students or their parents or guardian on the data collected and provided.

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All persons, agencies or organizations desiring access to the records of a student shall be required to sign a form, which shall be kept permanently with the student's file, but only for inspection by the parents/guardian, the student or a school official responsible for record maintenance. The form signed shall indicate the specific educational or other interest of each person; agency or organization has in seeking this information.

Personal information shall be transferred to a third party only on the condition that such party shall not permit any other party to have access to such information without the written consent of the student's parents or the eligible student. The board and staff shall protect the rights of privacy of students and their families in connection with any surveys or data-gathering activities conducted, assisted or authorized by the board or administration. Regulations **JRB Release of Student Records JRB-5** established under this policy shall include provisions controlling the use, dissemination and protection of such data.

Forwarding Pupil Records

Administrators shall forward student's school records upon request and may not withhold them for any reason.

Adopted: 03/13/2017

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JRC **Disposition of Records** **JRC**

(See BCBK, CN, CNA, ECA, IDAE, JGGA, JR et seq. and KBA)

All student records will be maintained and screened periodically.

Administrative records shall be permanent records and maintained by the school for an indefinite period of time. When the student graduates, supplementary records shall be destroyed or shall be transferred to the administrative records if they have permanent usefulness. Tentative records shall be destroyed when the use for which they were collected is ended. However, tentative records may be placed in the supplementary classification if the continuing usefulness of the information is demonstrated and its validity verified.

The official custodian shall review a student's records when the student moves from elementary to a middle school or junior high, from a middle school or junior high to high school and upon high school graduation. During each review obsolete or unnecessary information shall be removed and destroyed.

Following a reasonable amount of time after a student has graduated or ceases to attend school in the district, the records of the student that are determined to be appropriate for retention may be retained in a format designated by the administration.

Adopted: 09/09/2013

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JRD Hearing Request JRD

(See BCBK, CN, CNA, ECA, IDAE, JGGA, JR et seq. and KBA)

When a hearing has been requested by a parent, guardian or an eligible student to challenge the content of the student's education record, the procedure to be followed in the hearing shall be:

The hearing shall be conducted and the decision rendered by a person who does not have a direct interest in the hearing outcome.

The parent, guardian or eligible student shall be given notice of the date, place and time of the hearing within a reasonable time in advance of the hearing.

The parent, guardian or the eligible student may be assisted or represented by individuals of their choice at their own expense, including an attorney. Parents, guardian or the eligible student shall be afforded a full and fair opportunity to present relevant evidence.

A written decision shall be rendered within a reasonable time after the hearing concludes. The decision of the hearing official shall be based solely upon the evidence presented at the hearing and include a summary of the evidence and the reasons for the decision.

Adopted: 09/09/2013

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Building principals shall be authorized to collect fees approved by the board or to seek restitution for any school property lost, damaged or destroyed by a student.

Credit Card Payments

Credit and debit cards may be accepted to pay fees, fines, and charges due the district. A fee may be collected to cover costs of accepting credit or debit cards.

Fee Schedules

The superintendent shall distribute a schedule of enrollment fees and other fees approved in advance by the board to all building principals. The fee schedule shall include:

- A list of all items for which a charge is to be collected;
- The amount of each charge;
- The date due;
- Classifications of students exempt from the fee or charge;
- A system for accounting for and disposing of fees; and
- An appeal procedure to be used by students or parents to claim exemption

from paying the fees or charges.

Debt Collection

Building principals shall attempt to collect unpaid fees and the justifiable value owed by a student of school property lost, damaged or destroyed by a student. If, after the attempt to collect, the amount remains unpaid, the principal shall report the matter to the superintendent who shall

consult with the school board's attorney, and they shall jointly recommend a course of action to the board.

Forwarding Pupil Records

Administrators shall forward student's school records upon request and may not withhold them for any reason.

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Adopted: 04/28/2016

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Table of Contents

Section K – General Public Relations

Goals and Objectives **KA**

Public Information Programs **KB**

Newsletters and other Media

District or School Websites **KBA**

Website Rules

Media Relations **KBC**

Broadcasting and Taping

News Releases

Conferences and Interviews

Protection of Privacy Rights **KCA**

Custodial and Non-Custodial Parent Rights **KCB**

Solicitations **KDC**

School Volunteers **KFD**

Use of School Facilities by Community Groups **KG**

Use in Accordance with Board Policies

Fees and Rental Charges

Lease Arrangements

Supervision of Non-School Groups

Insurance and/or Bonds

Use of District Personal Property and Equipment **KGA**

Lost, Stolen, or Damaged Property or Equipment

Personal Use

Definition

Concealed Observations **KGB**

Bullying by Parents **KGC**

Disruptive Acts at School or School Activities **KGD**

Possession of a Firearm

Public Conduct on School Property **KGDA**

Gifts to Schools **KH**

Distributing Materials in Schools **KI**

Materials Produced by Outside Groups–Including Religious Materials

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Political Campaign Materials

Advertising in the Schools

Mailing Lists

Disposal of District Property **KK**

Disposal of a School District Building

Visitors to the School **KM**

Tobacco-Free School Grounds for Visitors **KMA**

Complaints **KN**

General Complaints

Informal Procedures

Formal Complaint Procedures

Appeal Procedures

Complaints About Discrimination on the Basis of Sex

Complaints About Discrimination or Discriminatory Harassment Not on the Basis of Sex

Complaints Concerning Child Nutrition Programs

Complaints About Policy

Complaints About Curriculum

Complaints About Instructional Materials

Complaints About Facilities and Services

Complaints About Personnel

Complaints About Emergency Safety Intervention Use

Complaint About School Rules

Complaints Regarding Child Nutrition Programs **KNA**

Complaints About Discrimination in Child Nutrition Programs

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KA Goals and Objectives (See IB) **KA**

The goal of educational public relations is to facilitate a process of communication between the district and its internal and external publics. The public relations program is intended to develop better public understanding of the district's goals, objectives, accomplishments, and needs.

The community shall be informed about school functions and activities, the accreditation status of each school, and the progress of school improvement efforts. Patron involvement is encouraged.

Adopted: 09/09/2013

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KB Public Information Programs (See CEE, CEF, KBA) KB

The board shall keep the public informed about the school system's functions and operations.

Newsletters and other Media

The board may issue a patron newsletter. The superintendent or the superintendent's designee shall be responsible for the content of the district newsletter and other district-sponsored media or publications.

The superintendent shall direct the dissemination of district information and report to the board as requested.

When approved by the principal, attendance center announcements or school-related information may be sent home with students.

Adopted: 09/12/2022

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(See DB, DC, ECH, IDEA, II, IIBG, JBC, JR et seq., and KB)

The board may establish a district website and may allow creation of websites for individual schools. The district website shall be maintained and updated as directed by the superintendent or the superintendent's designee. The school websites shall be maintained and updated as directed by the principal or the principal's or principal's designee.

Website Rules

Detailed rules relating to websites are found in appropriate handbooks or in documents approved by the board and filed with the clerk and/or principals.

Website rules shall include the following areas:

- data privacy and FERPA regulations;
- copyright rules, relating to access and use of materials and the property rights of the district, students, and employees who create material;
- instruction on what information and materials will be prominently posted on district and/or school homepages, which shall include, but may not be limited to;
    - a copy of Kansas State Department of Education's Form 150 estimating the legal maximum general fund budget as well as the budget summary for the current school year and actual expenditures for the immediately preceding two school years showing total net dollars of transfers and dollars per pupil as specified in Kansas law, using the full-time equivalent enrollment of the school district for such required calculations;
    -

    - district budgets, the summary of the proposed budget, the needs assessment, and the state assessment documentation described in board policy DB;
    - the board's policy for the part-time enrollment of students; and

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- a copy of any non-academic test, questionnaire, survey, or examination containing any questions about the personal and private attitudes, values, beliefs, or practices of the students or the student's parents, guardians, family member, associates, friends, or peers that is administered during the school day in accordance with board policy IDEA.

- the boards and administration's right to determine website content and monitor use by employees and students.

District and school websites are maintained to support the public relations and educational programs of the district and/or the schools. Websites may be modified or terminated at any time by board action.

Adopted: 09/12/2022

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KBC Media Relations **KBC**

Upon presentation of proper credentials, media members on assignment will be admitted free of charge to all school extra-curricular activities. To the extent possible, space will be provided at sporting and special events for members of the working media to cover extra-curricular activities.

Broadcasting and Taping

The superintendent is authorized to establish rules and regulations for broadcasting and taping district activities.

The appropriate building principal shall be responsible for determining eligibility and issuing passes to press members on assignment to cover school events. Members of the broadcast media shall notify the superintendent prior to the event they wish to cover so arrangements may be made for their equipment.

News Releases

News and information concerning building events and programs may be released to the media with the approval of the principal. District news releases prepared for public distribution by district employees or students shall have the superintendent's approval prior to release. The superintendent shall, upon request, prepare official district news releases for the board.

Conferences and Interviews

News conferences and interviews shall be scheduled so they do not disrupt regular educational activities. Representatives of the news media
seeking to interview a student during school hours must first have the principal's approval and permission from the student's parent or guardian.

Adopted: 09/09/2013

KCA Protection of Privacy Rights **KCA**

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The superintendent, the board of education, and district staff shall protect the right of privacy of students and their families in connection with any surveys or physical examinations conducted, assisted, or authorized by the board or administration. The district shall provide parents notice of their rights under the Protection of Pupil Rights Amendment and the Student Data Privacy Act as required by law.

Adopted: 10/13/14

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The district recognizes that parents often share caregiving and custody of their children and that parents, if not otherwise prohibited by court order, should have equal access to information regarding their child's school progress and records.

Any parent may obtain copies of school information such as report cards and progress reports upon request to a child's principal, unless otherwise prohibited by law or court order.

Adopted: 02/11/2019

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KDC Solicitations (See GAI) **KDC**

The board shall discourage all solicitations of and by staff members during regular school hours and at school-sponsored activities.

Agents, solicitors and salesmen shall not be permitted to take time of teachers or students from educational activities. The students and faculty of the district shall not promote commercial or private financial interests, either through direct sales or through promotion of competitive goods or services.

This rule applies to those activities, promotions and sales originating outside the school. Exception to this rule may be made as outlined below.

Materials and projects submitted for consideration under this rule must be made in writing to the superintendent. Requests will be considered in light of the proposal's direct contribution to the educational values in the school. Consideration shall be on the basis of unreasonably added work for staff members.

Any individuals or organizations violating the policy on solicitations shall be reported to the board by the superintendent. Violators may be denied further access to school premises by board action.

Adopted: 09/09/2013

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KFD School Volunteers **KFD**

(See GAOE and IFC)

School volunteers work under the school staff's direction with the principal's approval.

School volunteers are bound by the policies, rules and regulations of the district, serve without financial compensation and are not covered by workers' compensation.

Adopted: 09/09/2013

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KG Use of School Facilities by Community Groups (See DFG and JH) KG

The board may allow use of school buildings and school grounds by community groups outside the school day. Use of any school facility or school grounds, however, shall not interfere with daily school use or any school-sponsored activity. Priority for facility use outside of the school day goes to use promoting student academic achievement. Notwithstanding the previous statement, the district may provide equal access to the Boy Scouts and other designated youth groups which are neither school sponsored nor co-curricular in nature.

Use in Accordance with Board Policies

As a condition to initial use of and continued access to district property and facilities, groups and/or organizations must follow Kansas law and board policy prohibiting the use of drugs, alcohol, and tobacco on district property and ensure individuals in attendance refrain from using such substances on district property as well. Failure to abide by this provision may result in a revocation of facility use privileges.

Fees and Rental Charges

The board shall establish reasonable fees and/or rental charges for the use of any school facility or school grounds; fees and/or rental charges will cover costs of wages of school personnel involved and utilities. The fee and/or rental charges shall be approved by the board and shall be reviewed annually.

Lease Arrangements

The board shall approve any lease arrangements.

Supervision of Non-School Groups

Whenever any school facility is used by non-school groups or individuals, a school employee may be on duty to see that the building and equipment are properly used. A school employee may not be required to be on duty when, in the principal's opinion, it is not necessary.

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Insurance and/or Bonds

The board, through its duly authorized agent, reserves the right to require bonds (cash or otherwise), insurance, or other damage deposits, acceptable to the board before allowing use of the schools' facilities. Use is subject to limited access and availability. Any damages occurring during use will be billed to the individual and/or organization renting the facility.

Adopted: 10/13/14

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KGA Use of District Personal Property and Equipment KGA

Requests for use of district personal property or equipment by outside tax-exempt organizations shall be submitted to the superintendent or the superintendent's designee. Any request shall be granted or denied pursuant to guidelines for using personal property or equipment approved by the board. The superintendent may establish a deposit or requirement for the purchase of insurance for use of district personal property or equipment before it is removed from the school grounds or other district property. The deposit will be paid to the district office and will be refunded when the property or equipment is returned in working order.

Lost, Stolen, or Damaged Property or Equipment

No request for use of district personal property or equipment shall be granted until the requestor executes a use agreement specifying such person will agree to pay the district fair market value for any district personal property or equipment that has been lost, stolen, or has suffered irreparable damage while in the requestor's possession. For the purposes of this policy, "irreparable damage" shall include any damage severe enough that the cost to repair such equipment would be more than the fair market value of the district personal property or equipment. If district personal property or equipment is returned damaged beyond normal wear and tear of acceptable use, the requestor shall be responsible for the cost to repair such personal property or equipment. The district may also require the purchase of insurance.

Personal Use

No district personal property or equipment shall be used by staff for personal reasons at school or away from its designated station without the prior approval of the superintendent. No district personal property or equipment shall be used by the superintendent for personal reasons at school or away from its designated location without the prior approval of the board of education.

Definition

District personal property means any property other than property that is land, buildings, and property that is physically attached to land or buildings which is owned by or under the control of the school district. **Adopted: 09/12/2022** KASB Recommendation – 3/00; 4/07; 6/12; 12/21

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KGB **Concealed Observations** (See JGGA) **KGB**

Unless otherwise provided in this policy or policy JGGA, individuals are prohibited from recording students, employees, and/or board members surreptitiously or through the use of concealed audio and/or visual recording devices. This prohibition is in effect at school, on or in district property, and at meetings and conferences held for educational or disciplinary purposes.

Exceptions to this prohibition include the use of video surveillance throughout district facilities and in district vehicles, provided in accordance with JGGA; the recording of meetings subject to the Kansas Open Meetings Act; the recording of due process hearings or student disciplinary hearings for evidentiary purposes; recording of students for use during the student's evaluation or provision of special education services with the principal's prior permission; and the recording of a school sponsored activity, program, or event which is open to the general public.

Individuals wishing to record students, employees, or board members at school, on or in district property, or at meetings and conferences as previously described shall first notify the superintendent or building principal in advance. If such recording is not prohibited by law or policy, the administrator may allow the recording and may make arrangements to record on behalf of the district.

Adopted: 10/10/2016

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KGC **Bullying by Parents** (See EBC, GAAE, JDDC, KGD) **KGC**

The board of education, in its commitment to provide a positive and productive learning and working environment for its students and staff in accordance with state law, prohibits bullying in any form by any student, staff member, or parent towards a student or a staff member on or while using school property, in a school vehicle, or at a school-sponsored activity or event. For the purposes of this policy, the term "bullying" shall have the meaning ascribed to it in Kansas law.

The administration shall propose, and the board shall review and approve a plan to address bullying as prohibited herein.

Parents participating in prohibited bullying conduct aimed at district students and/or staff members may jeopardize their access to district facilities; district property; school sponsored activities, programs, and events; and/or district students and/or staff members through the district's communication systems. As appropriate, reports to local law enforcement will be filed to report criminal bullying behaviors.

This policy and the district bullying plan may be posted on the district's website and copies of such documents shall be made available to parents of current students upon request.

Adopted: 09/12/2022

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KGD **Disruptive Acts at School or School Activities** **KGD**
(See EBC, GAAE, JCDBB, JDDC, and KGC)

Disruptive acts at school or school sponsored activities will not be tolerated. Persons threatening the safety of students, school personnel, or other persons; to damage school property; or to interfere with school or school activities or the educational process will be asked to leave the premises.

The school administration and staff are responsible for handling any disturbance caused by adults or students. The final decision for determining if assistance is needed is the responsibility of the superintendent or school principal. In the absence of these individuals, the determination shall be made by the assistant principal or person designated to be in charge of the building or activity. The superintendent shall be notified of any serious problem at the school.

Possession of a Firearm

Unless otherwise required by law or authorized by board policy, no person other than a law enforcement officer shall possess a firearm on any district owned or operated property; within any district owned or operated building or facility; in a school vehicle; in an employee's personal vehicle being used to transport students or school staff in the performance of job duties for the district; or at any school sponsored activity, program, or event**.** This prohibition includes possession of concealed and/or openly carried weapons; however, such prohibition shall not apply to the secured storage of a handgun in a district employee's own locked vehicle on school property so long as such weapon is maintained out of plain sight.

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Appropriate signs shall be conspicuously posted as directed by the board and required by law.

Anyone in violation of this policy shall be directed to leave the premises immediately and not return without prior approval from the building administrator or superintendent. Failure to comply with such order will result in a report to law enforcement.

Adopted: 10/12/2015

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KGDA Public Conduct on School Property KGDA

The superintendent or the superintendent's designee may deny access to the school buildings, facilities, and/or grounds of the district to persons who have no lawful business to pursue at the school, persons who are acting in a manner disruptive or disturbing to the normal educational functions of the school, or persons who are on school property in violation of Board and/or building policy. Administrative personnel may demand identification and evidence of qualification for access of anyone desiring to use or come upon the premises of the particular school or facility.

Persons, including parents or persons acting as parents, who have legitimate reasons for being on school property must nevertheless abide by policies adopted by the board and building policies specifically applicable to each school. Such building policies shall be published annually in the school handbook and shall be posted at the school in a conspicuous place visible to all who enter the premises. {Visitors must secure and wear a visitor's pass to enter school buildings during the school day.}

Anyone who refuses or fails to leave district buildings, facilities, and/or grounds after being requested to do so by an authorized district employee shall be considered to be trespassing in violation of Kansas law. In such case, the police will be contacted, and arrest and criminal charges may result.

The administration will determine if the individual who has been asked to leave a district building, facility, or grounds is allowed to return in the future. If the individual is not to return in the future, the appropriate "Trespass Notification" is to be sent to the individual.

Adopted: 10/13/14

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KH Gifts to Schools (See GAJ and JL) **KH**

Any organization or individual making a gift to the district shall have the prior approval of the board. All gifts will be regarded as district property.

Persons or organizations desiring to make gifts to the schools should contact the superintendent.

Adopted: 09/09/2013

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KI Distributing Materials in Schools (See JHCA, JK and JR et seq.) KI

In accordance with rules adopted by the board, the superintendent reserves the right to refuse distribution to students any material by outside individuals or groups which creates a material or substantial interference with normal school activity or appropriate discipline in the operation of the school.

Materials Produced by Outside Groups–Including Religious Materials

The principal may establish rules and regulations which control the time, place and manner in which non-school/educational materials are displayed and disseminated in the building or on school property. No student shall be forced to participate in the distribution or receipt of any non-school materials in the schools.

Political Campaign Materials

The board encourages responsible use of political materials as part of the board-approved curriculum. No student shall be forced to participate in the distribution or receipt of any political materials.

Advertising in the Schools

No advertising for commercial purposes shall be permitted in the school buildings or on the grounds of the district without prior board approval.

Advertising in student publications shall be regulated by rules and regulations developed by the superintendent. Advertising in the student publications may promote products by brand name. Ads promoting the sale of any controlled substance, drug paraphernalia or any other illegal material or activity are prohibited.

Mailing Lists

No mailing lists of students shall be given to individuals, organizations or vendors for the purpose of distributing materials.

Adopted: 09/09/2013

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Disposal of District Property **KK**

(See DFM)

Except when disposing of a building as defined herein, the board may dispose of district property in a manner the board deems to be in the district's best interest. Whenever such excess district property is to be sold at auction, all sales shall be to the highest bidder. No credit shall be extended.

When disposing of any school district property, neither the board nor its agent shall refuse to sell, lease, or convey any interest in a building or property to a prospective buyer or lessee solely because the prospective buyer or lessee may use or intends to use the building or property as a nonpublic school building.

Disposal of a School District Building

For the purpose of this policy, terms have the following meanings:

- "Building" means any building that was used in any prior school year as an attendance center for students enrolled in kindergarten or any grades one through 12.
- "State agency" means any state agency, department, authority, institution, division, bureau, or other state governmental entity.

Within 30 days after the board of education adopts a resolution to dispose of a building, the board shall submit written notice of its intention to dispose of such building to the legislature. Such notice shall be filed with the chief clerk of the house of representatives and the secretary of the senate and shall contain the following:

- A description of the school district's use of such building immediately prior to the decision to dispose of such building;
- the reason for such building's disuse and the decision to dispose of such building;
- the legal description of the real property that is to be disposed; and
- a copy of the resolution adopted by the board of education.

Upon receipt of the notice, the legislature may adopt a concurrent resolution stating the legislature's intention that the state acquire the building in the following manner. Such concurrent resolution shall include:

- The name of the school district that owns the building;
- the information contained in the written notice as outlined herein; and
- the state agency that intends to acquire such building and the intended use of such building upon acquisition.

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If the notice is received by the legislature during a regular legislative session, the legislature shall have 45 days to adopt such a concurrent resolution.

If the notice is received when the legislature is not in regular session, then, not more than 45 days after the notice is received by the legislature, the legislative coordinating council may deny the legislative option for the state to acquire the building. If the legislative coordinating council denies this option, the district may proceed with disposing of the building in accordance with Kansas law. If the legislative coordinating council does not deny the option for the state to acquire the building within the 45-day period, then the legislature shall have 45 days from the commencement of the next regular session to adopt a concurrent resolution as outlined herein.

Upon adoption of a concurrent resolution, the state agency named in such resolution shall have 180 days to complete the acquisition of such building and take title to the real property. Upon request of the state agency acquiring the building, the legislative coordinating council may extend the 180-day period for a period of not more than 60 days.

The board shall not sell, gift, lease or otherwise convey the building or any of the real property described in the written notice or take any action or refrain from taking any action that would diminish the value of such property during the 180-day period or any extension thereof.

If the legislature does not adopt a concurrent resolution as described herein within the 45-day period or if the state agency does not take title to the property within the 180-day period or any extension thereof, the school district may proceed with disposition of such property in such a manner and upon such terms and conditions the board deems to be in the best interest of the district. Conveyances of buildings and real property described on any legislative notice described herein shall be executed by the president of the board and attested to by the clerk.

School district buildings not meeting the definition of "building" as defined herein, may be disposed of in any manner deemed to be in the best interest of the district by the board, without need fir legislative notice under this policy.

Adopted: 09/09/2024

KASB Recommendation – 3/00; 4/07; 6/23; 6/24

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KM Visitors to the School **KM**

The board encourages patrons and parents to visit district facilities. Patron visits shall be scheduled with the teacher and the building principal.

Notices shall be posted in school buildings to require visitors to check in at the office before proceeding to contact any other person in the building or on the grounds.

Any person who visits a building and/or grounds of the district will be under the jurisdiction of the building principal who shall be responsible for developing rules and regulations governing the presence of visitors in the buildings.

The principal has authority to request assistance from law enforcement if any visitor to the district's buildings or grounds refuses to leave or creates a disturbance. Violation of this rule may lead to removal from the building or grounds and denial of further access to the building or grounds. Violators of this board policy may be subject to the state trespass law.

Adopted: 09/09/2013

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KMA **Tobacco-Free School Grounds for Visitors** **KMA**

(See GAOC and JCDAA)

The use of any tobacco product by parents, contractors, volunteers, and all other visitors is prohibited at all times in any district facility; in school owned or operated property.

The following definitions apply to this policy.

"Tobacco product" means any product that is made from or derived from tobacco, or that contains nicotine, that is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved, inhaled, or ingested by any other means, including, but not limited to, electronic nicotine delivery system (hereafter "ENDS"), cigarettes, cigars, pipe tobacco, chewing tobacco, snuff, or snus. Tobacco products also means any component or accessory used in the consumption of a tobacco product, such as filters, rolling papers, pipes, charging devices, cartridges, and any substance used in ENDS, whether or not they contain nicotine. This definition does not include FDA-approved Nicotine Replacement Therapies including transdermal nicotine patches, nicotine gum, and nicotine lozenges.

"Electronic nicotine delivery system" or "ENDS" means any device that delivers a vaporized solution (including nicotine, THC, or any other substance) by means of cartridges or other chemical delivery systems. Such definition shall include, but may not be limited to, any electronic cigarette, vape pen, hookah pen, cigar, cigarillo, pipe, or personal vaporizer.

Adopted: 08/10/2020

KASB Recommendation – 6/20

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(See BCBI, DE, GAAC, GAACA, GAAB, GAAF, IF, IKD, JCE, JGEC, JGECA, and KNA)

General Complaints

The board encourages all complaints regarding the district to be resolved at the lowest possible administrative level. If the investigation and determination procedures of a complaint are not regulated in another board policy or the negotiated agreement, as applicable, it will be designated a general complaint subject to processing under this policy. Whenever a general complaint is made directly to the board as a whole or to a board member as an individual, it will be referred to the administration for study and possible resolution pursuant to the procedures outlined in this policy.

Informal Procedures

The building principal shall attempt to resolve general complaints in an informal manner at the building level. Any school employee who receives a general complaint shall inform the individual of the employee's obligation to report the complaint and any proposed resolution of the complaint to the building principal. Upon becoming aware of a complaint, the building principal shall, within a reasonable time, but without delay, discuss the complaint with the individual to determine if it can be resolved. If the matter is resolved to the satisfaction of the individual, the building principal shall document the nature of the complaint and the proposed resolution and forward this record to the district compliance coordinator.

If the matter is not resolved to the satisfaction of the individual in the meeting with the principal, or if the individual does not believe the resolution remains acceptable, the individual may initiate a formal complaint.

Formal Complaint Procedures

- A formal complaint shall be filed within 10 school days of the conclusion of the informal procedures. The formal complaint shall be in writing and contain the name and address of the person filing the complaint. The complaint shall briefly describe the alleged violation. If an individual does not wish to file a written complaint, and the matter has not been adequately resolved through the informal procedures, the building principal may initiate the complaint. Forms for filing written complaints are available in each school building office and the central office.
- If appropriate, an investigation shall follow the filing of the complaint. If the complaint is against the superintendent, the board may appoint an investigating officer. In other instances, the investigation shall be conducted by the building principal, the compliance coordinator, or

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another individual appointed by the board or the superintendent. The investigation shall be

- informal but thorough. The complainant and the respondent will be afforded an opportunity to submit written or oral evidence relevant to the complaint and to provide names of potential witnesses who may have useful information.
- A written determination of the complaint's validity and a description of the resolution shall be issued by the investigator, and will be forwarded to the complainant and the respondent. If the investigator anticipates a determination will not be issued within 45 days after the filing of the complaint, the investigator shall provide written notification to the parties including an anticipated deadline for completion.
- If the investigation results in a recommendation that a student or staff member be subject to discipline, the specifics will not be included in the written determination provided to the parties to protect the privacy rights of the student or staff member.
    - If the investigation results in a recommendation that a student be suspended or expelled, procedures outlined in board policy and state law governing student suspension and expulsion will be followed.
    - If the investigation results in a recommendation that an employee be suspended without pay or terminated, procedures outlined in board policy, the negotiated agreement (as applicable), and state law will be followed.
- Records relating to complaints filed and their resolution shall be forwarded to and maintained in a confidential manner by the district compliance coordinator.

Appeal Procedures

The complainant or respondent may appeal the determination of the complaint. Appeals shall be heard by the district compliance coordinator, a hearing officer appointed by the board or superintendent, or by the board itself. The request to appeal the determination shall be made within 20 days after the date of the written determination of the complaint at the lower level. The appeal officer shall review the evidence gathered by the investigator at the lower level and the investigator's report and shall afford the complainant and the respondent an opportunity to submit further evidence, orally or in writing, within 10 days after the appeal is filed. Whenever an appeal officer is appointed to review an appeal, the appeal officer will prepare a written report to the board within 30 days after the appeal is submitted for decision. The board shall render its decision not later than the next regularly-scheduled meeting of the board following the receipt of the report and provide the parties with a notice of the result of the appeal. Any matter determined by the board in accordance with this process shall be valid to the same extent as if the

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matter were fully heard by the board without an appeal officer.

- Use of this complaint procedure is not a prerequisite to the pursuit of any other remedies including the right to file a complaint with the Office for Civil Rights of the U.S. Department of Education, the Equal Employment Opportunity Commission, or the Kansas Human Rights Commission.

If it is determined at any level that a violation of board policy or school rules occurred, the district will take prompt, remedial action to prevent reoccurrence. The district prohibits retaliation or discrimination against any person for participating in the complaint process; or making a complaint, testifying, assisting, or participating in any investigation, proceeding, or hearing.

Complaints Against the Superintendent

A complaint against the superintendent shall be filed in writing with the clerk of the board of education as soon as possible after the conduct occurs that led to filing a complaint but not later than 20 days after the complainant becomes aware of the alleged violation, unless the conduct forming the complaint is ongoing. The board, or the board's designee, shall investigate the complaint. If the board appoints a designee to conduct the investigation, the designee shall submit a report of the designee's findings upon which the board will decide the complaint. The board shall review the report and decide the matter as soon as reasonably possible but not later than sixty (60) days after the complaint is filed. After the board has reviewed the report, it may, in its sole discretion, request a meeting with the investigator or any party. The board may extend the timeframe for issuing a decision by providing the complainant with written notice of the proposed decision date. There is no appeal from the board's decision.

Complaints About Discrimination on the Basis of Sex

Complaints regarding alleged discrimination on the basis of sex, as prohibited by Title IX of the Education Amendments of 1972 and other federal and state laws regulating such discrimination and discriminatory harassment, shall be handled in accordance with the procedures outlined in board policies GAAC, for staff, and JGEC, for students, and shall be directed to the Title IX Coordinator, the High School Principal, 901 N Main Street, Belle Plaine, KS 67013, 620-488-2421.

Complaints About Discrimination or Discriminatory Harassment Not on the Basis of Sex

Discrimination against any individual on the basis of race, color, national origin, sex, disability, age, genetic information, or religion in the admission to, access to, treatment, or employment in the district's programs and activities is prohibited. The Superintendent, 719 N Main Street, Belle Plaine, KS 67013, 620-488-2288, has been designated to coordinate compliance with nondiscrimination

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requirements contained in Title VI and Title VII of the Civil Rights Act of 1964 (with the exception of discrimination on the basis of sex), Section 504 of the Rehabilitation Act of 1973, and the Americans with Disabilities Act of 1990, the Age Discrimination Act of 1975, the Personal Responsibility Work Opportunity Reconciliation Act of 1996, and the Food Stamp Act of 1977, as amended.

For more information regarding what qualifies as discrimination or harassment on the basis of race or disability, see board policies GAACA applying to staff members and JGECA applying to students.

For information regarding the investigation or resolution process for complaints of discrimination or discriminatory harassment not involving sex-based conduct or district child nutrition programs, see board policies GAAB for staff members and JCE for students.

Complaints Concerning Child Nutrition Programs

Complaints alleging discrimination in child nutrition programs offered by the district shall be handled in accordance with the procedures outlined in board policy KNA.

Complaints About Policy

The superintendent shall report any unresolved complaint about policies to the board at the next regularly scheduled board meeting.

Complaints About Curriculum

The superintendent shall report a failure to resolve any complaint about curriculum to the board at the next regularly scheduled board meeting. See board policy IF for complaints dealing with textbooks and instructional materials.

Complaints About Instructional Materials

The building principal shall report any unresolved complaint about instructional materials to the superintendent promptly after receiving the complaint. See board policy IF.

Complaints About Facilities and Services

The superintendent shall report any unresolved complaint about facilities and services to the board at the next regularly scheduled board meeting.

Complaints About Personnel

The superintendent or the building principal involved shall report any unresolved complaint about personnel to the board at the next regularly scheduled board meeting.

Complaints About Emergency Safety Intervention Use

Complaints concerning the use of emergency safety interventions by district staff shall be addressed in accordance with the local dispute resolution process outlined in board policy GAAF.

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Complaints About School Rules

Any student may file a complaint with the principal concerning a school rule or regulation that applies to the student. The complaint shall be in writing, filed within 20 days following the application of the rule or regulation, and must specify the basis for the complaint. The principal shall investigate the complaint and inform the student of the resolution within 10 days after the complaint is filed.

Adopted: 02/10/2025

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KNA Complaints Regarding Child Nutrition Programs KNA

Discrimination against any individual on the basis of race, color, national origin, sex, disability, age, or retaliation for prior civil rights activity in any program or activity conducted or funded by the United States Department of Agriculture is prohibited. (Position or name, address, email address, and phone number of compliance coordinator) has been designated to coordinate compliance with nondiscrimination requirements contained in Title VI of the Civil Rights Act of 1964, Americans with Disabilities Act, Section 504 of the Rehabilitation Act of 1973, Age Discrimination Act of 1975, Personal Responsibility Work Opportunity Reconciliation Act of 1996, and the Food Stamp Act of 1977, as amended.

Complaints About Discrimination in Child Nutrition Programs

To file a complaint of discrimination regarding child nutrition programs offered by the district, complete the USDA Program Discrimination Complaint Form (AD-3027) at:

http://www.ascr.usda.gov/complaint_filing_cust.html; or

write a letter and provide the information requested in the form. To request a complaint form, call (866) 632-9992.

Submit the completed form to:

U.S. Department of Agriculture
Office of the Assistant Secretary for Civil Rights
1400 Independence Avenue, SW
Washington, D.C. 20250-9410.
FAX: (202) 690-7442
Email: program.intake@usda.gov

Adopted: 08/10/2020

KASB Recommendation – 6/20

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The policies of the Board of Education of U.S.D. No. 357 prohibit discrimination on the basis of race, color, national origin, disability, religion, genetic information, and sex in all programs and activities of the district. Additionally, discrimination on the basis of age is prohibited in employment.

Harassment of individuals on any of these grounds is strictly prohibited. Individuals who believe they have been discriminated against on any of these grounds may file a complaint with the following discrimination coordinators:

District Discrimination Coordinator: Name:_____ Address:_____ Email:_____ Phone:_____

Building Discrimination Coordinators: Name:_____ Address:_____ Email:_____ Phone:_____

Title IX Coordinator: Name:_____ Address:_____ Email:_____ Phone:_____

Name of Complainant: Address: Email Address: Telephone Number:	_____ _____ _____ _____
Nature of the Complaint (Please Select Any that Apply):	I believe that I have or someone I know has been subjected to discrimination on the basis of: □ Race □ Color □ National Origin □ Racial Harassment □ Sex □ Sexual Harassment □ Disability □ Religion □ Age □ Genetic Information □ Harassment on the basis of _____; OR □ General Complaint/Not Related to Perceived Discrimination My complaint is not one of perceived discrimination or harassment but is regarding the situation described below.
Please describe the incident or act complained of: Please include information about: ● Who was the person engaging in the conduct? ● Who was the conduct directed toward? ● What was the nature of the conduct? ● When did it occur? ● Where did it occur? ● What effect did the incident have on you? What effect did it have on the person allegedly targeted?	_____ _____ _____ _____ _____ _____ _____ _____ _____ _____ Attach additional sheets if necessary.
Were there any witnesses to this incident?	□ Yes □ No If yes, please indicate who the witnesses were: _____ _____
What action do you believe the school or district should take with regard to this incident?	_____ _____

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If this matter proceeds to an investigation or hearing, will you appear and be interviewed and/or testify as to your knowledge of the matter? □ Yes □ No

USD #357 COMPLAINT FORM

Table of Contents

Section L – Interorganizational Relations

Goals and Objectives	**LA**
School-Community Cooperation	**LB**
School-Community Programs	**LC**
Federal Government-Drug Free Schools	**LDD**
Fiscal Management of Federal Grants	**LDDA**

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LA Goals and Objectives LA

The board shall seek to establish a satisfactory working relationship with governmental agencies and private organizations having an interest in the schools.

Adopted: 09/09/2013

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LB School-Community Cooperation **LB**

The board shall seek to foster cooperation between the schools and community groups and organizations.

Adopted: 09/09/2013

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LC School-Community Programs **LC**

The board shall consider establishing programs sponsored jointly by the district and community groups or organizations whenever, in the board's judgment, these programs cannot or should not be wholly under the board's control.

Adopted: 09/09/2013

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LDD Federal Government-Drug Free Schools LDD
(See GAOA, GAOB, IDAB and JDDA)

The unlawful possession, use, sale or distribution of illicit drugs and the possession, use, sale, or distribution of alcohol by students or school employees at school, on or in school property, or at school sponsored activities or events is prohibited. This policy, and any curriculum used in conjunction with it, shall be evaluated periodically using criteria developed by the superintendent and approved by the board. The board shall receive a report after each of these reviews is conducted.

Adopted: 09/09/2013

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LDDA Fiscal Management of Federal Grants **LDDA**

The district shall meet the requirements of the *Education Department General Administrative Regulations* (EDGAR). The outline used to meet this requirement may be the document: Federal Education Grants Management: What Administrators Need to Know, Office of Management and Budget circulars, or other pertinent documents developed by the U.S. Department of Education.

Adopted: 09/09/2013

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TABLE OF CONTENTS

M--RELATIONS WITH OTHER EDUCATION AGENCIES

MA Goals and Objectives

MD Interdistrict Relations

MF Colleges and Universities

Contract Required

Other Relationships

MI State Education Agency Relations: Quality Assurances

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MA Goals and Objectives **MA**

The board shall seek to work harmoniously with educational agencies having an interest in the district's schools. Staff shall follow all regulations required by state and federal education agencies.

Adopted: 09/09/2013

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Interdistrict Relations

The board shall work cooperatively with other districts to provide services to students when it is in the best interest of students and the district.

Adopted: 09/09/2013

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The board may consider use of student teachers in district classes.

Contract Required

A written student teaching contract with appropriate colleges and universities shall be prepared and presented to the board for their consideration and approval.

Other Relationships

Other relationships between the district and institutions of higher education may be considered upon recommendation of the administration.

Adopted: 09/09/2013

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MI Kansas Education Systems Accreditation MI

Kansas Education Systems Accreditation (hereafter "KESA") is a district-wide accreditation process. Accreditation within this process is ultimately granted by the Kansas State Board of Education. The district school board (hereafter "board") shall maintain the goal of full accreditation for the district. Good faith efforts shall be made by all staff to implement district school improvement plans. The board shall monitor compliance.

The board is committed to implementing and sustaining the foundational structures defined within the KESA process as well as defining and implementing district-wide goals in alignment with the KESA rubrics.

In order for accreditation to be achieved, the board shall commit to school improvement for all district schools, academic achievement for all district students, and results-based professional development for all district staff members. The superintendent shall regularly report to the board on the district's progress toward full accreditation within the 5-year cycle defined as part of the KESA process.

The board shall fully inform the public in languages commonly used in the community about district-wide goals, school improvement plans, the progress of school improvement efforts, the accreditation status of the district, and other pertinent information as the board may direct.

Adopted: 03/13/2017

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TABLE OF CONTENTS

A – HOME RULE

Resolution To Establish Home Rule by Board of Education

BCAC - SPECIAL MEETINGS

Waiver of Notice

BCBI - PUBLIC PARTICIPATION

Request to Add an Agenda Item

BCBK - EXECUTIVE SESSION

Sample Motions for Executive Session

CN - PUBLIC RECORDS

Public Request for School Records

DFAC - ALLOWABILITY OF COSTS – FEDERAL PROGRAMS

Allowability of Costs – Federal Programs

DFAC - CASH MANAGEMENT – FEDERAL PROGRAMS

Cash Management – Federal Programs

DFAC - GRANT SUBRECIPIENT MONITORING PROCEDURES – FEDERAL PROGRAMS

Grant Subrecipient Monitoring Procedures – Federal Programs

DFAC - PROCUREMENT – FEDERAL PROGRAMS

Procurement – Federal Programs

DFAC - TYPE OF COSTS, OBLIGATIONS AND PROPERTY MANAGEMENT – FEDERAL PROGRAM

Type of Costs, Obligations and Property Management – Federal Programs

DJB - PETTY CASH ACCOUNT

DK – STUDENT ACTIVITY FUND MANAGEMENT

EBC - SECURITY AND SAFETY

Report to Local Law Enforcement

Report to Staff Member Form

ECA - HIPAA POLICY

Health Records

Notice of Privacy Practices

ECH – PRINTING AND DUPLICATING SERVICES

Copyright Regulations and "fair use" Rules for Educators

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GAAE – BULLYING BY ADULTS

Report to Local Law Enforcement

GAAF – ESI DOCUMENTATION FORM

Emergency Safety Intervention Documentation

GACC - RECRUITMENT AND HIRING

Applicant Job Application Acknowledgments

GACD - EMPLOYMENT ELIGIBILITY VERIFICATION

Documents That Establish Identity

GAK - PERSONNEL RECORDS

Request to Release Personnel Records

GAN – TRAVEL REIMBURSEMENT – FEDERAL PROGRAMS

Travel Reimbursement – Federal Programs

GAOD – STUDENT TRANSPORTATION DISCLOSURE FORM

Student Transportation Disclosure

GARA – BLOODBORNE PATHOGEN PLAN

Exposure Control Plan for Bloodborne Pathogens

Hepatitis B Vaccine Declination Form

First Aid Incident Report

Post-Exposure Evaluation and Follow-Up Report

Documentation of Training

GARI – FAMILY AND MEDICAL LEAVE PLAN

SAMPLE: Family and Medical Leave Plan

GCI - CLASSIFIED EMPLOYEE EVALUATION

SAMPLE – Classified Personnel Evaluation

IB - SCHOOL SITE COUNCILS

School Site Councils

IDAD - TITLE I PROGRAMS

IDAD-Regulation-Title I Programs

Title I Parent Involvement: Policy Development Meetings

IDAE - STUDENT PRIVACY

Protection of Pupil Rights Amendment: Regulation USD _____

Annual Notice of Authorized Student Data Disclosures

IF - TEXTBOOKS, INSTRUCTIONAL MATERIALS & MEDIA CENTERS

Request for Review of a Textbook, Instructional Material, or Media Center Material

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IFCB - FIELD TRIPS

Consent to Participate in Field Trip or Other Activity and Consent for Treatment

II – EDUCATIONAL TESTING PROGRAMS

Testing Integrity: Staff handbook language

IIBGA - CHILDREN'S INTERNET PROTECTION PLAN

Children's Internet Protection Act (CIPA) Safety Plan

IKCA – HUMAN SEXUALITY AND AIDS EDUCATION

Human Sexuality and Aids Education

IKDA - RELIGIOUS OBJECTIONS TO ACTIVITIES

Activity Participation Opt-Out Form

JBCA - HOMELESS STUDENTS

Homeless Student Regulations

Complaint Form Programs for Homeless Students

JBCB – FOSTER CARE STUDENT REGULATIONS

Foster Care Student Regulations

General Transportation Procedures (OPTIONAL)

JBE - TRUANCY

Waiver of Compulsory Attendance Form

JCABB - SEARCHES OF STUDENTS

Search Report Form

JDD - REPORT TO STAFF OF EXPULSION OR CONVICTION

Report to Staff Member

JDDB - REPORTING CRIMES TO LAW ENFORCEMENT

Report to Local Law Enforcement

JDDC - BULLYING

Report to Local Law Enforcement

JGCA - DISTRICT HEALTH AND WELLNESS PLAN

District Health and Wellness Plan

JGFG – STUDENT ACCIDENTS

Sample Student Information Form

JGFGB - SUPERVISION OF MEDICATIONS

Medication Given at School Form

SAMPLE FORM

JBFGA - NALOXONE (NARCAN) INCIDENT REPORT

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JGFGBA - STUDENT SELF-ADMINISTRATION OF MEDICATIONS

Permission for Self-Administration of Medication

JH - STUDENT ACTIVITIES

Public Input Form: Request to Add/Eliminate an Activity

JQKA - FOREIGN EXCHANGE STUDENTS

Application Form

KBA - DISTRICT OR SCHOOL WEB SITES

General Information

KG - FACILITY USE LANGUAGE AND FORMS

Facility Use Rules

Schedule of Rates for Facility Use

KG – FACILITY USE LANGUAGE AND FORMS

School Facility Use Permit

KGA – USE OF DISTRICT PERSONAL PROPERTY AND EQUIPMENT

School Personal Property and Equipment Use Permit

KI - DISTRIBUTING MATERIALS IN SCHOOLS

Distribution Rules

KN – COMPLAINT FORM

Complaint Form

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HOME RULE

RESOLUTION TO ESTABLISH HOME RULE BY BOARD OF EDUCATION

Mr./Madame President, I move the adoption of the following resolution:

RESOLUTION

WHEREAS, the Board of Education of Unified School District No. 357, Sumner County, Kansas, has determined that the exercise of powers granted by the legislature is of benefit to the board and local patrons; and

WHEREAS, Kansas law authorizes the board to transact all school district business; and

WHEREAS, the board intends to adopt policies that the board deems appropriate to perform its constitutional duty to maintain, develop and operate local public schools; and

WHEREAS, the board acknowledges that the power granted by law shall not be construed to relieve the board from any obligations to comply with state law; and

WHEREAS, the board acknowledges that the powers granted by law and this resolution shall not be construed to relieve any other unit of government of its duties and responsibilities prescribed by law; and

WHEREAS, the board acknowledges that the powers granted by law do not create any responsibility on the part of the district to assume the duties or responsibilities that are required of another unit of government;

NOW THEREFORE, BE IT RESOLVED, by the Board of Education of Unified School District No. 357, Sumner County, Kansas, that the board shall exercise the power granted by law and by this resolution.

ADOPTED by the Board of Education of Unified School District 357, Sumner County, Kansas, the _____ day of _____, 20___.

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BCAC SPECIAL MEETINGS

W A I V E R O F N O T I C E

I hereby waive the written notice required under the provisions of K.S.A. 72-1138 as to the time, place and purpose of a special meeting of the Board of Education of Unified School District No. 357, State of Kansas, held on _____, 20__.

_____
Member, Board of Education

_____
Member, Board of Education

_____
Member, Board of Education

_____
Member, Board of Education

_____
Member, Board of Education

_____
Member, Board of Education

_____
Member, Board of Education

Attest:

_____
Clerk, Board of Education
Unified School District No. 357
Sumner County
State of Kansas

Approved: 08/13/2018

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Request to Add an Agenda Item

This form must be completed and returned to the clerk or the superintendent at least **7** days before the meeting at which you wish to speak. Your request will be reviewed, and one of two recommendations will be made:

1. Referral of your request to the appropriate administrator.
2. Decision by the Board of Education to add as agenda item.

- Presentations shall not exceed **3** minutes.
- Subjects, other than policy issues, will generally be referred to the administration.
- Comments shall be limited to issues and not refer to personalities.
- Presentations must be in good taste befitting the occasion and the dignity of the board meeting.
- Typed copy or an outline of your presentation {must/should} be included with this request form.

Permission to appear before the board at a regular meeting is subject to the above rules.

Name _____

Address _____Telephone _____

Individual or organization (if any) you represent _____
_____

Organization's address _____

Signature _____Date_____

District official's signature _____

Date received _____ Time received _____

Adopted: 02/11/2016

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UNIFIED SCHOOL DISTRICT NO. 357, Sumner County
BELLE PLAINE, KANSAS
PUBLIC REQUEST FOR
SCHOOL RECORDS

Person requesting records_____

Address of person requesting records_____

Specific records being requested:
_____
_____
_____

_____Approval to release records
_____Denial to release records
_____Delayed release of records

Reason for denial or reason for delay:

_____
_____
_____
_____

_____ _____
Custodian/
Freedom of Information Officer Date

For Office Use Only:

Date and time the request was made_____

Estimated cost of copies and applicable employee time: $_____
(To be paid in advance)

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DJB PETTY CASH ACCOUNTS

RESOLUTION TO ESTABLISH PETTY CASH FUND

WHEREAS, the Board of Education of Unified School District No. 357, Sumner County, Kansas, has determined that the creation of a petty cash fund is an efficient method to pay expenses for school district purposes in emergencies.

WHEREAS, Kansas law authorizes the establishment of petty cash funds;

NOW THEREFORE, BE IT RESOLVED, by the Board of Education of Unified School District No. 357, Sumner County, Kansas that a petty cash fund designated as the _____ Building Petty Cash Fund is created for the purpose of receiving and expending funds for needed district expenditures in an emergency. The fund shall be in the amount of $500.00.

The fund shall be administered by the building administrator. The building secretary shall keep a record of all receipts and expenditures of the fund and shall prepare and file with the Board a statement showing all receipts, expenditures and balance at the end of each month and at the end of each school year. An itemized receipt shall be maintained for each expenditure. Any person authorized to administer a petty cash fund shall be bonded by the school district.

Upon proper report to the board, the petty cash fund shall be replenished by payment from the appropriate fund of the school district.

The petty cash fund shall not be loaned or advanced against the salary of any employee.

Funds in the petty cash fund shall remain district funds but shall not be considered school money for purposes of K.S.A. 72-1136(d) and the provisions of K.S.A. 12-105 shall not apply.

ADOPTED by the Board of Education of Unified School District 357, Sumner County, Kansas, the 13th day of August, 2018.

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DK STUDENT ACTIVITY FUND MANAGMENT

[RESOLUTION TO ESTABLISH ACTIVITY FUND]

RESOLUTION

WHEREAS, the Board of Education of Unified School District No. 357, Sumner County, Kansas, has determined that the creation of an activity fund is an efficient method to pay expenses for student activities; and

WHEREAS, Kansas law authorizes the establishment of school activity funds;

NOW THEREFORE, BE IT RESOLVED, by the Board of Education of Unified School District No. 357, Sumner County, Kansas, that an activity fund designated as the _____ fund is created for the purpose of receiving and expending funds for student activities, including athletics, music, forensics, dramatics and other board approved student extra-curricular activities.

The fund shall be administered by _____. The _____ shall keep a record of all receipts and expenditures of the fund and shall prepare and file with the Board a statement showing all receipts, expenditures and balance at the end of each _____ and at the end of each school year. Any person authorized to administer an activity fund shall be bonded by the school district.

Funds in the activity fund shall remain district funds but shall not be considered school money for purposes of K.S.A. 72-1132and the provisions of K.S.A. 12-105 shall not apply.

ADOPTED by the Board of Education of Unified School District 357, Sumner County, Kansas, the ____ day of _____, 20___.

[NOTE: A separate resolution must be adopted for each activity fund.]

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Report to Local Law Enforcement

USD 357

Pursuant to K.S.A. 72-6143, the administrator or other school employee whose signature appears below is reporting the following crimes.

{Briefly describe each incident and the person/s involved in felonies, misdemeanors and weapons}

Date	School/Location	Student/s or Person/s Involved	Brief Description
1.			
2.			
3.			
4.			
5.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed:_____
Administrator or other school employee.

cc: Superintendent of Schools, USD 357 Student/s file

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Report to Staff Member USD 357

Pursuant to K.S.A. 72-6143, administrative, professional or paraprofessional employees of a school who have information that a pupil has engaged in the following shall report the information and the identity of the student to the superintendent. The superintendent shall investigate the matter and if it is determined the student has been involved in the following, the superintendent shall provide information, and the identity of the pupil to all employees who are involved, or likely to be directly involved, in teaching or providing related services to pupil:

1. Any student who has been expelled for conduct which endangers the safety of others;
2. Any student who has been expelled for commission of felony type offenses;
3. Any student who has been expelled for possession of a weapon;
4. Any student who has been adjudged to be a juvenile offender and whose offense, if committed by an adult, would constitute a felony, except a felony theft offense involving no direct threat to human life;
5. Any student who has been tried and convicted as an adult of any felony, except theft involving no direct threat to human life.

You are notified that_____, within the past 365 days, has been expelled, adjudged or convicted for an activity listed above**.**

School District staff are required by both Federal Law and K.S.A. 72-6311 to protect the right of privacy of any student under the age of 18 and the student's family regarding personally identifiable records, files, data and information directly related to the student and his/her family. I acknowledge this responsibility and agree that I will disclose the above information only to other USD357 employees and officials. Violation of these privacy rights could include sanctions up to and including termination.

Signed:_____
School employee who receives the report

Signed:_____
Administrator or school employee making report

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ECA HIPAA POLICY

HEALTH RECORDS
(Request for Amendment Form)

To: _____, the (USD 357, Belle Plaine District) privacy official.

From: _____

Date: _____

I request that the district make the following amendment to protected health information:

_____

_____

_____

I would like the amendment made for the following reason(s):

_____

_____

_____

_____

_____

* * * * * * *

Note: The reader is encouraged to review policies and/or procedures for related information in this administrative area.

Implemented: (adopt, date) (Revise Date)

(USD 357, Belle Plaine District)

Adapt regulation for local use, remove from policy book

and distribute as necessary.

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NOTICE OF PRIVACY PRACTICES

USD 357 District, Belle Plaine, KS, HEALTH INSURANCE PLAN
(referred to as the "Group Health Plan", "We" "Our" or "Us" in this document)

This notice describes how Protected Health Information (PHI) about you may be used and how You can get access to the information.
PLEASE READ IT CAREFULLY.

PHI is individually identifiable information about You. All of the following are examples of PHI:

- demographic information: Your name, address, social security number and date of birth; or
- medical information: relating to Your past, present or future physical or mental health that is collected/created/received from You, a health care provider, a health plan, employer or health care clearinghouse; or
- the providing of health care; or
- the past, present or future payment for providing health care to You.

OUR LEGAL DUTY

We are required by applicable federal and state laws to maintain the privacy of Your PHI. We are also required to give You this notice about Our privacy practices, Our legal duties, and Your rights concerning Your PHI. We must follow the privacy practices that are described in this notice while it is in effect. This notice takes effect on April 14, 2004 or the date coverage became effective for You, whichever is later, and will remain in effect until We replace it.

We reserve the right to change Our privacy practices and the terms of this notice at any time, provided such changes are permitted by applicable law. We reserve the right to make the changes in Our privacy practices and the new terms of Our notice effective for all PHI that We maintain, including PHI We created or received before We made the changes. Before We make a significant change in Our privacy practices, We will change this notice and send the new notice to Our health plan subscribers at the time of the change.

You may request a copy of Our notice at any time. For more information about Our privacy practices, or for additional copies of this notice, please contact Us using the information listed at the end of this notice.

USES AND DISCLOSURES OF YOUR PHI

We use and disclose PHI about You for treatment, payment and health care operations. For example:

- Treatment: We may disclose Your PHI to a doctor, hospital or other health care provider on request when necessary to assist in Your treatment. For example, We might disclose Your PHI to assist in case managements or precertification activities.
- Payment: We may use and disclose Your PHI to pay claims from doctors, hospitals and other providers for services delivered to You that are covered by Your health plan. For example, We might disclose Your PHI to determine Your eligibility for benefits, to coordinate benefits, to examine medical necessity and to issue explanations of benefits to the person who subscribes to the health plan in which You participate. We may disclose Your PHI to a health care provider or entity subject to the federal Privacy Rules so they can obtain payment or engage in these payment activities.

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- Health Care Operations: We may use and disclose Your PHI in connection with Our health care operations. Health care operations include:
    - Rating Our risk and determining contributions for Your health plan;
    - Quality assessment and improvement activities;
    - Reviewing the competence or qualifications of health care professionals, evaluating practitioner and provider performance, conducting training programs, accreditation, certification, licensing or credentialing activities
    - Medical review, legal services and auditing, including fraud and abuse detection and compliance;
    - Business planning and development; and
    - Business management and general administrative activities, including management activities relating to privacy, customer service, resolution of internal grievances, and creating de-identified PHI or a limited data set.

We may disclose Your PHI to another entity which has a relationship with You and is subject to the federal Privacy Rules, for their health care operations relating to quality assessment and improvement activities, reviewing the competence or qualifications of health care professionals, or detecting or preventing health care fraud and abuse.

ON YOUR AUTHORIZATION: You may give a written authorization to use Your PHI to disclose it to anyone for any purpose. If you give us an authorization, You may revoke it in writing at any time. Your revocation will not affect any use or disclosure permitted by Your authorization while it was in effect. Unless You give Us a written authorization, We cannot use or disclose Your PHI for any reason except those described in this notice.

TO YOUR FAMILY AND FRIENDS: We may disclose Your PHI to a family member, friend or other person to the extent necessary to help with your health care or with payment for your health care. We may use or disclose your name, location and general condition or death to notify or assist in the notification of (including identifying or locating) a person involved in your care. Before we disclose Your PHI to a person involved in Your health care or payment for Your health care, We will provide You with an opportunity to object to such uses or disclosures. If You are not present, or in the event of Your incapacity or an emergency, We will disclose Your PHI based on Our professional judgment of whether the disclosure would be in Your best interest.

UNDERWRITING: We may receive Your PHI for underwriting, premium rating or other activities relating to the creation, renewal or replacement of a contract of health insurance or health benefits. We will not use or further disclose this PHI for any other purpose, except as required by law, unless the contract of health insurance or health benefits is placed with Us. In that case, Our use and Disclosure of Your PHI will only be as described in this notice.

DISASTER RELIEF: We may use or disclose Your PHI to a public or private entity authorized by law or by its charter to assist in disaster relief efforts.

PUBLIC BENEFIT: We may use or disclose Your PHI as authorized by law for the following purposes deemed to be in the public interest or benefit:

- As required by law;

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- For public health activities, including disease and vital statistics reporting, child abuse reporting, FDA oversight, and to employers regarding work-related illness or injury;
- To report adult abuse, neglect or domestic violence;
- To health oversight agencies;
- In response to court and administrative orders and other lawful processes;
- To law enforcement officials pursuant to subpoenas and other lawful processes, concerning crime victims, suspicious deaths, crimes on Our premises, reporting crimes in emergencies and for purposes of identifying or locating a suspect or other person;
- To coroners, medical examiners and funeral directors;
- To organ procurement organizations;
- To avert a serious threat to health or safety;
- In connection with certain research activities;
- To the military and to federal officials for lawful intelligence, counterintelligence and national security activities;
- To correctional institutions regarding inmates; and
- As authorized by state workers compensation laws.

HEALTH RELATED SERVICES: We may use Your PHI to contact You with information about health-related benefits and services or about treatment alternatives that may be of interest to You. We may disclose Your PHI to a business associate to assist Us in these activities. We may use or disclose Your PHI to encourage You to purchase or use a product or service by face-to-face communication or to provide You with promotional gifts.

INDIVIDUAL RIGHTS

- Access: You have the right to look at or get copies of Your PHI, with limited exceptions. You may request that We provide copies in a format other than photocopies. We will use the format You request unless We cannot practicably do so. You must make a request in writing to obtain access to Your PHI when You make the request as an exercise of Your HIPAA Privacy rights. Many records are available without making the request as an exercise of HIPAA Privacy rights. You may obtain a form to request access by using the contact information listed at the end of this notice. If You request copies, We will charge You a fee for the costs of copying, other supplies and postage if You want the copies mailed to You and staff time associated with Your request. For information maintained off-site in archival warehouses or that is not reasonably identifiable and accessible, We will charge the actual cost of the time and other resources required to make the information available. If You request an alternative format, We will charge a cost-based fee for providing Your PHI in that format. If You prefer, We will prepare a summary or an explanation of Your PHI for a fee. Contact Us using the information listed at the end of this notice for a full explanation of Our fee structure.
- Disclosure Accounting: You have the right to receive a list of instances in which We or Our business associates disclosed Your PHI for purposes other than for treatment, payment, health care operations, as authorized by You, and for certain other activities since April 14, 2004 or the date coverage became effective for You, whichever is later. For example, We would account for Your PHI or demographic information We disclose during an audit by a government oversight agency or pursuant to a court order. You must make Your request in writing. We will provide You with the date on which We made a disclosure, the name of the person or entity to whom We disclosed Your PHI, a description of the PHI We disclosed, the reason for the disclosure and certain other information. If You request this accounting more than once in a 12-month period, We may charge You a reasonable, Cost-based, fee for responding to these additional requests. Contact Us using the information listed at the end of this notice for a full explanation of Our fee structure and how to make Your request.

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- Restriction: You have the right to request that We place additional restrictions on Our use or disclosure of Your PHI. You must make a request in writing if You wish to request additional restrictions. You may obtain a form to request additional restriction by using the contact information listed at the end of this notice. We are not required to agree to these additional restrictions, but if We do, We will abide by Our agreement (except in an emergency). Both Your request and any agreement to additional restrictions must be in writing signed by the person making the request and (for Our agreement) by a person authorized to make such an agreement on Our behalf. We will not be bound unless Our agreement is so stated in writing.
- Confidential Communications: You have the right to request that We communicate with You about Your PHI by alternative means or to an alternative location. You must make Your request in writing, and You must state that the information could endanger You if it is not communicated in confidence as You request. We must accommodate Your request if it is reasonable, specifies that alternative means or location and continues to permit Us to collect premiums and pay claims under Your health plan, including issuance of explanations of benefits to the subscriber of the health plan in which You participate. An explanation of benefits issued to the subscriber for health care that You received for which You did not request confidential communications or about the subscriber or others covered by the health plan in which You participate may contain sufficient information to reveal that You obtained health care, even though You requested that We communicate with You about that health care in confidence. Other transactions under the membership may also detract from the level of confidentiality You might obtain from an alternate communication or address.
- Amendment: You have the right to request that We amend Your PHI. Your request must be in writing, and it must explain why the information should be amended. If You need information about making a request or amendment, contact Us using the contact information listed at the end of this notice. We may deny Your request if We did not create the information You want amended and the originator remains available or for certain other reasons. If We deny Your request, We will provide You a written explanation. You may respond with a statement of disagreement to be appended to the information You wanted amended. If We accept Your request to amend the information, We will make reasonable efforts to inform others, including giving people Your name, of the amendment and to include the changes in any future disclosures of that information.
- Electronic Notice: If You receive this notice on Our web site or by electronic mail (e-mail), You are entitled to receive this notice in written form. Please contact Us using the information listed at the end of this notice to obtain this notice in written form.

QUESTIONS AND COMPLAINTS

If You want more information about Our privacy practices or have questions or concerns, please contact Us using the information listed below. If You are concerned that We may have violated Your privacy rights, or You disagree with a decision We made about access to Your PHI or in response to a request You made to amend or restrict the use or disclosure of Your PHI or to have Us communicate with You by alternative means or at an alternative location, You may complain to Us using the contact information listed below. You also may submit a written complaint to the U.S. Department of Health and Human Services. We will provide You with the address to file Your complaint with the U.S. Department of Health and Human Services upon request. We support Your right to the privacy of Your PHI. We will not retaliate in any way if You choose to file a complaint with Us or with the U.S. Department of Health and Human Services.

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Copyright Regulations and "fair use" rules for educators.

Suggested Handbook Language

In accordance with school board policy ECH, the following regulations will be observed to comply with the copyright laws of the United States.

Under the "fair use" doctrine, unauthorized reproduction of copyrighted materials is permissible for such purposes as criticism, comment, news reporting, teaching, scholarship or research. If duplicating or altering a product is to fall within the bounds of fair use, these four standards must be met for any of the purposes:

The Purpose and Character of the Use

The use must be for such purposes as teaching or scholarship and must be nonprofit. Fair use would probably allow teachers acting on their own to copy small portions of work for the classroom but would not allow a school system or an institution to do so.

The Nature of the Copyrighted Work

Copying portions of a news article may fall under fair use but not copying from a workbook designed for a course of study.

The Amount and Substantiality of the Portion Used

Copying the whole of a work cannot be considered fair use; copying a small portion may be. At the same time, however, extracting a short sequence from a 16mm film may be far different from a short excerpt from a textbook, because two or three minutes out of a 20-minute film might be the very essence of that production and thus outside fair use. Under normal circumstances, extracting small amounts out of an entire work would be fair use, but a quantitative test alone does not suffice.

The Effect of the Use Upon the Potential Market for or Value of the Copyrighted Work

If resulting economic loss to the copyright holder can be shown, even making a single copy of certain materials is an infringement, and making multiple copies can result in greater penalties.

Prohibited Practice

No one may make multiple copies of a work for classroom use if it has already been copied for another class in the same institution; make multiple copies of a short poem, article, story, or essay from the same author more than once in a class term or make multiple copies from the same collective work or periodical issue more than three times a term; make multiple copies of works more than nine times in the same class term; make a copy of works to take the place of an anthology; and may not make a copy of "consumable" materials, such as workbooks.

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Permitted Practice

A teacher may make--for use in scholarly research, in teaching or in preparation for teaching a class--a single copy of the following: a chapter from a book; an article from a periodical or newspaper; a short story, short essay or short poem (whether or not from a collected work); a chart, graph, diagram, drawing, cartoons or picture from a book, periodical or newspaper; may make (for classroom use only and not to exceed one per student in a class) multiple copies of the following: a complete poem (if it has fewer than 250 words and is printed on not more than two pages), an excerpt from a prose work (if the excerpt has fewer than 1,000 words or 10 percent of the work, whichever is less) and one chart, graph, diagram, cartoon or picture per book or periodical.

A library may, for interlibrary-loan purposes, make up to six copies a year of a periodical published within the last five years, make up to six copies a year of small excerpts from longer works, make copies of unpublished works for purposes of preservation and security and make copies of out-of-print works that cannot be obtained at a fair price.

Guidelines for Off-Air Recording of Broadcast Programming for Education Purposes

A broadcast program may be recorded off-air simultaneously with broadcast transmission (including simultaneous cable retransmission) and retained for a period not to exceed the first 45 consecutive calendar days after date of recording. Upon conclusion of such retention period, all off-air recordings must be erased or destroyed immediately.

Off-air recordings may be used once by individual teachers in the course of relevant teaching activities and repeated once, only when instructional reinforcement is necessary, in classrooms and similar places devoted to instruction within a single building, cluster or campus, as well as in the homes of students receiving formalized home instruction, during the first 10 consecutive school days in the 45-calendar day retention period. "School days" are school session days--not counting weekends, holidays, vacations, examination periods or other scheduled interruptions--within the 45-calendar day retention period.

Off-air recordings may be made only at the request of and used by individual teachers and may not be regularly recorded in anticipation of requests. No broadcast program may be recorded off-air more than once at the request of the same teacher, regardless of the number of times the program may be broadcast.

A limited number of copies may be reproduced from each off-air recording to meet the legitimate needs of teachers under these guidelines. Each such additional copy shall be subject to all provisions governing the original recordings.

After the first 10 consecutive school days, off-air recordings may be used up to the end of the 45-calendar day retention period only for evaluation purposes by the teacher, i.e., to determine whether or

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not to include the broad-cast program in the teaching curriculum. They may not be used for student exhibition or any other non-evaluation purpose without authorization.

Off-air recordings need not be used in their entirety, but the recorded programs may not be altered from their original content. Off-air recordings may not be physically or electronically combined or merged to constitute teaching anthologies or compilations.

All copies of off-air recordings must include the copyright notice on the broadcast programs as recorded.

Computer Software

District employees may make a back-up copy of computer programs as permitted by current Federal Law. Back-up copies may be used for archival purposes only and all archival copies shall be destroyed in the event that continued possession of the computer program should cease to be rightful.

When software is used on a disk-sharing system, efforts shall be made to secure this software from copying.

Illegal copies of copyrighted programs shall not be made or used on school equipment.

Approved by Board of Education: _____ Date

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Report to Local Law Enforcement

USD 357

Pursuant to Kansas law, the administrator or other school employee whose signature appears below is reporting the following crimes:

Briefly describe each incident and the person/s involved in a misdemeanor or felony behavior at school, on school property, or at a school activity.

Date	School/Location	Person/s Involved	Brief Description of bullying incident/s.
1.			
2.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed_____
Administrator or other school employee

c/o Superintendent, USD 357; c/employee's file

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GAAF ESI DOCUMENTATION FORM

EMERGENCY SAFETY INTERVENTION DOCUMENTATION

Date: _____

Dear: _____

The purpose of this letter is to inform you that on _____, at _____ (a.m./p.m.)
(date) (time)
the need for the use of an Emergency Safety Intervention was required for
_____.
(name of student)

K.A.R. 91-42-1 through 91-42-7 provide that emergency safety intervention (hereafter "ESI") is defined to include the use of seclusion or physical restraint but not the use of time-out or physical escort. Whenever an ESI is used, the parent(s)/guardian(s) must be informed of the use the day it happens. This notice requirement is deemed satisfied if the school attempts at least two methods of contact to reach the parent or guardian. By the day following the ESI use, written notification of the following shall be provided to the parent or guardian.

Type of ESI used: Seclusion _____ Restraint_____
Duration of seclusion/restraint: _____ (minutes) Location: _____

Name of staff member(s) who participated in or supervised the ESI:

_____

_____

Did the student have an Individualized Education Program ("IEP"), Section 504 Plan, or a Behavior Intervention Plan at the time of the incident? _____ If so, specify which: _____

_____

Description of events leading up to the incident:

_____

_____

_____

_____

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GAAF ESI DOCUMENTATION FORM

Student behaviors necessitating the ESI:

_____

_____

_____

Steps taken to transition the student back into the educational setting:

_____

_____

_____

Parents or guardians of the above-named student are invited and strongly encouraged to schedule a meeting to discuss the ESI and how to prevent future ESI use. Please contact the following staff member at the email address and/or phone number listed below to schedule such a meeting or if you have any questions regarding this use of ESI.

(Staff Member Name)
(Staff Member Email Address)
(Staff Member Phone Number)

_____ _____
(Signature of person completing report) (Date)

*Parent(s)/guardian(s) notified of this incident on _____ by _____.

Please feel free to provide feedback or comments concerning this ESI use below and email or deliver them to the staff member specified above.

_____

_____

_____

---

*Original provided to Building Principal
*Copy provided to (Parents/Guardians, Administrative Office)

Adopted: 09/12/2022

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GACC RECRUITMENT AND HIRING

REMOVE FROM POLICY AND FILE WITH THE CLERK

APPLICANT JOB APPLICATION ACKNOWLEDGMENTS

The following statements should be included on all job applications:

1. I certify that all the information provided by me in this application is true and complete. I understand that any misstatement, falsification, or omission of information is grounds for refusal to hire or, if I am hired and the same is discovered thereafter, termination.

2. I authorize any of the persons or organizations referenced in this application to give you any and all information concerning my previous employment, education, or any other information, personal or otherwise, with regard to any of the subjects covered by this application, and I release all such parties from all liability for any damages that may result from furnishing such information to you. I authorize any background checks by any third party.

3. I authorize you to request, receive, and verify all information given on this application and I release you from all damages that may result from your doing so.

4. I authorize you to conduct a criminal background investigation using any and all methods necessary to successfully complete such investigation, and I release you from all liability for any damages that may result from your doing so.

_____ _____

Signature of Applicant Date

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Remove from Policy and File with the Clerk for reference

==========

Documents That Establish Identity (Policy GACD)

To establish employment eligibility only, a person must present a document such as a Social Security card, a U.S. birth certificate, or one of the other documents listed.

For individuals 18 years of age or older:

- Driver's license or ID card issued by a state or outlying possession of the United States, provided it contains a photograph or information such as name, date of birth, gender, height, eye color and address
- ID card issued by federal, state or local government agencies or entities, provided it contains a photograph or information such as name, date of birth, gender, height, eye color and address
- School ID card with a photograph
- Voter's registration card
- U.S. military card or draft record
- Military dependent's ID card
- U.S. Coast Guard Merchant Mariner Card
- Native American tribal document
- Driver's license issued by a Canadian government authority
- For persons under age 18 who are unable to present a document listed above:
- Form M-274 (Rev. 11/01/2007)
- School record or report card
- Clinic, doctor or hospital record
- Day-care or nursery school record

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If a person is unable to present the required document(s) within three business days of the date employment begins, he or she must present (within 3 business days) a receipt*. The person then must present the actual document when the receipt period ends. The person must have indicated on or before the time employment began, that he or she is already eligible to be employed in the United States. Receipts showing that a person has applied for an initial grant of employment authorization, or for renewal of employment authorization, are not acceptable.

---

* Check the link in the policy for more details. In some cases, persons seeking work can apply for a document and present a receipt to the employer that shows they have applied for a required document.

Approved by board of education:

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Request to Release Personnel Records

(re: USD 357 Policy GAK)

To: _____: (Superintendent/records custodian: USD 357)

From: _____: (Employee or former employee)

I hereby request that my personnel records be copied and released to:

_____

(Name of Organization/Official to whom records are to be sent)

Signed: _____

Date: _____

By requesting this release of my personnel records, I understand the administration may release the following information:

- my employment date(s);
- my job description and duties while in the district's employ;
- my last salary or wage;
- my wage history;
- whether I was voluntarily or involuntarily released from service and the reasons for the separation;
- written employee evaluations, which were conducted prior to my separation from USD357

c/USD 357 files

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FAMILY AND MEDICAL LEAVE PLAN

Family and medical leave as required by federal law shall be granted for a period of up to 12 weeks during a 12-month period. For purposes of this policy, a 12-month period shall be defined as a fiscal year beginning on July 1 and ending the following June 30. Spouses who are eligible for FMLA leave and are both employed by the district may be limited to a combined total of 12 weeks of leave during any 12-month period if the leave is taken for the birth of the employee's son or daughter or to care for the child after birth, for placement of a son or daughter with the employee for adoption or foster care or to care for the child after placement, or to care for the employee's parent with a serious health condition.

Leave is available for the following:

(1) the birth of a son or daughter of the employee and to care for the newborn child;
(2) the placement of a son or daughter with the employee for adoption or foster care and to care for the newly placed child;
(3) to allow the employee to care for the employee's spouse, son, daughter, or parent with a serious health condition;
(4) a serious health condition of the employee that makes the employee unable to perform the functions of his or her job;
(5) any qualifying exigency arising out of the fact that the employee's spouse, son, daughter, or parent is a covered military member on active duty (or has been notified of an impending call or order to achieve active duty) in support of a contingency operation; and
(6) the need to care for a covered service member with a serious injury or illness if the employee is the spouse, son, daughter, parent, or next of kin of the service member. Eligible employees are, for reason (6) only, entitled to a combined total of 26 workweeks of leave during a 12-month period.

(Leave for reason 1 or 2 must be taken within 12 months of the date of birth or placement.)

This leave shall normally be unpaid leave. However, if the employee has any paid vacation, personal, or sick leave that is available for use because of the reason for the leave, the paid leave shall be used concurrently with the annual family and medical leave. The superintendent will notify the employee of the beginning date of family and medical leave and the amount of the employee's accrued paid leave designated as family and medical leave.

The employee is eligible for family and medical leave if he or she has been employed by the district for at least 12 months and has worked at least 1,250 hours during the 12-month period immediately preceding the commencement of the FMLA leave.

During the period of any unpaid family and medical leave, the board shall continue to pay the employer's share of the cost of group health benefits in the same manner as paid immediately prior to the leave. Any employee portion of the cost shall be paid by the employee to the clerk of the board on the payroll date or other time as the employee and superintendent may agree prior to the commencement of the leave. The board may terminate group health coverage if the employee's portion of the payment is not received within 30 days of the due date, so long as written notice of the delinquency in payment and the notice of intent to terminate coverage are sent at least 15 days prior to the termination.

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When leave is foreseeable, the employee shall give written notice 30 days in advance. If leave is not foreseeable, notice will be given as soon as is practicable.

Upon the employee providing notice of need for leave, the employer will notify the employee of the following within 5 business days, absent extenuating circumstances:

a. whether or not the employee is eligible for FMLA leave, and,
the reasons that leave will or will not count as family and medical leave;
b. any requirements for medical certification;
c. employer requirement of substituting paid leave;
d. requirements for premium payments for health benefits and employee responsibility for repayment if employer pays employee share;
e. right to be restored to same or equivalent job; and any employer required fitness-for-duty certifications.

The superintendent may require an instructional employee to continue leave until the end of a semester if the leave begins more than five (5) weeks before the end of a semester, lasts more than three (3) weeks and the return would occur during the last three (3) weeks of the semester.

Leave for reason 1 or 2 must be taken within 12 months of the date of birth or placement of the child. Family leave for reasons 1 or 2 may not be used intermittently or on a part-time basis without the prior approval of the superintendent.

If the leave is for a reason other than the employee's serious health conditions or for a qualifying exigency as described in section (5) above, the superintendent may require an instructional employee to continue leave until the end of a semester, if:

1. the leave begins in the last five (5) weeks of a semester, will last more than two (2) weeks and the return to work would occur in the last two (2) weeks of a semester, or

2. the leave begins in the last three (3) weeks of a semester, and lasts more than five (5) days.

SAMPLE CLASSIFIED PERSONNEL EVALUATION

EMPLOYEE: **DATE:**

EVALUATOR: **BUILDING:**

	Commendable	**Acceptable**	**Improvement Needed**	**N/A**

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GCI CLASSIFIED EMPLOYEE EVALUATION

	Performance			
I. PERSONAL QUALITIES				
1. Punctual				
2. Uses time wisely				
3. Neat and well groomed				
4. Gets along with other personnel				
5. Relations with the public				
6. Relations with students				
7. General attitude				
8. Supportive of administrative decisions				
9. Self-motivated				
II. WORK-RELATED SKILLS				
1. Add criteria from employee's job description here.				
2.				
3.				
4.				
5.				
***Specific indicators from each employee's job description should be inserted here.**				
III. COMMITMENT TO DUTY				
1. Loyalty				
2. Strives for self-improvement				
3. Trustworthy				
4. Dependable				
5. Uses wise judgment				
6. Accepts criticism				
7. Keeps information confidential concerning school records and school operations as it pertains to students, parents and school personnel				

EVALUATOR'S COMMENTS ON STRENGTHS AND WEAKNESSES

1. Personal Qualities

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2. Work Related Skills

3. Commitment to Duty

4. Employee's Comments

Employee_____ Evaluator_____

Date_____ Date_____

This evaluation was signed by the employee after it was reviewed by the evaluator.

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IB SCHOOL SITE COUNCILS

Duties of the Officers

The chair shall preside at all meetings and have general supervision of the council's activities. The chair shall work with the Principal in planning and directing the council's activities.

The chair, in consultation with the principal, shall prepare an agenda for all council meetings and arrange for the agenda to be delivered to each member at least _____ days before each meeting. The vice chair shall exercise all functions in the absence of the chair and assist the chair as needed.

The secretary is responsible for:

- Keeping an account of the proceedings and transactions of all council meetings;
- Providing a copy of the minutes to the council members and the clerk of the board within _____ days of each meeting;
- Preparing any official correspondence the chair may request;
- Maintaining a council file in the school's administrative offices containing copied of all minutes, council correspondence, the annual school report and the current council guidelines; and
- Maintaining a list of council members with current contact information, including email addresses.

Meetings

The council shall meet (monthly, or locally determined frequency) in the (location) on the (determined dates). Special meetings may be called by the chair or vice chair as long as all council members are notified of the meeting at least two days in advance and notice of the meeting is given to those have requested notice of council meetings.

The first council meeting of the academic year shall be called in (determined date).

_____ council members shall constitute a quorum. (A quorum must be present to conduct business)

All council meetings are open to the public, and members of the public shall be encouraged to attend. Persons desiring to speak at a council meeting may request to be put on the agenda no later than _____ days before the meeting date.

Reports

The council shall report to the board _____ times a year. Reports shall be written and filed with the clerk of the board. The board may invite some or all of the members to discuss the reports. After the board accepts each report, copies shall be shared with the principal and staff.

Legal Duties

The council shall report to the Kansas State Board of Education if required.

Training

Site councils shall not have any of the powers and duties reserved by law or regulation to the school board.

Amendments

Site councils shall comply with all applicable conditions of the *Kansas Open Meetings Act* and the *Kansas Open Records Act.*

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IDAD-Regulation-Title I Programs

NOTE: This document MUST be approved by board action to become policy. File with clerk, distribute to principals and duplicate as necessary in district newsletters and other documents.

Regulation – Title I

Parental Involvement Encouraged

Parents shall receive information about the Title I program, the curriculum, academic assessments, and required proficiency levels, and their right to request additional meetings. All parents of Title I students shall be invited to the meetings.

The board shall strongly encourage parental involvement in the district's Title I program. Included in these efforts shall be: activities that will educate parents regarding the intellectual and developmental needs of their children at all age levels including:

- Assistance in understanding.
  - State academic content and achievement standards;
  - How to monitor their child's progress; and
  - Title I regulations.
- Activities that include promoting cooperation between the district and other agencies or school/community groups (such as parent-teacher groups, Head Start, Parents as Teachers, etc.) to furnish learning opportunities and disseminate information regarding parenting skills and child/adolescent development.
- Implementing strategies to involve parents in the educational process, including: Joint development of a school-parent compact that outlines the shared responsibilities of the school and the parent for high student achievement by:
  - Keeping families informed of opportunities for involvement and encouraging participation in various programs.

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- Providing access to educational resources for parents/families to use together with their children.
- Keeping families informed of the objectives of district educational programs as well as of their child's participation and progress within these programs.
- Allowing parents reasonable access to staff who work with their children.
- Providing professional development opportunities for teachers and staff to enhance their understanding of effective parent involvement strategies.
- Promoting activities, which emphasize the importance of parent-school communication.

Activities to Enable Parental Participation

The district shall enable families to participate in the education of their children through a variety of roles. For example, family members shall be given opportunities to:

- Provide input into district policies that affect Title I programs and their children.
- Understand and participate in school improvement efforts.
- Volunteer time within classrooms and school programs.
- Perform regular evaluations of parent involvement at each school and at the district level.
- Provide access, upon request, to any instructional material used as part of the educational curriculum.
- Provide information in a language understandable to parents, if practical.

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Scheduling for Parents' Convenience

The district shall, to the extent possible, schedule activities for parent involvement at times and places accessible to parents of Title I students and provide information in a format and language the parents understand.

Annual Evaluation

The district shall conduct, with involvement of parents, an annual evaluation of the contents and effectiveness of the parental involvement policy IDAD. The district shall use the findings of the evaluation to design strategies for more effective parental involvement and to revise, if necessary, the policy IDAD.

Approved: KASB Recommended Regulation – 7/03; 1/04

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IDAD TITLE I PROGRAMS

Title I Parent Involvement: Policy Development Meetings

USD 357, Sumner County, KS

Date of meeting/s (fill out sheet for each meeting): _____

Parents present (list names, address, phone, child's name):

Name	Address	Phone	Child's Name

Major topics discussed:

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IDAD TITLE I PROGRAMS

Proposed changes (if any) made to policy IDAD

Administrators and other school employees present:

Name	**Title/Position**	**Building**

Copies to: Clerk of the Board; Superintendent of Schools; School Principal

Approved by Board of Education as Policy/Regulation: _____date

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Belle Plaine USD 357

Protection of Pupil Rights Amendment: Regulation

Surveys: Parental Inspection Rights

Parents shall have the right to inspect any survey created by a third party before it is administered or distributed to students in the school. Prior to distribution, parents shall have the right to inspect any survey that seeks information about: political affiliations or beliefs of the student or the student's parent; mental or psychological problems of the student or the student's family; sex behavior or attitudes; illegal, anti-social, self-incriminating, or demeaning behavior; critical appraisals of other individuals with whom respondents have close family relationships; legally recognized privileged or analogous relationships, such as those of lawyers, physicians, and ministers; religious practices, affiliations, or beliefs of the student or student's parent; or income (other than that required by law to determine eligibility for participation in a program or for receiving financial assistance under such program).

Written Permission Required

If such survey is funded in whole or in part by federal funds, or if the survey concerns the student's or student's parents' or guardians' beliefs or practices on sex, family life, morality or religion, it shall not be administered without providing notice to and the express written consent of a parent or guardian. If the survey is not federally funded and does not cover the aforementioned topics, parents must be given direct notification of the survey, and be provided with an opportunity to opt their child out of the survey. If the survey is part of the curriculum, parents shall have the right to inspect any instructional materials used in conjunction with the survey.

Physical Examinations

Prior to the administration of any non-emergency, invasive physical examination or screening that is required as a condition of attendance, administered by the school, scheduled by the school in advance and not necessary to protect the immediate health and safety of the student, the school shall provide parents with notice of the activity and provide parents with an opportunity to opt their child out of the activity. This requirement does not apply to routine dental, hearing and vision screenings required under Kansas law.

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IDAE STUDENT PRIVACY POLICY

Parental Rights: Marketing Information

If the school collects, discloses or uses personal information from students for the purpose of marketing or selling that information, parents shall have a right to inspect any instrument used for the collection of such information before it is administered or distributed to students in school. Parents shall be provided with notice of such activities and provided with an opportunity to opt their child out of the activity. The requirements concerning activities involving the collection and disclosure of personal information from students for marketing purposes **do not apply** to the collection, disclosure, or use of personal information collected from students for the exclusive purpose of developing, evaluating, or providing educational products or services for or to students or educational institutions, such as the following:

1. College or other postsecondary education recruitment, or military recruitment.
2. Book clubs, magazines, and programs providing access to low-cost literary products.
3. Curriculum and instructional materials used by elementary schools and secondary schools.
4. Tests and assessments used by elementary schools and secondary schools to provide cognitive, evaluative, diagnostic, clinical, aptitude, or achievement information about students.
5. The sale by students of products or services to raise funds for school-related or education-related activities.
6. Student recognition programs.

Release of Information – FERPA Rights

Unless the information collected from students is designated as directory information and is maintained outside of a statewide longitudinal student data system, no information gathered about students shall be released to third parties without the express written consent of the parent or eligible student. (See JRB)

Approved: KASB Recommended Regulation – 7/03; 1/04; 12/14

Adopted: 03/09/2015

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USD 357
REQUEST FOR REVIEW OF A TEXTBOOK,
INSTRUCTIONAL MATERIAL,
OR
MEDIA CENTER MATERIAL

Request initiated by _____

Telephone _____ Address _____

Complainant represents: _____ self; or if a group:

Name of group _____

The material I object to is a: film___ recording ____ magazine ____ pamphlet ____ textbook ____

other ____.

Book or other material _____

Author (if known)_____

Publisher (if known) _____

1. Are you familiar with the district policy, procedure and philosophy regarding selection of textbooks, instructional materials, and media center materials? ____ Y ____ N

2. Did you read or view all the material provided in the entire work? ____ Y ____ N If no, how did you select the parts for reading or viewing?

_____

_____

_____

3. Please identify the objectionable material. (Please be specific; cite pages or items.)

_____

_____

4. What is the basis for your objection to the specific sections or parts identified?

_____

_____

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5. What do you believe is the major theme of this material? _____

_____

6. What would you recommend the school do with this material?

_____

_____

_____

7. In its place, what material of equal educational quality would you recommend?

_____

8. Additional comments: _____

_____

_____

_____ _____

Administrator Signature of complainant

Date received: _____

Adopted: 02/14/2022

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IFCB FIELD TRIPS

NOTE: This form must be signed and returned to the school by _____ (date)

if the student named below is to participate in the field trip or activity.

Consent to Participate in Field Trip or Other Activity and Consent for Treatment

I, _____, the parent and legal guardian of _____, give my consent for my child to participate in the field trip/other activity described here:

_____

on_____date. I further give my legal consent and authorize any representative of _____ School to authorize emergency medical treatment, including any necessary surgery or hospitalization, for my above-named child, for any injury or illness of an emergency nature he/she incurred while participating in the field trip or other activity noted above by any physician or dentist licensed in accordance with the provisions of the Kansas Healing Arts Act, K.S.A. 65-2801, and any hospital.

I agree to pay and assume all responsibility for medical and hospital expenses and any emergency services incurred on behalf of my child.

I acknowledge and agree that _____School is not responsible for any medical, hospital expenses and/or other charges that are incurred in the medical treatment or hospitalization of my child. A photocopy of this document shall have the same force and effect as the original. If my child requires emergency medical treatment, I understand that school personnel will make a reasonable attempt to contact me to seek my permission to authorize that treatment. To facilitate contacting me, I agree to continue to provide current work and home phone numbers to the school.

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Work phone number _____ Home phone number _____ Health insurance provider name _____ Health insurance policy number _____

_____

Parent or Legal Guardian Date

_____

Parent or Legal Guardian Date

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Edit to fit local needs and remove from policy book.

Testing Integrity: Staff handbook language

In the administration of standardized tests, licensed staff (teachers, administrators and others) shall not:

1. Provide inappropriate test preparation
2. Modify test administration procedures.
3. Provide inappropriate assistance to students during test administration.
4. Change or fill in answers on student answer sheets.
5. Provide inaccurate data on student information sheets.
6. Discourage or exclude certain students from taking the test.
7. Engage in any other practice to artificially raise student scores without actually improving underlying student achievement.

Failure by staff to follow district guidelines and/or state testing directions is grounds for termination.

Approved by board of education: __/__/20__

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IIBGA CHILDREN'S INTERNET PROTECTION PLAN

IIBGA Children's Internet Protection Plan (CIPA) Plan IIBGA

Children's Internet Protection Act (CIPA) Safety Plan

[Revise and edit as necessary to fit USD goals and include in Handbook]

Goals:

It is the policy of USD 357 to take the following measures in order to better protect our district students from harmful online and electronically transmitted content:

- install blocks or Internet filters to the district network in order to limit access by both minors and adults to child pornography or visual materials that are obscene, inappropriate, or harmful to minors and/or the transmission thereof;
- monitor the online activities of students while at school, at school sponsored activities, or while utilizing the district's network, computer system, computers, e-mail system, or electronic devices having access to the Internet;
- address issues related to the safety of students when using e-mail, chat rooms, and other electronic communication;
- educate students about appropriate online behavior, including interacting with other individuals on social networking websites and in chat rooms as well as on cyberbullying awareness and response;
- hinder unauthorized access (hacking) and other unlawful on-line activities by students; and
- prevent unauthorized disclosure, use, or dissemination of personal information regarding minors, which shall include, but may not be limited to, personally identifiable information contained in student records; and
- comply with the Children's Internet Protection Act.

Access to Inappropriate Material

To the extent practicable, technology protection measures or Internet filters shall be used to block or filter the Internet or other forms of electronic devices from accessing child pornography as well as obscene, inappropriate, or harmful material given the age and maturity levels of district students.

Subject to administrative approval, technology protection measures may be minimized only for bonafide research or other lawful purposes that are closely monitored by district staff.

Inappropriate Network Usage

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IIBGA CHILDREN'S INTERNET PROTECTION PLAN

To the extent practicable, steps shall be taken to promote the safety and security of users of the district's online computer network when using electronic mail, chat rooms, instant messaging, and other forms of direct electronic communications.

Specifically, in accordance with CIPA, measures to prevent inappropriate network usage shall include frequent monitoring of the District's network, computer systems, and equipment to detect any unauthorized access to prohibited materials as described earlier in this plan, hacking, and other unlawful activities by students or staff members. Such monitoring shall also strive to detect unauthorized disclosure, use, and dissemination of personally identifiable information regarding students.

Education, Supervision and Monitoring

It shall be the responsibility of all members of the District's staff to educate, supervise, and monitor appropriate usage of online computer network access to the internet in accordance with this policy and CIPA. If, during the course of such monitoring, a student or staff member discovers a violation of this policy, the student or staff member shall make a report as follows:

1) Students shall report suspected violation of this policy to any classroom teacher.
2) Staff members shall report suspected violations of this policy to their immediate supervisor when possible.

Disciplinary Measures

The district retains the right to discipline any student, up to and including expulsion, and any employee, up to and including termination, for violation of this policy.

Adoption

This Children's Internet Protection Act Safety Plan was adopted by the Board of USD 357 at a public meeting, following normal public notice and a hearing, on 11-23-09.

Approved: KASB Recommendation – 6/12;

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IIBGA CHILDREN'S INTERNET PROTECTION PLAN

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IIBGA CHILDREN'S INTERNET PROTECTION PLAN

If requesting discounts for internal connections and basic maintenance for internal connections, the following items need addressed as part of a technology plan. This plan should be approved by the board and filed in the district office. There would be no need to publish it in handbooks.

{THE CHILDREN'S INTERNET PROTECTION ACT TECHNOLOGY PLAN}

The district's technology plan must be designed with input from district staff who have an understanding of the district's technology level and available resources. The elements of such plan shall include the following:

1) *Clear Statement of Goals and a Realistic Strategy for Using Telecommunications and Information Technology to Improve Educational or Library Services;*
2) *Professional Development Strategy to Ensure Staff Understands How to Use These New Technologies to Improve Education or Library Services;*
3) *Assessment of the Telecommunication Services, Hardware, Software, and other Services that will be Needed to Improve Education or Library Services; and*
4) *Evaluation Process that Enables the School or Library to Monitor Progress Toward the Specified Goals and Make Mid-Course Corrections in Response to New Developments and Opportunities as They Arise.*

   ****This Children's Internet Protection Act Technology Plan must be adopted by the Board of USD 357 at a public meeting, following normal public notice and a hearing. Documentation of such adoption including the date thereof 12-13-10 must be included in the plan language.*

Approved: KASB Recommendation – 6/12

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IKCA HUMAN SEXUALITY AND AIDS EDUCATION

NOTE: Remove from book and file with the clerk/principals.

HUMAN SEXUALITY

AND

AIDS EDUCATION

I, _____, parent/guardian of _____, request that my child be removed from those portions of the Human Sexuality/AIDS instruction noted below:

_____

_____

_____

_____

I have had the opportunity to review the curriculum goals and objectives or have had the opportunity to have them explained to me by a school official.

_____ _____

Date Signature of Parent/Guardian

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IKDA RELIGIOUS OBJECTIONS TO ACTIVITIES

Sample Only: Retype, remove from policy book and file with the clerk.

ACTIVITY PARTICIPATION OPT-OUT FORM

I, _____ (parent/guardian) request that my child,

_____, be excused from participating in certain activities for religious reasons.

From what activity do you wish your child to be excused?

_____

_____

_____

Identify where in the curriculum the activity exists. (Please identify the grade level, class, building.)

_____

_____

For what reason do you wish your child to be excused. (Please state the particular religious objection to this activity, including the religious teaching you believe this activity violates.)

_____

_____

_____

_____

I understand that I am requesting the school to excuse my child from certain activities and that my request is subject to review and determination by the school. I further understand that if my request is granted, my child may still be required to view the activity, discuss the activity or may otherwise be exposed to the subject matter of the activity.

_____ _____

Parent/Guardian Signature Administrator Signature

Date Received _____

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Homeless Student Regulations

Required by Federal and State Law

NOTE: This document MUST be approved by board action to become policy. File with clerk, distribute to principals and duplicate as necessary in district newsletters and other documents.

Homeless students shall, by definition, include the following:

1. Children and youth who are sharing the housing of other persons due to loss of housing, economic hardship or a similar reason; are living in motels, hotels, trailer parks or camping grounds due to the lack of alternative adequate accommodations; are living in emergency or transitional shelters; or are abandoned in hospitals.
2. Children and youth who have a primary nighttime residence that is a public or private place not designated for or ordinarily used as a regular sleeping accommodation for human beings.
3. Children and youth who are living in cars, parks, public spaces, abandoned buildings, substandard housing, bus or train stations or similar settings.
4. Migratory children who meet one of the above-described circumstances.

Enrollment/Placement (See JBC)

The district, according to the child's or youth's best interest, shall either continue the child's or youth's education in the school of origin for the duration of homelessness in any case in which: 1) a family becomes homeless between academic years or during an academic year; and 2) for the remainder of the academic year, if the child or youth becomes permanently housed during an academic year; or enroll the child or youth in any public school that nonhomeless students who live in the attendance area in which the child or youth is actually living are eligible to attend.

School Stability

In determining the best interest of the child or youth, the district homeless student liaison shall:

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1) presume that keeping the child or youth in the school of origin is in the child's or youth's best interest, except when doing so is contrary to the request of the child's or youth's parent or guardian, or (in the case of an unaccompanied youth) the youth;

2) consider student-centered factors related to the child's or youth's best interest, including factors related to the impact of mobility on achievement, education, health, and safety of homeless children and youth, giving priority to the request of the child's or youth's parent or guardian or (in the case of an unaccompanied youth) the youth;

3) if, after conducting the best interest determination based on consideration of the presumption in clause (1) and the student-centered factors in clause (2), it is determined that it is not in the child's or youth's best interest to attend the school of origin or the school requested by the parent or guardian, or (in the case of an unaccompanied youth) the youth, provide the child's or youth's parent or guardian or the unaccompanied youth with a written explanation of the reasons for its determination, in a manner and form understandable to such parent, guardian, or unaccompanied youth, including information regarding the right to appeal such determination; and

4) in the case of an unaccompanied youth, ensure that the district homeless student liaison assists in placement or enrollment decisions under this subparagraph, gives priority to the views of such unaccompanied youth, and provides notice to such youth of the right to appeal.

Immediate Enrollment

The school selected shall immediately enroll the homeless child or youth, even if the child or youth:

1) is unable to produce records normally required for enrollment, such as previous academic records, records of immunization and other required health records, proof of residency, or other documentation;

or

2) has missed application or enrollment deadlines during any period of homelessness.

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Relevant Academic Records

The enrolling school shall immediately contact the school last attended by the child or youth to obtain relevant academic and other records.

Relevant Health Records

If the child or youth needs to obtain immunizations or other required health records, the enrolling school shall immediately refer the parent or guardian of the child or youth, or (in the case of an unaccompanied youth) the youth, to the district homeless student liaison, who shall assist in obtaining necessary immunizations or screenings, or immunization or other required health records.

Records

Any record ordinarily kept by the school, including immunization or other required health records, academic records, birth certificates, guardianship records, and evaluations for special services or programs, regarding each homeless child or youth shall be maintained so that the records involved are available, in a timely fashion, when a child or youth enters a new school or school district and in a manner consistent with the Family Educational Rights and Privacy Act. See policies JR through JRD.

Enrollment Disputes

If a dispute arises over eligibility, school selection, or enrollment in a school:

1) the child or youth shall be immediately enrolled in the school in which enrollment is sought (whether sought by the parent, guardian, or unaccompanied youth), pending final resolution of the dispute, including all available appeals;

2) the parent or guardian of the child or youth or (in the case of an unaccompanied youth) the youth shall be provided with a written explanation of any decisions related to school selection or enrollment made by the school, the local educational agency, or the State educational agency involved, including the rights of the parent, guardian, or unaccompanied youth to appeal such decisions; and

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3) the parent, guardian, or unaccompanied youth shall be referred to the district homeless student liaison, who shall carry out the dispute resolution process as expeditiously as possible after receiving notice of the dispute.

Placement Choice

The choice regarding placement shall be made regardless of whether the child or youth lives with the homeless parents or has been temporarily placed elsewhere.

Privacy

Information about a homeless child's or youth's living situation shall be treated as a student education record, and shall not be deemed to be directory information, under policy JRB.

Contact Information

Nothing shall prohibit the district from requiring a parent or guardian of a homeless child or youth to submit contact information.

Definition

The term "school of origin" means the school that a child or youth attended when permanently housed or the school in which the child or youth was last enrolled, including a preschool.

When the child or youth completes the final grade level served by the school of origin, the term "school of origin" shall include the designated receiving school at the next grade level for all feeder schools.

Comparable Services

Each homeless child or youth shall be provided services comparable to services offered to other students in the school selected, including:

1) Transportation services;

2) Educational services for which the child or youth meets the eligibility criteria, such as services provided under title I of the Elementary and Secondary Education Act of 1965 or similar State or

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local programs, educational programs for children with disabilities, and educational programs for English learners;

3) Programs in career and technical education;

4) Programs for gifted and talented students; and

5) School nutrition programs.

Coordination

The district shall coordinate the provision of services under these regulations with the Department for Children and Families and other agencies or entities providing services to homeless children and youths and their families, including services and programs funded under the Runaway and Homeless Youth Act (42 U.S.C. 5701 et seq.), and transportation, transfer of school records, and other interdistrict activities, with other local educational agencies.

Housing Assistance

If applicable, the district shall coordinate with state and local housing agencies responsible for developing the comprehensive housing affordability strategy to minimize educational disruption for children and youths who become homeless.

The coordination required shall be designed to:

1) ensure that all homeless children and youths are promptly identified;

2) ensure that all homeless children and youths have access to, and are in reasonable proximity to, available education and related support services; and

3) raise the awareness of school personnel and service providers of the effects of short-term stays in a shelter and other challenges associated with homelessness.

Homeless Children and Youths with Disabilities

For children and youths who are both homeless and eligible for services under the Individuals with Disabilities Education Act (20 U.S.C. 1400 et seq.), the district shall coordinate the provision of services under these regulations with the provision of programs for children with disabilities served by the district and other involved local educational agencies.

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JBCA HOMELESS STUDENTS

District Homeless Student Liaison

The board designates the following individual to act as the district's homeless student liaison: Belle Plaine Middle School Principal, 724 N. Merchant, Belle Plaine, KS 67013 Ph. 620-488-2222 or Fax 620-488-8565. The district shall inform school personnel, service providers, and advocates working with homeless families of the duties of this liaison.

The district homeless student liaison shall ensure:

1) homeless children and youths are identified by school personnel through outreach and coordination activities with other entities and agencies;

2) homeless children and youths are enrolled in, and have a full and equal opportunity to succeed in, district schools;

3) homeless families and homeless children and youths have access to and receive educational services for which such families, children,

and youths are eligible, including services through Head Start programs (including Early Head Start programs) under the Head Start Act (42 U.S.C. 9831 et seq.), early intervention services under part C of the Individuals with Disabilities Education Act (20 U.S.C. 1431 et seq.), and other preschool programs administered by the local educational agency.

4) homeless families and homeless children and youths receive referrals to health care services, dental services, mental health and substance abuse services, housing services, and other appropriate services;

5) the parents or guardians of homeless children and youths are informed of the educational and related opportunities available to their children and are provided with meaningful opportunities to participate in the education of their children;

6) public notice of the educational rights of homeless children and youths is disseminated in locations frequented by parents or guardians of such children and youths, and unaccompanied youths, including schools, shelters, public libraries, and soup kitchens, in a manner and form

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understandable to the parents and guardians of homeless children and youths, and unaccompanied youths;

7) enrollment disputes are mediated in accordance with these regulations;

8) the parent or guardian of a homeless child or youth, and any unaccompanied youth, is fully informed of all transportation

services, including transportation to the school of origin, and is assisted in accessing transportation to the school that is selected;

9) school personnel providing services under these regulations receive professional development and other support; and

10) unaccompanied youths:

a. are enrolled in school;

b. have opportunities to meet the same challenging state academic standards as Kansas establishes for other children and youth; and

c. are informed of their status as independent students under federal law regarding student financial assistance for higher education acquisition and that the youths may obtain assistance from the district homeless student liaison to receive verification of such status for purposes of the Free Application for Federal Student Aid.

The liaison shall also work with the state coordinator for education of homeless children and youth to request and receive needed technical assistance and monitoring to ensure the district complies with federal and state law regarding homeless students. Similarly, the liaison will coordinate with the state coordinator in order to provide professional development opportunities for district personnel to aid them in identifying and meeting the needs of homeless children and youths and will respond to inquiries from parents, guardians, and homeless children and youths to ensure they are provided with the full protection of the law and services they are due.

Notice

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The district shall inform school personnel, service providers, advocates working with homeless families, parents and guardians of homeless children and youths, and homeless children and youths of the duties of the district homeless student liaison, and publish annually updated contact information for the liaison on the district's website.

Local and State Coordination

The district homeless student liaison, as a part of assigned duties, shall coordinate and collaborate with state coordinators, the community, and school personnel responsible for the provision of education and related services to homeless children and youths. Such coordination shall include collecting and providing to the state coordinator the reliable, valid, and comprehensive data.

Homeless Status

The district homeless student liaison may affirm, without further agency action by the Department of Housing and Urban Development, that a child or youth who is eligible for and participating in a program provided by the district, or the immediate family of such a child or youth, who meets the eligibility requirements, is eligible for such program or service.

Dispute Resolution Process

A complaint regarding the placement or education of a homeless child or youth shall first be presented orally and informally to the district's homeless student liaison. If the complaint is not promptly resolved, the complainant may present a formal written complaint (grievance) to the homeless student liaison. The written complaint must include the following information: date of filing, description of concerns, the name of the person or persons involved, and a recapitulation of the action taken during the informal charge stage. Within five (5) working days after receiving the complaint, the liaison shall state a decision in writing to the complainant, with supporting evidence and reasons. In addition, the liaison will inform the superintendent of the formal complaint and the disposition.

Transportation (See EDAA, JBC and JGG)

If it is in the best interest of the homeless child or youth to attend the school of origin, transportation to and from that school will be provided at the request of the parent or guardian or, in the

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case of an unaccompanied youth, the homeless coordinator. If the student's temporary housing is outside the attendance area of the school of origin, then the district will work with the school of origin to agree on a method to apportion the responsibility and costs for transporting the child. If an agreement cannot be reached, the costs will be shared equally.

Adopted: 03/13/2017

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JBCA HOMELESS STUDENTS

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Complaint Form

PROGRAMS FOR HOMELESS STUDENTS
(Assignment to a School Other than School of Origin/School Requested by the Parent)

After reviewing the situation, it would be in the best interest of your child or youth to be educated at ____.

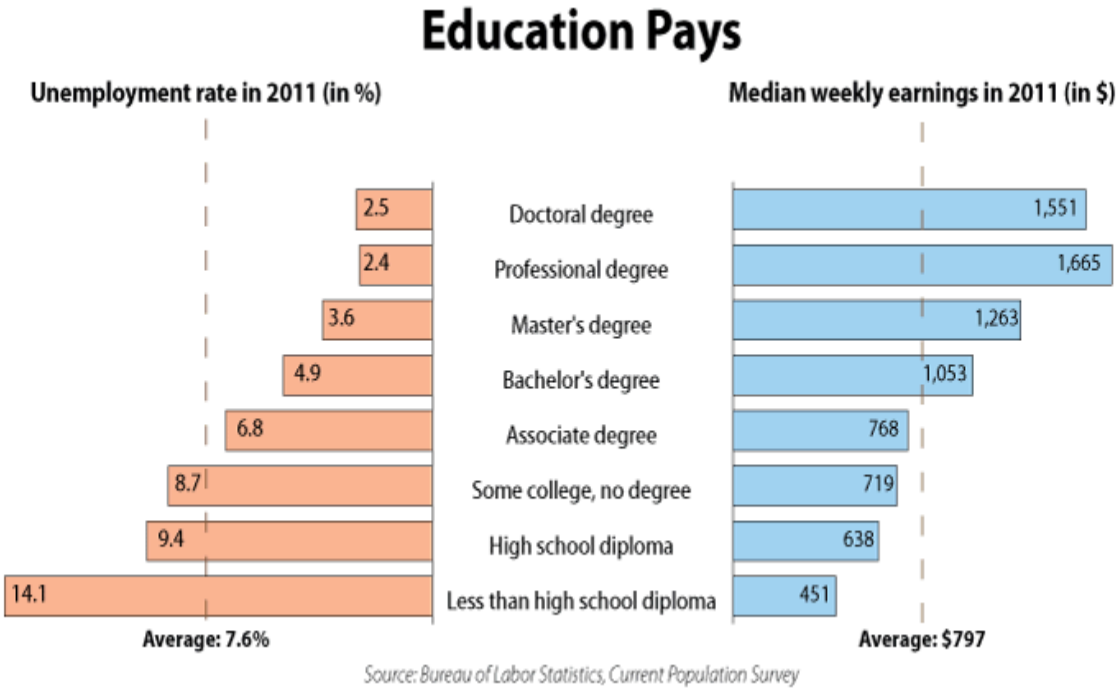
Explanation of decision: _____
_____
_____
_____

If you so choose, you may appeal this decision in the following manner:

You may verbally and informally state your complaint to the district's homeless student liaison. If the complaint is not promptly resolved, you may complain in writing to the homeless student liaison. You must include the following information: date of filing, description of the complaint, the name of the person or persons involved and an explanation of the action taken during the informal charge stage. Within five (5) working days after receiving the complaint, the liaison will provide you a written decision, with supporting evidence and reasons. In addition, the liaison will inform the superintendent of the formal complaint and the result.

Adopted: 03/13/2017

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PARENT CONSENT AND WAIVER FOR CHILD 16 OR OLDER TO BE EXEMPT FROM COMPULSORY ATTENDANCE REQUIREMENTS.

I, (Name of Parent(s) or Person Acting As Parent), understand that pursuant to Kansas law, (Name of Student) is required to attend school until he/she receives a high school diploma or general educational development (GED) credential or reaches the age of 18, whichever occurs first.

Pursuant to K.S.A. 72-3120, as amended, Unified School District No. 357 encourages (Name of Student) to remain in school or to pursue an education alternative.

The academic skills listed below have not been achieved by (Name of Student):

Based on (Source of Information) the difference in future earning power between a high school graduate and a high school dropout is _____.

(Name of Student) is encouraged to attend one of the following area alternative education programs in order to aid (Name of Student) in obtaining a high school diploma, a general education development credential, or other certification of completion, such as a career technical education industry certification:

(List any programs that may be available. Contact information for accredited private schools, virtual schools, and virtual programs can be found at http://www.ksde.org/Agency/Division-of-Learning-Services/Career-Standards-and Assessment-Services/CSAS-Home/Graduation-and_Schools-of-Choice/Adult-Diploma-Completion/Information-For-Alternative-and-Adult-Learners. The statutory language suggests an "alternative learning plan" could also include extended learning opportunities such as independent study, private instruction, performing groups, internships, community service, apprenticeships, and online coursework.)

I (we), the undersigned, hereby give written consent to allow (Name of Student), who is [16] [17] years of age, to be exempt from the Kansas compulsory attendance requirement and state we have attended the final counseling session conducted by USD No. 357 in which the above information was presented to us.

_____	_____
Signature of Student	Signature of Parent(s) or Person Acting as Parent
_____	_____
Date	Date

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Search Report Form

Name of the student _____

Parents contacted _____yes _____no

Time of search_____ Date_____

Place of search_____

Reason or reasons for the search _____
_____
_____

Law enforcement officials were called by _____

Name of the person who conducted the actual search _____

Names of the persons present while the student was being searched:
_____
_____

Result of the search
_____
_____

Object/s confiscated
1. _____
1. _____
2. _____

Notifications Parent/Guardian_____
Name Time Results
Law enforcement_____
Name Time Results
Other_____
Name Time Results

cc: Student's file
cc: Superintendent

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Report to Local Law Enforcement

USD 357

Pursuant to K.S.A. 72-6143, the administrator or other school employee whose signature appears below is reporting the following crimes:

Briefly describe each incident and the person/s involved in a misdemeanor or felony; possession of a weapon at school, on school property, or at a school activity; or possession, use, sale or distribution of an illegal drug or controlled substance at school, on school property or at a school activity; or behavior at school, on school property, or at a school activity, which resulted in, or is likely to result in, serious bodily injury to others.

Date	School/Location	Student/s or Person/s Involved	Brief Description
1.			
2.			
3.			
4.			
5.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed:_____
Administrator or other school employee

c/o Superintendent, USD 357; c/student's file

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Report to Local Law Enforcement

USD 357

Pursuant to Kansas law, the administrator or other school employee whose signature appears below is reporting the following crimes:

Briefly describe each incident and the person/s involved in a misdemeanor or felony behavior at school, on school property, or at a school activity.

Date	School/Location	Student/s or Person/s Involved	Brief Description of bullying incident/s.
1.			
2.			

School Districts are required by Federal Law and K.S.A. 72-6311 to protect the privacy rights of students under the age of 18.

Signed:_____
Administrator or other school employee

c/o Superintendent, USD 357; c/student's file/employee's file as allowed by applicable negotiated language.

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SAMPLE STUDENT INFORMATION FORM

Student Name_____

Parent/Guardian Name_____

Mailing Address_____

Street Address_____

Home Phone_____

Business Phone_____

Name(s) and phone number(s) of some other person(s) to be called in the event of an accident if the parent(s) cannot be contacted:

1._____

2._____

Name and office phone number of family physician: _____

_____

Physical conditions staff members should be alerted to:

_____

_____

SAMPLE CONSENT FOR EMERGENCY MEDICAL TREATMENT

I, the undersigned, being the natural parent (or legal guardian) of _____, a minor, do hereby consent to the securing of emergency medical treatment, including the necessary transportation to receive such treatment, for said _____by _____, the superintendent of schools USD 357, Sumner County, or designee.

Dated this ____day of _____, 20__, and valid for the remainder of 20__-__ school year or until specifically revoked.

_____

Parent _____

Witnessed By: _____

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JGFGB SUPERVISION OF MEDICATIONS

SAMPLE FORM

USD 357

School _____

Medications Given at School

Name of Student_____

Parent/Guardian _____

Physician's Name _____ Phone _____

Medication _____ Prescribed by _____

Dosage _____ Time to be Given _____

Duration of Orders _____

_____

Date	Time	Dosage	Administered By (signature)	Comments

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JGFGB SUPERVISION OF MEDICATIONS

Permission for Medication

Name of Student _____

School_____Grade _____

Teacher _____

Medication _____Dosage _____

Date Started _____

Time of day medication is to be given _____

_____

I hereby give my permission for _____ to take the above medication at school as ordered. I understand that it is my responsibility to furnish this medication. I further understand that any school employee who administers any drug or nonprescription medication pursuant to parental written request to my student in accordance with written instructions from the physician or dentist shall not be liable for damages as a result of an adverse medication reaction suffered by the student because of administering such medication.

_____ _____

Date Signature of Parent or Guardian

NOTE: The medication is to be brought to school in the original container appropriately labeled by the pharmacy, or physician, stating the name of the medication, the dosage and times to be administered.

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Permission for Self-Administration of Medication

Name of Student _____

School_____Grade _____ Teacher

_____ Medication

_____Dosage _____ Date Started

_____ Conditions under which the

medication is to be given:

_____

Any additional circumstances under which the medication is to be given:

_____

Length of time medication is to be administered:

_____

I hereby give my permission for **(name of student)** to administer the above medication at school as ordered. I understand that it is my responsibility to furnish this medication. I acknowledge that the school incurs no liability for any injury resulting from the self-administration of medication and agree to indemnify and hold the school, and its employees and agents, harmless against any claims relating to the self-administration of such medication.

My child has been instructed on self-administration of the medication and is authorized to do so in school.

Signature of Parent or Guardian

[NOTE: Parental permission must be renewed annually]

_____Date_____

Signature of Health Care Provider

_____Date_____

Approved:

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Sample Only: Adapt for local use

Public Input Form: Request to Add/Eliminate an Activity

1. Name:
2. Address:

3. Represents: Self Group:

4. Name of Group:

5. Activity to eliminate: Explain rationale

6. Activity to add:

7. Proposed start-up budget: $_____

   - Prepare a detailed budget sheet for board consideration.
   - Where would you get the money?
   - If no new money is available, what existing program would you propose reducing or eliminating to fund the proposed budget?

8. On-going budget: $_____

   Prepare a reasonably detailed on-going budget which describes the on-going expenses necessary to maintain the program.

9. Indicate need to add program:

10. OTHER:

Use additional paper as necessary.

Signed:_____

Date submitted to administration: _____, 200_

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JQKA FOREIGN EXCHANGE STUDENTS

APPLICATION FORM

Foreign Exchange Student/Host Family
(To Be Completed by Host Family and School Administrator)

Host Family Information

Name _____

Address _____ City _____ State _____

Zip Code_____ Phone No. _____

Names, ages, and class of host family children attending the schools of the district:

Name	Age	Class or Grade Level
1) _____		
2) _____		
3) _____		
4) _____		

Foreign Exchange Student

Name _____Nationality _____ Age _____

Address _____City _____

Country_____Phone No. _____

Sponsoring Agency _____

School diploma received from home country? _____ Yes _____ No

Check courses that student has completed. (verified from official transcript)

_____ English	Number of verified units_____
_____ Science	Number of verified units_____
_____ Social Studies	Number of verified units_____
_____ Physical Education	Number of verified units_____
_____ Native language class	Number of verified units_____

We, acting as host family, assume full responsibility for (student's name) while he/she is residing with us. We are not sponsoring this student for personal profit and will ensure that all of the policies, rules, and regulations of the board are followed.

_____

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Date Signature of head of host family

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HANDBOOK LANGUAGE / FORMS

General Information

Student Privacy Rights (See JRB)

Identifiable student images shall not be posted on district or school websites without prior written permission from the student and, if under 18, the student's parent or guardian. The mailing address, telephone number or other personally identifiable information about any student shall not be posted on district or school web sites. All applicable requirements of the Family Educational Rights and Privacy Act (FERPA) shall be followed.

Copyrighted Material Posted on Websites (See KBA)

Any original materials created by students are owned by those students. Original materials will not be posted on district or school web sites without prior written permission of the student who created the work. _____ (Webmaster/Principal, etc.) shall be in charge of monitoring permission to post copyrighted materials.

Software Copyright (See ECH)

Software acquired by staff using district or school web sites, and installed on district computers, must comply with copyright laws. Proof of purchase (copy or original) must be filed in the district office.

Downloading Copyrighted Materials (ECH)

Students and staff shall not download copyrighted materials without prior, written permission being obtained from the author or creator of the material in question. See ECH for “fair use exceptions” which may allow for limited use of copyrighted materials.

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Proposed rules: This is a "Starter Kit" which must be customized to meet local needs. Remove from policy and file with the clerk after board approval.

Facility Use Rules

Use of school facilities or school grounds by community groups may be allowed by the board on a temporary basis. The following fees are for use of the facilities equipped as is. Additional fees will be charged for pianos, chairs, projectors, public address systems, etc., not in the facility. No alteration to any facility shall be made by the renter or their personnel without the written permission of the superintendent.

The individual or group using the facility agrees to assume responsibility for care of the facility and agrees to pay for any damages to the facility, beyond normal wear, related to its use of the facility. In addition, the individual or group agrees to assume responsibility to ensure the use of tobacco, unprescribed controlled substances or alcoholic beverages is not allowed in the facility, either by the individual, the group or other participants.

Payment for the use of a facility is to be made in advance. Additional charges may be assessed after the fact if the individual or group fails to abide by the agreement.

This policy shall be administered by the superintendent, or the superintendent's authorized designee, and the superintendent's decisions are subject to review by the board upon timely filing of a written protest with the clerk of the board.

Procedure for Figuring Charges (***Example Only***)

The USD 357 Board of Education recognizes there are groups and/or organizations within the district which are ongoing with primary goals of community betterment and providing varying degrees of services to district students.

The district's schedule for facility use charges is altered to reflect the amount to be recovered from similar groups for the use of school facilities.

(Private Organizations and Businesses - 100% of Fee)

These organizations and businesses are identified as follows:

1) The primary goal of the business/organization is profit making; or

2) Charges are made by the business/organization when a school facility is used and the receipts are placed in the business/organization account for use generally by the business/organization; or

3) The business/organization is a nonprofit type of organization with the major financial support derived generally from a specific group of people through donations and/or freewill offerings.

Examples of businesses/organizations in this group are: dance studios and dance groups; radio-television entertainment; automobile displays; churches and other religious organizations; businesses; non-school sport events, etc.

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(Civic Organizations - 60% of Fee)

These organizations are identified as follows:

1) The group generally operates within the community and is adult-oriented;

2) The group is easily recognized as a civic organization and functions in many different communities;

3) The group operates on a State, Regional and/or National Charter which specifically states service to the community as one of the organization requirements; or

4) The group is a local organization that receives its funding from donations and/or receives tax money from some governmental agencies.

Examples of organizations in this group are: Lions Club; Rotary Club; Kiwanis Club; V.F.W.; American Legion; Elks Club; Chamber of Commerce, etc.

(USD 357 Supporting Organizations - 40% of Fee)

These organizations are identified as follows:

1) The group sponsors events directly involving USD 357 students and/or, in a broad sense, former students; is a type which provides future positive assistance to USD 357 student events and is non-school supervised; or

2) The group may derive income from the events, and shall return substantial income to the community through scholarships and other similar projects to USD 357 students; or

3) The group provides a broad base program of student self-improvement in moral judgment, home and community life, poise and self-control and the family as an American way of life; or

4) The group has a track record of promoting a positive image of the community, the young people of the area and aid to education in the district.

Examples of these organizations are: Junior Miss Scholarship Program; Miss Kansas Pageant; Alumni Association; Vo-Tech.; Arts Councils; etc.

(Community Improvement and Student Assistance Organizations - No Charge)

These organizations are identified as follows:

1) The groups providing services to the county or city population at little or no cost that are difficult to obtain elsewhere or are military and/or governmental in nature; or

2) The group generally operates as a not-for-profit group; or

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3) The group provides an opportunity for a better understanding of the arts through displays and presentations and may be governmental in nature; or

4) The group provides needed assistance to the community in times of disaster and is a nonprofit or governmental type of organization; or

5) The group organizes when necessary to supply a service to education in general or specifically to students.

Examples of these organizations are: City/County Recreation; Military Band; Swim Team; Parents of Seniors for School Purposes; Kansas National Guard; Kansas Kids Wrestling Program; Community Playhouse; occasional usage by 4-H, Boy Scouts and Girl Scouts; etc.

Approved: KASB Recommendation – 2/00; 4/07

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KG FACILITY USE LANGUAGE AND FORMS

USD 357

SCHEDULE OF RATES FOR FACILITY USE

Building/Area **Rate of Charge**

High School:

Fieldhouse when no admission is charged	$
Fieldhouse when admission is charged	
Gym when no admission is charged	
Gym when admission is charged	
Auditorium when no admission is charged	
Auditorium when admission is charged	
Cafeteria without kitchen equipment	
Cafeteria with kitchen equipment*	

Junior High School:

Gym when no admission is charged	
Gym when admission is charged	

Elementary:

Gym (Central) when no admission is charged	
Multi-purpose when no admission is charged	
Multi-purpose when admission is charged	

Use of Any Classroom (per classroom)

When no admission is charged	
When admission is charged	

All charges are based on a per day charge. Use of facilities for four (4) hours or less will be charged one-half (1/2) of the daily rate. The charges include the time for one (1) custodian. Should the services of additional personnel be required due to the nature of the use request, the charges will be based on $_____ per hour for such additional employee.

*When kitchen equipment is used, a school cook must be present.

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KG FACILITY USE LANGUAGE AND FORMS

USD 357 Belle Plaine, Kansas

SCHOOL FACILITY USE PERMIT

This permit authorizes the use of the school facilities as listed. The person to whom this permit is issued agrees to accept responsibility for the care of the facility and the compliance with school board policy covering facility use by non-school groups. (Policy KG)

Person to Whom Issued: _____

Address: _____ Telephone No. _____

Group or Organization Represented: _____

Purpose of Meeting: _____

Specific Facility/Room(s)Needed: _____

_____

Date(s) of Use: _____

Building Needed: _____

Start Time: _____ End Time: _____

Room(s) Needed: _____ Start Time: _____ End Time: _____

Equipment/Services Needed: _____

(only those services/equipment/facilities listed will be provided.)

_____

Insurance and Other Special District Requirements for Use: _____

_____

Use Charge for Services/Facilities Listed: _____

Date and Amount Paid: _____

Principal's Approval:_____Date: _____

Superintendent's Approval:_____Date: _____

This form must be signed by the person to whom it is issued and presented by that person to the custodian on the date(s) shown. Please read all the provisions and guidelines related to this agreement.
I have read the Building Use Agreement and Guidelines and I agree that I will be responsible to see that there is full compliance with them.

1st copy: Requester's copy
2nd copy: Building Principal
3rd copy: Clerk of the Board

Signature: _____ Date: _____

Group Representative

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KI DISTRIBUTING MATERIALS IN SCHOOLS

Sample only: Adapt for Local Use

Distribution Rules: Non-School Materials USD 357

The following item/s may be distributed:

Time: On September 13th and 14th only between the hours of 3:15 and 3:30 p.m.

Place: In the commons area at a table set up for the purpose of distribution of approved materials.

Manner: The person distributing may stand next to the table on which materials are stacked. If a child walking by asks for one, the person may hand them a copy. No attempt shall be made to engage the child in dialogue concerning whether they accept or reject the material.

Signed: _____
Administrator

Signed: _____
Representative of group or individual who produced the material

Approved: KASB Recommendation – 4/99; 3/00

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U.S.D. No. 357

Complaint of Discrimination Form

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KN - COMPLAINT FORM

The policies of Board of Education of U.S.D. No. 357 prohibit discrimination on the basis of race, color, national origin, disability, religion and sex in all programs and activities of the district. Additionally, discrimination on the basis of age is prohibited in employment.
Harassment of individuals on any of these grounds is strictly prohibited.
Individuals who believe they have been discriminated against on any of these grounds may file a complaint with the following discrimination coordinators:

District Discrimination Coordinator: Name: _____ Address: _____ Phone: _____
Building Discrimination Coordinators: Name: _____ Address: _____ Phone: _____
Name: _____ Address: _____ Phone: _____

Name of Complainant: Address: Telephone Number:	_____ _____ _____
Nature of the Complaint:	I believe that I have been subjected to discrimination on the basis of: □ Race □ Color □ National Origin □Racial Harassment □ Sex □ Sexual Harassment □ Disability □Religion □ Age □ Harassment on the basis of _____
Please describe the incident or act complained of: Please include information about: ● Who was the person engaging in the conduct? ● What was the nature of the conduct? ● When did it occur? ● Where did it occur? ● What effect did the incident have on you?	_____ _____ _____ _____ _____ _____ _____ _____ _____ _____ Attach additional sheets if necessary.
Were there any witnesses to this incident?	□ Yes □ No If yes, please indicate who the witnesses were: _____ _____ _____
What action do you believe the school should take with regard to this incident?	_____ _____ _____

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KN COMPLAINT FORM

If this matter proceeds to a formal or informal hearing, will you appear and testify as to your knowledge of the matter? □ Yes □ No

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